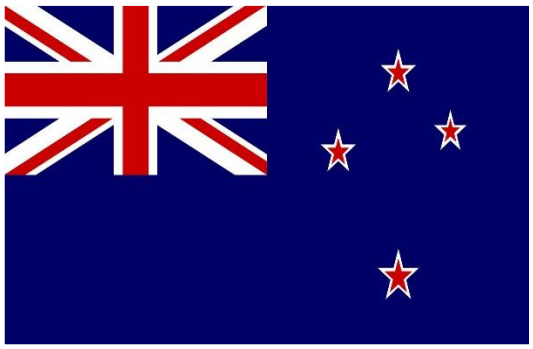




FREE TRADE AGREEMENT

BETWEEN

THE GOVERNMENT OF THE REPUBLIC OF INDIA

AND

THE GOVERNMENT OF NEW ZEALAND

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CHAPTER 1

INITIAL PROVISIONS AND GENERAL DEFINITIONS

Article 1.1
Establishment of a Free Trade Area

The Parties, consistent with Article XXIV of GATT 1994 and Article V of GATS, hereby establish a free trade area in accordance with the provisions of this Agreement.

Article 1.2
General Definitions

For the purposes of this Agreement, unless otherwise specified:

(a) **"Agreement"** means the Free Trade Agreement between India and New Zealand;

(b) **"Anti-Dumping Agreement"** means the *Agreement on Implementation of Article VI of General Agreement on Tariffs and Trade 1994*, set out in Annex 1A to the WTO Agreement;

(c) **"Agreement on Agriculture"** means the *Agreement on Agriculture*, set out in Annex 1A to the WTO Agreement;

(d) **"Customs Valuation Agreement"** means the *Agreement on Implementation of Article VII of General Agreement on Tariffs and Trade 1994*, set out in Annex 1A to the WTO Agreement;

(e) **"days"** means calendar days, including weekends and holidays;

(f) **"GATS"** means the *General Agreement on Trade in Services*, set out in Annex 1B to the WTO Agreement;

(g) **"GATT 1994"** means the *General Agreement on Tariffs and Trade 1994,* set out in Annex 1A to the WTO Agreement;

(h) **"goods"** means any merchandise, product, article or material;

(i) **"Harmonized System" or "HS"** means the *Harmonized Commodity Description and Coding System* defined in the International Convention on the Harmonized Commodity Description and Coding System, including its General Rules of Interpretation, and legal notes, which includes Section Notes, Chapter Notes, and Subheading Notes, as adopted and implemented by the Parties in their respective laws;

(j) **"Joint Commission"** means the Joint Commission established pursuant to Article 17.1 (Establishment of the Joint Commission);

(k) **"measure"** means any measure by a Party, whether in the form of a law, regulation, rule, procedure, decision, administrative action, or any other form;

(l) **"originating goods"** means goods that qualify as originating in accordance with Chapter 3 (Rules of Origin);

(m) **"perishable goods"** means goods that rapidly decay due to their natural characteristics, in particular in the absence of appropriate storage conditions;

(n) **"Safeguards Agreement"** means the *Agreement on Safeguards*, set out in Annex 1A to the WTO Agreement;

(o) **"SCM Agreement"** means the *Agreement on Subsidies and Countervailing Measures*, set out in Annex 1A to the WTO Agreement;

(p) **"SME"** means a small and medium-sized enterprise, including a micro-sized enterprise, and may be further defined, where applicable, according to the respective laws, regulations, or national policies of each Party;

(q) **"territory"** means:

(i) in respect of India, the territory of the Republic of India in accordance with the Constitution of India, including its territorial waters and the airspace above it and other maritime zones including the Exclusive Economic Zone and continental shelf over which the Republic of India has sovereignty, sovereign rights, or exclusive jurisdiction in accordance with its law and the *United Nations Convention on the Law of the Sea*, done at Montego Bay on 10 December 1982 and international law;

(ii) in respect of New Zealand, the territory of New Zealand and the exclusive economic zone, seabed and subsoil over which it exercises sovereign rights with respect to natural resources in accordance with international law, but does not include Tokelau;

(r) **"TRIPS Agreement"** means the *Agreement on Trade-Related Aspects of Intellectual Property Rights*, set out in Annex 1C to the WTO Agreement;

(s) **"WTO"** means the World Trade Organization; and

(t) **"WTO Agreement"** means the *Marrakesh Agreement Establishing the World Trade Organization*, done at Marrakesh on 15 April 1994.

CHAPTER 2

TRADE IN GOODS

Article 2.1
Definitions

For the purposes of this Chapter:

(a) **"commercial samples of negligible value"** means commercial samples as determined by a Party to be either having a value, individually or in the aggregate as shipped, of not more than the amount specified in a Party's laws, regulations, or procedures governing temporary admission, or being so marked, torn, perforated, or otherwise treated that they are unsuitable for sale or use except as commercial samples;

(b) **"consular transactions"** means requirements that goods of a Party intended for export to the territory of the other Party must first be submitted to the supervision of the consul of the importing Party in the territory of the exporting Party or in the territory of a non-Party for the purpose of obtaining consular invoices or consular visas for commercial invoices, certificates of origin, manifests, shippers' export declarations, or any other customs documentation required on or in connection with importation;

(c) **"customs duty"** means any duty or charge of any kind imposed on or in connection with the importation of a good and any cess, surtax or surcharge imposed in connection with such importation, but does not include any:

  (i) charge equivalent to an internal tax imposed consistently with Article III:2 of GATT 1994;

  (ii) fee or other charge in connection with the importation commensurate with the cost of services rendered or imposed in conformity with Article VIII of GATT 1994; or

  (iii) anti-dumping duty, countervailing duty or a safeguard measure applied pursuant to the laws of a Party and applied consistently with the provisions of Article VI or XIX of GATT 1994, the Anti-Dumping Agreement, the SCM Agreement or the Safeguards Agreement;

(d) **"duty-free"** means free of customs duty;

(e) **"goods of a Party"** means domestic products as these are understood in GATT 1994 or such goods as the Parties may agree, and includes originating goods of a Party;

(f) **“import licensing”** means an administrative procedure requiring the submission of an application or other documentation, other than that generally required for customs clearance purposes, to the relevant administrative body of the importing Party as a prior condition for importation into the territory of the importing Party;

(g) **“Import Licensing Agreement”** means the *Agreement on Import Licensing Procedures*, set out in Annex 1A to the WTO Agreement; and

(f) **“printed advertising materials”** means those goods classified in Chapter 49 of the Harmonized System, including brochures, pamphlets, leaflets, trade catalogues, yearbooks published by trade associations, tourist promotional materials and posters, that are used to promote, publicise, or advertise a good or service, are essentially intended to advertise a good or service, and are supplied free of charge.

Article 2.2
Scope

Unless otherwise provided in this Agreement, this Chapter shall apply to trade in goods of a Party.

Article 2.3
Elimination or Reduction of Customs Duties

1. Each Party shall progressively eliminate or reduce its customs duties on originating goods in accordance with its Schedule to Annex 2A (Schedules of Tariff Commitments).

2. On request of a Party, the Parties may consult to consider accelerating or broadening the scope of the elimination or reduction of customs duties set out in their Schedules to Annex 2A (Schedules of Tariff Commitments). An agreement by the Parties to accelerate the elimination or reduction of a customs duty on a good, or to include a good in Annex 2A (Schedules of Tariff Commitments), shall supersede any duty rate or staging category determined in accordance with their Schedules to Annex 2A (Schedules of Tariff Commitments) for that good when approved by each Party in accordance with its applicable domestic requirements, including internal legal procedures.

3. A Party may at any time unilaterally accelerate or broaden the scope of the elimination or reduction of customs duties set out in its Schedule to Annex 2A (Schedules of Tariff Commitments) on originating goods of the other Party. The Party shall publish as early as practicable before the new rate of customs duty takes effect.

4. If the most-favoured-nation rate of customs duty applied by a Party on a particular good is lower than the rate of customs duty provided for in its Schedule to Annex 2A (Schedules of Tariff Commitments), an importer may claim the most-favoured-nation customs duty and the Party shall apply the lower rate to the originating good of the other Party.

Article 2.4
National Treatment

Each Party shall accord national treatment to the goods of the other Party in accordance with Article III of GATT 1994, and to this end Article III of GATT 1994 is incorporated into and made part of this Agreement, *mutatis mutandis*.

Article 2.5
Administrative Fees and Formalities

1. Each Party shall ensure, in accordance with Article VIII:1 of GATT 1994, that all fees and charges of whatever character (other than customs duties, charges equivalent to an internal tax or other internal charges applied consistently with Article III:2 of GATT 1994, anti-dumping and countervailing duties and safeguard measures) imposed on or in connection with importation or exportation are limited in amount to the approximate cost of services rendered and do not represent an indirect protection to domestic goods or a taxation of imports or exports for fiscal purposes.

2. Neither Party shall require consular transactions, including any related fees and charges, in connection with the importation of any good of the other Party.

3. Each Party shall promptly make publicly available on the internet all fees and charges it imposes in connection with importation or exportation including any updates or changes to those fees and charges. Fees and charges shall not be applied until information on them, including the responsible authority, and when and how payment is to be made, has been published, to the extent possible, in the English language.

Article 2.6
Customs Valuation

Each Party shall determine the customs value of goods traded between the Parties in accordance with Article VII of GATT 1994, including its interpretive notes, and Articles 1 through 17 of the *Agreement on Implementation of Article*

VII of the General Agreement on Tariffs and Trade 1994, set out in Annex 1A to the WTO Agreement, including its interpretative notes.

Article 2.7
Classification of Goods and Transposition of Schedules

1. The classification of goods traded between the Parties shall be governed by each Party's respective tariff nomenclature in conformity with the Harmonized System and its amendments.

2. Pursuant to paragraph 1, each Party shall ensure that the transposition of its tariff commitments, undertaken in order to implement Annex 2A (Schedules of Tariff Commitments) in the nomenclature of the revised HS following periodic amendments to HS, is carried out without impairing or diminishing the tariff commitments set out in its Schedule to Annex 2A (Schedules of Tariff Commitments).

Article 2.8
Import and Export Restrictions

Unless otherwise provided in this Agreement, neither Party shall adopt or maintain any prohibition or restriction on the importation of any good of the other Party or on the exportation or sale for export of any good destined for the territory of the other Party, except in accordance with Article XI of GATT 1994, and to this end Article XI of GATT 1994 is incorporated into and made part of this Agreement, *mutatis mutandis*.

Article 2.9
Import Licensing

1. A Party shall only adopt or maintain import licensing procedures which are consistent with the Import Licensing Agreement, and to this end Articles 1 through 3 of the Import Licensing Agreement are incorporated into and made part of this Agreement, *mutatis mutandis*.

2. A Party shall publish on an official government website any new or modified import licensing procedure, including any information that it is required to publish under Article 1.4(a) of the Import Licensing Agreement. To the extent practicable, the Party shall do so at least 21 days before the new procedure or modification takes effect.

3. A Party shall be deemed to be in compliance with paragraph 2 with respect to a new or modified import licensing procedure if it notifies that procedure, including the information specified in Article 5(2) of the Import Licensing Agreement, to the WTO Committee on Import Licensing provided for in Article 4 of the Import Licensing Agreement.

4. At the request of a Party, the other Party shall provide the information specified in Article 5(2) of the Import Licensing Agreement, with regard to any import licensing procedure that it adopts or maintains or changes to an existing licensing procedure.

Article 2.10
Application of Non-Tariff Measures

1. Neither Party shall adopt or maintain any non-tariff measure on the importation of any good of the other Party or on the exportation of any good destined for the territory of the other Party, except in accordance with its WTO rights and obligations or in accordance with this Agreement.

2. Each Party shall ensure the transparency of its non-tariff measures permitted in paragraph 1 and shall ensure that any such measures are not prepared, adopted or applied with the view to, or with the effect of, creating unnecessary obstacles to trade between the Parties. Any new measure or modification to an existing measure shall be published as soon as practicable.

Article 2.11
Temporary Admission

1. Each Party shall allow, in accordance with its laws and regulations, goods regardless of their origin, including their means of transport, to be brought into its territory conditionally relieved from payment of customs duties if such goods:

   (a) are intended for re-exportation within a specific period without having undergone any change except normal depreciation and wastage, due to the use made of them; and

   (b) are brought into its territory for one of the following purposes:

      (i) goods intended for display or use at playgrounds, theatres, exhibitions, fairs or other similar events;

      (ii) professional equipment, necessary to carry out a trade or profession, which qualifies for temporary entry pursuant to the laws or regulations of the Party;

      (iii) commercial samples and advertising films and recordings;

      (iv) containers and pallets which are durable, reusable and that are in use or to be used in the shipment of goods in international traffic;

(v) goods imported exclusively for educational or scientific purposes or cultural activities and events; and

(vi) goods imported for sports purposes.

2. Neither Party shall impose any condition on the temporary admission of the goods referred to in paragraph 1, other than to require that such goods:

(a) are intended for re-exportation without having undergone any change except normal depreciation and wastage due to the use made of them.

(b) be accompanied by a security deposit, if requested by the importing Party, in an amount no greater than the customs duty or charges that would otherwise be owed on importation, releasable on exportation of the good;

(c) be exported on the departure of the person referred to in subparagraph 1(a) or within such period of time as is reasonably related to the purpose of temporary admission;

(d) be capable of identification when exported;

(e) not be sold or leased while in its territory;

(f) not be imported in a quantity greater than is reasonable for its intended use; and

(g) be otherwise admissible into the importing Party's territory under its laws.

3. If any condition that a Party imposes under paragraph 2 has not been fulfilled, that Party may apply the customs duty and any other charge that would normally be owed on importation of the good, as well as any other charges or penalties provided for under its laws.

4. Each Party shall at the request of the importer and for reasons deemed valid by its Customs Administration, extend the time limit for temporary admission beyond the period initially fixed, in accordance with its laws and regulations.

5. Each Party may, in accordance with its laws and regulations, relieve the importer, or other person responsible for goods admitted in accordance with this Article, of liability for failure to export a temporarily admitted good upon presentation of satisfactory proof to the Party's Customs Administration that the good has been destroyed within the original time limit for temporary admission or any lawful extension.

Article 2.12
Duty-Free Entry of Commercial Samples of Negligible Value and Printed Advertising Materials

Each Party shall, in accordance with its laws and regulations, grant duty-free entry to commercial samples of negligible value, and to printed advertising materials, imported from the territory of the other Party, regardless of their origin, but may require that:

(a) such samples be imported solely for the solicitation of orders for goods, or the solicitation of orders for services provided from the territory, of the other Party or a non-Party; or

(b) such advertising materials be imported in packets that each contain no more than one copy of each such material and that neither such materials nor packets form part of a larger consignment.

Article 2.13
Goods Returned or Re-Entered After Repair or Alteration

1. A Party may not apply a customs duty to a good, regardless of its origin, that re-enters its territory after that good has been exported from its territory to the territory of the other Party for repair or alteration, regardless of whether such repair or alteration could be performed in its territory, except that a customs duty may be applied to the value addition resulting from the repair or alteration in accordance with a Party's laws and regulations that was performed in the territory of the other Party.

2. Paragraph 1 does not apply to:

   (a) a good that has not entered into free circulation[1] in a Party prior to being exported for repair or alteration; or

   (b) any materials used in the repair or alteration which were not in free circulation in the Party where the repair or alteration occurred, unless a payment equivalent to the applicable duty for that material to enter into free circulation has subsequently been made.

3. A Party may not apply a customs duty to a good, regardless of its origin, imported temporarily from the territory of the other Party for repair or alteration provided such good is exported from the territory of the importing Party in accordance with a Party's laws and regulations.

[1] In "free circulation" means the good has cleared customs, applicable duties have been paid, and the good is available for use in the domestic market of the importing Party.

4. For the purposes of this Article, “repair” or “alteration” does not include an operation or process that:

   (a) destroys a good’s essential characteristics or create a new or commercially different good;

   (b) transforms an unfinished good into a finished good; or

   (c) substantially changes the function of a good.

Article 2.14
Export Subsidies

The Parties reiterate their commitments under the WTO Ministerial Decision on Export Competition, adopted in Nairobi on 19 December 2015, and agree not to maintain any export subsidies that are inconsistent with their obligations under the Agreement on Agriculture for any agricultural product listed in Annex 1 of that agreement.

Article 2.15
Publication and Administration of Trade Regulations

1. Each Party shall administer in a uniform, impartial and reasonable manner all its laws, regulations, decisions and rulings with respect to any matter covered by this Chapter. To this end, Article X of GATT 1994 is incorporated into and made part of this Agreement, *mutatis mutandis*.

2. To the extent possible, each Party shall make its laws, regulations, decisions and rulings of the kind referred to in paragraph 1 publicly available on the internet.

Article 2.16
Data Sharing on Preference Utilisation

1. For the purpose of monitoring the functioning of this Agreement and calculating preference utilisation rates, the Parties shall annually, or as otherwise agreed by the Committee on Trade in Goods, exchange comprehensive import statistics. Such exchanges shall take place in advance of each meeting of the Committee on Trade in Goods.

2. The exchange of import statistics shall cover data pertaining to the most recent calendar year available, including value and volume, at the tariff line level for imports of goods of the other Party benefitting from preferential duty treatment under this Agreement and for the import of those goods that received non-preferential treatment.

Article 2.17
Committee on Trade in Goods

1. The Parties hereby establish a Committee on Trade in Goods ("Goods Committee") composed of government representatives of each Party.

2. The functions of the Goods Committee shall include:

   (a) reviewing and monitoring the implementation and operation of this Chapter;

   (b) promoting trade in both agricultural and non-agricultural goods between the Parties, including through consultations on accelerating tariff elimination under this Agreement, and promptly addressing non-tariff barriers to trade in goods between the Parties if not covered by any other committee under this Agreement;

   (c) adopt decisions or make recommendations;

   (d) addressing issues relating to the administration and operation of tariff-rate quotas;

   (e) examining any issues that may arise on matters related to future amendments to the Harmonized System, including transposition of Parties' Schedules to Annex 2A (Schedules of Tariff Commitments) and on matters related to the classification of goods under the Harmonised System, and endeavouring to seek appropriate solutions through consultation and dialogue, to ensure that the obligations of each Party under this Agreement are not altered;

   (f) reviewing data on trade in goods in relation to the implementation of this Chapter;

   (g) assessing matters that relate to trade in goods and undertaking any additional work that the Joint Commission may assign to it; and

   (h) reporting on its activities and work programme to the Joint Commission.

3. The Goods Committee shall meet within one year of the date of entry into force of this Agreement and annually thereafter or as otherwise agreed. Meetings may occur in person, or by any other means as mutually determined by the Parties.

4. The Goods Committee may establish technical working groups to consider any matter relating to this Chapter that creates disruption or may affect trade in goods between the Parties. Any technical working

group established shall report to the Goods Committee on the progress of its work.

Article 2.18
Contact Points

1. Each Party shall, within 60 days of the date of entry into force of this Agreement, designate a contact point to facilitate communication between the Parties on any matter relating to this Chapter. Each Party shall promptly notify the other Party, in writing, of any change to its contact point.

2. Where a Party considers that any proposed or actual measure of the other Party may materially affect trade in goods between the Parties, that Party may, through the contact point for this Chapter, request detailed information relating to that measure and, if necessary, request consultations with a view to resolving any concerns about the measure. The other Party shall respond as promptly as practicable to such requests for information and consultations.

ANNEX 2B

IMPLEMENTATION AND REVIEW OF ECONOMIC COOPERATION ACTION PLANS AND RELATED TARIFF RATE QUOTAS

1. The Parties acknowledge and appreciate the collaborative efforts made by each other to enhance economic cooperation and foster a strong partnership between their economies.

2. The Parties take note of Chapter 14 (Economic Cooperation and Technical Assistance), particularly Article 14.9 (Action Plans) and the action plans therein agreed between the Parties, particularly for Apples (HS 08081000), Honey (HS 0409000) and Kiwifruit (HS 08105000) as listed in Annex 14A (Agricultural Cooperation and Technical Assistance Thematic Areas). These action plans are valid for a period of five years from the date of their commencement and thereafter may be extended for a specific period on terms mutually decided by the Parties in writing.

3. Further, Parties also note that India has agreed to provide tariff rate quotas ("TRQs") and market access to New Zealand for goods listed in paragraph 2, as specified in Annex 2A (Schedules of Tariff Commitments). The TRQs and the market access offered are subject to New Zealand's actions to fulfil its obligations under the respective action plans within the timelines set out in paragraph 2.

4. For the purposes of operation and implementation of the action plans listed in paragraph 2 and Annex 2A (Schedules of Tariff Commitments), and to realise the shared objectives and commitments therein, New Zealand shall, in accordance with Chapter 14 (Economic Cooperation and Technical Assistance), ensure that resources and support are made available to fulfil its commitments under those action plans. Such resources or support by New Zealand is excluded from investment by New Zealand in accordance with Chapter 9 (Investment Promotion and Cooperation).

5. The Parties shall, through the Joint Agriculture Productivity Council ("JAPC") established pursuant to Article 14.5 (Joint Agriculture Productivity Council) meet at least once every six months after the date of entry into force of this Agreement to review the progress of the action plans listed in paragraph 2.

6. The JAPC shall:

   (a) determine the deliverables of action plans;

   (b) address issues relating to the administration or operation of this Annex;

(c) modify or extend the action plans listed in paragraph 2, if mutually agreed; and

(d) undertake any other task recommended by the Joint Committee.

7. India may request consultations with New Zealand and agree to a mutually satisfactory solution, where New Zealand is unable to fulfil its obligations or commitments as set out in the action plans listed in paragraph 2. For the purposes of consultations, India shall set out the reasons for the request, including identification of the action plan at issue and an indication of a basis for the request, and any other issue of concern.

8. If no mutually agreed solution is reached within 30 days from the date of the request referred to in paragraph 7, either Party may refer the matter to the JAPC, and the JAPC shall meet to consider the matter. If the JAPC does not reach a mutually agreed solution within 60 days of the date of the referral to the JAPC, either Party may refer the matter to the Joint Commission.

9. If the Joint Commission does not reach a mutually agreed solution within 60 days of the referral, either Party may refer the matter for a Ministerial-level discussion for resolution. If no resolution is reached, India may notify New Zealand of its intention to rebalance the concessions offered by it and may suspend the market access referred to in paragraph 3 for the relevant product, as appropriate, in whole or in part. The relevant market access will be reinstated if New Zealand meets the relevant obligation or commitment identified in paragraph 7 or the Parties otherwise reach a mutually agreed solution.

ANNEX 2C

ARRANGEMENT FOR FAST-TRACKING THE IMPORT OF INPUTS FOR USE IN MANUFACTURING OF GOODS MEANT FOR EXPORT

1. The Parties intend to promote India's export potential by leveraging New Zealand's inputs to enhance productivity, promote employment generation, increase global competitiveness and exports, export capacity and capabilities and address India's domestic requirements.

2. To this end, the Parties shall mutually agree to a dedicated fast-track arrangement to support Indian businesses import inputs duty-free from New Zealand, in accordance with India's Foreign Trade Policy ("FTP"), used exclusively for the manufacture of products destined solely for export, thereby safeguarding the interests of the domestic industry. This arrangement shall take into account that it is strictly:

   (a) for inputs used in manufacturing or processing industry for products that are meant exclusively for export and shall not enter for sale, resale or consumption in India's market;

   (b) consistent and in accordance with the provisions of FTP;

   (c) consistent with each Party's right and obligations under the WTO SCM Agreement, including provisions governing export-linked duty-exemption schemes; and

   (d) to safeguard the interests of India's domestic industry or stakeholders.

3. On request by a Party or if mutually agreed, the Parties may decide the operation and modalities of the arrangement referred to in paragraph 2, review the administration, implementation and functioning of the arrangement, and address any associated issues. This arrangement is to be implemented by the date of entry into force of this Agreement.

CHAPTER 3

RULES OF ORIGIN

Article 3.1
Definitions and Interpretation

1. For the purposes of this Chapter:

(a) **"aquaculture"** including, but not limited to mariculture, means the farming of aquatic organisms including fish, molluscs, crustaceans, other aquatic invertebrates and aquatic plants from seed stock, including seed stock imported from non-parties, such as eggs, fry, fingerlings, or larvae, by intervention in the rearing or growth processes to enhance production such as regular stocking, feeding, or protection from predators;

(b) **"CIF value"** or **"Cost, Insurance and Freight value"** means the price actually paid or payable to the exporter for a good when the good is loaded out of the carrier, at the port of importation, including the cost of the good, insurance, and freight necessary to deliver the good to the named port of destination;

(c) **"competent authority"** means:

(i) for India, the Department of Commerce or its successors; and

(ii) for New Zealand, New Zealand Customs Service or its successors;

(d) **"customs administration"** means:

(i) for India, the Central Board of Indirect Taxes and Customs (CBIC) or its successors; and

(ii) for New Zealand, the New Zealand Customs Service or its successors;

(e) **"FOB value"** or **"Free-On-Board value"** means the price actually paid or payable to the exporter for a good when it is loaded onto the carrier at the named port of exportation, including the cost of the good and all costs necessary to bring the good onto the carrier;

(f) **"fungible goods"** means goods that are interchangeable for commercial purposes and whose properties are essentially identical;

(g) **“Generally Accepted Accounting Principles”** means those principles recognised by consensus or with substantial authoritative support in the territory of a Party with respect to the recording of revenues, expenses, costs, assets and liabilities; the disclosure of information; and the preparation of financial statements. These principles may encompass broad guidelines for general application, as well as detailed standards, practices and procedures;

(h) **“indirect materials”** means a material used in the production, testing or inspection of a good but not physically incorporated into the good; or a material used in the maintenance of buildings or the operation of equipment, associated with the production of a good, including:

(i) fuel, energy, catalysts and solvents;

(ii) equipment, instruments, devices and supplies used to test or inspect the good;

(iii) gloves, glasses, footwear, clothing, safety equipment and supplies;

(iv) tools, dies and moulds;

(v) spare parts and materials used in the maintenance of equipment and buildings;

(vi) lubricants, greases, compounding materials and other materials used in production or used to operate equipment and buildings; and

(vii) any other material that is not incorporated into the good but the use of which in the production of the good can reasonably be demonstrated to be a part of that production;

(i) **“issuing authority”** means the authority designated by each Party for issuance of Certificates of Origin, as notified from time to time;

(j) **“material”** means a good that is consumed in the production, physically incorporated or used in the production of another good;

(k) **“non-originating material”** means a material that does not qualify as originating in accordance with this Chapter, which includes a good or material of undetermined origin;

(l) **“originating good”** or **“originating material”** means a good or material that qualifies as originating in accordance with this Chapter;

(m) **"packing materials and containers for transportation and shipment"** means goods used to protect another good during its transportation, but does not include the packaging materials or containers in which a good is packaged for retail sale;

(n) **"producer"** means a person who engages in the production of a good;

(o) **"production"** means operations including growing, cultivating, raising, mining, harvesting, fishing, trapping, hunting, capturing, collecting, breeding, extracting, aquaculture, gathering, manufacturing, processing or assembling a good;

(p) **"preferential tariff treatment"** means the customs duty rate applicable to an originating good, pursuant to each Party's respective Schedule of Tariff Commitments set out in Annex 2A (Schedules of Tariff Commitments);

(q) **"QVC"** is the qualifying value content of a good, expressed as a percentage;

(r) **"value of non-originating materials"** is the value of non-originating materials, including materials of undetermined origin, used in the production of the good; and

(s) **"value of originating materials"** is the value of originating materials used in the production of the good in the territory of one or both Parties.

2. For the purpose of this Chapter, any cost or value shall be recorded and maintained in accordance with the Generally Accepted Accounting Principles applicable in the territory of the Party in which the good is produced.

Article 3.2
Originating Goods

Except as otherwise provided in this Chapter, a good shall be regarded as originating if it is:

(a) wholly obtained or produced in the territory of one or both of the Parties, as provided for in Article 3.3 (Wholly Obtained or Produced Goods); or

(b) satisfies all applicable requirements of the Product Specific Rules under Annex 3A (Product Specific Rules of Origin); and

meets all other requirements of the Chapter.

Article 3.3
Wholly Obtained or Produced Goods

For the purposes of subparagraph (a) of Article 3.2 (Originating Goods), the following goods shall be considered to be wholly obtained or produced in the territory of one or both of the Parties, if they are:

(a) plant and plant goods, including fruit, flowers, vegetables, trees, seaweed, fungi, algae and live plants grown and harvested, picked, or gathered there;

(b) live animals born and raised there;

(c) goods obtained from live animals born and raised there;

(d) goods obtained by hunting, trapping, fishing, aquaculture, gathering, or capturing there;

(e) minerals and other naturally occurring substances, not included in subparagraphs (a) to (d), extracted or taken from the soil or waters, seabed or subsoil beneath the seabed there;

(f) fish, shellfish, and other marine life extracted or taken from the sea, seabed or subsoil beyond the outer limits of the territories of each Party and, in accordance with international law, outside the territorial sea of non-Parties by vessels that are registered, listed or recorded with a Party and entitled to fly the flag of that Party;

(g) goods produced on board a factory ship registered, listed or recorded with a Party and entitled to fly the flag of that Party from the goods referred to in subparagraph (f);

(h) goods other than fish, shellfish and other marine life extracted or taken from the sea-bed or subsoil beneath the sea-bed outside the territorial sea of a Party, provided that the Party has rights to exploit such sea-bed or subsoil beneath the sea-bed in accordance with relevant international law;

(i) waste and scrap, excluding precious metals, derived from production or consumption there, provided that such goods are fit only for the recovery of raw materials; and

(j) goods produced in the territory of one or both Parties solely from goods referred to in subparagraphs (a) to (i) or from their derivatives at any stage of production.

Article 3.4
Bilateral Cumulation

Each Party shall provide that an originating good or material in the territory of one Party, under the terms of Article 3.2 (Originating goods) and all the other applicable requirements of this Chapter, that is incorporated in the production of a good in the territory of the other Party is considered to originate in the territory of the other Party.

Article 3.5
Calculation of Qualifying Value Content

Where a qualifying value content requirement is specified in this Chapter and its Annexes, to determine whether a good is originating, the qualifying value content shall be calculated using one of the following methods:

(a) Build-Down Formula based on the value of non-originating materials:

$$QVC = \frac{\text{FOB Value - Value of Non Originating materials}}{\text{FOB Value}} \times 100$$

(b) Build-up Formula: based on the value of originating materials:

$$QVC = \frac{\text{Value of Originating materials}}{\text{FOB Value}} \times 100$$

Article 3.6
Value of Materials Used in the Qualifying Value Content

1. All values for the purposes of calculating qualifying value content shall be determined in accordance with the Customs Valuation Agreement.

2. All costs shall be recorded and maintained in conformity with the Generally Accepted Accounting Principles applicable in the territory of a Party where the good is produced.

3. If a non-originating material is used in the production of a good, the following may be added to the value of originating materials in determining whether the good meets the QVC requirement:

   (a) the value of production of non-originating materials undertaken in the territory of one or both Parties; and

   (b) the value of originating materials used in the production of the non- originating material in the territory of one or both Parties by one or more producers.

4. The value of the materials used in production shall be:

(a) for imported materials, the CIF value;

(b) for materials obtained within the territory of a Party:

(i) the price paid or payable by the producer in the Party where the producer is located;

(ii) the value as determined for an imported material in subparagraph (a); or

(iii) the earliest ascertainable price paid or payable in the territory of the Party; and

(c) for materials that are self-produced, all the costs incurred in the production of the material, which includes general expenses that can be reasonably allocated to the good.

5. For originating materials, the following expenses may be added to the value of the material, if not included under paragraph 4:

(a) the costs of freight, insurance, packing, and other transport-related costs incurred in transporting the good to the location of the producer of the good;

(b) duties, taxes, and customs brokerage fees on the material, paid in the territory of a Party, other than duties that are waived, refunded, refundable, or otherwise recoverable, which includes credit against duty or tax paid or payable; and

(c) the cost of waste and spoilage resulting from the use of the material in the production of the good, less the value of reusable scrap or by-product.

6. For non-originating materials or materials of undetermined origin, the following expenses may be deducted from the value of the material:

(a) the costs of freight, insurance, packing, and other transport-related costs incurred in transporting the material within the territories of the Parties to the location of the producer of the good;

(b) duties, taxes, and customs brokerage fees on the material, paid in the territory of a Party, other than duties that are waived, refunded, refundable, or otherwise recoverable, which includes credit against duty or tax paid or payable; and

(c) the cost of waste and spoilage resulting from the use of the material in the production of the good, less the value of reusable scrap or by-product.

7. Where the costs or expenses listed in paragraphs 4 through 6 are unknown or evidence of the amount of the adjustment is not available, then no adjustment is allowed for those costs.

Article 3.7
Minimal Operations

1. Notwithstanding any provisions of this Chapter, the following operations when undertaken on non-originating materials to produce a good shall be considered as insufficient working or processing to confer on that good the status of an originating good:

   (a) preserving operations to ensure that the good remains in good condition for the purposes of transport or storage;

   (b) packaging or presenting goods for transportation or sale;

   (c) simple[1] processes, consisting of sifting, screening, sorting, classifying, sharpening, cutting, slitting, grinding, bending, coiling, or uncoiling;

   (d) for textiles: attaching accessory articles such as straps, beads, cords, rings and eyelets; ironing or pressing of textiles;

   (e) affixing or printing of marks, labels, logos, or other like distinguishing signs on goods or their packaging;

   (f) simple dilution with water or another substance that does not materially alter the characteristics of the good;

   (g) simple assembly of parts of articles to constitute a complete article or disassembly of products into parts;

   (h) slaughtering[2] of animals;

   (i) simple painting and polishing operations;

   (j) simple peeling, stoning, or shelling;

   (k) simple mixing[3] of goods, whether or not of different kinds; or

[1] For the purposes of this Article, “simple” describes activities which need neither special skills nor machines, apparatus or equipment specially produced or installed for carrying out the activity.

[2] For the purposes of this Article, “slaughtering” means the mere killing of animals.

[3] For the purposes of this Article, “simple mixing” describes activities which need neither special skills nor machines, apparatus or equipment specially produced or installed for carrying out the activity.

(l) any combination of two or more operations referred to in subparagraphs (a) through (k).

2. All operations carried out in a Party on a given good shall be considered together when determining whether the working or processing undergone by that good is to be regarded as insufficient within the meaning of paragraph.

Article 3.8
De Minimis

1. A good, except for those falling within Chapters 50 through 63 of the HS, that does not satisfy a change in tariff classification requirement pursuant to Annex 3A (Product Specific Rules of Origin) shall nonetheless be an originating good if the value of non-originating materials used in the production of the good that do not satisfy the change in tariff classification requirement does not exceed 10 per cent of the FOB value of the good as defined under Article 3.1 (Definitions and Interpretation) and the good meets all of the other applicable requirements in this Chapter.

2. A good classified in Chapters 50 through 63 of the HS that does not qualify as originating good because certain non-originating materials used in the production of the good do not fulfil the requirements set out in Annex 3A (Product Specific Rules of Origin), shall nonetheless be an originating good if the total weight/value of all such material does not exceed 10 per cent of the total weight/value of that good.

3. If a good described in paragraph 1 or 2 is also subject to a qualifying value content requirement, the value of those non-originating materials shall be included in the value of non-originating materials for the applicable qualifying value content requirement.

4. A good classified as Wholly Obtained (WO) under Article 3.3 (Wholly Obtained or Produced Goods) or Annex 3A (Product Specific Rules of Origin) that does not qualify as an originating good, because certain non-originating materials of other chapters of the HS are used in the production of that good, shall nonetheless be an originating good if the total weight or value of all such non-originating material does not exceed 1 per cent of the total weight or value of that good.

Article 3.9
Treatment of Packaging Materials and Containers for Retail Sale

1. Packaging materials and containers in which a good is packaged for retail sale, if classified with the good, shall be disregarded in determining whether the non-originating materials used in the

production of the good have satisfied the applicable process or change in tariff classification requirement set out in Annex 3A (Product Specific Rules of Origin), or whether the good is wholly obtained or produced.

2. If the good referred to in paragraph 1 is subject to the qualifying value content requirement, the value of such packaging materials and containers shall be taken into account as value of the originating or non-originating materials, as the case may be, in calculating the qualifying value content of the good.

Article 3.10
Treatment of Packing Materials and Containers for Transportation and Shipment

Packing materials and containers for transportation and shipment of a good shall not be taken into account in determining whether the good is originating.

Article 3.11
Accessories, Spare Parts and Tools

1. The origin of the accessories, spare parts or tools presented with a good:

   (a) shall be disregarded if the good is subject to a change in tariff classification requirement or production process requirements for origin specified in Annex 3A (Product Specific Rules of Origin), and

   (b) shall be taken into account as originating or non-originating materials, as the case may be, in calculating the qualifying value content of the good, if the good is subject to a qualifying value content requirement.

2. Paragraph 1 of this Article shall only apply where:

   (a) the accessories, spare parts, tools and instructional or other information materials presented with the good are not invoiced separately from the originating good; and

   (b) the quantities and value of the accessories, spare parts, tools and instructional or other information materials presented with the good are customary for that good.

Article 3.12
Indirect Materials

An indirect material shall be considered as neither originating nor non-originating when the qualifying value addition is calculated in accordance with Article 3.5 (Calculation of Qualifying Value Content).

Article 3.13
Fungible Goods

1. Fungible goods shall be treated as originating based on the:

   (a) physical separation of the good; or

   (b) use of any inventory management method recognised in the Generally Accepted Accounting Principles of the Party where the production is performed, if originating and non-originating fungible goods are comingled, provided that the inventory management method selected is used throughout the fiscal year of the person that selected the inventory management method.

2. An inventory management system under subparagraph 1(a) must ensure that no more goods or materials receive originating status than would have been the case if the fungible goods had been physically segregated.

Article 3.14
Consignment

1. A good shall retain its originating status as determined under Article 3.2 (Originating Goods) if either of the following conditions have been met:

   (a) the good has been transported directly from the exporting Party to the importing Party; or

   (b) the good has been transported through one or more non-Parties provided that the good has not undergone any subsequent production or other operation outside the territories of the Parties other than unloading, reloading, storing, repacking, relabelling in accordance with the laws and regulations of the importing Party, splitting up of loads, consolidation of loads or any other operation necessary to preserve it in good condition or to transport the good to the territory of a Party and the good has remained under customs control in the non-Parties.

2. Compliance with subparagraph 1(b) shall be evidenced by presenting the customs administration of the importing Party either with customs documents of the non-Parties, or with any other appropriate documentation on request of the customs administration of the importing Party.

3. Appropriate documentation referred to in paragraph 2 may include commercial shipping or freight documents such as airway bills, bills of lading, multimodal or combined transport documents, a non-manipulation certificate, or other relevant supporting documents as may be requested by the customs administration of the importing Party.

Article 3.15
Proof of Origin

1. Each Party shall provide that a claim for preferential tariff treatment is based on an applicable Proof of Origin:

   (a) a Certificate of Origin issued by an issuing authority; or

   (b) an origin declaration completed by:

      (i) in India, a status holder;

      (ii) in New Zealand, an approved exporter; or

      (iii) subject to a review under paragraph 12, an exporter or producer.

2. A Certificate of Origin shall bear an authorised signature and official seal of the issuing body or authority, as appropriate. The signature and seal shall be applied manually or electronically.

3. A Proof of Origin shall:

   (a) be in the English language;

   (b) bear a unique certification number or unique identification number, as the case may be;

   (c) specify that the good is originating and meets the requirements of this Chapter;

   (d) contain information as set out in Annex 3B (Certificate of Origin Template) for Certificate of Origin and as set out in Annex 3C (Origin Declaration Template) for an origin declaration by an approved exporter or status holder;

(e) remain valid for 12 months from the date on which it is completed in the case of an origin declaration, or, issued in the case of a Certificate of Origin; and

(f) apply to single importation of one or multiple goods provided that each good qualifies as an originating good separately in its own right; and

4. For New Zealand, a Proof of Origin may apply to importations of multiple shipments of identical goods within any period specified in the Proof of Origin, where such period does not exceed 12 months.

5. A Proof of Origin may indicate two or more invoices for goods contained in a single importation.

6. Proof of Origin shall be submitted to the customs administration of the importing Party in accordance with the procedures applicable in that Party.

7. A Proof of Origin shall be forwarded by the exporter, producer, approved exporter, or status holder to the importer. The customs administration may require the original copy.

8. Neither erasures nor superimposition shall be allowed on a Proof of Origin. Any alterations shall be made by striking out the erroneous material and making any addition(s) that may be required. In case of Certificates of Origin, such alterations may be approved by a person authorised to issue the certificate. In case of Origin Declaration, a new Proof of Origin may be completed by the approved exporter or status holder.

9. Each Party shall provide that a Proof of Origin shall be issued or completed prior to or at the time of importation.

10. Notwithstanding paragraph 9, under exceptional circumstances, a Proof of Origin may be issued or completed after importation, bearing the words “ISSUED RETROSPECTIVELY” in the Proof of Origin, and include an explanation to this effect. A Proof of Origin can be issued retrospectively no later than 12 months after the date of importation.

11. In cases of theft, loss or accidental destruction of a Certificate of Origin, the exporter, producer or an authorised representative thereof may, within the term of validity of the original Certificate of Origin, make a written request to the issuing body or authority that issued the original certificate for a certified copy. The certified copy shall bear the words “CERTIFIED TRUE COPY”. The certified copy shall have the same term of validity as the original Certificate of Origin.

12. The Parties shall commence a review of this Article on completion of five years from the date of entry into force of this Agreement. This

review will consider the introduction of a Declaration of Origin by an exporter or producer as a Proof of Origin.

Article 3.16
Application for Certificate of Origin

1. For the issue of a Certificate of Origin, the exporter or producer of the goods shall present, or submit electronically through the approved channel, to the issuing body or authority of the exporting Party the following:

   (a) an application, together with appropriate supporting information and documents for proving origin; and

   (b) the corresponding commercial invoice and other documents necessary to establish the origin of the good.

2. Multiple items declared on the same Certificate of Origin shall be allowed, provided that each item must qualify separately in its own right.

3. Each Party may, in accordance with its domestic procedures and if it deems appropriate, allow its issuing body or authority to apply a risk management system to selectively conduct pre-export verification of the application and supporting information filed by an exporter or producer.

4. The issuing body or authority, as appropriate, shall carry out proper examination of each application for a Certificate of Origin to ensure that:

   (a) the application has been duly completed and signed by the authorised signatory;

   (b) the origin of the good is in conformity with the requirements of this Chapter; and

   (c) the information furnished in the Certificate of Origin corresponds to supporting information and documents submitted.

5. If the exporter or producer has reason(s) to believe that a Certificate of Origin is based on incorrect information that could affect the accuracy or validity of the Certificate of Origin, they shall be obliged to immediately notify the importer, the issuing body or authority and the customs administration of the importing Party in writing of any change affecting the originating status of each good to which the Certificate of Origin applies.

Article 3.17
Non-Party Invoicing

An importing Party shall not deny a claim for preferential tariff treatment for the sole reason that an invoice was not issued by the exporter, producer, approved exporter, or status holder, or was issued in a third country, provided that the goods meet the requirements of this Chapter.

Article 3.18
Authorities

1. The Certificate of Origin shall be issued by an issuing body or authority, as appropriate.

2. Each Party shall within 30 days of the date of entry into force of this Agreement inform the customs administration of the other Party of the issuing body or authority, as appropriate, and contact details of the authorised persons of such body or authority, designated to issue Certificates of Origin under this Agreement.

3. The Parties shall exchange specimen seals and signatures of the authorised signatories issuing Certificate of Origin.

4. Each Party shall promptly notify the other Party of any change to its issuing body or authority, as appropriate, and the names, designations, addresses, specimen signatures of authorised persons or seals of such issuing body or authority.

Article 3.19
Status Holder

1. The competent authority in India may, subject to its laws and regulations, grant a status holder certificate to an eligible exporter (hereinafter referred to as “status holder”) established in India to self-certify their Origin Declaration, provided that the status holder accepts full responsibility for declaration of origin of the export product.

2. The competent authority in India shall after a due process grant status holder certificate to an exporter established in India.

3. The competent authority in India shall maintain a system to monitor the proper use of status holder certificate. The status holder certificate may be withdrawn if the status holder no longer fulfils the requirements or makes improper use of their status holder certificate.

4. The competent authority in India shall notify the competent authority in New Zealand of their status holders, their certificate numbers, and any modifications to the list of status holders.

Article 3.20
Approved Exporter

1. The competent authority in New Zealand may, subject to its laws and regulations, authorise an eligible exporter (hereinafter referred to as "approved exporter") established in New Zealand to self-certify their Origin Declaration, provided that the approved exporter accepts full responsibility for declaration of origin of the export product.

2. The competent authority in New Zealand, after due process, shall grant an authorisation number to an approved exporter operating in New Zealand. The authorisation number must be unique for every approved exporter.

3. The competent authority in New Zealand shall maintain a system to monitor the proper use of an authorisation. The authorisation may be withdrawn if the approved exporter no longer fulfils the requirements or makes improper use of the authorisation.

4. The competent authority in New Zealand shall notify the competent authority in India of their approved exporters, their authorisation numbers, and any modifications to the list of approved exporters.

Article 3.21
Claims for Preferential Tariff Treatment

1. Except as otherwise provided in Article 3.26 (Denial of Preferential Tariff Treatment), each Party shall grant preferential tariff treatment in accordance with this Chapter to an originating good on the basis of a Proof of Origin.

2. Unless otherwise provided in this Chapter, for the purposes of claiming preferential tariff treatment, an importing Party shall provide that an importer:

   (a) make a declaration that the good qualifies as an originating good;

   (b) have a valid Proof of Origin in its possession at the time the declaration referred to in subparagraph (a) is made and provide the same if requested by the importing customs administration; and

   (c) if required by an importing Party, demonstrate that the requirements in Article 3.14 (Consignment) have been satisfied.

3. An importing Party may require that an importer who claims preferential tariff treatment shall provide documents and other information to support the claim.

4. If a claim for preferential tariff treatment is made without producing the Proof of Origin, the customs administration of the importing Party may deny the preferential tariff treatment or request a guarantee in any of its modalities or may take action necessary in order to preserve fiscal interests, as a pre-condition for the completion of importation operations subject to and in accordance with the laws, regulations and procedures of the importing Party.

Article 3.22
Record Keeping Requirements

1. Each Party shall require that:

   (a) its exporters, producers, approved exporter, or status holders and issuing bodies or authorities, as appropriate, retain for at least 5 years from the date of issuance or completion of the Proof of Origin or a longer period in accordance with its relevant laws and regulations, all records[4] necessary to prove that the good for which the Proof of Origin was issued was originating; and

   (b) its importers retain, for at least 5 years from the date of importation of the good, or a longer period in accordance with its relevant laws and regulations, all records necessary to prove that the good for which preferential tariff treatment was claimed was originating.

2. The original Proof of Origin document must be retained in a hard copy written format. All other supporting records may be maintained in any medium that allows for prompt retrieval, including in digital, electronic or written form, in accordance with that Party's laws and regulations.

3. The exporter, producer, approved exporter, or status holders, shall, upon request of the issuing body or authority, of the exporting Party or the customs administration of the importing Party, make available records for inspection to enable verification of the origin of the good.

[4] For greater clarity these records shall include commercial accounting and customs documentation relating to the material(s) used in the production of the good, including but not limited to breakup of costs relating to material(s), labour, other overheads and any other relevant elements such as profits and related components, where these are applicable to the origin criteria.

Article 3.23
Waiver of Proof of Origin

A Party shall not require a Proof of Origin if the importing Party has waived the requirement or does not require the importer to present a Proof of Origin in accordance with its law.

Article 3.24
Post Importation Claim for Preferential Tariff Treatment

1. Each Party shall provide for an importer of a Party to apply for preferential tariff treatment and a refund of any excess duties paid for a good if the importer did not make a claim for preferential tariff treatment at the time of importation, provided that the good would have qualified for preferential tariff treatment when it was imported into its territory.

2. As a condition for preferential tariff treatment under paragraph 1, the importing Party may require that the importer, not later than 12 months after the date of importation or a longer period if specified in the importing Party's laws and regulations, to:

   (a) make a claim for preferential tariff treatment;

   (b) where applicable, provide a copy of Proof of Origin; and

   (c) provide such other documentation relating to the importation of the good as the importing Party may require.

3. Each Party shall provide that if the importer has reason(s) to believe that the claim for preferential tariff treatment is based on incorrect information that could affect the accuracy or validity of the Proof of Origin, the importer shall correct the importation document, and if applicable, pay any customs duty and penalties owed.

4. When considering imposing a penalty in relation to a claim for preferential tariff treatment, the customs administrations of the Parties are encouraged to consider a voluntary notification given prior to the discovery of that error by the Party as a mitigating factor, provided that in the case of a notification given by an importer, the importer corrects the error and repays any duties owed.

Article 3.25
Verification of Origin and Procedures

1. For the purposes of determining whether goods imported into a Party from the other Party qualify as originating goods, the importing Party may conduct a verification process. A verification process may be

initiated on importation or after the release of the goods by the customs administration of the importing Party.

2. A verification process may be initiated based on risk assessment methods, including random selection, or where the importing Party has reasonable doubt as to the authenticity of the origin of the goods.

3. A verification process for determining whether a good imported into a Party is originating may include the following methods:

   (a) a written request or requests for information[5] from the importer of the good;

   (b) a written request or requests for information on a Certificate of Origin from the exporting party;

   (c) a written request or requests for information from the exporter, producer, approved exporter, or status holder of the goods, through the competent authority or issuing authority of the exporting Party,

   (d) a request to the competent of the exporting Party to assist in obtaining information from the exporter, producer, approved exporter, or status holder;

   (e) a verification visit to the premises of an exporter, producer, approved exporter, or status holder in the territory of the exporting Party,

   in the normal course of a verification, the Parties shall utilise the methods in a sequential manner.

4. For the purposes of subparagraph 3(b):

   (a) the customs administration of the importing Party may request the competent or issuing authority, as appropriate, that issued the Certificate of Origin in the exporting Party, to assist it in verifying:

      (i) the authenticity of a Certificate of Origin;

      (ii) the accuracy of any information contained in the Certificate of Origin; and

      (iii) the authenticity and accuracy of the supporting information and documents, associated to the

[5] For the purposes of this Article, where origin has been obtained using a qualifying value content methodology, information shall include breakdown of costs and other relevant elements, such as profit, for the determination of the origin of the good.

Certificate of Origin, and provide copies of the relevant documents where requested;

(b) the customs administration of the importing Party shall provide the competent or issuing authority, as appropriate, with:

(i) the reasons why such assistance is sought;

(ii) the Certificate of Origin, or a copy thereof; and

(iii) any information and documents as may be necessary for the purpose of providing such assistance; and

(c) the competent or issuing authority in the exporting Party shall provide the information and documentation requested, within:

(i) 30 days from the date of receipt of the request, if the request pertains to the authenticity of issue of the Certificate of Origin, including the seal and signatures of the issuing authority;

(ii) 60 days from the date of receipt of such request, if the request is on the grounds of suspicion of the accuracy of the determination of origin of the product. This period can be extended for up to 30 days, if agreed by the Parties.

5. Where a written request is made under subparagraph 3(c):

(a) the customs administration of the importing Party shall ensure that the information requested is limited to information pertaining to the fulfilment of the requirements of this Chapter as follows:

(i) Proof of Origin;

(ii) information supporting a claim that the good is originating under Article 3.2 (Originating Goods);

(iii) information related to the use of the de minimis, direct consignment or cumulation provisions of the Chapter; and

(iv) any other information including specific documentation where appropriate;

(b) the customs administration of the importing Party shall provide the exporter, producer, approved exporter or status holder, as appropriate, with:

(i) the reasons why information is being sought;

(ii) the Proof of Origin, or a copy thereof; and

(iii) any information and documents as may be necessary for the purpose of providing such information; and

(c) the exporter, producer, approved exporter, or status holder, shall provide the information within 60 days from the date of receipt of a request. This period can be extended for up to 30 days as agreed by the exporter, producer, approved exporter or status holder, and the customs administration of the importing Party.

6. If the importing Party is not satisfied with the outcomes of the information received after completing the processes identified in subparagraphs 3(a) through 3(d) regarding whether the goods qualify as originating goods according to this Chapter, it may request in writing to the customs administration or competent authority of the exporting Party to seek agreement from the exporter, producer, approved exporter, or status holder of the good to undertake for a verification visit to the premises of the exporter, producer, approved exporter, or status holder to observe the facilities used in the production of the goods concerned, including review of the exporter's, producer's, approved exporter's, or status holder's accounts, or records in relation to the goods concerned or any other check considered appropriate and related to the purpose of the verification visit.

7. The written request referred to in paragraph 6 shall be as comprehensive as possible and include at a minimum:

(a) the name of the exporter, producer, approved exporter or status holder whose premises are to be visited;

(b) the goods subject to the verification process;

(c) reasons why the outcome(s) of the verification activity conducted under subparagraph 3(a) through 3(d) to that date has not been satisfactory; and

(d) proposed date and time of visit.

8. The request for a verification visit shall be made no later than 30 days and extendable as agreed by the Parties, following the receipt of the information referred to in subparagraphs 3(a) through 3(d).

9. Officials from the exporting Party may accompany and assist the officials from the importing Party in their visit to the exporter, producer, approved exporter, or status holder premises. The exporter, producer, approved exporter, or status holder shall identify two or more independent witnesses to be present during the verification visit. The above-mentioned verification visit process, including the actual visit and notification of written determination of the origin of the good, shall

be completed within a maximum period of 6 months from the date when the verification visit was conducted.

10. When the written consent of the exporter, producer, approved exporter, or status holder for the visit is not obtained within 30 days from the date the customs or competent authority of the exporting Party receives the verification visit request, the customs administration of the importing Party may deny preferential tariff treatment to the good that would have been the subject of the verification visit.

11. During a verification process, the importing Party shall allow the release of the good, subject to payment of duties or provision of security as provided for in its law.

12. Upon completion of the verification process, the customs administration of the importing Party shall provide the importer with a written determination of whether the good is originating, along with the basis for the determination. If the exporter, producer, approved exporter, or status holder of the good has been involved in the verification process they shall be notified on the outcome of the verification process.

13. Upon the issuance of the written determination that the good does not qualify as an originating good, the exporter, producer, approved exporter, or status holder shall be allowed 30 days from the date of receipt of the written determination to provide in writing comments or additional information regarding the eligibility of the good for preferential tariff treatment. The final written determination shall be communicated to the producer or exporter or producer or approved exporter or status holder within 30 days from the date of receipt of the comments or additional information.

14. Upon the issuance of the written determination that the good qualifies as an originating good, the importing Party shall immediately restore preferential benefits and promptly refunded any duties paid in excess of the preferential duty or release guarantees obtained in accordance with their domestic legislation.

Article 3.26
Denial of Preferential Tariff Treatment

1. The importing Party may deny a claim for preferential tariff treatment if:

   (a) it determines that the good does not qualify as originating within the terms of this Chapter or does not satisfy the requirement(s) of this Chapter;

   (b) pursuant to a verification under Article 3.25 (Verification of Origin and Procedures), it has not received sufficient

information to determine that the good qualifies as originating including;

(i) the importer, exporter, producer, approved exporter, or status holder, fails to respond to or refuses a written request for information;

(ii) the importer, exporter, producer, approved exporter, or status holder, fails to comply with any of the relevant requirements for obtaining preferential tariff treatment;

(iii) the importer, exporter, producer, approved exporter, or status holder, or the issuing bodies or authorities, as appropriate, of the exporting Party fail to provide sufficient information and documents, within the prescribed timelines;

(iv) the exporter, producer, approved exporter, or status holder, fails to give consent or respond to a request for a verification visit.

2. If an importing Party denies a claim for preferential tariff treatment, it shall notify the importer in writing along with the reasons for such determination.

3. If the importing Party establishes non-compliance of the goods with the rules of origin, duties shall be levied in accordance with the law of the importing Party.

Article 3.27
Temporary Suspension of Preferential Treatment

1. If, following a verification procedure, the importing Party establishes that the importer, exporter, producer, approved exporter, or status holder, has persistently or deliberately misrepresented the origin status of the goods, the importing and exporting Party shall consult with a view to take appropriate measures. If these measures are insufficient to prevent a reoccurrence of the misrepresentation, the importing Party may temporarily suspend preferential tariff treatment for that exporter, producer, approved exporter, or status holder.

2. Based on consultations referred to in paragraph 1 and in any case no longer than 2 months from the date of initiating consultations, a decision whether or not to suspend tariff preference may be taken by the importing Party. The importing Party shall notify the decision, including its reasoning, to the exporting Party, within 30 days after informing the importer accordingly.

3. If verification procedures have shown that two or more exporters, producers, approved exporters, or status holders, of one Party have

persistently or deliberately misrepresented the origin status of goods in a Proof of Origin for the same good at the six digit HS classification level declared to the customs administration of the importing Party and this same good of these exporters, producers, approved exporters, or status holders, accounts for more than half of the preferential imports of the same good in value terms from the exporting party over a period of 1 year prior to the first verification request, the importing Party may submit the matter to the Technical Committee on Rules of Origin and to the Joint Commission with a view to temporarily suspend preferential treatment for all imports of that good from the exporting Party.

4. The Technical Committee on Rules of Origin shall discuss the matter and shall make a recommendation to the Joint Commission within 6 months from the date of submission on whether or not the importing Party may suspend the granting of preferential tariff treatment for this good as a temporary measure. The importing Party may only suspend preferential treatment if the recommendation of the Technical Committee on Rules of Origin is agreed by the Joint Commission.

5. The temporary suspension shall apply only for a period no longer than 6 months or any other period that the Parties agree. Where the condition that gave rise to initial temporary suspension persists at the expiry of the 6-month period, the Party concerned may decide to renew the temporary suspension. Any such renewal shall be subject to periodic consultations within the Technical Committee on Rules of Origin.

6. Following a temporary suspension at exporter level referred to in paragraph 1 or a Joint Commission decision for temporary suspension as referred to in paragraph 4 and pursuant to the conclusion of consultations between the Parties concerned, and the Parties, where applicable, agree that the exporter, or producer or approved exporter or status holder(s) has adopted appropriate remedial measures, the importing Party shall agree to:

   (a) restore preferential benefit to the good with retrospective effect; or

   (b) restore preferential benefit to the good with prospective effect, subject to implementation of any mutually agreed measures by one or both Parties.

Article 3.28
Penalties

1. Each Party shall adopt or maintain measures that provide for the imposition of civil, administrative, and, where appropriate, criminal sanctions for violations of its customs laws and regulations, including

those governing rules of origin, and the entitlement to preferential tariff treatment under this Agreement.

2. Any importer, exporter, producer, approved exporter, or status holder, who incorrectly represents any material information relevant to the determination of origin of a good may be liable to be penalised under a Party's law.

Article 3.29
Goods in Transport or Storage

In accordance with Article 3.24 (Post Importation Claim for Preferential Tariff Treatment), the customs administration of the importing Party shall grant preferential tariff treatment for an originating good of the exporting Party which, on the date of entry into force of this Agreement:

(a) is in the process of being transported from the exporting Party to the importing Party; or

(b) has not been released from customs control, including an originating good stored in a bonded warehouse regulated by the customs administration of the importing Party.

Article 3.30
Minor Discrepancies or Errors

A Party shall not reject a Proof of Origin due to minor errors or discrepancies, such as slight discrepancies between documents, minor omissions of information, spelling, typing or formatting errors, or protrusions from the designated field, provided these minor discrepancies or errors do not create doubt as to the originating status of the good.

Article 3.31
Confidentiality

1. The information obtained by the competent authority or customs administration of the importing Party can be utilised for arriving at a decision regarding the determination of origin in respect of a good and can be used in the legal proceedings concerning issues covered by this Chapter and in accordance with each Party's respective law.

2. Each Party shall protect the information from any unauthorised disclosure in accordance with their respective law.

Article 3.32
Technical Committee on Rules of Origin

1. The Parties hereby establish a Technical Committee on Rules of Origin composed of government representatives of each Party responsible for rules of origin matters to consider any matters arising under this Chapter and its Annexes.

2. The Technical Committee on Rules of Origin shall consult either in-person or virtually, upon the request of either Party, to ensure that this Chapter and its Annexes is administered effectively, uniformly and consistently with the spirit and objectives of this Agreement and shall cooperate in the administration of this Chapter and its Annexes and mutually resolve any issues that may arise.

3. The Technical Committee on Rules of Origin shall consult to discuss possible amendments or modifications to this Chapter and its Annexes that may be necessary to reflect changes to the Harmonized System and taking into account developments in technology, production processes or other related matters.

Article 3.33
Exchange of Electronic Data on Origin

1. The Parties shall establish an electronic system to exchange information on Certificates of Origin on entry into force of this Agreement.

2. The Parties shall, within 12 months from entry into force of this Agreement, establish an electronic system to exchange information on other forms of Proof of Origin. The introduction of other forms of Proof of Origin, such as Origin Declaration, shall be subject to the establishment of an electronic system to exchange information to establish the authenticity of those self-declarations.

ANNEX 3A

PRODUCT SPECIFIC RULES OF ORIGIN

Section A: Headnotes to the Annex

1. For the purposes of this Annex:

   (a) **"section"** means a section of the Harmonized System; and

   (b) **"chapter"** means the first two digits of the tariff classification number under the Harmonized System;

   (c) **"heading"** means the first four digits of the tariff classification number under the Harmonized System; and

   (d) **"sub-heading"** means the first six digits of the tariff classification number under the Harmonized System.

2. The product specific rule, or set of product specific rules, that applies to a particular sub-heading is set out immediately adjacent to the sub-heading, heading or chapter, as applicable.

3. A requirement of a change in tariff classification applies only to non-originating materials.

4. If a chapter, heading or sub-heading is excluded as part of a change in tariff classification rule, it means that non-originating materials of that chapter, heading or sub-heading may not be used to meet the change in tariff classification rule. All materials that are excluded must be originating goods.

5. Where a heading or sub-heading is subject to alternative product specific rules, the requirements of this Annex will be considered to be satisfied if a good satisfies one of the alternative rules.

6. If a good is subject to a product specific rule that includes multiple requirements, the requirements of this Annex will be considered to be satisfied for that good only if the good satisfies all applicable requirements.

7. For the purposes of Section B of this Annex:

   (a) **"WO"** means that good must be wholly obtained in the territory of one or both of the Parties within the meaning of Article 3.3 (Wholly Obtained or Produced Goods);

(b) **"CC"** means that all non-originating materials used in the production of the good have undergone a change in tariff classification at the two-digit level;

(c) **"CTH"** means that all non-originating materials used in the production of the good have undergone a change in tariff classification at the four-digit level;

(d) **"CTSH"** means that all non-originating materials used in the production of the good have undergone a change in tariff classification at the six-digit level;

(e) **"QVC (X)"** means the good must satisfy the qualifying value content requirement set out in this Annex, calculated in accordance with Article 3.5 (Calculation of Qualifying Value Content). The percentages of QVC specified in this Annex are based on the Build-Down formula. Where the Build-Up formula is used, the required percentage of QVC is 10 percentage points lower than the percentage specified in this Annex, except that, for goods under HS Chapter 71, the QVC percentage specified in this Annex applies regardless of whether the Build-Down or Build-Up formula is used;

(f) **"melt and pour"** in one or both of the Parties means that the product must have been melted and poured in one or both of the Parties wherein the raw material is first produced in an iron or steel-making furnace in a liquid state, and then poured into its first solid shape; and

(g) a Product Specific Rule for this tariff classification shall be negotiated and agreed by the Technical Subcommittee on Rules of Origin, and adopted into this Annex in accordance with the procedures established under this Agreement, wherein preferential tariff treatment for goods originating in New Zealand is provided under this Agreement. In the interim, a rule of wholly obtained shall apply for these tariff classifications.

Section B: Product Specific Rules

HS Code 2022	Product Description	PSR
Chapter 1	Animals; live	WO
Chapter 2	Meat and edible meat offal	WO
Ex Chapter 3	Fish and crustaceans, molluscs and other aquatic invertebrates	WO
030691	Crustaceans, whether in shell or not, live, fresh, chilled, frozen, dried, salted or in brine; smoked crustaceans, whether in shell or not, whether or not cooked before or during the smoking process; crustaceans, in shell, cooked by steaming or by boiling in water, whether or not chilled, frozen, dried, salted or in brine : Other: Rock lobster and other sea crawfish (Palinurus spp., Panulirus spp., Jasus spp.)	QVC 35%
030692	Crustaceans, whether in shell or not, live, fresh, chilled, frozen, dried, salted or in brine; smoked crustaceans, whether in shell or not, whether or not cooked before or during the smoking process; crustaceans, in shell, cooked by steaming or by boiling in water, whether or not chilled, frozen, dried, salted or in brine: Other: Lobsters (Homarus spp.)	QVC 35%
030693	Crustaceans, whether in shell or not, live, fresh, chilled, frozen, dried, salted or in brine; smoked crustaceans, whether in shell or not, whether or not cooked before or during the smoking process;	QVC 35%

HS Code 2022	Product Description	PSR
	crustaceans, in shell, cooked by steaming or by boiling in water, whether or not chilled, frozen, dried, salted or in brine: Other: Crabs	
030694	Crustaceans, whether in shell or not, live, fresh, chilled, frozen, dried, salted or in brine; smoked crustaceans, whether in shell or not, whether or not cooked before or during the smoking process; crustaceans, in shell, cooked by steaming or by boiling in water, whether or not chilled, frozen, dried, salted or in brine: Other: Norway lobsters (Nephrops norvegicus)	QVC 35%
030695	Crustaceans, whether in shell or not, live, fresh, chilled, frozen, dried, salted or in brine; smoked crustaceans, whether in shell or not, whether or not cooked before or during the smoking process; crustaceans, in shell, cooked by steaming or by boiling in water, whether or not chilled, frozen, dried, salted or in brine: Other: Shrimps and prawns	QVC 35%
030699	Crustaceans, whether in shell or not, live, fresh, chilled, frozen, dried, salted or in brine; smoked crustaceans, whether in shell or not, whether or not cooked before or during the smoking process; crustaceans, in shell, cooked by steaming or by boiling in water, whether or not chilled, frozen, dried, salted or in brine: Other: Other	QVC 35%
030819	Aquatic invertebrates other than crustaceans and molluscs, live, fresh, chilled, frozen, dried, salted or in brine; smoked aquatic	QVC 35%

HS Code 2022	Product Description	PSR
	invertebrates other than crustaceans and molluscs, whether or not cooked before or during the smoking process.: Sea cucumbers (Stichopus japonicus, Holothuroidea): Other	
030829	Aquatic invertebrates other than crustaceans and molluscs, live, fresh, chilled, frozen, dried, salted or in brine; smoked aquatic invertebrates other than crustaceans and molluscs, whether or not cooked before or during the smoking process. Sea urchins (Strongylocentrotus spp., Paracentrotus lividus, Loxechinus albus, Echinus esculentus) : Other	QVC 35%
030890	Aquatic invertebrates other than crustaceans and molluscs, live, fresh, chilled, frozen, dried, salted or in brine; smoked aquatic invertebrates other than crustaceans and molluscs, whether or not cooked before or during the smoking process.: Other	QVC 35%
030990	Flours, meals and pellets of fish, crustaceans, molluscs and other aquatic invertebrates, fit for human consumption.: Other	CTH
Ex Chapter 4	Dairy produce; birds' eggs; natural honey; edible products of animal origin, not elsewhere specified or included	Referred to headnote 7(g)
040900	Natural Honey	WO
Chapter 5	Products of animal origin, not elsewhere specified or included	WO

HS Code 2022	Product Description	PSR
Chapter 6	Live trees and other plants; bulbs, roots and the like; cut flowers and ornamental foliage.	WO
Ex Chapter 7	Edible vegetables and certain roots and tubers	WO
071090	Vegetables (uncooked or cooked by steaming or boiling in water), frozen.: Mixtures of vegetables	CTH
Chapter 8	Edible fruit and nuts; peel of citrus fruit or melons.	WO
Ex Chapter 9	Coffee, tea, mate and spices	WO
090620	Cinnamon and cinnamon-tree flowers: Crushed or ground	CTSH
091091	Ginger, saffron, turmeric (curcuma), thyme, bay leaves, curry and other spices. Other spices: Mixtures referred to in Note 1(b) to HS Chapter 9	WO; or QVC 40%
091099	Ginger, saffron, turmeric (curcuma), thyme, bay leaves, curry and other spices. Other spices: Other	WO; or QVC 40%
Chapter 10	Cereals	WO
Chapter 11	Products of the milling industry; malt, starches, inulin, wheat gluten	WO
Chapter 12	Oil seeds and oleaginous fruits; miscellaneous grains, seeds and fruit, industrial or medicinal plants; straw and fodder	WO

HS Code 2022	Product Description	PSR
Chapter 13	Lac; gums, resins and other vegetable saps and extracts	WO
Chapter 14	Vegetable plaiting materials; vegetable products not elsewhere specified or included	WO
Chapter 15	Animal, vegetable or microbial fats and oils and their cleavage products; prepared edible fats; animal or vegetable waxes	CTSH + QVC 45%
Ex Chapter 16	Preparations of meat, of fish, of crustaceans, molluscs or other aquatic invertebrates, or of insects	CC, provided that value of non-originating materials of chapter 2 does not exceed 15% of the value of the product
1604	Prepared or preserved fish; caviar and caviar substitutes prepared from fish eggs.	CC
1605	Crustaceans, molluscs and other aquatic invertebrates, prepared or preserved.	CC
Ex Chapter 17	Sugars and sugar confectionery	CC
1701	Cane or beet sugar and chemically pure sucrose, in solid form	CC, except chapter 12
170490	Sugar confectionery (including white chocolate), not containing cocoa: Other	CC or QVC 40%
Chapter 18	Cocoa and cocoa preparations	

HS Code 2022	Product Description	PSR
1801	Cocoa beans; whole or broken, raw or roasted	WO
1802	Cocoa; shells, husks, skins and other cocoa waste	WO
1803	Cocoa; paste; whether or not defatted	CTH + QVC 40%
1804	Cocoa; butter, fat and oil	CTH + QVC 40%
1805	Cocoa; powder, not containing added sugar or other sweetening matter	CTH + QVC 40%
Ex 1806	Chocolate and other food preparations containing cocoa	CTH, except heading 1805; or CTH + QVC 40%
180610	Cocoa powder, containing added sugar or other sweetening matter.	CTH, except heading 1805
Chapter 19	Preparations of cereals, flour, starch or milk; pastrycooks' products	CC
Chapter 20	Preparations of vegetables, fruit, nuts or other parts of plants	CC, provided that value of non-originating materials of chapter 7 and 8 does not exceed 10% of the value of the product
Ex Chapter 21	Miscellaneous edible preparations	CC
2102	Yeasts (active or inactive); other single-cell micro-organisms, dead	CTH + QVC 40%

HS Code 2022	Product Description	PSR
	(but not including vaccines of heading no. 3002); prepared baking powders	
2104	Soups and broths and preparations therefor; homogenised composite food preparations	CTH + QVC 40%
2105	Ice cream and other edible ice; whether or not containing cocoa	CC, except chapters 4 and 17
2106	Food preparations not elsewhere specified or included	CC, except chapter 4
Ex Chapter 22	Beverages, spirits and vinegar	
2201	Waters, including natural or artificial mineral waters and aerated waters, not containing added sugar or other sweetening matter nor flavoured; ice and snow	WO
2202	Waters, including mineral and aerated waters, containing added sugar or sweetening matter, flavoured; other non-alcoholic beverages, not including fruit, nut or vegetable juices of heading no. 2009	WO
2203	Beer made from malt	CTH, except headings 1107 and 1901
2204	Wine of fresh grapes, including fortified wines; grape must other than that of heading no. 2009	CC, provided that value of non-originating materials of headings 0806 and 2009 does not exceed 10% of the

HS Code 2022	Product Description	PSR
		value of the product
2205	Vermouth and other wine of fresh grapes, flavoured with plants or aromatic substances	CC, except from headings 0806 and 2009
2206	Other fermented beverages (for example, cider, perry, mead sake); mixtures of fermented beverages and mixtures of fermented beverages and non-alcoholic beverages, not elsewhere specified or included	CC, except from heading 0409
2207	Undenatured ethyl alcohol of an alcoholic strength by volume of 80% vol. Or higher; ethyl alcohol and other spirits, denatured, of any strength	CC
Ex 2208	Undenatured ethyl alcohol of an alcoholic strength by volume of less than 80% vol spirit, liqueurs and other spiritnous beverages	CTH and non-originating alcohol content does not exceed 15% of the volume of the total alcoholic strength of the good
220820	Spirits obtained by distilling grape wine or grape marc	CC, except from headings 0806 and 2009
220830	Whiskies	CTH, provided that the non-originating material of heading 2208 used does not exceed 15% of the alcoholic strength of the good.

HS Code 2022	Product Description	PSR
2209	Vinegar and substitutes for vinegar obtained from acetic acid	CTH + QVC 40%
Ex Chapter 23	Residues and waste from the food industries; prepared animal fodder	CTH, provided non-originating material does not exceed 20% of the value.
230910	Preparations of a kind used in animal feeding: Dog or cat food, put up for retail sale	CTH + QVC 40%
230990	Preparations of a kind used in animal feeding: Other	CTH
Ex Chapter 24	Tobacco and manufactured tobacco substitutes; products, whether or not containing nicotine, intended for inhalation without combustion; other nicotine containing products intended for the intake of nicotine into the human body	CC
2401	Unmanufactured tobacco; tobacco refuse	WO
240411	Products containing tobacco, reconstituted tobacco, nicotine, or tobacco or nicotine substitutes, intended for inhalation without combustion; other nicotine containing products intended for the intake of nicotine into the human body: Products intended for inhalation without combustion: Containing tobacco or reconstituted tobacco	CTSH + QVC 45%

HS Code 2022	Product Description	PSR
Chapter 25	Salt; sulphur; earths, stone; plastering materials, lime and cement	CTSH + QVC 45%
Chapter 26	Ores, slag and ash	CTSH + QVC 45%
Ex Chapter 27	Mineral fuels, mineral oils and products of their distillation; bituminous substances; mineral waxes	CTSH + QVC 45%
270119	Coal; briquettes, ovoids and similar solid fuels manufactured from coal.: Other coal	CTH
2709	Petroleum oils and oils obtained from bituminous minerals; crude	WO
2710	Petroleum oils and oils from bituminous minerals, not crude; preparations n.e.c, containing by weight 70% or more of petroleum oils or oils from bituminous minerals; these being the basic constituents of the preparations; waste oils	CTH
2712	Petroleum jelly; paraffin wax, micro-crystalline petroleum wax, slack wax, ozokerite, lignite wax, peat wax, other mineral waxes, similar products obtained by synthesis, other processes; coloured or not	CTH
2715	Bituminous mixtures based on natural asphalt; on natural bitumen, on petroleum bitumen, on mineral tar or on mineral tar pitch (e.g. bituminous mastics, cut-backs)	CTH

HS Code 2022	Product Description	PSR
Chapter 28	Inorganic chemicals; organic and inorganic compounds of precious metals; of rare earth metals, of radio-active elements and of isotopes	CTSH + QVC 45%
Ex Chapter 29	Organic chemicals	CTSH + QVC 45%
291819	Carboxylic acids with additional oxygen function and their anhydrides, halides, peroxides and peroxyacids; their halogenated, sulphonated, nitrated or nitrosated derivatives.: Other	CTSH; or QVC 40%
293361	Heterocyclic compounds with nitrogen hetero-atom(s) only.: Compounds containing an unfused triazine ring (whether or not hydrogenated) in the structure: Melamine	CTSH
Ex Chapter 30	Pharmaceutical products	CTSH + QVC 45%
3002	Human blood; animal blood prepared for therapeutic, prophylactic or diagnostic uses; antisera, other blood fractions and immunological products, whether or not modified or obtained by means of biotechnological processes; vaccines, toxins, cultures of micro-organisms (excluding yeasts) and similar products; cell cultures, whether or not modified	CTSH; or QVC 40%
3006	Pharmaceutical goods specified in Note 4 to HS Chapter 30	CTSH; or QVC 40%
Chapter 31	Fertilizers	CTSH + QVC 45%

HS Code 2022	Product Description	PSR
Ex Chapter 32	Tanning or dyeing extracts; tannins and their derivatives; dyes, pigments and other colouring matter; paints, varnishes; putty, other mastics; inks	CTSH + QVC 45%
3203	Colouring matter of vegetable or animal origin (including dyeing extracts but excluding animal black), whether or not chemically defined; preparations as specified in Note 3 to HS Chapter 32 based on colouring matter of vegetable or animal origin	CTSH; or QVC 45%
3208	Paints and varnishes (including enamels and lacquers) based on synthetic polymers or chemically modified natural polymers, dispersed or dissolved in a non-aqueous medium; solutions as defined in Note 4 to HS Chapter 32.	CC
3209	Paints and varnishes (including enamels and lacquers) based on synthetic or chemically modified natural polymers, dispersed or dissolved in an aqueous medium	CC
3210	Paints and varnishes (including enamels, lacquers and distempers), excluding those of heading no. 3209, prepared water pigments of a kind used for finishing leather	CC
3214	Glaziers' putty, grafting putty, resin cements, caulking compounds and other mastics; painters' fillings; non-refractory surfacing preparations for facades, indoor walls, floors, ceilings or the like	CC

HS Code 2022	Product Description	PSR
3215	Printing ink, writing or drawing ink and other inks, whether or not concentrated or solid.	CC
Ex Chapter 33	Essential oils and resinoids; perfumery, cosmetic or toilet preparations	CTSH + QVC 45%
330210	Mixtures of odoriferous substances and mixtures (including alcoholic solutions) with a basis of one or more of these substances, of a kind used as raw materials in industry; other preparations based on odoriferous substances, of a kind used for the manufacture of beverages: Of a kind used in the food or drink industries	CC; or QVC 45%
330290	Mixtures of odoriferous substances and mixtures (including alcoholic solutions) with a basis of one or more of these substances, of a kind used as raw materials in industry; other preparations based on odoriferous substances, of a kind used for the manufacture of beverages.: Other	CC
Chapter 34	Soap, organic surface-active agents; washing, lubricating, polishing or scouring preparations; artificial or prepared waxes, candles and similar articles, modelling pastes, dental waxes and dental preparations with a basis of plaster	CTSH + QVC 45%
Ex Chapter 35	Albuminoidal substances; modified starches; glues; enzymes	CTSH + QVC 45%

HS Code 2022	Product Description	PSR
350110	Casein, caseinates and other casein derivatives; casein glues.: Casein	CC, except chapter 4
350190	Casein, caseinates and other casein derivatives; casein glues.: Other	CTH
350220	Albumins (including concentrates of two or more whey proteins, containing by weight more than 80% whey proteins, calculated on the dry matter), albuminates and other albumin derivatives: Milk albumin, including concentrates of two or more whey proteins	CTH
350290	Albumins (including concentrates of two or more whey proteins, containing by weight more than 80 % whey proteins, calculated on the dry matter), albuminates and other albumin derivatives.: Other	CTH
3504	Peptones and their derivatives; other protein substances and their derivatives n.e.c. or included; hide powder, whether or not chromed	CC
Chapter 36	Explosives; pyrotechnic products; matches; pyrophoric alloys; certain combustible preparations	CTSH + QVC 45%
Ex Chapter 37	Photographic or cinematographic goods	CTSH + QVC 45%
370710	Chemical preparations for photographic uses (other than varnishes, glues, adhesives and similar preparations); unmixed products for photographic uses, put up in measured portions or put up for	CTH

HS Code 2022	Product Description	PSR
	retail sale in a form ready for use: sensitizing emulsions	
Ex Chapter 38	Miscellaneous chemical products	CTSH + QVC 45%
3816	Refractory cements, mortars, concretes and similar compositions, including dolomite ramming mix, other than products of heading 3801	CC
Ex Chapter 39	Plastics and articles thereof	CTH
3915	Waste, parings and scrap, of plastics	WO
3916	Monofilament of which any cross-sectional dimension exceeds 1mm, rods, sticks and profile shapes, whether or not surface-worked but not otherwise worked, of plastics	CTSH
3917	Tubes, pipes and hoses and fittings thereof (for example, joints, elbows, flanges), of plastics	CTSH
3918	Floor coverings of plastics, whether or not self-adhesive, in rolls or in the form of tiles; wall or ceiling coverings of plastics, as defined in Note 9 to this Chapter.	CTSH
3919	Self-adhesive plates, sheets, film, foil, tape, strip and other flat shapes, of plastics, whether or not in rolls.	CTSH
3920	Other plates, sheets, film, foil and strip, of plastics, non-cellular and not reinforced, laminated, supported or	CTSH

HS Code 2022	Product Description	PSR
	similarly combined with other materials.	
3921	Other plates, sheets, film, foil and strip, of plastics.	CTSH
3922	Baths, shower-baths, sinks, wash-basins, bidets, lavatory pans, seats and covers, flushing cisterns and similar sanitary ware, of plastics.	CTSH
3923	Articles for the conveyance or packing of goods, of plastics; stoppers, lids, caps and other closures, of plastics.	CTSH
3924	Tableware, kitchenware, other household articles and hygienic or toilet articles, of plastics.	CTSH
3925	Builders' ware of plastics, not elsewhere specified or included.	CTSH
3926	Other articles of plastics and articles of other materials of headings 39.01 to 39.14.	CTSH
Ex Chapter 40	Rubber and articles thereof	CTH
Ex 4001	Natural rubber, balata, gutta-percha, guayule, chicle and similar gums; in primary forms or in plates, sheets or strip	WO
400130	Balata, gutta-percha, guayule, chicle and similar natural gums	CTSH + QVC 45%
4004	Waste, parings and scrap of rubber (other than hard rubber) and	CTSH + QVC 45%

HS Code 2022	Product Description	PSR
	powders and granules obtained therefrom	
400931	Tubes, pipes and hoses, of vulcanised rubber other than hard rubber, with or without their fittings (for example, joints, elbows, flanges): Reinforced or otherwise combined only with textile materials: Without fittings	CTSH + QVC 45%
401490	Hygienic or pharmaceutical articles (including teats), of vulcanised rubber other than hard rubber, with or without fittings of hard rubber.: Other	CTSH; or QVC 40%
4015	Articles of apparel and clothing accessories (including gloves, mittens and mitts), for all purposes, of vulcanised rubber other than hard rubber	CTSH + QVC 45%
Ex Chapter 41	Raw hides and skins (other than furskins) and leather	CTSH + QVC 45%
410441	Tanned or crust hides and skins of bovine (including buffalo) or equine animals, without hair on, whether or not split, but not further prepared.: In the dry state (crust): Full grains, unsplit; grain splits	CTSH
410449	Tanned or crust hides and skins of bovine (including buffalo) or equine animals, without hair on, whether or not split, but not further prepared.: In the dry state (crust): Other	CTSH
4107	Leather further prepared after tanning or crusting, including parchment-dressed leather, of	CTH

HS Code 2022	Product Description	PSR
	bovine (including buffalo) or equine animals, without hair on, whether or not split, other than leather of heading 4114	
4112	Leather further prepared after tanning or crusting, including parchment dressed leather, of sheep or lamb, without wool on, whether or not split, other than leather of heading 4114	CTH
411310	Leather further prepared after tanning or crusting, including parchment-dressed leather, of other animals, without wool or hair on, whether or not split, other than leather of heading 4114: Of goats or kids	CTH
4114	Chamois (including combination chamois) leather; patent leather and patent laminated leather; metallised leather	CTH
Chapter 42	Articles of leather; saddlery and harness; travel goods, handbags and similar containers; articles of animal gut (other than silk-worm gut)	CC
Ex Chapter 43	Furskins and artificial fur; manufactures thereof	CTH
4301	Raw furskins (including heads, tails, paws, other pieces or cuttings, suitable for furriers' use), excluding raw hides and skins of heading no. 4101, 4102 or 4103	CTSH + QVC 45%
Ex Chapter 44	Wood and articles of wood; wood charcoal	CTH

HS Code 2022	Product Description	PSR
4401	Fuel wood, in logs, billets, twigs, faggots or similar forms; wood in chip or particles; sawdust and wood waste and scrap, whether or not agglomerated in logs, briquettes, pellets or similar forms	CTSH + QVC 45%
4402	Wood charcoal (including shell or nut charcoal), whether or not agglomerated	CTSH + QVC 45%
Ex 4403	Wood in the rough, whether or not stripped of bark or sapwood, or roughly squared	CTSH + QVC 45%
440321	Other, coniferous: Of pine (Pinus spp.), of which the smallest cross-sectional dimension is 15 cm or more	CTH; or QVC 40%
440322	Other, coniferous: Of pine (Pinus spp.), other	CTH; or QVC 40%
4404	Hoopwood; split poles; piles, pickets and stakes of wood, pointed but not sawn lengthwise; wooden sticks, roughly trimmed but not turned, bent or otherwise worked, suitable for the manufacture of walking-sticks, umbrellas, tool handles or the like; chipwood and the like.	CTSH + QVC 45%
4405	Wood wool; wood flour	CTSH + QVC 45%
4406	Railway or tramway sleepers (cross-ties) of wood	CTSH + QVC 45%
4407	Wood sawn or chipped lengthwise, sliced or peeled, whether or not	CTSH + QVC 45%

HS Code 2022	Product Description	PSR
	planed, sanded or finger-jointed, of a thickness exceeding 6mm	
440921	Wood (including strips and friezes for parquet flooring, not assembled) continuously shaped (tongued, grooved, rebated, chamfered, V-jointed, beaded, moulded, rounded or the like) along any of its edges, ends or faces, whether or not planed, sanded or end-jointed.: Non-coniferous: Of bamboo	CTSH + QVC 45%
4413	Densified wood, in blocks, plates, strips or profile shapes	CTSH + QVC 45%
4416	Casks, barrels, vats, tubs and other coopers' products and parts thereof, of wood, including staves	CTSH + QVC 45%
Chapter 45	Cork and articles of cork	CTH
Ex Chapter 46	Manufactures of straw, esparto or other plaiting materials; basketware and wickerwork	CTSH + QVC 45%
460290	Basketwork, wickerwork and other articles, made directly to shape from plaiting materials or made up from goods of heading 46.01; articles of loofah.: Other	CTH
Chapter 47	Pulp of wood or other fibrous cellulosic material; recovered (waste and scrap) paper or paperboard	CTSH + QVC 45%
Chapter 48	Paper and paperboard; articles of paper pulp, of paper or paperboard	CTSH + QVC 45%

HS Code 2022	Product Description	PSR
Chapter 49	Printed books, newspapers, pictures and other products of the printing industry; manuscripts, typescripts and plans	CTSH + QVC 45%
Ex Chapter 50	Silk	CTH + QVC 40%
5001	Silk-worm cocoons suitable for reeling	WO
5002	Raw silk (not thrown)	WO
5003	Silk waste (including cocoons unsuitable for reeling, yarn waste and garnetted stock)	WO
Ex Chapter 51	Wool, fine or coarse animal hair; horsehair yarn and woven fabric	CTH + QVC 40%
510111	Wool, not carded or combed.: Greasy, including fleece-washed wool: Shorn wool	CC; or QVC 40%
510121	Wool, not carded or combed. Degreased, not carbonised: Shorn wool	CC
Ex Chapter 52	Cotton	CTH + QVC 40%
5201	Cotton; not carded or combed	WO
5202	Cotton waste (including yarn waste and garnetted stock)	WO
5203	Cotton, carded or combed	WO

HS Code 2022	Product Description	PSR
Chapter 53	Other vegetable textile fibres; paper yarn and woven fabrics of paper yarn	CTH + QVC 40%
Chapter 54	Man-made filaments; strip and the like of man-made textile materials	CTH + QVC 40%
Chapter 55	Man-made staple fibres	CTH + QVC 40%
Chapter 56	Wadding, felt and nonwovens, special yarns; twine, cordage, ropes and cables and articles thereof	CTH + QVC 40%
Chapter 57	Carpets and other textile floor coverings	CTH + QVC 40%
Chapter 58	Special woven fabrics, tufted textile fabrics, lace, tapestries, trimmings, embroidery	CTH + QVC 40%
Chapter 59	Impregnated, coated, covered or laminated; textile articles of a kind suitable for industrial use	CTH + QVC 40%
Chapter 60	Knitted or crocheted fabrics	CTH + QVC 40%
Chapter 61	Articles of apparel and clothing accessories; knitted or crocheted	CTH + QVC 40%
Chapter 62	Articles of apparel and clothing accessories; not knitted or crocheted	CTH + QVC 40%
Chapter 63	Other made up textile articles; sets; worn clothing and worn textile articles; rags	CTH + QVC 40%

HS Code 2022	Product Description	PSR
Ex Chapter 64	Footwear; gaiters and the like; parts of such articles	CTH
6406	Parts of footwear (including uppers whether or not attached to soles other than outer soles); removable in-soles, heel cushions and similar articles; gaiters, leggings and similar articles, and parts thereof.	CC
Ex Chapter 65	Headgear and parts thereof	CTSH + QVC 45%
6506	Other headgear, whether or not lined or trimmed	CC
Chapter 66	Umbrellas, sun umbrellas, walking-sticks, seat sticks, whips, riding crops; and parts thereof	CTSH + QVC 45%
Ex Chapter 67	Prepared feathers and down, prepared; and articles made of feather or of down; artificial flowers; articles of human hair	CC
6702	Artificial flowers, foliage and fruit, artificial, and parts thereof; articles made of artificial flowers, foliage or fruit	CTSH + QVC 45%
6703	Human hair, dressed, thinned, bleached or otherwise worked; wool or other animal hair or other textile materials, prepared for use in making wigs or the like	CTSH + QVC 45%
Ex Chapter 68	Articles of stone, plaster, cement, asbestos, mica or similar materials	CC

HS Code 2022	Product Description	PSR
6803	Worked slate and articles of slate or of agglomerated slate	CTSH + QVC 45%
6807	Articles of asphalt or of similar material (for example, petroleum bitumen or coal tar pitch)	CTSH + QVC 45%
6812	Fabricated asbestos fibres; mixtures with a basis of asbestos or with a basis of asbestos and magnesium carbonate; articles of such mixtures or of asbestos (for example, thread, woven fabric, clothing, headgear, footwear, gaskets), whether or not reinforced, other than goods of heading 6811 or 6813	CTSH + QVC 45%
6813	Friction material and articles thereof (for example, sheets, rolls, strips, segments, discs, washers, pads), not mounted, for brakes, for clutches or the like, with a basis of asbestos, of other mineral substances or of cellulose, whether or not combined with textile or other materials	CTSH + QVC 45%
6815	Articles of stone or of other mineral substances (including carbon fibres, articles of carbon fibres and articles of peat), not elsewhere specified or included	CTSH + QVC 45%
Chapter 69	Ceramic products	CC
Ex Chapter 70	Glass and glassware	CTSH + QVC 45%
7007	Safety glass, consisting of toughened (tempered) or laminated glass	CTH

HS Code 2022	Product Description	PSR
7008	Multiple-walled insulating units of glass	CTH
7009	Glass mirrors; whether or not framed, including rear-view mirrors	CTH
7010	Carboys, bottles, flasks, jars, pots, phials, ampoules, containers of glass of a kind used for the conveyance or packing of goods; preserving jars of glass; stoppers, lids and other closures of glass	CTH
7016	Paving blocks, slabs, bricks, squares, tiles and other articles of pressed or moulded glass, whether or not wired, of a kind used for building or construction purposes; glass cubes and other glass smallwares, whether or not on a backing, for mosaics or similar decorative purposes; leaded lights and the like; multicellular or foam glass in blocks, panels, plates, shells or similar forms.	CTH
701890	Glass beads, imitation pearls, imitation precious or semi-precious stones and similar glass smallwares, and articles thereof other than imitation jewellery; glass eyes other than prosthetic articles; statuettes and other ornaments of lamp-worked glass, other than imitation jewellery; glass microspheres not exceeding 1 mm in diameter.: Other	CTH
701971	Glass fibres (including glass wool) and articles thereof (for example, yarn, rovings, woven fabrics): Chemically bonded fabrics: Veils (thin sheets)	CTH

HS Code 2022	Product Description	PSR
7020	Other articles of glass	CTH
Chapter 71	Natural or cultured pearls, precious or semi-precious stones, precious metals, metals clad with precious metal, and articles thereof; imitation jewellery; coin	
710110	Natural pearls unworked	WO
710121	Cultured pearls: unworked	WO
710122	Cultured pearls: worked	CTSH + QVC 6%
710210	Unsorted	WO
710221	Industrial: Unworked or simply sawn, cleaved or bruted	WO
710229	Industrial: Other	CTSH + QVC 6%
710231	Non-industrial diamonds: unworked or simply sawn, cleaved or bruted	WO
710239	Non-industrial diamonds: Other	CTSH + QVC 6%
710310	Unworked or simply sawn or roughly shaped	WO
710391	Otherwise worked: Rubies, sapphires and emeralds	CTSH + QVC 20%
710399	Otherwise worked: Others	CTSH + QVC 20%

HS Code 2022	Product Description	PSR
710410	Piezo-electric quartz	Hydrothermal Process
710421	Other, unworked or simply sawn or roughly shaped: Diamonds	High Pressure High Temperature (HPHT) or Chemical Vapor Deposition (CVD)
710429	Other, unworked or simply sawn or roughly shaped: Other	Hydrothermal Process and Flux Method
710491	Other: Diamonds	CTSH + QVC 6%
710499	Other: Other	CTSH + QVC 40%
710510	Of diamonds	CTH
710590	Other	CTH
710610	Powder	Production/ manufacturing from unwrought silver
710691	Other: unwrought	Dore- CC; Others- Electrolytic/ chemical separation and mutual recognition of good delivery standards as per respective country policy
710692	Other: semi-manufactured	Dore- CC;

HS Code 2022	Product Description	PSR
		Others- CTSH
710700	Base metals clad with silver, not further worked than semi-manufactured	CTH+ QVC 40%
710811	Non-monetary: powder	Production/ manufacturing from unwrought gold
710812	Non-monetary: other unwrought forms	Dore CC; Others- Electrolytic/ chemical separation and mutual recognition of good delivery standards as per respective country policy
710813	Non-monetary: other semi-manufactured forms	Dore- CC; Others- CTSH
710820	Monetary	CTSH
710900	Base metals or silver, clad with gold, not further worked than semi-manufactured	CTH + QVC 40%
711011	Platinum: unwrought or in powder form	For Powder form: Production/ manufacturing from unwrought platinum; Dore- CC;
711019	Platinum: Other	CTSH

HS Code 2022	Product Description	PSR
711021	Palladium: unwrought or in powder form	For Powder form: Production/ manufacturing from unwrought palladium; Dore- CC;
711029	Palladium: Other	CTSH
711031	Rhodium: unwrought or in powder form	For Powder form: Production/ manufacturing from unwrought Rhodium; Dore- CC;
711039	Rhodium: Other	CTSH
711041	Iridium, osmium and ruthenium: unwrought or in powder form	For Powder form: Production/ manufacturing from unwrought Iridium, osmium, ruthenium; Dore- CC;
711049	Iridium, osmium and ruthenium: Other	CTSH
711100	Base metals, silver or gold, clad with platinum, not further worked than semi-manufactured	CTH + QVC 40%
711230	Ash containing precious metal or precious metal compounds	CTH

HS Code 2022	Product Description	PSR
711291	Other: of gold, including metal clad with gold but excluding sweepings containing other precious metals	CTH
711292	Other: of platinum, including metal clad with platinum but excluding sweepings containing other precious metals	CTH
711299	Other	CTH
711311	Studded with gemstones/ articles of silver	CTSH + QVC 6%
711311	Studded with diamonds	CTSH + QVC 7%
711319	Plain Jewellery of gold/ platinum /other precious metals/ parts thereof	CTSH + QVC 3.5%
711319	Jewellery of gold studded with gemstones	CTSH + QVC 6%
711319	Jewellery of gold studded with diamonds	CTSH + QVC 7%
711319	Jewellery of gold set with pearls	CTSH + QVC 6%
711319	jewellery of gold set with precious and semi- precious stones other than diamonds	CTSH + QVC 6%
711319	jewellery of platinum unset	CTSH + QVC 3.5%
711319	parts of plain gold jewellery	CTSH + QVC 3.5%
711319	articles of other precious metal	CTSH + QVC 3.5%

HS Code 2022	Product Description	PSR
711320	Of base metal clad with precious metal	CTH + QVC 40%
711411	Of precious metal whether or not plated or clad with precious metal: of silver, whether or not plated or clad with other precious metal	CTH, except headings 7113, 7115-7118, + QVC 3.5%
711419	Of precious metal whether or not plated or clad with precious metal: of other precious metal, whether or not plated or clad with precious metal	CTH, except headings 7113, 7115-7118, + QVC 3.5%
711420	Of base metal clad with precious metal	CTH + QVC 40%
711510	Catalysts in the form of wire cloth or grill, of platinum	CTH
711590	Other	CTH
711610	Of natural or cultured pearls	CTH + QVC 40%
711620	Of precious or semi-precious stones (natural, synthetic or reconstructed)	CTH + QVC 40%
711711	Of base metal, whether or not plated with precious metal: cuff-links and studs	CTH + QVC 40%
711719	Of base metal, whether or not plated with precious metal: other	CTH + QVC 40%
711790	Other	CTH + QVC 40%
711810	Coin (other than gold coin), not being legal tender	CTH + QVC 1.5%

HS Code 2022	Product Description	PSR
711890	Other	CTH + QVC 1.5%
Ex Chapter 72	Iron and steel	Melt and Pour
7201	Pig iron and spiegeleisen in pigs, blocks or other primary forms	CTSH + QVC 45%
7202	Ferro-alloys	CTSH + QVC 45%
7203	Ferrous products obtained by direct reduction of iron ore and other spongy ferrous products, in lumps, pellets or the like; iron having a minimum purity of 99.94%, in lumps, pellets or similar forms	CTSH + QVC 45%
Ex 7204	Ferrous waste and scrap; remelting scrap ingots of iron or steel	CTSH + QVC 45%
720421	Waste and scrap of alloy steel: of stainless steel	CTH
720429	Waste and scrap of alloy steel: Other	CTH
720430	Waste and scrap of tinned iron or steel	CTH
720449	Other waste and scrap: Other	CTH
7205	Granules and powders, of pig iron, spiegeleisen, iron or steel	CTSH + QVC 45%
Ex Chapter 73	Iron or steel articles	CC
7301	sheet piling of iron or steel, whether or not drilled, punched or made from assembled elements; welded	Melt and Pour

HS Code 2022	Product Description	PSR
	angles, shapes and sections, of iron or steel	
7302	Railway or tramway track construction material of iron or steel, the following: rails, check-rails and rack rails, switch blades, crossing frogs, point rods and other crossing pieces, sleepers (cross-ties), fish-plates, chairs, chair wedges, sole plates (base plates), rail clips, bedplates, ties and other material specialized for jointing or fixing rails.	Melt and Pour
7303	Tubes, pipes and hollow profiles, of cast iron	Melt and Pour
7304	Tubes, pipes and hollow profiles, seamless, of iron (other than cast iron) or steel	Melt and Pour
7305	Other tubes and pipes (for example, welded, riveted or similarly closed), having circular cross-sections, the external diameter of which exceeds 406.4 mm of iron or steel.	Melt and Pour
7306	Other tubes, pipes and hollow profiles (for example, open seam or welded, riveted or similarly closed), of iron or steel.	Melt and Pour
Ex Chapter 74	Copper and articles thereof	CTSH + QVC 45%
Ex 7407	Copper bars, rods and profiles	CC
740710	Of refined copper	CTH
Ex 7408	Copper wire	CC

HS Code 2022	Product Description	PSR
740811	Of refined copper: Of which the maximum cross-sectional dimension exceeds 6 mm	CTH
740819	Of refined copper: Other	CTH
Ex 7411	Copper tubes and pipes	CC
741110	Of refined copper	CTH
741210	Copper tube or pipe fittings (for example, couplings, elbows, sleeves): Of refined copper	CTH
741220	Copper tube or pipe fittings (for example, couplings, elbows, sleeves): Of copper alloys	CC
7413	Stranded wire, cables, plaited bands and the like, of copper, not electrically insulated.	CTH
7415	Nails, tacks, drawing pins, staples (other than those of heading 8305) and similar articles, of copper or of iron or steel with heads of copper; screws, bolts, nuts, screw hooks, rivets, cotters, cotter-pins, washers (including spring washers) and similar articles, of copper.	CTH
7419	Other articles of copper	CTH
Chapter 75	Nickel and articles thereof	CTSH + QVC 45%
Ex Chapter 76	Aluminium and articles thereof	CTH

HS Code 2022	Product Description	PSR
7601	Aluminium; unwrought	CTSH + QVC 45%
7602	Aluminium; waste and scrap	CTSH + QVC 45%
7603	Aluminium; powders and flakes	CTSH + QVC 45%
7604	Aluminium; bars, rods and profiles	CTSH + QVC 45%
760521	Aluminium wire: Of aluminium alloys: Of which the maximum cross-sectional dimension exceeds 7 mm	CTSH + QVC 45%
760529	Aluminium wire: Of aluminium alloys: Other	CTSH + QVC 45%
760612	Aluminium plates, sheets and strip, of a thickness exceeding 0.2 mm: Rectangular (including square): Of aluminium alloys	CTSH + QVC 45%
760692	Aluminium plates, sheets and strip, of a thickness exceeding 0.2 mm: Other: Of aluminium alloys	CTSH + QVC 45%
760820	Aluminium; tubes and pipes: Of aluminium alloys	CTSH + QVC 45%
7609	Aluminium; tube or pipe fittings (for example, couplings, elbows, sleeves)	CTSH + QVC 45%
7610	Aluminium structures (excluding prefabricated buildings of heading 94.06) and parts of structures (for example, bridges and bridge-sections, towers, lattice masts, roofs, roofing frameworks, doors and windows and their frames and thresholds for doors, balustrades,	CTSH + QVC 45%

HS Code 2022	Product Description	PSR
	pillars and columns); aluminium plates, rods, profiles, tubes and the like, prepared for use in structures	
7613	Aluminium; containers for compressed or liquefied gas	CTSH + QVC 45%
7615	Table, kitchen or other household articles and parts thereof, of aluminium; pot scourers and scouring or polishing pads, gloves and the like, of aluminium; sanitary ware and parts thereof, of aluminium	CTSH + QVC 45%
761691	Other articles of aluminium.: Other: Cloth, grill, netting and fencing, of aluminium wire	CTSH + QVC 45%
Ex Chapter 78	Lead and articles thereof	CTSH + QVC 45%
780411	Lead plates, sheets, strip and foil; lead powders and flakes.: Plates, sheets, strip and foil: Sheets, strip and foil of a thickness (excluding any backing) not exceeding 0.2 mm	CTH
7806	Other articles of lead	CTH
Ex Chapter 79	Zinc and articles thereof	CTSH + QVC 45%
7907	Other articles of zinc	CTH
Ex Chapter 80	Tin; articles thereof	CTSH + QVC 45%
8007	Other articles of tin	CTH
Chapter 81	Other base metals; cermets; articles thereof	CTSH + QVC 45%

HS Code 2022	Product Description	PSR
Chapter 82	Tools, implements, cutlery, spoons and forks, of base metal; parts thereof, of base metal	CC
Chapter 83	Miscellaneous articles of base metal	CC
Ex 8301	Padlocks and locks (key, combination or electrically operated), of base metal; clasps and frames with clasps, incorporating locks, of base metal; keys for any of the foregoing articles, of base metal	CTSH + QVC 45%
830160	Parts	CTH
Ex Chapter 84	Nuclear reactors, boilers, machinery and mechanical appliances; parts thereof	CTSH + QVC 45%
8402	Steam or other vapour generating boilers (other than central heating hot water boilers capable also of producing low pressure steam); super-heated water boilers	CTH + QVC 40%
8403	Central heating boilers other than those of heading 8402	CTH + QVC 40%
8404	Auxiliary plant for use with boilers of heading 8402 or 8403 (for example, economisers, super-heaters, soot removers, gas recoverers); condensers for steam or other vapour power units	CTH + QVC 40%
840590	Producer gas or water gas generators, with or without their purifiers; acetylene gas generators and similar water process gas	CTH

HS Code 2022	Product Description	PSR
	generators, with or without their purifiers: Parts	
840999	Parts suitable for use solely or principally with the engines of heading 8407 or 8408: Others: Other	CTH
841290	Other engines and motors: Parts	CTH + QVC 40%
841391	Pumps for liquids, whether or not fitted with a measuring device; liquid elevators: Parts: Of pumps	CTH
841392	Pumps for liquids, whether or not fitted with a measuring device; liquid elevators: Parts: Of liquid elevators	CTH
841490	Air or vacuum pumps, air or other gas compressors and fans; ventilating or recycling hoods incorporating a fan, whether or not fitted with filters; gas-tight biological safety cabinets, whether or not fitted with filters: Parts	CTH
841590	Air conditioning machines, comprising a motor-driven fan and elements for changing the temperature and humidity, including those machines in which the humidity cannot be separately regulated: Parts	CTH
841690	Furnace burners for liquid fuel, for pulverised solid fuel or for gas; mechanical stokers, including their mechanical grates, mechanical ash dischargers and similar appliances: Parts	CTH

HS Code 2022	Product Description	PSR
Ex 8417	Industrial or laboratory furnaces and ovens, including incinerators, non-electric	QVC 40%
841790	Parts	CTH
841891	Refrigerators, freezers and other refrigerating or freezing equipment, electric or other; heat pumps other than air conditioning machines of heading 8415: Parts: Furniture designed to receive refrigerating or freezing equipment	CTH
841899	Refrigerators, freezers and other refrigerating or freezing equipment, electric or other; heat pumps other than air conditioning machines of heading 8415: Parts: Other	CTH
841940	Machinery, plant or laboratory equipment, whether or not electrically heated (excluding furnaces, ovens and other equipment of heading 8514), for the treatment of materials by a process involving a change of temperature such as heating, cooking, roasting, distilling, rectifying, sterilising, pasteurising, steaming, drying, evaporating, vaporising, condensing or cooling, other than machinery or plant of a kind used for domestic purposes; instantaneous or storage water heaters, non-electric: Distilling or rectifying plant	QVC 40%
841989	Machinery, plant or laboratory equipment, whether or not electrically heated (excluding furnaces, ovens and other equipment of heading 8514), for the	QVC 40%

HS Code 2022	Product Description	PSR
	treatment of materials by a process involving a change of temperature such as heating, cooking, roasting, distilling, rectifying, sterilising, pasteurising, steaming, drying, evaporating, vaporising, condensing or cooling, other than machinery or plant of a kind used for domestic purposes; instantaneous or storage water heaters, non-electric: Other machinery, plant and equipment: Other	
841990	Machinery, plant or laboratory equipment, whether or not electrically heated (excluding furnaces, ovens and other equipment of heading 8514), for the treatment of materials by a process involving a change of temperature such as heating, cooking, roasting, distilling, rectifying, sterilising, pasteurising, steaming, drying, evaporating, vaporising, condensing or cooling, other than machinery or plant of a kind used for domestic purposes; instantaneous or storage water heaters, non-electric: Parts	CTH
Ex 8420	Calendering or other rolling machines, other than for metals or glass, and cylinders therefor	QVC 40%
842099	Parts: Other	CTH
842199	Centrifuges, including centrifugal dryers; filtering or purifying machinery and apparatus, for liquids or gases: Parts: Other	CTH
842290	Dish washing machines; machinery for cleaning or drying bottles or other containers; machinery for filling,	CTH

HS Code 2022	Product Description	PSR
	closing, sealing or labelling bottles, cans, boxes, bags or other containers; machinery for capsuling bottles, jars, tubes and similar containers; other packing or wrapping machinery (including heat-shrink wrapping machinery); machinery for aerating beverages: Parts	
842390	Weighing machinery (excluding balances of a sensitivity of 5 cg or better), including weight operated counting or checking machines; weighing machine weights of all kinds.: Weighing machine weights of all kinds; parts of weighing machinery	CTH
842490	Mechanical appliances (whether or not hand-operated) for projecting, dispersing or spraying liquids or powders; fire extinguishers, whether or not charged; spray guns and similar appliances; steam or sand blasting machines and similar jet projecting machines: Parts	CTH
8425	Pulley tackle and hoists other than skip hoists; winches and capstans; jacks	CTH
8426	Ships' derricks; cranes, including cable cranes; mobile lifting frames, straddle carriers and works trucks fitted with a crane	QVC 40%
8427	Fork-lift trucks; other works trucks fitted with lifting or handling equipment	QVC 40%
Ex 8428	Other lifting, handling, loading or unloading machinery (for example,	CTH

HS Code 2022	Product Description	PSR
	lifts, escalators, conveyors, teleferics)	
842870	Industrial robots	CTSH + QVC 45%
842890	Other machinery	QVC 40%
8429	Self-propelled bulldozers, angledozers, graders, levellers, scrapers, mechanical shovels, excavators, shovel loaders, tamping machines and road rollers	QVC 40%
8430	Other moving, grading, levelling, scraping, excavating, tamping, compacting, extracting or boring machinery, for earth, minerals or ores; pile-drivers and pile-extractors; snow-ploughs and snow- blowers	QVC 40%
Ex 8431	Parts suitable for use solely or principally with the machinery of headings 8425 to 8430	CTH
843141	Of machinery of heading 84.26, 8429 or 8430: Buckets, shovels, grabs and grips	QVC 40%
843142	Of machinery of heading 8426, 8429 or 8430: Bulldozer or angledozer blades	QVC 40%
843280	Agricultural, horticultural or forestry machinery for soil preparation or cultivation; lawn or sports-ground rollers: Other machinery	CTH
843319	Harvesting or threshing machinery, including straw or fodder balers; grass or hay mowers; machines for	CTH

HS Code 2022	Product Description	PSR
	cleaning, sorting or grading eggs, fruit or other agricultural produce, other than machinery of heading 8437: Mowers for lawns, parks or sports-grounds: Other	
Ex 8437	Machines for cleaning, sorting or grading seed, grain or dried leguminous vegetables; machinery used in the milling industry or for the working of cereals or dried leguminous vegetables, other than farm-type machinery	QVC 40%
843790	Parts	CTH
843880	Machinery, not specified or included elsewhere in this Chapter, for the industrial preparation or manufacture of food or drink, other than machinery for the extraction or preparation of animal or fixed vegetable or microbial fats or oils: Other machinery	QVC 40%
843890	Machinery, not specified or included elsewhere in this Chapter, for the industrial preparation or manufacture of food or drink, other than machinery for the extraction or preparation of animal or fixed vegetable or microbial fats or oils: Parts	CTH
843910	Machinery for making pulp of fibrous cellulosic material or for making or finishing paper or paperboard: Machinery for making pulp of fibrous cellulosic material	QVC 40%
843991	Machinery for making pulp of fibrous cellulosic material or for making or finishing paper or paperboard: Parts:	CTH

HS Code 2022	Product Description	PSR
	Of machinery for making pulp of fibrous cellulosic material	
844110	Other machinery for making up paper pulp, paper or paperboard, including cutting machines of all kinds: Cutting machines	QVC 40%
844311	Printing machinery used for printing by means of plates, cylinders and other printing components of heading 8442: Offset printing machinery, reel-fed	QVC 40%
844312	Printing machinery used for printing by means of plates, cylinders and other printing components of heading 8442: Offset printing machinery, sheet-fed, office type (using sheets with one side not exceeding 22 cm and the other side not exceeding 36 cm in the unfolded state)	QVC 40%
844313	Printing machinery used for printing by means of plates, cylinders and other printing components of heading 8442: Other offset printing machinery	QVC 40%
844314	Printing machinery used for printing by means of plates, cylinders and other printing components of heading 8442: Letterpress printing machinery, reel fed, excluding flexographic printing	QVC 40%
844315	Printing machinery used for printing by means of plates, cylinders and other printing components of heading 8442: Letterpress printing	QVC 40%

HS Code 2022	Product Description	PSR
	machinery, other than reel fed, excluding flexographic printing	
844316	Printing machinery used for printing by means of plates, cylinders and other printing components of heading 8442: Flexographic printing machinery	QVC 40%
844317	Printing machinery used for printing by means of plates, cylinders and other printing components of heading 8442: Gravure printing machinery	QVC 40%
844319	Printing machinery used for printing by means of plates, cylinders and other printing components of heading 8442: Other	QVC 40%
844519	Machines for preparing textile fibres: Other	QVC 40%
845090	Household or laundry-type washing machines, including machines which both wash and dry: Parts	CTH
845110	Dry-cleaning machines	QVC 40%
845140	Washing, bleaching or dyeing machines	QVC 40%
845150	Machines for reeling, unreeling, folding, cutting or pinking textile fabrics	QVC 40%
845180	Other machinery	QVC 40%

HS Code 2022	Product Description	PSR
845190	Machinery; parts, of the machinery of heading no. 8451	CTH
Ex 8454	Converters, ladles, ingot moulds and casting machines, of a kind used in metallurgy or in metal foundries	QVC 40%
845490	Parts	CTH
8456	Machine-tools for working any material by removal of material, by laser or other light or photon beam, ultrasonic, electro- discharge, electro-chemical, electron beam, ionic-beam or plasma arc processes; water-jet cutting machines	QVC 40%
8457	Machining centres, unit construction machines (single station) and multi-station transfer machines, for working metal	QVC 40%
8458	Lathes (including turning centres) for removing metal	QVC 40%
8459	Machine-tools (including way-type unit head machines) for drilling, boring, milling, threading or tapping by removing metal, other than lathes (including turning centres) of heading 8458	QVC 40%
8460	Machine-tools for deburring, sharpening, grinding, honing, lapping, polishing or otherwise finishing metal or cermets by means of grinding stones, abrasives or polishing products, other than gear	QVC 40%

HS Code 2022	Product Description	PSR
	cutting, gear grinding or gear finishing machines of heading 8461	
8461	Machine-tools for planing, shaping, slotting, broaching, gear cutting, gear grinding or gear finishing, sawing, cutting-off and other machine-tools working by removing metal or cermets, not elsewhere specified or included	QVC 40%
846211	Hot forming machines for forging, die forging (including presses) and hot hammers: Closed die forging machines	QVC 40%
846219	Hot forming machines for forging, die forging (including presses) and hot hammers: Other	QVC 40%
846229	Bending, folding, straightening or flattening machines (including press brakes) for flat products: Other	QVC 40%
846239	Slitting lines, cut-to-length lines and other shearing machines (excluding presses) for flat products, other than combined punching and shearing machines: Other	QVC 40%
846242	Punching, notching or nibbling machines (excluding presses) for flat products including combined punching and shearing machines: Numerically controlled	QVC 40%
846249	Punching, notching or nibbling machines (excluding presses) for flat products including combined punching and shearing machines: Other	QVC 40%

HS Code 2022	Product Description	PSR
846251	Machines for working tube, pipe, hollow section and bar (excluding presses): Numerically controlled	QVC 40%
846259	Machines for working tube, pipe, hollow section and bar (excluding presses): Other	QVC 40%
846261	Cold metal working presses: Hydraulic presses	QVC 40%
846262	Cold metal working presses: Mechanical presses	QVC 40%
846263	Cold metal working presses: Servo-presses	QVC 40%
846269	Cold metal working presses: Other	QVC 40%
846290	Machine-tools (including presses) for working metal by forging, hammering or die forging (excluding rolling mills); machine-tools (including presses, slitting lines and cut-to-length lines) for working metal by bending, folding, straightening, flattening, shearing, punching, notching or nibbling (excluding draw-benches); presses for working metal or metal carbides, not specified above: Other	QVC 40%
8463	Other machine-tools for working metal or cermets, without removing material	QVC 40%
8465	Machine-tools (including machines for nailing, stapling, glueing or otherwise assembling) for working	QVC 40%

HS Code 2022	Product Description	PSR
	wood, cork, bone, hard rubber, hard plastics or similar hard materials	
Ex 8466	Parts and accessories suitable for use solely or principally with the machines of headings 8456 to 8465, including work or tool holders, self-opening dieheads, dividing heads and other special attachments for the machines; tool holders for any type of tool for working in the hand	QVC 40%
846691	Other: For machines of heading 8464	CTH
846692	Other: For machines of heading 8465	CTH
846693	Other: For machines of headings 8456 to 8461	CTH
846694	Other: For machines of heading 8462 or 8463:	CTH
846791	Tools for working in the hand, pneumatic, hydraulic or with self-contained electric or non-electric motor: Parts: Of chain saws	CTH
846792	Tools for working in the hand, pneumatic, hydraulic or with self-contained electric or non-electric motor: Parts: Of pneumatic tools	CTH
846799	Tools for working in the hand, pneumatic, hydraulic or with self-contained electric or non-electric motor: Parts: Other	CTH

HS Code 2022	Product Description	PSR
846890	Machinery and apparatus for soldering, brazing or welding, whether or not capable of cutting, other than those of heading 8515; gas-operated surface tempering machines and appliances: Parts	CTH
Ex8474	Machinery for sorting, screening, separating, washing, crushing, grinding, mixing or kneading earth, stone, ores or other mineral substances, in solid (including powder or paste) form; machinery for agglomerating, shaping or moulding solid mineral fuels, ceramic paste, unhardened cements, plastering materials or other mineral products in powder or paste form; machines for forming foundry moulds of sand	QVC 40%
847490	Parts	CTH
847690	Automatic goods-vending machines (for example, postage stamp, cigarette, food or beverage machines), including money changing machines: Parts	CTH
Ex 8477	Machinery for working rubber or plastics or for the manufacture of products from these materials, not specified or included elsewhere in this Chapter	QVC 40%
847790	Parts	CTH
847810	Machinery for preparing or making up tobacco, not specified or included elsewhere in this Chapter: Machinery	QVC 40%

HS Code 2022	Product Description	PSR
847890	Machinery for preparing or making up tobacco, not specified or included elsewhere in this Chapter: Parts	CTH
847910	Machines and mechanical appliances having individual functions, not specified or included elsewhere in this Chapter: Machinery for public works, building or the like	QVC 40%
847920	Machines and mechanical appliances having individual functions, not specified or included elsewhere in this Chapter: Machinery for the extraction or preparation of animal or fixed vegetable or microbial fats or oils	QVC 40%
847930	Machines and mechanical appliances having individual functions, not specified or included elsewhere in this Chapter: Presses for the manufacture of particle board or fibre building board of wood or other ligneous materials and other machinery for treating wood or cork	QVC 40%
847940	Machines and mechanical appliances having individual functions, not specified or included elsewhere in this Chapter: Rope or cable-making machines	QVC 40%
847950	Machines and mechanical appliances having individual functions, not specified or included elsewhere in this Chapter: Industrial robots, not elsewhere specified or included	QVC 40%

HS Code 2022	Product Description	PSR
847981	Machines and mechanical appliances having individual functions, not specified or included elsewhere in this Chapter: Other machines and mechanical appliances: For treating metal, including electric wire coil-winders	QVC 40%
847982	Machines and mechanical appliances having individual functions, not specified or included elsewhere in this Chapter: Other machines and mechanical appliances: Mixing, kneading, crushing, grinding, screening, sifting, homogenising, emulsifying or stirring machines	QVC 40%
847990	Machines and mechanical appliances having individual functions, not specified or included elsewhere in this Chapter: Parts	CTH
8480	Moulding boxes for metal foundry; mould bases; moulding patterns; moulds for metal (other than ingot moulds), metal carbides, glass, mineral materials, rubber or plastics	QVC 40%
848190	Taps, cocks, valves and similar appliances for pipes, boiler shells, tanks, vats or the like, including pressure-reducing valves and thermostatically controlled valves: Parts	CTH
Ex 8483	Transmission shafts (including cam shafts and crank shafts) and cranks; bearing housings and plain shaft bearings; gears and gearing; ball or roller screws; gear boxes and other speed changers, including torque	QVC 40%

HS Code 2022	Product Description	PSR
	converters; flywheels and pulleys, including pulley blocks; clutches and shaft couplings (including universal joints)	
848390	Toothed wheels, chain sprockets and other transmission elements presented separately; parts	CTH
8484	Gaskets and similar joints of metal sheeting combined with other material or of two or more layers of metal; sets or assortments of gaskets and similar joints, dissimilar in composition, put up in pouches, envelopes or similar packings; mechanical seals	CTH
8487	Machinery parts, not containing electrical connectors, insulators, coils, contacts or other electrical features, not specified or included elsewhere in this Chapter	CTH
Ex Chapter 85	Electrical machinery and equipment and parts thereof; sound recorders and reproducers, television image and sound recorders and reproducers, and parts and accessories of such articles	CTSH + QVC 45%
Ex 8501	Electric motors and generators (excluding generating sets).	CTH + QVC 40%
850110	Motors of an output not exceeding 37.5 W	CTH
850120	Universal AC/DC motors of an output exceeding 37.5 W	CTH

HS Code 2022	Product Description	PSR
850140	Other AC motors, single-phase	CTH
850151	Other AC motors, multi-phase: of an output not exceeding 750W	CTH
850152	Other AC motors, multi-phase: of an output exceeding 750W but not exceeding 75kW	CTH
850153	Other AC motors, multi-phase: of an output exceeding 75kW	CTH
8502	Electric generating sets and rotary converters.	CTH + QVC 40%
8503	Parts suitable for use solely or principally with the machines of heading 8501 or 8502	CTH + QVC 40%
850421	Electrical transformers, static converters (for example, rectifiers) and inductors: Liquid dielectric transformers: Having a power handling capacity not exceeding 650 kVA	CTH + QVC 40%
850422	Electrical transformers, static converters (for example, rectifiers) and inductors: Liquid dielectric transformers: Having a power handling capacity exceeding 650 kVA but not exceeding 10,000 kVA	CTH + QVC 40%
850423	Electrical transformers, static converters (for example, rectifiers) and inductors: Liquid dielectric transformers: Having a power handling capacity exceeding 10,000 kVA	CTH + QVC 40%

HS Code 2022	Product Description	PSR
850431	Electrical transformers, static converters (for example, rectifiers) and inductors.: Other transformers: Having a power handling capacity not exceeding 1 kVA	CTH + QVC 40%
850432	Electrical transformers, static converters (for example, rectifiers) and inductors.: Other transformers: Having a power handling capacity exceeding 1 kVA but not exceeding 16 kVA	CTH + QVC 40%
850433	Electrical transformers, static converters (for example, rectifiers) and inductors.: Other transformers: Having a power handling capacity exceeding 16 kVA but not exceeding 500 kVA	CTH + QVC 40%
850434	Electrical transformers, static converters (for example, rectifiers) and inductors.: Other transformers: Having a power handling capacity exceeding 500 kVA	CTH + QVC 40%
850790	Electric accumulators, including separators therefor, whether or not rectangular (including square).: Parts	CTH
850870	Vacuum cleaners: Parts	CTH
851090	Shavers, hair clippers and hair-removing appliances, with self-contained electric motor: Parts	CTH
851490	Industrial or laboratory electric furnaces and ovens (including those functioning by induction or dielectric loss); other industrial or laboratory	CTH + QVC 40%

HS Code 2022	Product Description	PSR
	equipment for the heat treatment of materials by induction or dielectric loss.: Parts	
851590	Electric (including electrically heated gas), laser or other light or photon beam, ultrasonic, electron beam, magnetic pulse or plasma arc soldering, brazing or welding machines and apparatus, whether or not capable of cutting; electric machines and apparatus for hot spraying of metals or cermets: Parts	CTH
851920	Sound recording or reproducing apparatus: Apparatus operated by coins, banknotes, bank cards, tokens or by other means of payment	CTH
852990	Parts suitable for use solely or principally with the apparatus of headings 8524 to 8528: Other	CTH; or QVC 35%
8535	Electrical apparatus for switching or protecting electrical circuits, or for making connections to or in electrical circuits (for example, switches, fuses, lightning arresters, voltage limiters, surge suppressors, plugs and other connectors, junction boxes), for a voltage exceeding 1,000 volts.	CTH + QVC 40 %
853610	Fuses	CTH + QVC 40 %
853620	Automatic circuit breakers	CTH + QVC 40 %
853641	Relays: For a voltage not exceeding 60 V	CTH + QVC 40 %

HS Code 2022	Product Description	PSR
853649	Relays: Other	CTH + QVC 40 %
853690	Electrical apparatus for switching or protecting electrical circuits, or for making connections to or in electrical circuits (for example, switches, relays, fuses, surge suppressors, plugs, sockets, lamp-holders and other connectors, junction boxes), for a voltage not exceeding 1,000 volts; connectors for optical fibres, optical fibre bundles or cables: Other apparatus	CTH + QVC 40 %
8537	Boards, panels, consoles, desks, cabinets and other bases, equipped with two or more apparatus of heading 8535 or 8536, for electric control or the distribution of electricity, including those incorporating instruments or apparatus of HS Chapter 90, and numerical control apparatus, other than switching apparatus of heading 8517	CTH + QVC 40 %
8538	Parts suitable for use solely or principally with the apparatus of heading 8535, 8536 or 8537	CTH + QVC 40%
853990	Light-emitting diode (LED) light sources: Parts	CTH + QVC 40 %
854160	Mounted Piezo-Electric Crystals	CTSH + QVC 35%
854411	Insulated (including enamelled or anodised) wire, cable (including co-axial cable) and other insulated electric conductors, whether or not fitted with connectors; optical fibre cables, made up of individually sheathed fibres, whether or not	CTH

HS Code 2022	Product Description	PSR
	assembled with electric conductors or fitted with connectors: winding wire, of copper	
854419	Insulated (including enamelled or anodised) wire, cable (including co-axial cable) and other insulated electric conductors, whether or not fitted with connectors; optical fibre cables, made up of individually sheathed fibres, whether or not assembled with electric conductors or fitted with connectors: winding wire: Other	CTH
854430	Insulated (including enamelled or anodised) wire, cable (including co-axial cable) and other insulated electric conductors, whether or not fitted with connectors; optical fibre cables, made up of individually sheathed fibres, whether or not assembled with electric conductors or fitted with connectors; ignition wiring sets and other wiring sets of a kind used in vehicles, aircraft or ships	CTH
854442	Insulated (including enamelled or anodised) wire, cable (including co-axial cable) and other insulated electric conductors, whether or not fitted with connectors; optical fibre cables, made up of individually sheathed fibres, whether or not assembled with electric conductors or fitted with connectors: Other electric conductors, for a voltage not exceeding 1,000 V: Fitted with connectors	CTH
854449	Insulated (including enamelled or anodised) wire, cable (including co-axial cable) and other insulated	CTH

HS Code 2022	Product Description	PSR
	electric conductors, whether or not fitted with connectors; optical fibre cables, made up of individually sheathed fibres, whether or not assembled with electric conductors or fitted with connectors: Other electric conductors; for a voltage not exceeding 1000 volts: Other	
854610	Electrical insulators; of glass	CTH
Ex Chapter 86	Railway, tramway locomotives, rolling-stock and parts thereof; railway or tramway track fixtures and fittings and parts thereof; mechanical (including electro-mechanical) traffic signalling equipment of all kinds	CTSH + QVC 45%
8608	Railway or tramway track fixtures and fittings; mechanical (including electro-mechanical) signalling, safety or traffic control equipment for railways, tramways, roads, inland waterways, parking facilities, port installations or airfields; parts thereof	CC
Ex Chapter 87	Vehicles; other than railway or tramway rolling-stock, and parts and accessories thereof	CTSH + QVC 45%
8712	Bicycles and other cycles (including delivery tricycles), not motorised	CTH
8713	Carriages for disabled persons; whether or not motorised or otherwise mechanically propelled	CTH

HS Code 2022	Product Description	PSR
871420	Parts and accessories of vehicles of headings 8711 to 8713: Carriages for disabled persons	CTH
871491	Parts and accessories of vehicles of headings 8711 to 8713: Other: frames and forks, and parts thereof	CTH
871492	Parts and accessories of vehicles of headings 8711 to 8713: Other:, wheel rims and spokes	CTH
871493	Parts and accessories of vehicles of headings 8711 to 8713: Other: hubs, other than coaster braking hubs and hub brakes and free-wheel sprocket-wheels	CTH
871494	Parts and accessories of vehicles of headings 8711 to 8713: Other: brakes, including coaster braking hubs and hub-brakes, and parts thereof	CTH
871495	Parts and accessories of vehicles of headings 8711 to 8713: Other: saddles	CTH
871496	Parts and accessories of vehicles of headings 8711 to 8713: Other: Pedals and crank-gear, and parts thereof	CTH
871499	Parts and accessories of vehicles of headings 8711 to 8713: - Other: Other	CTH
Chapter 88	Aircraft, spacecraft, and parts thereof	CTSH + QVC 45%

HS Code 2022	Product Description	PSR
Chapter 89	Ships, boats and floating structures	CTSH + QVC 45%
Ex Chapter 90	Optical, photographic, cinematographic, measuring, checking, medical or surgical instruments and apparatus; parts and accessories	CTSH + QVC 45%
900110	Optical fibres and optical fibre bundles; optical fibre cables other than those of heading 8544; sheets and plates of polarising material; lenses (including contact lenses), prisms, mirrors and other optical elements, of any material, unmounted, other than such elements of glass not optically worked.: Optical fibres, optical fibre bundles and cables	CTH or QVC 35%
900390	Frames and mountings for spectacles, goggles or the like, and parts thereof: Parts	CTH
9004	Spectacles, goggles and the like; corrective, protective or other	CTH
901090	Apparatus and equipment for photographic (including cinematographic) laboratories, not specified or included elsewhere in this Chapter; negatoscopes; projection screens.: Parts and accessories	CTH
901910	Mechano-therapy appliances; massage apparatus and psychological aptitude-testing apparatus	CTSH; or QVC 45%

HS Code 2022	Product Description	PSR
901920	Ozone therapy, oxygen therapy, aerosol therapy, artificial respiration or other therapeutic respiration apparatus.	CTSH; or QVC 45%
9021	Orthopaedic appliances, including crutches, surgical belts and trusses; splints and other fracture appliances; artificial parts of the body; hearing aids and other appliances which are worn or carried, or implanted in the body, to compensate for a defect or disability	CTSH; or QVC 45%
902511	Thermometers and pyrometers, not combined with other instruments: Liquid-filled, for direct reading	CTSH; or QVC 45%
903290	Automatic regulating or controlling instruments and apparatus: Parts and accessories	CTH
Ex Chapter 91	Clocks and watches and parts thereof	CTSH + QVC 45%
911390	Watch straps, watch bands, watch bracelets, and parts thereof: Other	CTH
Chapter 92	Musical instruments; parts and accessories of such articles	CTSH + QVC 45%
Chapter 93	Arms and ammunition; parts and accessories thereof	CTSH + QVC 45%
Ex Chapter 94	Furniture; bedding, mattresses, mattress supports, cushions and similar stuffed furnishings; luminaires and lighting fittings, not elsewhere specified or included; illuminated signs, illuminated name-	CTSH + QVC 45%

HS Code 2022	Product Description	PSR
	plates and the like; prefabricated buildings	
940191	Seats (other than those of heading 9402), whether or not convertible into beds, and parts thereof: parts: of wood	CTH
940199	Seats (other than those of heading 9402), whether or not convertible into beds, and parts thereof: parts: other	CTH
940391	Other furniture and parts thereof: parts: of wood	CTH
940399	Other furniture and parts thereof: parts: other	CTH
940421	Mattresses; of cellular rubber or plastics, whether or not covered	CTH
940429	Mattresses; of other materials	CTH
940591	Luminaires and lighting fittings including searchlights and spotlights and parts thereof, not elsewhere specified or included; illuminated signs, illuminated name-plates and the like, having a permanently fixed light source, and parts thereof not elsewhere specified or included: Parts: of glass	CTH
940592	Luminaires and lighting fittings including searchlights and spotlights and parts thereof, not elsewhere specified or included; illuminated signs, illuminated name-plates and the like, having a permanently fixed light source, and parts thereof not	CTH

HS Code 2022	Product Description	PSR
	elsewhere specified or included: Parts: of plastics	
940599	Luminaires and lighting fittings including searchlights and spotlights and parts thereof, not elsewhere specified or included; illuminated signs, illuminated name-plates and the like, having a permanently fixed light source, and parts thereof not elsewhere specified or included: Parts: Other	CTH
9406	Prefabricated buildings.	CTH
Ex Chapter 95	Toys, games and sports requisites; parts and accessories thereof	CTH
9503	Tricycles, scooters, pedal cars and similar wheeled toys; dolls' carriages; dolls; other toys; reduced-size (scale) models and similar recreational models, working or not; puzzles of all kinds	CTSH + QVC 45%
9506	Articles and equipment for general physical exercise, gymnastics, athletics, other sports (including table-tennis) or outdoor games, not specified or included elsewhere in this Chapter; swimming pools and paddling pools.	CTSH + QVC 45%
Ex Chapter 96	Miscellaneous manufactured articles	CTH
9601	Worked ivory, bone, tortoise-shell, horn, antlers, coral, mother-of-pearl and other animal carving material, and articles of these materials	CTSH + QVC 45%

HS Code 2022	Product Description	PSR
	(including articles obtained by moulding)	
9602	Worked vegetable or mineral carving material and articles of these materials moulded or carved articles of wax, of stearin, of natural gums or natural resins or of modelling pastes, and other moulded or carved articles, not elsewhere specified or included; worked, unhardened gelatin (except gelatin of heading 3503) and articles of unhardened gelatin	CTSH or QVC 40%
960310	Brooms and brushes; consisting of twigs or other vegetable materials bound together, with or without handles	CTSH + QVC 45%
960610	Press-fasteners, snap-fasteners, press-studs and parts therefor	CTSH + QVC 45%
960622	Buttons; of base metal, not covered with textile material	CTSH + QVC 45%
960711	Slide fasteners and parts thereof - Slide fasteners: Fitted with chain scoops of base meta	CTSH + QVC 45%
960719	Slide fasteners and parts thereof - Slide fasteners: Other	CTSH + QVC 45%
Ex 9613	Cigarette lighters and other lighters, whether or not mechanical or electrical and parts thereof other than flints and wicks	CTSH + QVC 45%
961390	Cigarette lighters and other lighters, whether or not mechanical or	CTH

HS Code 2022	Product Description	PSR
	electrical, and parts thereof other than flints and wicks: parts	
9614	Smoking pipes (including pipe bowls) and cigar or cigarette holders and parts thereof	CTSH + QVC 45%
9617	Vacuum flasks and other vacuum vessels, complete with cases; parts thereof other than glass inners	CTSH + QVC 45%
9619	Sanitary towels (pads) and tampons, napkins (diapers), napkin liners and similar articles, of any material	CTSH or QVC 40%
Chapter 97	Works of art; collectors' pieces and antiques	CTSH + QVC 45%

ANNEX 3B

CERTIFICATE OF ORIGIN TEMPLATE

<table>
<tr><td colspan="4">1. Exporter's Name, Address, and Country:</td><td colspan="4" rowspan="2">Certification number:

Page number:
Total number of pages:

INDIA-NEW ZEALAND
FREE TRADE AGREEMENT
CERTIFICATE OF ORIGIN

Issued in (country):</td></tr>
<tr><td colspan="4">2. Producer's Name, Address, and Country:</td></tr>
<tr><td colspan="4">3. Importer or Consignee's Name, Address and Country:</td><td colspan="4"></td></tr>
<tr><td colspan="4">4. Transport details (if known)
Shipment date:
Vessel name and voyage/flight number:
Port of loading:
Port of destination:</td><td colspan="4">5. Third party invoice: ☐
(name and country if known/applicable)</td></tr>
<tr><td colspan="4"></td><td colspan="4">6. Remarks (if applicable):</td></tr>
<tr><td colspan="8">7. Single or Multiple shipment:
☐ Single shipment; or ☐ Multiple shipments of identical goods.</td></tr>
<tr><td>8. Item number</td><td>9.1 HS code (six-digit level)</td><td>9.2 Description of good(s)</td><td>9.3 Marks and numbers</td><td>9.4 Number and kind of packages</td><td>10. Origin Criteria (see overleaf note)</td><td>11. Gross weight or other unit of measurement (as appropriate)</td><td>12. Invoice number(s) and date(s)</td></tr>
<tr><td></td><td></td><td></td><td></td><td></td><td>☐ WO
☐ CTC
☐ QVC
☐ Process Rule
☐ De Minimis (if applicable)
☐ Cumulation (if applicable)</td><td></td><td></td></tr>
<tr><td></td><td></td><td></td><td></td><td></td><td>☐ WO
☐ CTC
☐ QVC
☐ Process Rule
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<tr><td></td><td></td><td></td><td></td><td></td><td>☐ WO
☐ CTC
☐ QVC
☐ Process</td><td></td><td></td></tr>
</table>

					Rule ☐ De Minimis (if applicable) ☐ Cumulation (if applicable)		
13. Declaration by the exporter: **I, the undersigned, declare that the above details and statement are true and accurate, the good(s) described above meet the condition(s) required for the issuance of this certificate, and the country of origin of the good(s) described above is** **Place and Date:** **Signature:** **Name (printed):** **Company:**					**14. Certification** **It is hereby certified, on the basis of control carried out, that the declaration by the exporter is correct.** **Export Document Number:** **Issuing Authority:** **[Stamp]** **Place and Date:** **Signature:**		

Continuation Sheet

<table>
<tr><td colspan="6">Certification number:</td><td colspan="2">Page number:
Total number of pages:</td></tr>
<tr><td>8. Item number</td><td>9.1 HS code (six-digit level)</td><td>9.2 Description of good(s)</td><td>9.3 Marks and numbers</td><td>9.4 Number and kind of packages</td><td>10. Origin Criteria (see overleaf note)</td><td>11. Gross weight or other unit of measurement (as appropriate)</td><td>12. Invoice number(s) and date(s)</td></tr>
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<tr><td colspan="5">13. Declaration by the exporter:

I, the undersigned, declare that the above details and statement are true and accurate, the good(s) described above meet the condition(s) required for the issuance of this certificate, and the country of origin of the good(s) described above is

Place and Date:
Signature:
Name (printed):
Company:</td><td colspan="3">14. Certification

It is hereby certified, on the basis of control carried out, that the declaration by the exporter is correct.

Export Document Number:
Issuing Authority:
[Stamp]

Place and Date:
Signature:</td></tr>
</table>

Overleaf Notes:

Box 1: These details are not required if the producer is the signatory and the exporters details are not known.

Box 2: The address must be in the party where the good is produced. If the producer is the signatory they must be located in India or New Zealand.

Box 5: In the case where invoices are issued by a third party, the "third party invoice" box should be marked and, if known, information, such as the name and address of the company issuing the invoice shall be indicated.

Box 6: This box shall bear observations made by the country of exportation, e.g.:

> "**ISSUED RETROSPECTIVELY**" If the certificate of origin has been issued or completed retrospectively, in accordance with paragraph 10 of Article 3.15 (Proof of Origin). A short explanation of the reason(s) shall also be provided. Such as, for example, because the importer did not request the certificate of origin earlier.
>
> In case of theft, loss, or destruction of the certificate of origin, indicate "**CERTIFIED TRUE COPY**" and the number and date of issuance of the original Certificate of Origin shall also be provided.

Box 7: for Indian exporter or producers only, as per paragraph 3 of the Article 3.15 (Proof of Origin).

Box 9.2: Provide a full description of each good. The description should be sufficiently detailed to enable the products to be identified by the Customs officers examining them.

Box 10: Mark all origin criteria. Mark multiple where multiple requirements exist.

Box 11: Gross weight in kilograms should be shown here, or other units of measurement may be used when customary e.g. volume or number of items which would indicate exact quantities.

ANNEX 3C

ORIGIN DECLARATION TEMPLATE

1. Exporter's Name, Address, and Country:	**Unique Identification Number:**
2. Importer or Consignee's Name, Address and Country:	**Page number: Total number of pages:** **INDIA-NEW ZEALAND FREE TRADE AGREEMENT ORIGIN DECLARATION** **Issued in (country):**
3. Transport details (if known) **Shipment date:** **Vessel name and voyage/flight number:** **Port of loading:** **Port of destination:**	**4. Third party invoice:** ☐ **(name and country if known/applicable)** **5. Remarks (if applicable):**

6. Single or Multiple shipment:

☐ Single shipment; or ☐ Multiple shipments of identical goods.

7. Item number	8.1 HS code (six-digit level)	8.2 Description of good(s)	8.3 Marks and numbers	8.4 Number and kind of packages	9. Origin Criteria (see overleaf note)	10. Gross weight or other unit of measurement (as appropriate)	11. Invoice number(s) and date(s)
					☐ WO ☐ CTC ☐ QVC ☐ Process Rule ☐ De Minimis (if applicable) ☐ Cumulation (if applicable)		
					☐ WO ☐ CTC ☐ QVC ☐ Process Rule ☐ De Minimis (if applicable) ☐ Cumulation (if applicable)		
					☐ WO ☐ CTC ☐ QVC ☐ Process Rule		

					☐ De Minimis (if applicable) ☐ Cumulation (if applicable)		

12. Declaration by the approved exporter / status holder:

I, the undersigned, declare that the above details and statement are true and accurate, the good(s) described above meet the condition(s) required for the issuance of this certificate, and the country of origin of the good(s) described above is:

Place and Date:
Signature:
Name (printed):
Company:
Approved Exporter Authorisation/ Status Holder Certificate Number:

Continuation Sheet

Unique Identification Number:						**Page number:** **Total number of pages:**	
7. Item number	**8.1 HS code (six-digit level)**	**8.2 Description of good(s)**	**8.3 Marks and numbers**	**8.4 Number and kind of packages**	**9. Origin Criteria (see overleaf note)**	**10. Gross weight or other unit of measurement (as appropriate)**	**11. Invoice number(s) and date(s)**
					☐ WO ☐ CTC ☐ QVC ☐ Process Rule ☐ De Minimis (if applicable) ☐ Cumulation (if applicable)		
					☐ WO ☐ CTC ☐ QVC ☐ Process Rule ☐ De Minimis (if applicable) ☐ Cumulation (if applicable)		
					☐ WO ☐ CTC ☐ QVC ☐ Process Rule ☐ De Minimis (if applicable) ☐ Cumulation (if applicable)		

12. Declaration by the approved exporter / status holder:

I, the undersigned, declare that the above details and statement are true and accurate, the good(s) described above meet the condition(s) required for the issuance of this certificate, and the country of origin of the good(s) described above is:

Place and Date:
Signature:
Name (printed):
Company:
Approved Exporter Authorisation/ Status Holder Certificate Number:

Overleaf Notes:

Box 4: In the case where invoices are issued by a third party, the “third party invoice” box should be marked and, if known, information, such as the name and address of the company issuing the invoice shall be indicated.

Box 5: This box shall bear observations made by the country of exportation, e.g.:

> “**ISSUED RETROSPECTIVELY**” If the certificate of origin has been issued or completed retrospectively, in accordance with paragraph 10 of Article 3.15 (Proof of Origin). A short explanation of the reason(s) shall also be provided. Such as, for example, because the importer did not request the certificate of origin earlier.
>
> In case of theft, loss, or destruction of the certificate of origin, indicate “**CERTIFIED TRUE COPY**” and the number and date of issuance of the original Certificate of Origin shall also be provided.

Box 6: for Indian status holders only, as per paragraph 3 of the Article 3.15 (Proof of Origin).

Box 8.2: Provide a full description of each good. The description should be sufficiently detailed to enable the products to be identified by the Customs officers examining them.

Box 9: Mark all origin criteria. Mark multiple where multiple requirements exist.

Box 10: Gross weight in kilograms should be shown here, or other units of measurement may be used when customary e.g. volume or number of items which would indicate exact quantities.

CHAPTER 4

CUSTOMS PROCEDURES AND TRADE FACILITATION

Article 4.1
Definitions

For the purposes of this Chapter:

(a) **"arrival"** means:

(i) for India, arrival at a Customs station of clearance and once goods are registered with Customs;

(ii) for New Zealand, arrival at a Customs port, Customs airport, or at an alternative place of arrival authorised by Customs;

(b) **"customs authority"** means:

(i) for India, the Central Board of Indirect Taxes and Customs or its successors;

(ii) for New Zealand, the New Zealand Customs Service or its successors;

(c) **"customs laws"** means those laws and regulations administered, applied or enforced by the customs authority of each Party concerning the importation, exportation and transit or transhipment of goods; and

(d) **"customs procedures"** mean the measures applied by the customs authority of a Party to goods and to the means of transport that are subject to its customs laws.

Article 4.2
Scope

This Chapter shall apply to customs laws and customs procedures applied to the importation, exportation and transit or transhipment of goods between the Parties.

Article 4.3
General Objectives and Principles

1. Each Party shall ensure that its customs laws and customs procedures are applied in a manner that is consistent, transparent, non-discriminatory and facilitate trade, including through the expeditious clearance of goods.

2. Customs laws and customs procedures of the Parties shall conform, where possible, to the international standards and recommended practices of the World Customs Organization (the "WCO") and other relevant international agreements to which the Parties are party.

3. The customs authority of each Party shall, to the extent possible, periodically review its customs procedures with a view to simplifying such procedures to facilitate trade.

4. The Parties shall seek to reinforce their cooperation to promote trade facilitation while ensuring effective customs control.

Article 4.4
WTO Agreement on Trade Facilitation

The Parties reaffirm their rights and obligations under the *WTO Agreement on Trade Facilitation*, set out in Annex 1A to the WTO Agreement ("Agreement on Trade Facilitation").

Article 4.5
Publication and Availability of Information

1. Each Party shall promptly make available, in a non-discriminatory and easily accessible manner, including on the internet, and as far as practicable in English:

   (a) customs laws and, to the extent possible, its administrative rulings of general application governing customs matters;

   (b) customs procedures for importation, exportation and transit of goods, including the required forms and documents, and a description of such procedures;

   (c) details of its enquiry points including points of contact and modes for making information enquiries;

(d) applied rates of duties and taxes of any kind imposed on or in connection with importation or exportation;

(e) fees and charges imposed by or for governmental agencies on or in connection with importation, exportation or transit;

(f) rules for the classification or valuation of goods for customs purposes;

(g) restrictions or prohibitions on the importation, exportation or transit of goods;

(h) penalty provisions for breaches of import, export or transit formalities;

(i) procedures for appeal or review;

(j) hours of operation for relevant customs offices, including those at ports and border crossing points;

(k) information regarding the use of customs brokers and, if applicable, laws, regulations and procedures for becoming a customs broker and for issuing customs broker licenses; and

(l) provisions regarding the correction or amendment of customs transactions and, if applicable, the circumstances when penalties are not imposed.

2. Each Party shall update the information referred to in paragraph 1 as promptly as possible.

3. Each Party shall, as appropriate, provide for regular consultations between its border agencies and traders or other stakeholders located within its territory.

4. Nothing in this Article shall require a Party to publish law enforcement procedures and internal operational guidelines, including those related to conducting risk analysis and targeting methodologies.

Article 4.6
Enquiry Points

1. Each Party shall establish or maintain enquiry points for customs matters relevant to trade in goods, which may be contacted in English through the internet. A Party that receives an enquiry in English shall answer that enquiry in English.

2. Each Party shall endeavour not to require the payment of a fee for answering enquiries. If payment of a fee is required, the Party shall limit the amount of its fees and charges to the approximate cost of services rendered.

3. Each Party shall ensure that responses to enquiries are provided within a reasonable period of time, which may vary depending on the nature or complexity of the request.

Article 4.7
Public Consultation and Information before Entry into Force

1. Each Party shall publish in advance, and on the internet, any proposed customs laws relevant to international trade in goods, with a view to affording interested persons an opportunity to comment on them.

2. Each Party shall, in a manner consistent with its law, ensure that new or amended customs laws are published on the internet, or information on them made otherwise publicly available, as early as possible before their entry into force to enable traders and other interested parties to become acquainted with them.

3. Paragraphs 1 and 2 shall not apply to:

   (a) changes to duty rates or tariff rates;

   (b) measures that have a relieving effect;

   (c) measures the effectiveness of which would be undermined as a result of compliance with paragraph 1;

   (d) measures applied in urgent circumstances; or

   (e) minor changes to the Party's law.

Article 4.8
Advance Rulings

1. Each Party shall, prior to the importation of a good of the other Party into its territory, issue a written advance ruling to an importer, exporter, or any person with a justifiable cause, or a representative thereof, who has submitted a written request containing all necessary information. An advance ruling shall be issued with regard to:

(a) tariff classification;

(b) the appropriate method or criteria, and the application thereof, to be used for determining the customs value under a particular set of facts, in accordance with the Customs Valuation Agreement;

(c) whether a good is originating in accordance with Chapter 3 (Rules of Origin); and

(d) any other matters the Parties may agree.

2. Each Party shall issue an advance ruling as expeditiously as possible, within 150 days or in such shorter time as prescribed in its customs laws, after it receives a request, provided that the applicant has submitted all the information that the receiving Party requires to make the advance ruling. This may include a sample of the good for which the applicant is seeking an advance ruling, if necessary to evaluate the request.

3. A Party may request that the applicant provide additional information at any time during the course of an evaluation of an application for an advance ruling, necessary to evaluate the request. In issuing an advance ruling, the Party shall take into account the facts and circumstances that the applicant has provided.

4. A Party may decline to issue an advance ruling if the facts and circumstances forming the basis of the advance ruling are the subject of administrative or judicial review, or in circumstances set out in the Party's customs laws.

5. A Party that intends to decline a ruling shall:

(a) provide the applicant an opportunity to be heard; or

(b) communicate the potential grounds to decline a ruling and allow the applicant to provide more information to support the application.

6. A Party that declines to issue an advance ruling shall promptly notify the applicant in writing, setting out the relevant facts and circumstances, and the basis for its decision to decline to issue the advance ruling.

7. Each Party shall provide that its advance rulings shall take effect on the date that they are issued or on another date specified in the ruling, and remain in effect for at least three years provided that the law, facts and circumstances on which the ruling is based remain unchanged.

8. The importing Party may, in accordance with that Party's customs laws, modify, revoke or find the advance ruling non-binding:

(a) if the ruling was in error, or based on incorrect facts or mistake of law;

(b) if there is a change in the material facts or circumstances on which the ruling was based;

(c) to conform with a judicial decision or a change in its law; or

(d) if the ruling was based on incomplete, incorrect, false or misleading information or obtained by fraud or misrepresentation of facts.

9. Where a Party revokes or modifies an advance ruling, it shall provide written notice to the applicant setting out the relevant facts and the basis for its decision.

10. Neither Party shall apply a revocation or modification of an advance ruling retroactively to the detriment of the applicant unless the ruling was based on incomplete, incorrect, false, or misleading information provided by the applicant or obtained by fraud or misrepresentation of facts.

11. Each Party shall publish on the internet, at least:

(a) the requirements for the application for an advance ruling, including the information to be provided and the format;

(b) the time period by which it will issue an advance ruling; and

(c) the length of time for which the advance ruling is valid.

12. An advance ruling issued by a Party shall be binding on that Party in respect of the applicant that sought it, and on the applicant.

13. Each Party shall provide, upon written request of an applicant, an opportunity to review or appeal an advance ruling or the decision to revoke or modify it.

14. Subject to any confidentiality requirements in its law, a Party may publish its advance rulings, including on the internet.

Article 4.9
Review and Appeal

1. Each Party shall ensure that any person to whom it issues an administrative decision on a customs matter has the right to:

(a) an administrative appeal to or review by an administrative authority higher than or independent of the official or office that issued the decision; and

(b) a judicial appeal or review of the decision.

2. Each Party shall ensure that its procedures for review and appeal are carried out in a non-discriminatory manner without undue delay.

3. Each Party shall ensure that, in a case where the decision on appeal or review under subparagraph 1(a) is not given within the period of time provided for in its laws and regulations or without undue delay, the person has the right to further administrative or judicial appeal or review or any other recourse to a judicial authority in accordance with that Party's laws and regulations.

4. Each Party shall provide a person to whom it issues an administrative decision on the basis of a review or appeal referred to in paragraph 1 with the reasons for the administrative decision in writing, so as to enable such a person to have recourse to appeal procedures where necessary.

Article 4.10
Automation

Each Party shall:

(a) to the extent practicable, make electronic systems accessible to customs users;

(b) allow a customs declaration to be submitted in electronic format;

(c) permit the electronic payment of duties, taxes, fees and charges collected by its customs authority and incurred upon importation and exportation, according to its law;

(d) endeavour to implement common standards and elements for import and export data, in accordance with the WCO Data Model;

(e) take into account, as applicable, standards, recommendations, models, and methods developed by relevant international organisations, including WCO, and WTO.

Article 4.11
Release of Goods

1. Each Party shall adopt or maintain simplified customs procedures for the efficient release of imported goods in order to facilitate trade between the Parties.

2. Pursuant to paragraph 1, each Party shall adopt or maintain customs procedures that:

   (a) provide, for the release of goods by customs within a period no longer than that required to ensure compliance with its laws and regulations[1], and as rapidly as possible after the arrival of the goods, but in any case, within 48 hours of arrival, provided that:

      (i) all information and documentation[2] necessary to release the goods has been submitted on or prior to arrival of the goods; and

      (ii) the goods are not subject to physical examination or inspection;

   (b) provide for electronic submission and processing of customs information relating to an import in advance of the arrival of the goods to expedite the release of goods from customs control upon arrival;

   (c) allow goods to be released at the point of arrival without temporary transfer to warehouses or other facilities, provided that the goods are eligible for release;

   (d) allow for the release of goods prior to the final determination of customs duties, taxes, fees, and charges when these are not determined prior to or promptly upon arrival, provided that the goods are otherwise eligible for release. Before releasing the goods, a Party may require that an importer provides sufficient guarantee in the form of a surety, a deposit, or some other appropriate instrument; and

   (e) if applicable and to the extent possible, provide for, in accordance with its laws and regulations, clearance of certain goods with a minimum of documentation.

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[1] This may include necessary clearances from other regulatory agencies or payment of any customs duties, taxes, fees and charges.

[2] This may include information and documentation required by other regulatory agencies.

3. If a Party allows for the release of goods conditioned on the provision of a security, that Party shall adopt or maintain procedures that:

   (a) ensure that the amount of the security is no greater than that required to ensure that obligations arising from the importation of the goods will be fulfilled;

   (b) ensure that the security shall be discharged as soon as possible after that Party's customs authority is satisfied that the obligations arising from the importation of the goods have been fulfilled; and

   (c) allow importers to provide security using a form other than cash, including, in appropriate cases where an importer frequently enters goods, instruments covering multiple entries.

4. Each Party shall, provided the applicable requirements are met, allow goods intended for release in its territory to be moved under customs control from the point of entry into the Party to another customs office or station in its territory where the goods are intended to be released.

5. Nothing in this Article shall require a Party to release a good if the Party's requirements for release of the good have not been met.

Article 4.12
Express Shipments

1. Each Party shall adopt or maintain expedited customs procedures for express shipments, at least for those goods entered through air cargo facilities, while maintaining appropriate customs control and selection. These procedures shall:

   (a) provide for information and documentation necessary to release an express shipment to be submitted, and where possible processed, before the shipment arrives;

   (b) minimise the documentation required for the release of expedited shipments, and to the extent possible, provide for release based on a single submission of information on certain shipments through electronic means;

   (c) provide for these shipments, under normal circumstances, to be released in the shortest possible time after arrival and in any case endeavouring to release these shipments in 24 hours, provided that all necessary information and documentation[3] has been

[3] This may include information and documentation required by other regulatory agencies.

submitted, the goods are not subject to physical examination or inspection and all requirements have been met; and

(d) apply to shipments of any weight or value recognising that a Party may require formal entry procedures as a condition for release, including declarations and supporting documentation and payment of customs duties, based on the good's weight or value.

2. If a Party has an existing procedure that provides the treatment in paragraph 1, this provision does not require that Party to introduce separate expedited release procedures.

3. Nothing in this Article prevents a Party from requiring additional procedures and any necessary information and documentation as a condition for the release of restricted or controlled goods, including declaration and supporting documentation for the assessment and payment of applicable duties, taxes, fees and charges.

Article 4.13
Perishable goods

1. For the purposes of this Article, "perishable goods" means goods that rapidly decay due to their natural characteristics, in particular in the absence of appropriate storage conditions.

2. With a view to preventing avoidable loss or deterioration of perishable goods, each Party shall:

(a) provide, in normal circumstances, for perishable goods to be released in the shortest possible time after arrival, endeavouring to release within 24 hours, provided that:

(i) the Party has received all information and documentation[4] required to release all the goods in the import entry on or prior to arrival of the goods;

(ii) the goods, or any other goods in the same import entry, are not subject to physical inspection or examination; and

(iii) all regulatory checks required for release have been completed; and

[4] This may include information and documentation required by other regulatory agencies.

(b) in exceptional circumstances, where it would be appropriate to do so, provide for the release of perishable goods outside the business hours of its customs authority.

3. Each Party shall give appropriate priority to perishable goods when scheduling and conducting any examination or inspection that may be required.

4. Each Party shall either arrange or allow an importer to arrange for the proper storage of perishable goods pending their release. Each Party may require that any storage facilities arranged by the importer have been approved or designated by its relevant authorities. The movement of goods to such storage facilities, including authorisations for the operator moving the goods, may be subject to the approval, where required, of the relevant authorities. Each Party shall, where practicable and consistent with its laws and regulations, on the request of the importer, provide for any procedures necessary for release to take place at those storage facilities.

5. Nothing in this Article shall require a Party to release a good if the Party's requirements for release of the good have not been met.

Article 4.14
Risk Management

1. Each Party shall adopt or maintain a risk management framework, including electronic data-processing, for customs control that enables its customs authority to focus its examination and inspection activities on high-risk consignments and expedite the release of low-risk consignments.

2. Each Party shall design and apply risk management in a manner so as to avoid arbitrary or unjustifiable discrimination, or disguised restrictions on international trade.

3. Each Party shall base risk management on an assessment of risk through appropriate selectivity criteria. Such selectivity criteria may include, *inter alia*, the Harmonized System code, nature and description of the goods, country of origin, country from which the goods were shipped, value of the goods, compliance record of traders and type of means of transport.

4. Each Party may also select, on a random basis, consignments for examination and inspection activities referred to in paragraph 1 as part of its risk management.

5. In order to facilitate trade, each Party shall periodically review and update, if considered appropriate, the risk management framework specified in paragraph 1.

Article 4.15
Preshipment Inspection

1. Each Party shall not require the use of preshipment inspections in relation to tariff classification and customs valuation.

2. Without prejudice to the rights of any Party to use other types of preshipment inspection not covered by paragraph 1, each Party is encouraged not to introduce or apply new requirements regarding their use.

3. Paragraph 2 refers to preshipment inspections covered by the *Agreement on Preshipment Inspection*, set out in Annex 1A to the WTO Agreement, and does not preclude preshipment inspections for sanitary and phytosanitary purposes.

Article 4.16
Formalities Related to Importation, Exportation and Transit

1. Each Party shall limit controls, formalities and the number of documents required in the context of trade in goods between the Parties to those necessary and appropriate to ensure compliance with its laws and regulations and thereby simplify to the greatest extent possible the respective procedures.

2. With a view to minimising the incidence and complexity of import, export and transit formalities and to decreasing and simplifying import, export and transit documentation requirements, each Party shall ensure, as appropriate, that such formalities and documentation requirements are:

   (a) applied with a view to a rapid release and clearance of goods, particularly perishable goods;

   (b) applied in a manner that aims at reducing the time and cost of compliance; and

   (c) the least trade restrictive.

Article 4.17
Single Window

1. Each Party shall establish or maintain a single window that enables importers to:

   (a) electronically submit documentation or data requirements for the importation of goods to the participating authorities or agencies; and

   (b) check or be informed of the status of the release of their goods.

2. Each Party shall endeavour to:

   (a) expand or improve the functionality of its single window to enable exporters to submit documentation or data requirements for the exportation of goods to the participating authorities or agencies, if it does not already do so; and

   (b) enable traders to access, through its single window and in a timely manner, information from participating authorities or agencies conveying where in the clearance process their goods are.

3. In cases where documentation or data requirements have already been received through the single window, the same documentation or data requirements shall not be requested by participating authorities or agencies except in urgent circumstances and other limited exceptions as set out in a Party's laws and procedures.

4. In building and maintaining its single window system, each Party shall take into account, as appropriate, standards, recommendations, models and methods developed by various international organisations such as the WCO, the United Nations Centre for Trade Facilitation and Electronic Business and the WTO.

Article 4.18
Post-Clearance Audit

1. With a view to expediting the release of goods, each Party shall:

   (a) adopt or maintain post-clearance audit to ensure compliance with its customs laws and customs procedures;

   (b) conduct post-clearance audits in a risk-based manner, which may include appropriate selectivity criteria;

(c) conduct post-clearance audits in a transparent manner. Where an audit is conducted and conclusive results have been achieved the Party shall, without delay, notify the person whose record is audited of the results, the reasons for the results and the audited person's rights and obligations; and

(d) wherever practicable, use the result of post-clearance audit in applying risk management.

2. Each Party shall, in its laws or regulations, set a minimum period for which relevant records must be kept.

3. The Parties acknowledge that the information obtained in a post-clearance audit may be used in further administrative or judicial proceedings.

Article 4.19
Penalties

1. Each Party shall maintain measures imposing criminal, civil or administrative penalties, whether solely or in combination, for violations of the Party's customs laws or procedures.

2. Each Party shall ensure that any penalty imposed by its customs authority is dependent on the facts and circumstances of the case and is commensurate with the degree and severity of the breach.

3. Each Party shall ensure that it maintains measures to avoid conflicts of interest in the assessment and collection of penalties and duties. Each Party shall ensure that it maintains measures to avoid creating an incentive for the assessment or collection of a penalty that is inconsistent with paragraph 2.

4. Each Party shall allow the correction or amendment of an error in customs transaction, as permissible under a Party's customs laws, that may be a potential breach of the Party's customs laws or procedures, prior to the discovery of the error by the Party, if the correction or amendment is done in accordance with the Party's customs laws or procedures, and any owed duties, taxes, fees and charges, including interest, is paid.

5. Each Party is encouraged to require its customs authority, when imposing a penalty for a breach of its customs laws or procedures, to consider as a potential mitigating factor the voluntary disclosure of the breach prior to its discovery by the customs authority.

6. Each Party shall, where appropriate, provide in its customs laws or procedures, or shall otherwise give effect to, a limited period within which

its customs authority may initiate proceedings to impose a penalty relating to a breach of its customs laws or procedures.

7. Each Party shall ensure that if a penalty is imposed by its customs authority for a breach of its customs laws or procedures, an explanation in writing is provided to the person(s) upon whom the penalty is imposed specifying the nature of the breach and the customs law or procedure used for determining the penalty amount.

8. Each Party shall ensure that penalties for breaches of its customs laws or procedures are imposed only on the person(s) legally responsible for the breach.

Article 4.20
Customs Brokers

1. The Parties agree not to require the mandatory use of customs brokers.

2. Each Party shall:

   (a) publish any measures on the use of customs brokers; and

   (b) apply transparent and objective rules if and when licensing customs brokers.

Article 4.21
Customs Cooperation

1. The Parties shall, in accordance with their laws, regulations and customs procedures and subject to the availability of resources, encourage cooperation and exchange of information with each other on customs matters.

2. The customs authority of each Party shall assist each other, in accordance with its laws, regulations and customs procedures and subject to the availability of resources, in relation to:

   (a) the implementation and operation of this Chapter;

   (b) developing and implementing customs best practice and risk management techniques;

   (c) simplifying and harmonising customs procedures;

(d) sharing with each other their respective experiences in developing and maintaining their single window systems;

(e) exchanging information, including information on best practices, relating to customs matters. Such exchanges of information shall be without prejudice to exchanges of information that may take place between the Parties pursuant to the *Cooperative Arrangement between the Central Board of Indirect Taxes & Customs of the Government of the Republic of India and the New Zealand Customs Service in Customs Matters* done at Wellington on 06 August 2024; and

(f) such other customs issues as may be mutually determined by the Parties.

Article 4.22
Authorised Economic Operator

1. Each Party shall establish or maintain a trade facilitation partnership programme for operators who meet specified criteria, hereinafter referred to as the Authorised Economic Operator ("AEO") programme. Each Party's Programme shall operate in accordance with internationally recognised standards which the respective Parties have accepted, such as the WCO SAFE Framework and Article 7.7 of the Agreement on Trade Facilitation.

2. Each Party shall publish its specified criteria to qualify as an AEO. The specified criteria shall relate to compliance, or the risk of non-compliance, in accordance with requirements specified in the Party's customs laws and procedures.

3. The specified criteria to qualify as an AEO shall not be designed or applied so as to afford or create arbitrary or unjustifiable discrimination between operators where the same conditions prevail. The specified criteria shall be designed or applied so as to allow the participation of small and medium-sized enterprises.

4. The AEO programme shall include specific benefits for operators that meet the specified criteria, taking into account the commitments of each Party under paragraph 7.3 of Article 7 of the Agreement on Trade Facilitation.

Article 4.23
Time Release Studies

1. Each Party is encouraged to measure the average time required for the release of goods by its customs authority periodically, and to publish the findings thereof, using tools such as the Guide to Measure the Time Required for the Release of Goods issued by the World Customs Organization with a view to:

   (a) assessing the Party's trade facilitation measures; and

   (b) considering opportunities for further improvement of the time required for the release of goods.

2. Each Party is encouraged to share with the other Party its experiences in the time release studies referred to in paragraph 1, including methodologies used and bottlenecks identified.

Article 4.24
Confidentiality

1. Each Party shall adopt or maintain measures governing the collection, protection, use, disclosure, retention, correction, and disposal of information that relates to a trader and that is collected for the purposes of administering and enforcing its customs laws.

2. Each Party shall maintain, in conformity with its law, the confidentiality of all information collected as part of its customs processes and shall protect that information from use or disclosure that could prejudice the competitive position of the trader to whom the confidential information relates.

3. Each Party shall ensure that the information collected as part of its customs processes shall be used or disclosed solely for the administration and enforcement of customs matters, including in any proceedings before courts or tribunals for failure to comply with customs laws, or as otherwise authorised or required under the Party's law.

4. The Parties shall communicate to each other information on their applicable laws and regulations

Article 4.25
Committee on Customs and Trade Facilitation

1. The Parties hereby establish a Committee on Customs and Trade Facilitation ("Committee") composed of government representatives of each Party responsible for customs and trade facilitation matters to consider any matters arising under this Chapter.

2. The functions of the Committee shall include:

   (a) ensuring the appropriate administration, uniform interpretation and implementation of the provisions contained in this Chapter;

   (b) cooperating in an endeavour to further simplify and implement the customs procedures of this Chapter;

   (c) sharing information on best practices;

   (d) where appropriate, exchanging information on matters related to this Chapter;

   (e) consider and discuss technical issues arising from the implementation of this Agreement, without prejudice to Chapter 19 (Dispute Settlement);

   (f) considering any matters referred to it by the Committee on Trade in Goods or the Joint Commission; and

   (g) any other matter as the Committee mutually agrees.

3. The Committee shall meet either in person or virtually within six months of the date of entry into force of this Agreement and thereafter annually unless otherwise agreed by the representatives of the Parties or without undue delay at the request of either Party.

4. The Committee may decide on its own rules of procedure, in the absence of which the rules of procedure of the Joint Commission shall apply *mutatis mutandis*.

5. The Committee shall report to the Joint Commission on the results and conclusions from each of its meetings.

CHAPTER 5

TRADE REMEDIES

Section A: Anti-dumping, Subsidies and Countervailing Measures

Article 5.1
Anti-Dumping Measures

Nothing in this Agreement affects the rights and obligations of the Parties under Article VI of GATT 1994 and the Anti-Dumping Agreement with regard to the application of anti-dumping measures.

Article 5.2
Subsidies and Countervailing Measures

Nothing in this Agreement affects the rights and obligations of the Parties under Article VI of GATT 1994 and the SCM Agreement with regard to the application of countervailing duty measures.

Article 5.3
Lesser Duty Rule

If a Party takes a decision to impose anti-dumping or countervailing duty, it may consider applying a duty less than the margin of dumping or the amount of the subsidy, as relevant, where such lesser duty would be adequate to remove the injury to the domestic industry in accordance with the Party's laws and regulations.

Section B: Global Safeguard Measures

Article 5.4
Global Safeguard Measures

Nothing in this Agreement affects the rights and obligations of the Parties under Article XIX of GATT 1994, and the Safeguards Agreement.

Section C
Bilateral Safeguard Measures

Article 5.5
Definitions

For the purposes of this Section:

(a) **"bilateral safeguard measure"** means a measure referred to in paragraph 2 of Article 5.6 (Application of a Bilateral Safeguard Measure);

(b) **"domestic industry"** means, with respect to an imported good, the producers as a whole of a like or directly competitive good operating within the territory of a Party, or those producers whose collective output of the like or directly competitive good constitutes a major proportion of the total domestic production of the good;

(c) **"elimination or reduction of a customs duty"** means any elimination or reduction of customs duty in accordance with paragraph 1 of Article 2.3 (Elimination or Reduction of Customs Duties);

(d) **"serious injury"** means a significant overall impairment in the position of a domestic industry;

(e) **"threat of serious injury"** means a serious injury that is clearly imminent. A determination of the existence of a threat of serious injury shall be based on facts and not merely on allegation, conjecture or remote possibility; and

(f) **"transition period"** means, in relation to a good, the period from the date of entry into force of this Agreement until 14 years after the date on which the elimination or reduction of the customs duty on that good is completed.

Article 5.6
Application of a Bilateral Safeguard Measure

1. If, as a result of the elimination or reduction of a customs duty under this Agreement, an originating good from a Party is being imported into the territory of the other Party in such increased quantities, in absolute terms or relative to domestic production, and under such conditions as to cause or threaten to cause serious injury to a domestic industry producing a like or directly competitive good, the other Party may during the transition period, apply either of the bilateral measures provided for in paragraph 2.

2. If the conditions in paragraph 1 are met, the importing Party may apply one of the following bilateral safeguard measures:

   (a) suspension of the further reduction of the rate of customs duty on the good concerned provided for under this Agreement; or

   (b) increase in the rate of customs duty on the good concerned to a level which does not exceed the lesser of:

      (i) the most-favoured-nation applied rate of customs duty on the good in effect at the time the bilateral safeguard measure is applied; and

      (ii) the most-favoured-nation applied rate of customs duty on the good in effect on the day immediately preceding the date of entry into force of this Agreement.

3. Neither Party shall apply or maintain a bilateral safeguard measure or provisional bilateral safeguard measure under this Chapter to any good imported under a tariff rate quota established by the Party under this Agreement.

Article 5.7
Conditions and Limitations

1. A Party may apply a bilateral safeguard measure only following an investigation by the Party's competent authorities in accordance with the procedures and requirements provided for in Articles 3 and 4.2 of the Safeguards Agreement, and to this end, Articles 3 and 4.2 of the Safeguards Agreement are incorporated into and made part of this Agreement, *mutatis mutandis.*

2. A Party shall notify the other Party immediately in writing upon it initiating an investigation described in paragraph 1 and shall provide adequate opportunity for prior consultations with the other Party in advance of applying a bilateral safeguard measure, with a view to reviewing the information arising from the investigation and exchanging views on the bilateral safeguard measure.

3. Each Party shall ensure that its competent authorities complete any such investigation within one year of the date of its initiation.

4. Neither Party shall apply or maintain a bilateral safeguard measure:

   (a) except to the extent, and for such time, as may be necessary to prevent or remedy serious injury and to facilitate adjustment of the domestic industry;

   (b) for a period exceeding two years, except that the period may be extended by up to one year if the competent authorities of

the applying Party determine, in conformity with the procedures specified in this Article, that the bilateral safeguard measure continues to be necessary to prevent or remedy serious injury and to facilitate adjustment of the domestic industry and that there is evidence that the industry is adjusting.

5. Regardless of its duration, any bilateral safeguard measure or provisional bilateral safeguard measure shall terminate at the end of the transition period.

6. No bilateral safeguard measure shall be applied again to the import of a good which has been previously subject to such a measure, for a period of time equal to that during which such measure was applied, or one year since the expiry of such measure, whichever is longer.

7. Notwithstanding the provisions of paragraph 6, a bilateral safeguard measure with a duration of 180 days or less may be applied again to the import of a good if:

   (a) at least one year has elapsed since the date of introduction of a bilateral safeguard measure on the import of that good; and

   (b) a bilateral safeguard measure has not been applied on the same good more than twice in the five-year period immediately preceding the date of the first imposition of the bilateral safeguard measure.

8. A Party shall not apply a bilateral safeguard measure or provisional bilateral safeguard measure on a good that is subject to a global safeguard measure under Article XIX of GATT 1994 and the Safeguards Agreement. A Party shall not continue to maintain a bilateral safeguard measure or provisional bilateral safeguard measure on a good that becomes subject to a global safeguard measure.

9. In order to facilitate adjustment in a situation where the expected duration of a bilateral safeguard measure is more than one year, the Party that applies the measure shall progressively liberalise it at regular intervals during its period of application.

10. When a Party ceases to apply a bilateral safeguard measure, the rate of customs duty shall be the rate that would have been in effect in accordance with the Party's Schedule to Annex 2A (Schedules of Tariff Commitments for Goods) but for the bilateral safeguard measure.

Article 5.8
Provisional Bilateral Safeguard Measures

1. In critical circumstances where delay would cause damage that would be difficult to repair, a Party may apply a provisional bilateral safeguard measure pursuant to a preliminary determination by its competent

authorities that there is clear evidence that imports of an originating good from the other Party have increased as the result of the reduction or elimination of a customs duty under this Agreement, and have caused serious injury, or threat of serious injury, to its domestic industry.

2. Before applying a provisional bilateral safeguard measure the applying Party shall notify the other Party of the preliminary determination and shall immediately initiate consultations after applying the provisional bilateral safeguard measure.

3. A provisional bilateral safeguard measure shall not be maintained for more than 200 days, during which time the applying Party shall comply with Article 5.6 (Application of a Bilateral Safeguard Measure) and Article 5.7 (Conditions and Limitations).

4. The applying Party shall refund promptly any increase in customs duty paid as a result of the adoption of the provisional bilateral safeguard measure if the applying Party's investigating authority determines that the requirements of paragraph 1 of Article 5.6 (Application of a Bilateral Safeguard Measure) are not met.

5. The duration of any provisional bilateral safeguard measure shall be counted as part of the period described in subparagraph 4(b) of Article 5.7 (Conditions and Limitations).

Article 5.9
Compensation

1. A Party applying a bilateral safeguard shall consult with the other Party in order to mutually agree on appropriate trade liberalising compensation in the form of concessions having substantially equivalent trade effect or equivalent to the value of the additional duties expected to result from the application of the bilateral safeguard measure. The Party shall provide an opportunity for those consultations no later than 30 days after the application or the extension of the bilateral safeguard.

2. If the consultations under paragraph 1 do not result in the Parties agreeing on trade liberalising compensation no later than 30 days after consultations begin, the Party whose goods are subject to the bilateral safeguard measure may suspend substantially equivalent concessions to the trade of the Party applying the bilateral safeguard. This action shall be applied only for the minimum period necessary to achieve the substantially equivalent effects.

3. The right to take action referred to in paragraph 2 shall not be exercised for the first two years that the measure is in effect, which includes the

period of time that any provisional bilateral safeguard measure has been in effect.

Article 5.10
Agricultural Safeguards

Originating agricultural goods from a Party shall not be subject to any duties applied by a Party pursuant to a special safeguard taken under the Agreement on Agriculture.

Article 5.11
Non-Application of Dispute Settlement

Neither Party shall have recourse to dispute settlement under Chapter 19 (Dispute Settlement) for any matter arising under Section A or B of this Chapter.

CHAPTER 6

SANITARY AND PHYTOSANITARY MEASURES

Article 6.1
Definitions

1. For the purposes of this Chapter:

   (a) the definitions set out in Annex A to the SPS Agreement shall apply;

   (b) **"competent authorities"** mean those national government authorities within each Party recognised by the national government as responsible for developing and administering sanitary and phytosanitary ("SPS") measures within that Party;

   (c) **"emergency measure"** means a sanitary or phytosanitary measure that is applied by the importing Party to the products of the exporting Party to address an urgent problem of human, animal or plant life or health protection that arises or threatens to arise in the Party applying the measure; and

   (d) "**SPS Agreement"** means the *Agreement on the Application of Sanitary and Phytosanitary Measures*, set out in Annex 1A to the WTO Agreement.

2. The Parties shall take into consideration the terms and definitions of relevant international organisations, such as the Codex Alimentarius Commission ("Codex"), the World Organisation for Animal Health ("WOAH") and the International Plant Protection Convention ("IPPC"). In the event of an inconsistency between those terms and definitions and the definitions set out in the SPS Agreement, the definitions set out in the SPS Agreement shall prevail.

Article 6.2
Objectives

The objectives of this Chapter are to:

(a) reaffirm the rights and obligations of both Parties under the SPS Agreement, while supporting its enhanced implementation;

(b) provide a framework and mechanisms to facilitate bilateral trade between the Parties, while protecting human, animal or plant life or health;

(c) enhance transparency and deepen mutual understanding of each Party's regulations and procedures relating to SPS measures, and ensure that such measures do not create unjustified barriers to trade; and

(d) strengthen cooperation, communication and consultation between the Parties.

Article 6.3
Scope

This Chapter applies to all SPS measures of a Party that may, directly or indirectly, affect trade between the Parties.

Article 6.4
Affirmation of the SPS Agreement

1. The Parties reaffirm their rights and obligations with respect to each other under the SPS Agreement.

2. Nothing in this Chapter shall affect the rights and obligations of each Party under the SPS Agreement.

Article 6.5
Risk Assessment

1. Each Party shall base its sanitary and phytosanitary measures with respect to trade with the other Party on relevant international standards, guidelines or recommendations, where they exist, except as otherwise provided in the SPS Agreement.

2. The Parties shall strengthen their cooperation on risk assessment in accordance with the SPS Agreement while taking into account the relevant decisions of the WTO SPS Committee and international standards, guidelines and recommendations.

3. When conducting a risk assessment specific to trade between them, the importing Party shall:

   (a) on request, inform the exporting Party of the progress, including the reason for any delays;

(b) consider options that are not more trade-restrictive than required to achieve its appropriate level of protection, taking into account technical and economic feasibility; and

(c) provide an opportunity for the exporting Party to comment.

4. Based on mutually agreed priorities, each Party shall endeavour to progress requested risk assessments for products and, once completed, endeavour to ensure trade is facilitated without undue delay.

5. Without prejudice to emergency measures, the importing Party shall not stop the importation of a product of the other Party solely for the reason that the importing Party is undertaking a review of a sanitary or phytosanitary measure, if the importing Party permitted importation of the product of the other Party at the time of the initiation of the review.

Article 6.6
Adaptation to Regional Conditions

1. The Parties recognise the concepts of regional conditions, including pest- or disease-free areas and areas of low pest or disease prevalence, as set out in Article 6 of the SPS Agreement and that the adaptation of SPS measures to recognise regional conditions is an important means of facilitating trade. In developing SPS measures based on regionalisation, the Parties shall take into account the relevant decisions of the WTO SPS Committee and relevant international standards, guidelines and recommendations.

2. The Parties may cooperate on the recognition of regional conditions with the objective of acquiring confidence in the procedures followed by each other for such recognition. In doing so, the Parties may promote information sharing in this area and on related matters. The Parties may agree to recognise regionalisation decisions, including official control programmes, zones and compartments, and the associated certification variations, including for WOAH or IPPC recognised treatments, ahead of changes to their regional animal or plant health status.

3. If the importing Party adopts or maintains an SPS measure applicable to the exporting Party, and the exporting Party establishes officially controlled regional conditions, the exporting Party may request the importing Party recognise its regional conditions for any relevant pest or disease.

4. When the importing Party has received such a request for recognition of regional conditions from the exporting Party and has determined that the information provided by the exporting Party is sufficient, it shall initiate an assessment within a reasonable period of time. If the

exporting Party so requests, the importing Party shall also explain the process it undertakes for recognising regional conditions.

5. Reasonable access shall be given, upon request, to the importing Party for inspection, testing and other relevant procedures for the assessment.

6. On request of the exporting Party, the importing Party shall inform the exporting Party of the status of the assessment.

7. If the importing Party adopts a measure that recognises specific regional conditions of the exporting Party, the importing Party shall communicate that decision to the exporting Party in writing and implement the measure within a reasonable period of time.

8. If the evaluation of the evidence provided by the exporting Party does not result in a decision by the importing Party to recognise the regional conditions of the exporting Party, the importing Party shall provide the exporting Party the rationale for its decision in writing within a reasonable period of time.

9. If there are circumstances that result in the importing Party modifying or revoking a determination recognising regional conditions of the exporting Party, the importing Party shall notify the exporting Party as soon as possible. On request of the exporting Party, the Parties shall cooperate to assess whether the determination can be reinstated.

Article 6.7
Equivalence

1. The Parties shall strengthen cooperation on equivalence in accordance with the SPS Agreement, taking into account relevant decisions of the WTO SPS Committee and relevant international standards, guidelines and recommendations, in order to facilitate trade between them.

2. The importing Party shall accept the sanitary or phytosanitary measures of the other Party as equivalent even if these measures differ from their own or from those used by other countries, if the exporting Party objectively demonstrates to the importing Party that its measures achieve the importing Party's appropriate level of protection or that its measures have the same effect in achieving the objective as the importing Party's measures. The Parties recognise that equivalence can be accepted for a specific measure or measures related to certain product or categories of products or on a system-wide basis.

3. In determining equivalence, the importing Party shall take into account available information and experience as well as the knowledge of the regulatory competence of the exporting Party.

4. A Party shall, upon request, enter into consultations with the aim of achieving bilateral recognition agreements or arrangements of equivalence on the specified SPS measures.

5. As part of consultations, on request by the exporting Party, the importing Party shall explain and provide:

   (a) the rationale and objective of its measures; and

   (b) the specific risks its measures are intended to address.

6. The exporting Party shall provide necessary information in order for the importing Party to commence an equivalence assessment. Once the assessment commences, the importing Party shall, upon request, without undue delay explain the process and plan for making an equivalence determination.

7. The consideration by the importing Party of a request from the exporting Party for recognition of equivalence of its measures with regard to a specific product, or group of products, shall not be in itself a reason to disrupt or suspend ongoing imports from the exporting Party.

8. When the importing Party has concluded its assessment, it shall notify the equivalence determination to the exporting Party in writing. If an equivalence determination does not result in recognition by the exporting Party, the importing Party shall provide the exporting Party with the rationale for its decision.

9. If a Party proposes to adopt, modify, amend, repeal or remove an SPS measure which it considers may have a significant impact on trade in products that are the subject of an equivalence agreement or arrangement between the Parties, it shall notify the other Party and indicate its likely effect on recognition of equivalence.

10. Following such a notification from the exporting Party, the importing Party shall continue to apply its determination of equivalence unless it considers that the equivalence agreement or arrangement is no longer sufficient to meet its appropriate level of protection. If the importing Party considers that equivalence can be maintained under new or revised conditions it shall consult with the exporting Party on their development.

11. If the importing Party considers that equivalence cannot be maintained and it can no longer apply its determination of equivalence, the exporting Party may request consultations with the aim of once again

achieving a bilateral recognition arrangement of equivalence, consistent with the provisions of this Article.

Article 6.8
Certification, Import Permits and Approval Procedures

1. Each Party shall ensure measures related to certification, import permit and approval procedures are in accordance with relevant provisions of Annex C of the SPS Agreement and take into account the relevant decisions of the WTO SPS Committee, and international standards, guidelines or recommendations.

2. The Parties may strengthen cooperation with respect to paragraph 1, including on import permit requirements, with a view to reduce duplication between the Parties.

3. The Parties shall work cooperatively to promote the implementation of paperless trade through electronic SPS certification.

4. Where certification is required for trade in a product, the importing Party shall ensure that such certification is applied, in meeting its SPS objectives, only to the extent necessary to protect human, animal or plant life or health.

5. Where import permits are required for trade in a product, the importing Party shall endeavour to ensure that such permits reflect those requirements that are necessary to meet its appropriate level of protection and are issued without undue delay and on a non-discriminatory basis.

6. The Parties may develop simplified certificate models and attestations where equivalence, regionalisation or other recognitions have been agreed under this Chapter.

7. The Parties may also develop simplified establishment and product approval processes based on the recognition of control, inspection and approval processes already applied in the territory of the other Party.

Article 6.9
Audits

1. Each Party shall undertake audits in accordance with the relevant provisions of Annex C of the SPS Agreement and take into account the relevant decisions of the WTO SPS Committee, and international standards, guidelines or recommendations.

2. An audit shall be systems-based and conducted to assess the effectiveness of the official regulatory controls of the competent

authorities of the exporting Party, or apply to individual establishments or facilities where necessary, to provide the required assurances and meet the SPS measures of the importing Party.

3. Prior to the commencement of an audit, the importing Party and the exporting Party shall exchange information and endeavour to agree on the objectives and scope of the audit and other matters related specifically to the commencement of an audit.

4. The importing Party shall set forth its findings, preliminary conclusion and, if applicable, its recommendation in a draft audit report to the exporting Party with an opportunity to comment on it and take any such comments into account before making its conclusions and taking any action. The importing Party shall provide a detailed report and its summary, setting out its conclusions in writing, to the exporting Party within a reasonable period of time.

5. Measures taken by the importing Party as a consequence of its audit shall be supported by objective evidence and data, take into account the importing Party's knowledge of, relevant experience with, and confidence in, the exporting Party, and shall not be more trade-restrictive than necessary to achieve the importing Party's appropriate level of protection. Any such objective evidence and data shall be provided to the audited Party, on request.

6. Any costs incurred by the auditing Party shall be borne by the auditing Party, unless the Parties agree otherwise.

7. The auditing Party and the audited Party shall each ensure that procedures are in place to prevent the disclosure of confidential information acquired during the auditing process.

Article 6.10
Import Checks

1. Each Party shall undertake import checks in accordance with relevant provisions of Annex C of the SPS Agreement and take into account the relevant decisions of the WTO SPS Committee, and international standards, guidelines or recommendations.

2. Import checks, conducted in accordance with the importing Party's laws, regulations, and sanitary and phytosanitary requirements, shall be based on the sanitary and phytosanitary risk associated with importations from the exporting Party. The import checks shall be carried out in a manner that is not more trade-restrictive than required to achieve its appropriate level of protection and be applied without undue delay using appropriate risk-based sampling methodologies. The Parties may agree to amend the frequency or intensity of import

checks that would normally apply to a commodity class based on the performance of each other's national controls.

3. In the event that import checks reveal a non-compliance, the final decision or action taken by the importing Party shall be appropriate to the sanitary and phytosanitary risk associated with the importation of the non-compliant product.

4. If an importing Party prohibits or restricts the importation of a good of an exporting Party on the basis of an import check finding sanitary or phytosanitary non-compliance, the importing Party shall notify the importer or its representatives and, where appropriate, the exporting Party and certifying competent authority, of such non-compliance.

5. The importing Party shall provide the importer or its representatives located within the territory of the importing Party and, where appropriate, the exporting Party and certifying competent authority with an opportunity for a review of the decision. If a review is undertaken, the importing Party shall consider any relevant information submitted to assist it in the review, and it shall carry out the review within a reasonable period of time.

6. When significant or recurring sanitary or phytosanitary non-compliance associated with exported consignments is identified by the importing Party, the Parties shall, on request of either Party, discuss the non-compliance to ensure that appropriate remedial actions are taken to reduce such non-compliance.

7. Unless there is a clearly identified high risk, the importing Party shall provide means other than destruction to manage the risk, such as relabelling, treatment, where available, or re-export.

Article 6.11
Contact Points and Competent Authorities

1. By the date of entry into force of this Agreement, each Party shall:

   (a) designate a contact point to facilitate communication and the exchange of information between the Parties on matters arising under this Chapter;

   (b) provide the other Party with a list of its competent authorities responsible for developing and administering SPS measures within its territory, including a description of their structure, organisation and division of functions and responsibilities; and

   (c) the list of contact points and competent authorities shall be recorded in an implementing arrangement.

2. Each Party shall notify the other Party of any changes to its contact point and significant changes in the structure, organisation and division of responsibility within its competent authorities.

Article 6.12
Transparency and Exchange of Information

1. Each Party shall, in accordance with the transparency obligations contained in the SPS Agreement, notify the contact point referred to in Article 6.11 (Contact Points and Competent Authorities) of the other Party of any new or revised SPS measures that may affect trade between the Parties, including emergency measures imposed to protect human, animal or plant life or health.

2. When the information referred to in paragraph 1 has been made available via notification to the WTO's Central Registry of Notifications, or to the relevant international organisation, the requirements in paragraph 1 shall be deemed to have been fulfilled.

3. A Party shall respond within a reasonable period of time to any request for relevant information or clarification from the other Party regarding its SPS measures, including with respect to model certificates or attestations.

4. In implementing this Chapter, both Parties shall take into account relevant decisions of the WTO SPS Committee and international standards, guidelines and recommendations.

5. A Party may request relevant information from the other Party on any matter arising under this Chapter, or any other SPS measure of the other Party affecting trade between the Parties, where such information has not already been included in a notification to the SPS Committee or has not otherwise been made publicly available. A Party that receives a reasonable request for information shall provide available information to the requesting Party within a reasonable period of time.

6. If the importing Party determines that there is a significant, sustained or recurring pattern of non-conformity with a sanitary or phytosanitary measure, the importing Party shall notify the exporting Party of the non-conformity.

7. Unless urgent problems of human, animal or plant life or health protection arise or threaten to arise, or the measure is of trade facilitating nature, the Party proposing an SPS measure shall normally allow at least 60 days for the other Party to provide written comments on the proposed measure after it makes a notification to the WTO. If feasible and appropriate, the Party proposing the measure may allow more than 60 days. The Party proposing the measure shall consider

any reasonable request from the other Party to extend the comment period.

Article 6.13
Cooperation and Capacity Building

1. The Parties through the Committee on SPS matters shall explore opportunities for further cooperation, collaboration and information exchange, including through their competent authorities, on SPS matters of mutual interest, consistent with the objectives of this Chapter. This may include the provision of technical assistance and capacity building, subject to the availability of appropriate resources.

2. In undertaking cooperation activities, the Parties shall endeavour to coordinate with bilateral, regional or multilateral work programmes with the objective of avoiding unnecessary duplication and maximising the use of resources.

Article 6.14
SPS Committee

1. The Parties hereby establish a Committee on SPS Measures ("SPS Committee") under Article 17.5 (Committees and Subsidiary Bodies), consisting of representatives from relevant competent authorities and government agencies of each Party.

2. The SPS Committee shall review the progress made by the Parties in implementing their commitments under this Chapter and may establish ad-hoc subsidiary working groups to consider specific issues relating to the implementation of this Chapter.

3. The SPS Committee shall provide a forum to facilitate information exchange and enable either Party to raise and discuss any SPS matter related to trade, including biosecurity matters, between the Parties. The SPS Committee may also develop action plans including those that may relate to cooperation and capacity building.

4. The Parties may, where mutually agreed, develop bilateral implementing arrangements to set out mutually determined understandings and details for applying this Chapter, including for example those documenting the recognition of: Equivalence; Regionalisation; Product Treatments; Certification, Controls, Inspections and Approval Processes; Import Permits; Audits; Establishment Lists; Import Checks; changes to contact points and competent authorities; the use of CODEX or National Maximum Residue Limits for import; and any other matter as mutually decided.

5. The SPS Committee shall meet within one year of the date of entry into force of this Agreement and thereafter as mutually determined by the Parties. Meetings may occur in person, by teleconference, by video conference, or through any other means as mutually determined by both the Parties. The SPS Committee shall establish its rules of procedure at its first meeting. All decisions of the SPS Committee shall be made by consensus.

6. The SPS Committee may hold joint meetings with the Biosecurity, Food and Primary Products Committee to consider additional matters within the regulatory authority of the competent authorities. The SPS Committee shall provide any recommendations or report to the Joint Commission as necessary.

Article 6.15
Technical Consultations

1. If a Party has specific trade concerns regarding SPS measures proposed or implemented by the other Party, it may request technical consultations with the other Party. The other Party shall respond promptly to any reasonable request for such consultation.

2. The Parties shall hold such technical consultations within 30 days of the date of the request, unless otherwise agreed by the Parties.

3. Where a Party considers that an SPS measure of the other Party is affecting its trade with the other Party, it may, through the contact points referred to in Article 6.11 (Contact Points and Competent Authorities) or other established communication channels, request a detailed explanation of the SPS measure, including the scientific basis of the measure. The other Party shall respond promptly to any request for such an explanation. The Parties shall endeavour to reach a mutually satisfactory resolution.

4. The technical consultations may be conducted via teleconference, videoconference, or through any other means agreed by the Parties.

Article 6.16
Emergency SPS Measures

1. If a Party adopts an emergency measure that is necessary for the protection of human, animal or plant life or health and that may have an effect on trade between the Parties, that Party shall notify the other Party of that measure through the contact point referred to in Article 6.11 (Contact Points and Competent Authorities) as soon as possible. The importing Party shall take into consideration any information provided by the other Party in response to the notification.

2. On request of the other Party, a Party adopting an emergency SPS measure shall engage in technical consultations within 15 days of the date of such request, unless otherwise agreed by the Parties.

3. The importing Party shall consider any information provided in a timely manner by the exporting Party when making decisions with respect to one or more consignments that, at the time of adoption of an emergency SPS measure, are being transported between the Parties.

4. If a Party adopts an emergency measure, it shall review the scientific basis of that measure within six months of the date of the adoption of the measure, with the aim of revoking or developing a revised measure that would permit trade to recommence, and provide the results of the review to the other Party on request. If the emergency measure is maintained after the review of the measure, the importing Party shall periodically review the measure at least every six months thereafter based on the most recent available information, and, upon request, shall explain the reasons for the continuation of the emergency measure.

5. If the exporting Party considers, on the basis of scientific evidence, that an emergency measure is being maintained by the importing Party without reasons, it may provide that evidence to the other Party and request the other Party to review the measure or engage in technical consultations under Article 6.15 (Technical Consultations).

Article 6.17
Non-Application of Dispute Settlement

1. Neither Party shall have recourse to dispute settlement under Chapter 19 (Dispute Settlement) for any matter arising under this Chapter.

2. The SPS Committee shall undertake a review of the application of dispute settlement under this Chapter four years from the date of entry into force of this Agreement. Following the review, the SPS Committee may submit recommendations to the Joint Commission for their consideration.

CHAPTER 7

TECHNICAL BARRIERS TO TRADE

Article 7.1
Definitions

For the purposes of this Chapter, the terms and their definitions provided in Annex 1 of the *Agreement on Technical Barriers to Trade*, set out in Annex 1A to the WTO Agreement ("TBT Agreement") shall apply.

Article 7.2
Objectives

The objectives of this Chapter are to facilitate trade in goods between the Parties by:

(a) ensuring that standards, technical regulations, and conformity assessment procedures do not create unnecessary obstacles to trade;

(b) furthering the implementation of the TBT Agreement;

(c) promoting mutual understanding of each Party's standards, technical regulations, and conformity assessment procedures;

(d) facilitating information exchange and cooperation between the Parties in the field of standards, technical regulations, and conformity assessment procedures including in the work of relevant international bodies; and

(e) addressing the issues that may arise under this Chapter.

Article 7.3
Scope

1. This Chapter shall apply to the standards, technical regulations, and conformity assessment procedures of central government bodies that may affect trade in goods between the Parties. This Chapter shall not apply to:

    (a) any sanitary or phytosanitary measure, which is covered by Chapter 6 (Sanitary and Phytosanitary Measures); and

(b) purchasing specifications prepared by governmental bodies for production or consumption requirements of governmental bodies.

2. Each Party shall take such reasonable measures as may be available to it to ensure compliance, in the implementation of this Chapter by local government bodies, and non-governmental bodies within its territory which are responsible for the preparation, adoption, and application of standards, technical regulations, and conformity assessment procedures.

3. Nothing in this Chapter shall prevent a Party from preparing, adopting, applying, or maintaining standards, technical regulations, and conformity assessment procedures in a manner consistent with the TBT Agreement and this Chapter.

Article 7.4
Reaffirmation of the TBT Agreement

The Parties reaffirm their rights and obligations under the TBT Agreement.

Article 7.5
Standards

1. The Parties recognise the important role that international standards, guides, and recommendations can play in supporting greater alignment of technical regulations, conformity assessment procedures, and national standards, and in reducing unnecessary barriers to trade.

2. In determining whether an international standard, guide, or recommendation within the meaning of Articles 2 and 5 and Annex 3 of the TBT Agreement exists, each Party shall base its decision on the principles set out in the relevant *Decision of the Committee on Principles for the Development of International Standards, Guides and Recommendations with relation to Articles 2, 5 and Annex 3 of the Agreement* (G/TBT/9, 13 November 2000, Annex 4), and subsequent relevant decisions and recommendations in this regard, adopted by the WTO Committee on Technical Barriers to Trade ("WTO TBT Committee").

3. With respect to the preparation, adoption and application of standards, each Party shall ensure that its standardising body or bodies that prepare, adopt and apply national standards accept and comply with Annex 3 of the TBT Agreement.

4. The Parties shall, where appropriate, strengthen coordination and communication with each other in the context of discussions on

international standards and related issues in other international fora, such as the WTO TBT Committee.

5. Where modifications to the contents or structure of the relevant international standards were necessary in developing a Party's national standards, that Party shall, on request of the other Party, encourage its standardising body or bodies to provide information on the differences in the contents and structure, and the reason for those differences. Any fees charged for this service shall, apart from the real cost of delivery, be the same for foreign and domestic persons.

6. Further to paragraph 5, each Party shall ensure that its standardising body or bodies do not prepare, adopt or apply standards with a view to, or with the effect of, creating unnecessary obstacles to international trade.

7. Each Party shall encourage cooperation between its standardising body or bodies in its territory and the standardising body or bodies of the other Party, in areas such as:

   (a) exchange of information on standards;

   (b) exchange of information relating to standard setting procedures; and

   (c) international standardising activities in areas of mutual interest.

Article 7.6
Technical Regulations

1. Each Party shall use relevant international standards or the relevant parts of them, to the extent provided in paragraph 4 of Article 2 of the TBT Agreement, as a basis for its technical regulations. Where a Party does not use such international standards, or their relevant parts, as a basis for its technical regulations, and these may have an effect on the trade of the other Party, it shall, on request from the other Party, explain the reasons why such standards have been considered inappropriate or ineffective to achieve the aims of its technical regulations.

2. In implementing paragraph 2 of Article 2 of the TBT Agreement, each Party shall consider available alternatives in order to ensure that the proposed technical regulations to be adopted are not more trade-restrictive than necessary to fulfil a legitimate objective.

3. Each Party shall give positive consideration to accepting as equivalent, technical regulations of the other Party, even if those regulations differ from its own, provided it is satisfied that those regulations adequately fulfil the objectives of its own regulations.

4. Where a Party does not accept a technical regulation of the other Party as equivalent to its own, it shall, on request of the other Party, explain the reasons for its decision.

5. In implementing paragraph 8 of Article 2 of the TBT Agreement, where a Party does not specify technical regulations based on product requirements in terms of performance rather than design or descriptive characteristics, the Party shall endeavour to, on request of the other Party, provide its reasons for doing so.

6. Except where urgent problems of safety, health, environmental protection, or national security arise or threaten to arise, each Party shall allow a reasonable interval between the publication of technical regulations and their entry into force in order to provide sufficient time for producers in an exporting Party to adapt their products or methods of production to the requirements of an importing Party. For the purposes of this paragraph, the Parties understand that “reasonable interval” shall mean normally a period of not less than six months, except where this would be ineffective in fulfilling the legitimate objectives pursued by the technical regulation.

7. On request of a Party that has an interest in developing a technical regulation similar to a technical regulation of the other Party, the requested Party shall endeavour to provide, to the extent practicable, relevant information, including studies or documents, except for confidential information, on which it has relied in its development.

8. Each Party shall uniformly and consistently apply its technical regulations that are prepared and adopted by its central government bodies to its territory.

Article 7.7
Conformity Assessment Procedures

1. Further to paragraph 4 of Article 5 of the TBT Agreement, each Party shall ensure that central government bodies use relevant international standards or their relevant parts as a basis for their conformity assessment procedures, except where, as duly explained upon request, such international standards or relevant parts are inappropriate for the Party concerned.

2. Each Party recognises the importance of accepting the results of conformity assessment procedures conducted in the other Party with a view to increasing efficiency, avoiding duplication, and ensuring cost effectiveness of conformity assessments.

3. Each Party shall ensure, wherever possible, that results of conformity assessment procedures in the other Party are accepted, even when those procedures differ from its own, unless those procedures do not

offer an assurance of conformity with applicable technical regulations or standards equivalent to its own procedures.

4. A Party shall, on request of the other Party, explain its reasons for not accepting the results of a conformity assessment procedure conducted in the other Party.

5. Each Party recognises that, depending on the situation of the Party and the specific sectors involved, a broad range of mechanisms exists to facilitate the acceptance of the results of conformity assessment procedures conducted in the other Party. Such mechanisms may include:

   (a) mutual recognition agreements for the results of conformity assessment procedures conducted by bodies in the other Party;

   (b) cooperative voluntary arrangements between accreditation bodies or those between conformity assessment bodies in the other Party;

   (c) the use of accreditation to qualify conformity assessment bodies, including through relevant multilateral agreements or arrangements, to recognise the accreditation granted by the other Party;

   (d) the designation of conformity assessment bodies in the other Party;

   (e) unilateral recognition by a Party of results of conformity assessment procedures conducted in the other Party; and

   (f) a manufacturer’s or supplier’s declaration of conformity.

6. Upon reasonable request by a Party, the other Party shall exchange information or share experiences on the mechanisms referred to in paragraph 5, including their development and application, with a view to facilitating the acceptance of the results of conformity assessment procedures.

7. The Parties recognise the important role that relevant international, including regional, organisations can play in cooperation in the area of conformity assessment. In this regard, each Party shall take into consideration the participation status or membership in such organisations of relevant bodies in the Parties in facilitating this cooperation.

8. The Parties agree to encourage cooperation between their relevant conformity assessment bodies in working closer with a view to facilitating the acceptance of conformity assessment results between the Parties.

9. Each Party shall, wherever possible, permit the participation of conformity assessment bodies of the other Party in its conformity assessment procedures under conditions no less favourable than those accorded to conformity assessment bodies in that Party.

10. Where a Party permits participation of its conformity assessment bodies and does not permit participation of conformity assessment bodies of the other Party in its conformity assessment procedures, it shall, on request of that other Party, explain the reason for its decision to refuse.

Article 7.8
Cooperation

1. The Parties shall strengthen their cooperation between their respective organisations responsible for standards, technical regulations and conformity assessment procedures, consistent with the objectives of this Chapter.

2. Each Party shall, on request of the other Party, give positive consideration to proposals for cooperation on matters of mutual interest on standards, technical regulations and conformity assessment procedures.

3. The cooperation referred to in paragraph 2 shall be on mutually determined terms and conditions, may include:

   (a) advice, technical assistance or capacity building relating to the development and application of standards, technical regulations and conformity assessment procedures;

   (b) cooperation between conformity assessment bodies, both governmental and non-governmental, in the Parties, on matters of mutual interest;

   (c) cooperation in areas of mutual interest in the work of relevant regional and international bodies relating to the development and application of standards and conformity assessment procedures, such as enhancing participation in the frameworks for mutual recognition developed by relevant regional and international bodies;

   (d) enhancing cooperation in the development and improvement of standards, technical regulations, and conformity assessment procedures; and

   (e) strengthening communication and coordination in the WTO TBT Committee and other relevant international or regional fora.

4. Each Party shall, on request of the other Party, give consideration to sector-specific proposals for mutual benefit for cooperation under this Chapter.

Article 7.9
Technical Discussions

1. Where a Party considers the need to resolve an issue related to trade and provisions under this Chapter, it may make a written request for technical discussions. The other Party shall respond as early as possible to such a request.

2. The Parties shall enter into technical discussions within 60 days of the written request referred to in paragraph 1, unless otherwise mutually determined, with a view to reaching a mutually satisfactory solution. Technical discussions may be conducted through any means mutually agreed by the Parties.

3. Requests for technical discussions shall be made through the Parties' respective contact points designated pursuant to Article 7.14 (Contact Points).

4. This Article is without prejudice to the rights and obligations of the Parties under Chapter 19 (Dispute Settlement).

Article 7.10
Transparency

1. The Parties recognise the importance of the provisions relating to transparency in the TBT Agreement. In this respect, the Parties shall take into account relevant decisions and recommendations in the Decisions and Recommendations adopted by the WTO Committee on Technical Barriers to Trade since 1 January 1995 (G/TBT/1/Rev.13), as may be revised, issued by the WTO TBT Committee.

2. Upon written request, a Party shall provide to the other Party, if already available, the full text or summary of its notified technical regulations and conformity assessment procedures in the English language. If unavailable, the Party shall provide to the other Party a summary stating the requirements of the notified technical regulations and conformity assessment procedures in the English language, within a reasonable period of time agreed by the Parties and, if possible, within 30 days after the date of receipt of the written request. The Party writing the summary shall determine the contents of the summary.

3. Each Party shall endeavour to normally allow 60 days from the date of notification to the WTO in accordance with paragraph 9 of Article 2 and paragraph 6 of Article 5 of the TBT Agreement for the other Party to

provide comments in writing, except where urgent problems of safety, health, environmental protection, or national security arise, or threaten to arise. Each Party shall take the comments of the other Party into account and shall endeavour to provide responses to those comments upon request.

4. Each Party shall allow persons of the other Party to participate in consultation procedures that are available to the general public for the development of technical regulations, national standards and conformity assessment procedures by the Party, subject to its laws, regulations and procedures, on terms no less favourable than those accorded to its own persons.

5. The Parties shall ensure that all new final technical regulations and conformity assessment procedures and final amendments to existing technical regulations and conformity assessment procedures are publicly available.

6. Unless otherwise provided in this Chapter, any information or explanation requested by a Party pursuant to this Chapter shall be provided by the requested Party, electronically and in the English language, within a reasonable period of time agreed by the Parties and, if possible, within 60 days.

Article 7.11
Marking and Labelling

If a Party requires marking or labelling of products in the form of a technical regulation:

(a) the importing Party shall accept that labelling, including supplementary labelling or corrections to labelling, take place in the territory of the importing Party in accordance with its relevant laws, regulations, and customs procedures, as an alternative to labelling in the exporting Party, unless that labelling is necessary in view of the legitimate objectives referred to in Article 2.2 of the TBT Agreement;

(b) the importing Party shall, unless it considers that legitimate objectives under the TBT Agreement are compromised as a result, endeavour to accept supplementary, non-permanent, or detachable labels, or marking or labelling in the accompanying documentation rather than physically attached to the product; and

(c) provided that it is not misleading, contradictory, inconsistent, or confusing, or that the importing Party's legitimate objectives are not compromised, the importing Party shall permit the following in relation to the information required in the importing Party:

(i) information in other languages in addition to the language required in the importing Party;

(ii) internationally accepted nomenclatures, pictograms, symbols, or graphics in addition to those required in the importing Party; and

(iii) additional information to that required in the importing Party.

Article 7.12
Implementing Arrangements

The Parties may develop arrangements to set out areas of cooperation of mutual interest for applying this Chapter, including, where appropriate, in conjunction with other related Chapters.

Article 7.13
Committee on Technical Barriers to Trade

1. The Parties hereby establish a Committee on Technical Barriers to Trade ("Committee"), consisting of representatives of the Parties.

2. The Committee shall meet at such venues and times as mutually determined by the Parties. Meetings may be conducted in person, or by any other means as mutually determined by the Parties.

3. The functions of the Committee may include:

(a) monitoring the implementation and operation of this Chapter;

(b) coordinating cooperation pursuant to Article 7.8 (Cooperation);

(c) facilitating technical discussions;

(d) reporting, where appropriate, its findings to the Joint Commission; and

(e) carrying out other functions as may be delegated by the Joint Commission.

Article 7.14
Contact Points

1. Each Party shall, within 60 days of the date of entry into force of this Agreement, designate a contact point or contact points responsible for coordinating the implementation of this Chapter, and notify the other

Party of that contact point or contact points and relevant details, including an email address. Each Party shall promptly notify the other Party of any change to those contact details.

2. Each Party shall ensure that its contact point or contact points facilitate the exchange of information between the Parties on standards, technical regulations, and conformity assessment procedures, in response to all reasonable requests for such information from the other Party.

3. The contact point or contact points may agree to refer issues concerning the implementation of this Chapter to the Committee on Technical Barriers to Trade for consideration.

ANNEX 7B

PHARMACEUTICALS

Definitions

1. For the purposes of this Annex:

   (a) **"Good Clinical Practice" ("GCP")** means a process that incorporates established ethical and scientific quality standards for the design, conduct, recording and reporting of clinical research involving human participants.

   (b) **"Good Manufacturing Practice" ("GMP")** means quality measures for both production and quality control and defines general measures to ensure that processes necessary for production and testing are clearly defined, validated, reviewed, and documented, and that the personnel, premises and materials are suitable for the production of human prescription medicines, including vaccines.

Objectives

2. The National Regulatory Authority[1] of each Party shall:

   (a) work together to reduce unnecessary regulatory barriers, where appropriate, in the approval of human prescription medicines;

   (b) seek to collaborate through, and actively participate in, relevant international initiatives, such as those aimed at harmonisation of international standards for pharmaceuticals, to improve the alignment of their respective laws, regulations and regulatory activities for pharmaceuticals; and

   (c) where not already a member, positively consider working towards membership of international organisations, such as those which are leading the development and harmonisation of international standards for pharmaceuticals.

3. To reduce unnecessary regulatory barriers in human prescription medicines, including prescription generic and biosimilar medicines, each Party's National Regulatory Authority shall utilise, where provided by the applicant, as appropriate, reports from regulatory authorities recognised by that Party's National Regulatory Authority as a

[1] For the purposes of this Annex, "National Regulatory Authority" means: for New Zealand, the Ministry of Health, or its successor; and for India, the Central Drugs Standard Control Organisation, or its successor.

comparable regulator[2] in relation to the pre-market evaluation of products manufactured in the territory of the other Party, subject to its laws, regulations, and procedures, as amended from time to time.

4. To reduce unnecessary regulatory barriers in human prescription medicines, including prescription generic and biosimilar medicines, each Party's National Regulatory Authority shall, utilise, as appropriate and where provided by the applicant, GMP inspection reports, or certificates from regulatory authorities recognised by that Party's National Regulatory Authority as a comparable regulator in relation to the quality assessment of manufacturing facilities in the territory of the other Party, subject to its laws, regulations and procedures, as amended from time to time. This may reduce the requirement for, or duration of, in-country inspections in the territory of the other Party.

Non-derogation

5. Nothing in this Annex shall derogate from each Party's rights and obligations under the data protection provisions in the TRIPS Agreement and other international agreements to which the Parties are party.

Recognition of Quality Standards

6. The Parties affirm that human prescription medicines approved in their respective territories shall meet the requirements as prescribed, from time to time, by their National Regulatory Authority. If the relevant quality standards are not included in those requirements, or any pharmacopeia recognised by that Party's National Regulatory Authority, that Party shall give positive consideration to the other Party's recognised or adopted pharmacopeia.

GMP and GCP Inspections

7. Each Party shall normally accept, without the need for prior inspection, the GMP certification of sites in the other Party's territory that manufacture human prescription medicines provided that this certification is issued by that Party's comparable regulator. However, each Party has a right to conduct its own inspection of the manufacturing facilities certified by that comparable regulator. The Party's own inspection shall be an exception from normal practice.

Market Authorisation

8. Market authorisation applications shall be assessed in accordance with the applicable laws, regulations, and procedures of a Party. Parties shall determine market authorisations in a timely, reasonable, objective, transparent, and impartial manner.

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[2] Each Party shall determine its comparable regulators and promptly advise this list to the other Party. Any changes are to be notified to the other Party in a timely manner.

9. Each Party, subject to the recognition of quality standards and inspections described in Paragraphs 6 (Recognition of Quality Standards) and 7 (GMP and GCP inspections) of this Annex shall consider establishing or maintaining “fast-track” procedures for human prescription medicines, having valid approvals from that Party’s comparable regulators. Any breakthrough or medicine for rare conditions shall be outside the purview of the products considered for fast-track procedure under this paragraph.

Review

10. The Parties shall review the scope and the provisions of this Annex five years after the date of entry into force of the Agreement. Thereafter, subsequent reviews shall take place as mutually agreed by the Parties.

Contact Points

11. For the purposes of this Annex, the contact point for any technical question, such as exchange of regulatory information, and technical requirements, shall be:

    (a) For India: Central Drugs Standard Control Organization (CDSCO), Ministry of Health & Family Welfare, Government of India; and

    (b) For New Zealand: Ministry of Health (Medsafe).

12. Each Party shall promptly notify the other Party of the relevant details of their contact point, including email addresses. Each Party shall promptly notify the other Party of any change to those contact details or the contact point.

Non-Application of Dispute Settlement

13. Neither Party shall have recourse to dispute settlement under Chapter 19 (Dispute Settlement) for any matter arising under this Annex.

ANNEX 7C

WINE, WHISKY AND OTHER DISTILLED SPIRITS

Objective

1. The objective of this Annex is, on the basis of non-discrimination and reciprocity, to facilitate trade in wine produced in each Party's territory.

Scope

2. These provisions apply to wines classified under the headings HS 22.04 and HS 22.02.99[1] of the Harmonized System.

General provisions

3. Each Party shall make information about its laws and regulations concerning wine publicly available.

4. Unless otherwise provided in this Annex, the importation and sale of wine covered by this Annex shall be conducted in compliance with the laws and regulations of the importing Party.

Definitions

5. For the purposes of this Annex:

   (a) **"label"** means any brand, mark, pictorial or other descriptive matter that is written, printed, stencilled, marked, embossed or impressed on or firmly affixed to a container of wine;

   (b) **"variety"** means the cultivar of grape from which a wine is made, as expressed in commonly understood and accepted terms that are permitted for use in the exporting Party;

   (c) **"vintage"** means the year of harvest of the grapes used to make a wine; and

   (d) **"wine"** means a beverage that is produced by the complete or partial alcoholic fermentation exclusively of fresh grapes, grape must or products derived from fresh grapes.[2]

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[1] For greater certainty, this refers to wines under the heading 22.02.99 with an alcoholic strength by volume not exceeding 0.5 % vol.

[2] For greater certainty, "wine" includes sparkling wine and fortified wine. Sparkling wine includes carbonated sparkling wine.

Product name

6. The importing Party shall permit the use of the term “wine” as the product name.

7. Notwithstanding paragraph 6, where a product contains no more than 0.5% alcohol by volume, a Party may require additional qualifiers or descriptions in order to ensure alignment with its domestic regulatory framework.

Labelling

8. An importing Party may require that all information on a label is clear, accurate, truthful, able to be substantiated and not misleading to the consumer.

9. An importing Party may require that labelling information appears in one of the languages in official use in the territory of that Party as provided for in its law.

10. An importing Party may require that mandatory information be presented in indelible characters and written or set out legibly and clearly, including so that the information contrasts distinctly with the background and surrounding text or graphics.

11. Each Party shall permit mandatory information on a label to be repeated on the container, whether or not in the same form, in accordance with its laws and regulations.

12. An importing Party may prohibit the use of certain label claims where such prohibition serves a legitimate human health and safety objective.

13. Each Party shall permit mandatory information to be displayed on a supplementary label affixed to a container. Supplementary labels may be affixed to a container after importation but prior to the product being offered for sale in the territory of the importing Party, provided that the mandatory information required by the importing Party is fully and accurately displayed.

14. Notwithstanding paragraph 13, a Party may not accept supplementary labels if required by that Party’s laws and regulations.

15. Each Party shall permit net contents information to be stated using the metric system and displayed as either millilitres or litres, including the abbreviations ml, mL, l, and L.

16. Neither Party shall require a supplier to indicate any of the following information on a wine container, label or packaging:

    (a) date of packaging;

    (b) date of bottling;

(c) date of expiration;

(d) date of minimum durability; or

(e) sell by date,

except that a Party may require a supplier to indicate a date of minimum durability or expiration on products that could have a shorter date of minimum durability or expiration than would normally be expected by the consumer because of their packaging or container, for example bag-in-box wines or individual serving size wines; or the addition of perishable ingredients.

17. Notwithstanding paragraph 16, a Party may require the display of a date of minimum durability or a date of expiration on wine that has undergone a dealcoholisation treatment and has an actual alcoholic strength by volume of less than 7% if this information is required to meet a legitimate objective.

18. Each Party shall endeavour to not require a supplier to disclose additives or processing aids permitted by the importing Party on its wine label or container, except to meet a legitimate human health or safety objective.

19. Each Party shall permit the actual alcoholic content by volume indicated on a wine label to be expressed by alcohol by volume (alc/vol), for example 12% alc/vol or alc12%vol, and to be indicated in percentage terms to a maximum of one decimal point, for example 12.1%.

20. An importing Party shall permit the importation and sale of wine that is labelled as a vintage if:

(a) the wine conforms to the exporting Party's laws and regulations in respect of a vintage; and

(b) at least 85% of the wine is derived from grapes of that vintage.

21. An importing Party shall permit the importation and sale of wine that is labelled as being of a single grape variety if:

(a) the wine conforms to the exporting Party's laws and regulations in respect of varietal composition; and

(b) at least 75% of the wine so labelled is obtained from grapes of that variety.

22. An importing Party shall permit the importation and sale of wine that is labelled as being of multiple grape varieties if:

(a) the wine conforms to the exporting Party's laws and regulations in respect of varietal composition;

(b) at least 85% of the wine so labelled is obtained from grapes of those varieties;

(c) each variety listed is in greater proportion in the wine than any variety that is not listed; and

(d) the varieties listed are in descending order of their proportions in the wine and, if required by the importing Party, in characters of the same size.

23. Neither Party shall require a supplier to place a translation of a trade mark or trade name on a wine container, label, or packaging.

24. An importing Party may require the provision of lot identification on wine labels.

25. An importing Party shall prohibit the defacement[3] of lot identification information, unless the relevant authority of the importing Party permits otherwise.

Certification

26. Neither Party shall require imported wine to be certified by an official certification body of the Party in whose territory the wine were produced or by a certification body recognised by the Party in whose territory the wine were produced regarding vintage, varietal and regional claims for wine.

27. Notwithstanding paragraph 26, the importing Party may require that wine be certified if the exporting Party requires such certification due to a reasonable and legitimate concern about a vintage, varietal or regional claim for wine.

Existing stocks and Transitional periods

28. Products that, at the date of entry into force of this Agreement, have been produced or labelled in accordance with the laws and regulations of a Party and Parties' obligations to each other, but in a manner not compliant with this Annex, may be placed on the market in the other Party for sale until stocks are exhausted.

29. If the importing Party introduces a new or amended labelling requirement that affects wine, the importing Party shall provide the exporting Party a reasonable transitional period where the exporting Party's wine does not have to comply with a new or amended labelling requirement if the exporting Party has:

[3] For greater certainty, the term "defacement" includes the following actions: alter, remove, erase, obliterate, and obscure.

(a) wine which has entered into the importing Party's territory but not yet cleared customs; or

(b) wine that is in transit between the exporting Party and the importing Party.

Wine, Whisky and Other Distilled Spirits Working Group

30. For the purposes of the effective implementation of this Annex, the Wine, Whisky and Other Distilled Spirits Working Group ("Working Group") established under paragraph 3 of Article 17.5 (Committees and Subsidiary Bodies) shall report to the Joint Commission.

31. The Working Group shall be composed of government representatives of each Party, and it shall provide a forum to:

(a) monitor and promote cooperation on the implementation and operation of this Annex;

(b) exchange information, discuss best practices and share implementation experiences;

(c) adopt decisions or make recommendations;

(d) consider and discuss technical issues arising from the implementation of this Agreement, without prejudice to Chapter 19 (Dispute Settlement);

(e) conduct the preparatory work necessary to support the functions of the Joint Commission, including when the Joint Commission adopts decisions or recommendations;

(f) assess each Party's laws, regulations and requirements in respect of oenological practices, with the aim of reaching agreements that provide for each Party's acceptance of the other Party's mechanisms for regulating oenological practices;

(g) discuss and exchange information on acceptable tolerance levels for imported wines in the context of variation of actual alcoholic strength by volume from that indicated on a label, with a view to coming to a mutually satisfactory outcome;

(h) assess and discuss each other's requirements in relation to acidity levels and other limits on imported wine with a view to reaching a mutually satisfactory outcome on what levels are permitted for wines produced in the exporting Party and imported in the other Party;

(i) exchange information and approaches to precise location requirements on wine labels and endeavour to reach a mutually satisfactory outcome as to how precise location requirements apply to wine trade between the Parties;

(j) discuss disciplines on supplementary labelling contained in this Annex at paragraphs 13 and 14 with a view to reach a mutually satisfactory outcome for supplementary labelling of mandatory information described in paragraph 13 within two years of entry into force of this Agreement; and

(k) discuss and undertake an assessment of each Party's laws, regulations and requirements relating to whisky and other distilled spirits, including maturation rules, with the objective of reaching a mutually satisfactory outcome on maturation practices.

32. The Parties shall commence the assessment referred to in subparagraph 31(f) within one year of the date of entry into force of this Agreement and shall endeavour to complete the assessment within two years of its commencement.

33. The Parties shall commence the assessment referred to in subparagraph 31(k) within one year of the date of entry into force of this Agreement and shall endeavour to complete the assessment within two years of its commencement.

34. Additionally, the Working Group may:

(a) consider any other matters referred to it by the:

(i) Committee on Trade in Goods;

(ii) Committee on Biosecurity, Food and Primary Products or

(iii) Committee on Technical Barriers to Trade; and

(b) provide reports regarding its activities, as needed, to the:

(i) Committee on Trade in Goods;

(ii) Committee on Biosecurity, Food, and Primary Products; and

(iii) the contact points designated pursuant to Article 7.14 (Contact Points).

35. The Parties may mutually agree to invite wine, whisky and other distilled spirits industry representatives of each Party to join officials in Working Group discussions, if appropriate.

36. The Working Group may decide on its own rules of procedure, in the absence of which the Rules of Procedure of the Joint Commission shall apply, *mutatis mutandis*.

37. The Working Group shall meet within one year of the date of entry into force of this Agreement. The Working Group shall meet again within the second year of the date of entry into force of the Agreement. Thereafter, it may meet by mutual agreement of the Parties. The meetings shall take place in India or in New Zealand alternately or by any other appropriate means of communication, as mutually agreed between the Parties.

Review

38. The Parties shall review the scope and the provisions of this Annex five years after the date of entry into force of the Agreement. Thereafter, subsequent reviews shall take place as mutually agreed by the Parties.

Non-Application of Dispute Settlement

39. Neither Party shall have recourse to dispute settlement under Chapter 19 (Dispute Settlement) for any matter arising under this Annex.

40. Further to paragraph 38, the Committee on Technical Barriers to Trade as part of the general review of this Annex shall undertake a review of the application of dispute settlement under this Annex. Following the review, the Committee on Technical Barriers to Trade may submit recommendations to the Joint Commission for its consideration.

CHAPTER 8

TRADE IN SERVICES

Article 8.1
Definitions

For the purposes of this Chapter:

(a) **"aircraft repair and maintenance services"** means such activities when undertaken on an aircraft or a part thereof while it is withdrawn from service and does not include so-called line maintenance;

(b) **"commercial presence"** means any type of business or professional establishment, including through:

(i) the constitution, acquisition, or maintenance of a juridical person; or

(ii) the creation or maintenance of a branch or a representative office,

within the territory of a Party for the purpose of supplying a service;

(c) **"computer reservation system services"** means services provided by computerised systems that contain information about air carriers' schedules, availability, fares, and fare rules, through which reservations can be made or tickets may be issued;

(d) **"juridical person"** means any entity duly constituted or otherwise organised under applicable law, whether for profit or otherwise, and whether privately-owned or governmentally-owned, including any corporation, trust, partnership, joint venture, sole proprietorship, or association;

(e) a juridical person is:

(i) **"owned"** by persons of a Party if more than 50 per cent of the equity interest in it is beneficially owned by persons of that Party;

(ii) **"controlled"** by persons of a Party if such persons have the power to name a majority of its directors or otherwise to legally direct its actions; or

(iii) **"affiliated**" with another person when it controls, or is controlled by, that other person, or when it and the other person are both controlled by the same person;

(f) **"juridical person of a Party"** means a juridical person which is either:

(i) constituted or otherwise organised under the law of that Party, and is engaged in substantive business operations in the territory of that Party or the other Party; or

(ii) in the case of the supply of a service through commercial presence, owned or controlled by:

(A) natural persons of that Party; or

(B) juridical persons of that Party identified under subparagraph (f)(i);

(g) **"measures by a Party affecting trade in services"** includes measures in respect of:

(i) the purchase or use of, or payment for, a service;

(ii) the access to and use of, in connection with the supply of a service, services which are required by a Party to be offered to the public generally; and

(iii) the presence, including commercial presence, of persons of a Party for the supply of a service in the territory of the other Party;

(h) **"monopoly supplier of a service"** means any person, public or private, which in the relevant market of the territory of a Party is authorised or established formally or in effect by that Party as the sole supplier of that service;

(i) **"natural person of a Party"** means a natural person who resides in the territory of that Party or elsewhere and who under the law of that Party:

(i) is a national of that Party; or

(ii) has the right of permanent residence[1] in that Party, in the case of a Party which accords substantially the same treatment to its permanent residents as it does to its nationals in respect of measures affecting trade in services, provided no Party is obligated to accord to such permanent residents treatment

[1] Where a Party has made a reservation with respect to permanent residents in its Schedules in Annex 8H (Schedule of Specific Commitments - India), Annex 8I (Schedule of Non-Conforming Measures - New Zealand), Annex 8J (Schedule of Specific Commitments on Temporary Movement of Natural Persons - India), Annex 8K (Schedule of Specific Commitments on Temporary Movement of Natural Persons – New Zealand) or Annex 8L (Schedule of Commitments on Temporary Employment Entry – New Zealand) , that reservation shall not prejudice that Party's rights and obligations in GATS.

more favourable than would be accorded by that Party to such permanent residents;

(j) **"person"** means a natural person or a juridical person;

(k) **"sector"** of a service means:

(i) with reference to a commitment, one or more, or all, subsectors of that service, as specified in a Party's Schedule in Annex 8H (Schedule of Specific Commitments - India) or Annex 8I (Schedule of Non-Conforming Measures - New Zealand); and

(ii) otherwise, the whole of that service sector, including all of its sub-sectors;

(l) **"selling and marketing of air transport services"** means opportunities for the air carrier concerned to sell and market freely its air transport services including all aspects of marketing such as market research, advertising, and distribution. These activities do not include the pricing of air transport services nor the applicable conditions;

(m) **"services"** includes any service in any sector except services supplied in the exercise of governmental authority;

(n) **"service consumer**" means any person that receives or uses a service;

(o) **"service of the other Party"** means a service which is supplied:

(i) from or in the territory of that other Party, or in the case of maritime transport, by a vessel registered under the laws and regulations of that other Party, or by a person of that other Party which supplies the service through the operation of a vessel or its use in whole or in part; or

(ii) in the case of the supply of a service through commercial presence or through the presence of natural persons, by a service supplier of that other Party;

(p) **"service supplied in the exercise of governmental authority"** means any service which is supplied neither on a commercial basis nor in competition with one or more service suppliers;

(q) **"service supplier"** means a person that supplies a service;[2] [3]

(r) **"supply of a service"** includes the production, distribution, marketing, sale, and delivery of a service;

(s) **"trade in services"** means the supply of a service:

(i) from the territory of one Party into the territory of the other Party;

(ii) in the territory of one Party to the service consumer of the other Party;

(iii) by a service supplier of one Party, through commercial presence in the territory of the other Party; and

(iv) by a service supplier of one Party, through presence of natural persons of a Party in the territory of the other Party; and

(t) **"traffic rights"** means the rights for scheduled and non-scheduled services to operate or carry passengers, cargo, and mail for remuneration or hire from, to, within, or over the territory of a Party, including points to be served, routes to be operated, types of traffic to be carried, capacity to be provided, tariffs to be charged, and their conditions, and criteria for designation of airlines, including such criteria as number, ownership, and control.

Article 8.2
Scope

1. This Chapter shall apply to measures by a Party affecting trade in services.

2. For the purposes of this Chapter, "measures by a Party" means measures taken by:

(a) central, regional, or local governments and authorities of that Party; and

[2] Where the service is not supplied directly by a juridical person but through other forms of commercial presence such as a branch or a representative office, the service supplier (i.e. the juridical person) shall, nonetheless, through such presence be accorded the treatment provided for service suppliers under this Chapter. Such treatment shall be extended to the presence through which the service is supplied and need not be extended to any other parts of the supplier located outside the territory where the service is supplied.

[3] The Parties confirm their shared understanding that "service supplier" in this Chapter has the same meaning that it has under subparagraph (g) of Article XXVIII of GATS.

(b) non-governmental bodies in the exercise of powers delegated by central, regional, or local governments or authorities of that Party.

In fulfilling its obligations and commitments under this Chapter, each Party shall take such reasonable measures as may be available to it to ensure their observance by regional and local governments and authorities and non-governmental bodies within its territory.

3. This Chapter shall not apply to measures affecting:

(a) government procurement;

(b) subsidies or grants, including government-supported loans, guarantees, and insurance, provided by a Party or to any conditions attached to the receipt or continued receipt of such subsidies or grants, whether or not such subsidies or grants are offered exclusively to domestic services, service consumers, or service suppliers;

(c) services supplied in the exercise of governmental authority;

(d) cabotage[4] in maritime transport services; and

(e) in respect of air transport services, measures affecting traffic rights however granted, or measures affecting services directly related to the exercise of traffic rights, other than measures affecting:

(i) aircraft repair and maintenance services;

(ii) the selling and marketing of air transport services; and

(iii) computer reservation system services.

4. This Chapter shall not impose any obligation on a Party with respect to a natural person of the other Party who seeks access to its employment market or who is employed on a permanent basis in its territory, and does not confer any right on that natural person with respect to that access or employment. For greater certainty, this Chapter shall not

[4] "Maritime cabotage" means the transportation of passengers or goods between any port or place located in a Party and any other port or place located in that Party and transportation of passengers or goods originating or terminating in the same port or place located in that Party, including transportation of passengers or goods between a port or a place located in that Party and another port, place, installation or structures situated in the Exclusive Economic Zone of that Party or on the continental shelf of that Party. Maritime cabotage shall further include services such as floating storage, offloading, towing, anchor-handling, dredging, off-shore drilling or production, diving support, maintenance support, various types of surveys, cable laying, sea-bed mining operations, pipe-laying, lighterage, salvage, marine construction, hook-up, port and terminal related support services, provided such services are supplied in the above areas by the vessels.

apply to measures regarding citizenship, nationality or residence on a permanent basis.

Article 8.3
Scheduling of Commitments

1. Each Party shall make commitments under Article 8.4 (National Treatment), Article 8.5 (Market Access), and Article 8.6 (Most-Favoured-Nation Treatment) in accordance with either Article 8.7 (Schedule of Specific Commitments) or Article 8.8 (Schedule of Non-Conforming Measures).

2. A Party making commitments in accordance with Article 8.7 (Schedule of Specific Commitments) shall make commitments under the applicable paragraphs in Article 8.4 (National Treatment), Article 8.5 (Market Access), and Article 8.6 (Most-Favoured-Nation Treatment). A Party making commitments in accordance with Article 8.7 (Schedule of Specific Commitments) may also make commitments under Article 8.9 (Additional Commitments).

3. A Party making commitments in accordance with Article 8.8 (Schedule of Non-Conforming Measures) shall make commitments under the applicable paragraphs in Article 8.4 (National Treatment), Article 8.5 (Market Access), and Article 8.6 (Most-Favoured-Nation Treatment). A Party making commitments in accordance with Article 8.8 (Schedule of Non-Conforming Measures) may also make commitments under Article 8.9 (Additional Commitments).

4. For greater certainty, a Party's schedule in Annex 8H (Schedule of Specific Commitments - India) and Annex 8I (Schedule of Non-Conforming Measures - New Zealand) shall form an integral part of this Chapter.

Article 8.4
National Treatment

1. A Party making commitments in accordance with Article 8.7 (Schedule of Specific Commitments) shall, in the sectors inscribed in its schedule of specific commitments and subject to any conditions and qualifications set out therein, accord to services and service suppliers of the other Party, in respect of all measures affecting the supply of

services, treatment no less favourable than that it accords to its own like services and service suppliers.[5]

2. A Party making commitments in accordance with Article 8.8 (Schedule of Non-Conforming Measures) shall accord to services and service suppliers of the other Party, in respect of all measures affecting the supply of services, treatment no less favourable than that it accords to its own like services and service suppliers, subject to its non-conforming measures as provided in Article 8.8 (Schedule of Non-Conforming Measures).

3. A Party may meet the requirement under paragraph 1 or 2 by according to services and service suppliers of the other Party, either formally identical treatment or formally different treatment to that it accords to its own like services and service suppliers.

4. Formally identical or formally different treatment shall be considered to be less favourable if it modifies the conditions of competition in favour of services or service suppliers of the Party compared to like services or service suppliers of the other Party.

Article 8.5
Market Access

1. With respect to market access through the modes of supply identified in subparagraph (s) of Article 8.1 (Definitions), a Party making commitments in accordance with Article 8.7 (Schedule of Specific Commitments) shall accord services and service suppliers of the other Party treatment no less favourable than that provided for under the terms, limitations, and conditions agreed and specified in its Schedule in Annex 8H (Schedule of Specific Commitments - India).[6]

2. The measures which a Party shall not adopt or maintain either on the basis of a regional sub-division or on the basis of its entire territory, either in sectors where market access commitments are undertaken and in accordance with its specific commitments, as provided in Annex 8H (Schedule of Specific Commitments - India), or subject to its

[5] Specific commitments assumed under this Article shall not be construed to require any Party to compensate for any inherent competitive disadvantages which result from the foreign character of the relevant services or service suppliers.

[6] If a Party undertakes a market-access commitment in relation to the supply of a service through the mode of supply referred to in subparagraph (s)(i) of Article 8.1 (Definitions) and if the cross-border movement of capital is an essential part of the service itself, that Party is thereby committed to allow such movement of capital. If a Party undertakes a market-access commitment in relation to the supply of a service through the mode of supply referred to in subparagraph (s)(iii) of Article 8.1 (Definitions), it is thereby committed to allow related transfers of capital into its territory.

non-conforming measures, as provided in Article 8.8 (Schedule of Non-Conforming Measures) are defined as:

(a) limitations on the number of service suppliers whether in the form of numerical quotas, monopolies, exclusive service suppliers or the requirements of an economic needs test;

(b) limitations on the total value of service transactions or assets in the form of numerical quotas or the requirement of an economic needs test;

(c) limitations on the total number of service operations or on the total quantity of service output expressed in terms of designated numerical units in the form of quotas or the requirement of an economic needs test;

(d) limitations on the total number of natural persons that may be employed in a particular service sector or that a service supplier may employ and who are necessary for, and directly related to, the supply of a specific service in the form of numerical quotas or the requirement of an economic needs test;

(e) measures which restrict or require specific types of legal entity or joint venture through which a service supplier may supply a service; and

(f) limitations on the participation of foreign capital in terms of maximum percentage limit on foreign shareholding or the total value of individual or aggregate foreign investment.

Article 8.6
Most-Favoured-Nation Treatment

1. A Party making commitments in accordance with Article 8.7 (Schedule of Specific Commitments) shall, in respect of the sectors and subsectors set out in its Most-Favoured-Nation Treatment Sectoral Coverage Appendix to its Schedule in Annex 8H (Schedule of Specific Commitments - India) and subject to any conditions and qualifications set out therein, accord to services and service suppliers of the other Party treatment no less favourable than that it accords to like services and service suppliers of a non-Party.

2. A Party making commitments in accordance with Article 8.8 (Schedule of Non-Conforming Measures) shall, subject to its non-conforming measures set out in its Schedule in Annex 8I (Schedule of Non-Conforming Measures - New Zealand), accord to services and service suppliers of the other Party treatment no less favourable than that it accords to like services and service suppliers of a non-Party.

3. Notwithstanding paragraphs 1 and 2, each Party reserves the right to adopt or maintain any measure that accords differential treatment to services and service suppliers of any non-Party under any bilateral or multilateral international agreement in force at, or signed prior to, the date of entry into force of this Agreement.

4. The provisions of this Chapter shall not be construed as to prevent a Party from conferring or according advantages to adjacent countries in order to facilitate exchanges limited to contiguous frontier zones of services that are both locally produced and consumed.

Article 8.7
Schedule of Specific Commitments

1. A Party making commitments in accordance with this Article shall set out in its Schedule in Annex 8H (Schedule of Specific Commitments - India), the specific commitments it undertakes under Article 8.4 (National Treatment), Article 8.5 (Market Access), and Article 8.9 (Additional Commitments).

2. With respect to sectors where the commitments referred to in paragraph 1 are undertaken, each Schedule in Annex 8H (Schedule of Specific Commitments - India) shall specify:

   (a) terms, limitations, and conditions on market access;

   (b) conditions and qualifications on national treatment;

   (c) undertakings relating to additional commitments; and

   (d) where appropriate, the time frame for implementation of such commitments.

3. Measures inconsistent with both Article 8.4 (National Treatment) and Article 8.5 (Market Access) shall be inscribed in the column relating to Article 8.5 (Market Access). In this case, the inscription shall be considered to provide a condition or qualification to Article 8.4 (National Treatment) as well.

Article 8.8
Schedule of Non-Conforming Measures

1. For a Party making commitments in accordance with this Article, Article 8.4 (National Treatment), Article 8.5 (Market Access), and Article 8.6 (Most-Favoured-Nation Treatment) shall not apply to:

   (a) any existing non-conforming measure that is maintained by that Party at:

(i) the central level of government, as set out by that Party in List A of its Schedule in Annex 8I (Schedule of Non-Conforming Measures - New Zealand);

(ii) a regional level of government, as set out by that Party in List A of its Schedule in Annex 8I (Schedule of Non-Conforming Measures - New Zealand); or

(iii) a local level of government;

(b) the continuation or prompt renewal of any non-conforming measure referred to in subparagraph (a); and

(c) an amendment to any non-conforming measure referred to in subparagraph (a), to the extent that the amendment does not decrease the conformity of the measure, as it existed immediately before the amendment, with Article 8.4 (National Treatment), Article 8.5 (Market Access), and Article 8.6 (Most-Favoured-Nation Treatment).

2. Article 8.4 (National Treatment), Article 8.5 (Market Access) and Article 8.6 (Most-Favoured-Nation Treatment) shall not apply to any measure that a Party adopts or maintains with respect to sectors, sub-sectors, or activities set out in List B of its Schedule in Annex 8I (Schedule of Non-Conforming Measures - New Zealand).

Article 8.9
Additional Commitments

1. The Parties may negotiate commitments with respect to measures affecting trade in services, including those regarding qualifications, standards, or licensing matters, not subject to scheduling, under:

(a) Article 8.4 (National Treatment), Article 8.5 (Market Access), or Article 8.6 (Most-Favoured-Nation Treatment), for a Party making commitments in accordance with Article 8.7 (Schedule of Specific Commitments); or

(b) Article 8.4 (National Treatment), Article 8.5 (Market Access), or Article 8.6 (Most-Favoured-Nation Treatment), for a Party making commitments in accordance with Article 8.8 (Schedule of Non-Conforming Measures).

2. A Party making additional commitments under subparagraph 1(a) shall inscribe such commitments in its Schedule in Annex 8H (Schedule of Specific Commitments - India).

3. A Party making additional commitments under subparagraph 1(b) shall inscribe such commitments in List C of its Schedule in Annex 8I (Schedule of Non-Conforming Measures - New Zealand).

Article 8.10
Transition

1. A Party making commitments in accordance with Article 8.7 (Schedule of Specific Commitments) ("transitioning Party") shall submit a schedule of non-conforming measures agreed between the Parties in accordance with paragraphs 2 through 6 ("Agreed Schedule") that accords with Article 8.8 (Schedule of Non-Conforming Measures – New Zealand) to the Committee on Trade in Services no later than 6 years after the date of entry into force of this Agreement.

2. The transitioning Party shall provide to the other Party ("responding Party") its proposed schedule of non-conforming measures within 5 years after the date of entry into force of this Agreement.

3. The commitments contained in the transitioning Party's proposed schedule of non-conforming measures shall provide an equivalent level of liberalisation and shall not result in a decrease in the level of commitments as compared to the transitioning Party's schedule of specific commitments in Annex 8H (Schedule of Specific Commitments - India).

4. The responding Party shall consider the transitioning Party's proposed schedule of non-conforming measures and shall have the opportunity to make comments to ensure that the transitioning Party's proposed schedule of non-conforming Measures meets the requirements specified in paragraph 3. The transitioning Party shall have the opportunity to respond to any comments received and to modify or revise its proposed schedule, as may be necessary, with a view to resolving any ambiguities, omissions, or errors in its proposed schedule of non-conforming measures.

5. In the event that the verification and clarification process undertaken pursuant to paragraph 4 is not completed within 12 months from the date the transitioning Party's proposed schedule of non-conforming measures is provided to the other Party, the Parties may agree to extend the time as provided under paragraph 1, to any other date agreed to by the Parties.

6. Upon completion of the verification and clarification process as set out in paragraph 4, the Parties may agree in writing to amend this Agreement by replacing the transitioning Party's Schedule of Specific Commitments in Annex 8H (Schedule of Specific Commitments - India) with the transitioning Party's Agreed Schedule in Annex 8I (Schedule of Non-Conforming Measures - New Zealand). The transitioning Party

may then submit the Agreed Schedule to the Committee on Trade in Services in accordance with paragraph 1.

7. Notwithstanding Article 20.2 (Amendments), once:

(a) the transitioning Party has submitted its Agreed Schedule to the Committee on Trade in Services in accordance with paragraph 1;

(b) that transitioning Party has notified the responding Party in writing of the completion of its applicable domestic legal procedures; and

(c) the responding Party notifies the transitioning Party in writing of the completion of its applicable domestic procedures,

the transitioning Party's Agreed Schedule shall enter into force between the Parties after 60 days of the responding Party's written notification in accordance with subparagraph (c), or on such other date as the Parties may agree.

Article 8.11
Modification of Schedules

1. A Party (the "modifying Party") may modify or withdraw any commitment in its Schedule in Annex 8H (Schedule of Specific Commitments - India) or Annex 8I (Schedule of Non-Conforming Measures - New Zealand) at any time after three years from the date on which that commitment entered into force, provided that:

(a) it notifies the other Party (the "affected Party") of its intention to modify or withdraw a commitment no later than three months before the intended date of implementation of the modification or withdrawal;

(b) upon notification of a Party's intent to make such modification, the Parties shall consult and attempt to reach agreement on the appropriate compensatory adjustment; and

(c) such an agreement between the Parties has been reached.

2. In achieving a compensatory adjustment, the Parties shall endeavour to maintain a general level of mutually advantageous commitment that is no less favourable to trade than provided for in the Schedules in Annex 8H (Schedule of Specific Commitments - India) or Annex 8I (Schedule of Non-Conforming Measures - New Zealand) prior to such negotiations.

3. If agreement under subparagraph 1(c) is not reached between the modifying Party and the affected Party within three months of the commencement of the process under subparagraph 1(a), the modifying Party may refer the matter to a panel in accordance with the procedures set out in Chapter 19 (Dispute Settlement) or, where agreed between the Parties, to an alternative arbitration procedure. The modifying Party may modify or withdraw a commitment once it has made the compensatory adjustments in conformity with the findings of the panel.

4. If the modifying Party implements its proposed modification or withdrawal and does not comply with the findings of the panel, the affected Party may modify or withdraw substantially equivalent benefits in conformity with the findings of the panel.

Article 8.12
Transparency

1. The Parties recognise that transparent measures governing trade in services are important in facilitating the ability of service suppliers to gain access to, and operate in, each other's markets. Each Party shall promote regulatory transparency in trade in services.

2. Each Party shall:

   (a) publish promptly and, except in emergency situations, at the latest by the time of their entry into force, all relevant measures of general application affecting trade in services and all international agreements pertaining to or affecting trade in services to which the Party is a signatory; and

   (b) to the extent practicable, make the measures and international agreements referred to in subparagraph (a) publicly available on the internet and, to the extent provided under its legal framework, in the English language.

3. Where publication referred to in paragraph 2 is not practicable, such information[7] shall be made otherwise publicly available.

4. To the extent provided for under its domestic legal framework, each Party shall endeavour to provide a reasonable opportunity for comments by interested persons of the other Party on measures referred to in subparagraph 2(a) before adoption.

5. Each Party shall respond promptly to any request by the other Party for specific information on:

[7] For greater certainty, such information may be published in each Party's chosen language.

(a) any measures or international agreements referred to in subparagraph 2(a); and

(b) any new, or any changes to existing, laws, regulations or administrative guidelines which significantly affect trade in services.

Article 8.13
Domestic Regulation

1. Each Party shall ensure that all measures of general application affecting trade in services are administered in a reasonable, objective, and impartial manner.

2. Each Party shall maintain or institute as soon as practicable judicial, arbitral, or administrative tribunals or procedures which provide, on request of an affected service supplier, for the prompt review of, and where justified, appropriate remedies for, administrative decisions affecting trade in services. Where such procedures are not independent of the agency entrusted with the administrative decision concerned, the Party shall ensure that the procedures in fact provide for an objective and impartial review.

3. Nothing in paragraph 2 shall be construed to require a Party to institute such tribunals or procedures where this would be inconsistent with its constitutional structure or the nature of its legal system.

4. With a view to ensuring that measures relating to qualification requirements and procedures, technical standards, and licensing requirements and procedures, do not constitute unnecessary barriers to trade in services, the Parties shall jointly review the result of the WTO negotiations on disciplines on such measures, pursuant to Article VI.4 of GATS and shall amend this Article, as appropriate, after consultations between the Parties to bring the results of those negotiations into effect under this Chapter. Such disciplines shall aim to ensure that such requirements, *inter alia*:

   (a) are based on objective and transparent criteria, such as competence and the ability to supply the service;

   (b) are not more burdensome than necessary to ensure the quality of the service; and

   (c) in the case of licensing procedures, are not in themselves a restriction on the supply of the service.

5. In sectors in which a Party has undertaken commitments, pending the entry into force of disciplines in these sectors pursuant to paragraph 4, that Party shall not apply licensing and qualification requirements and

technical standards that nullify or impair such commitments in a manner which:

(a) does not comply with the criteria outlined in subparagraphs 4(a) through 4(c); and

(b) could not reasonably have been expected of that Party at the time the commitments in those sectors were made.

6. In determining whether a Party is in conformity with its obligations under subparagraph 5(a), international standards of relevant international organisations[8] applied by that Party shall be taken into account.

7. Where a Party requires authorisation for the supply of a service, that Party shall ensure that its competent authorities:

(a) ensure that any authorisation fees charged for the completion of relevant application procedures are reasonable, transparent, and do not in themselves restrict the supply of a service. For the purposes of this subparagraph, authorisation fees do not include fees for the use of natural resources, payment for auction, tendering, or other non-discriminatory means of awarding concessions, or mandated contributions to universal services provision;

(b) within a reasonable period of time after the submission of an application considered complete under its laws and regulations, inform the applicant of the decision concerning the application;

(c) to the extent practicable, establish an indicative time frame for processing of an application;

(d) on request of the applicant, provide, without undue delay, information concerning the status of the application;

(e) if the competent authorities consider an application incomplete for processing under the Party's laws and regulations, inform the applicant that the application is incomplete within a reasonable period of time, and on request of the applicant, identify, where practicable, all the additional information that is required to complete the application, and provide the opportunity to remedy deficiencies within a reasonable time frame;

(f) if an application is terminated or denied, to the extent possible and without undue delay, inform the applicant in writing of the

[8] "Relevant international organisations" refers to international bodies whose membership is open to the relevant bodies of the Parties.

reasons for such action. The applicant will have the possibility of resubmitting, at its discretion, a new application;

(g) to the extent permissible under its laws and regulations, do not require physical presence in the territory of a Party for the submission of an application for a licence or qualification;

(h) endeavour to accept applications in electronic format under the equivalent conditions of authenticity as paper submissions, in accordance with its laws and regulations; and

(i) where they deem appropriate, accept copies of documents authenticated in accordance with its laws and regulations, in place of original documents.

8. Each Party shall provide adequate procedures to verify the competence of professionals of the other Party. If licensing or qualification requirements include the completion of an examination, each Party shall, to the extent practicable, ensure that:

(a) the examination is scheduled at reasonable intervals; and

(b) a reasonable period of time is provided to enable interested persons to submit an application.

9. Each Party shall, to the extent practicable, avoid requiring an applicant to approach more than one competent authority for each application for authorisation. If a service is within the jurisdiction of multiple competent authorities, multiple applications for authorisation may be required.

10. If a Party requires authorisation for the supply of a service, it shall ensure that its competent authorities to the extent practicable permit submission of an application at any time throughout the year.[9] If a specific time period for applying exists, the Party shall ensure that the competent authorities allow a reasonable period for the submission of an application.

11. If a Party adopts or maintains measures relating to the authorisation of the supply of a service, the Party shall ensure that its competent authorities reach and administer their decisions in a manner independent from any supplier of the service for which authorisation is required.[10]

12. Paragraphs 1 through 10 shall not apply to:

(a) a sector which remains non-committed by reason of a Party's Schedule in Annex 8H (Schedule of Specific Commitments -

[9] Competent authorities are not required to start considering applications outside of their official working hours and working days.

[10] For greater certainty, this provision does not mandate a particular administrative structure; it refers to the decision-making process and administering of decisions.

India) or Annex 8I (Schedule of Non-Conforming Measures - New Zealand); and

(b) a measure to the extent that such measure is not subject to Article 8.4 (National Treatment) or Article 8.5 (Market Access) by reason of a Party's commitments made in accordance with either Article 8.7 (Schedule of Specific Commitments) or Article 8.8 (Schedule of Non-Conforming Measures).

Article 8.14
Recognition

1. For the purposes of the fulfilment, in whole or in part, of its standards or criteria for the authorisation, licensing, or certification of service suppliers, and subject to the requirements of paragraph 4, a Party may recognise the education or experience obtained, requirements met, or licences or certifications granted in a non-Party. Such recognition, which may be achieved through harmonisation or otherwise, may be based upon an agreement or arrangement with the non-Party concerned, or may be accorded autonomously.

2. If a Party recognises, autonomously or by agreement or arrangement, the education or experience obtained, requirements met, or licences or certifications granted, in the territory of a non-Party, nothing in Article 8.6 (Most-Favoured-Nation Treatment) shall be construed to require the Party to accord recognition to the education or experience obtained, requirements met, or licences or certifications granted, in the territory of the other Party.

3. A Party that is party to an agreement or arrangement of the type referred to in paragraph 1, whether existing or future, shall afford adequate opportunity for the other Party, upon request, to negotiate its accession to such an agreement or arrangement, or to negotiate comparable ones with it. Where a Party accords recognition autonomously, it shall afford adequate opportunity for the other Party to demonstrate that education, experience, licences, or certifications obtained or requirements met in that other Party's territory should be recognised.

4. A Party shall not accord recognition in a manner which would constitute a means of discrimination between the other Party and non-Parties in the application of its standards or criteria for the authorisation, licensing, or certification of service suppliers, or a disguised restriction on trade in services.

5. Where appropriate, recognition should be based on multilaterally agreed criteria. In appropriate cases, Parties shall work in cooperation with relevant inter-governmental and non-governmental organisations towards the establishment and adoption of common international

standards and criteria for recognition and common international standards for the practice of relevant services trades and professions.

6. As set out in Annex 8D (Professional Services), each Party shall endeavour to facilitate trade in professional services, including through encouraging relevant bodies in its territory to enter into negotiations for agreements or arrangements on recognition.

Article 8.15
Monopolies and Exclusive Service Suppliers

1. Each Party shall ensure that any monopoly supplier of a service in its territory does not, in the supply of the monopoly service in the relevant market, act in a manner inconsistent with that Party's obligations under Article 8.4 (National Treatment) and Article 8.5 (Market Access).

2. Where a Party's monopoly supplier of a service competes, either directly or through an affiliated company, in the supply of a service outside the scope of its monopoly rights and which is subject to that Party's commitments, that Party shall ensure that such a supplier does not abuse its monopoly position to act in its territory in a manner inconsistent with such commitments.

3. If a Party has a reason to believe that a monopoly supplier of a service of the other Party is acting in a manner inconsistent with paragraphs 1 or 2, it may request that Party establishing, maintaining, or authorising such a supplier to provide specific information concerning the relevant operations.

4. This Article shall also apply to cases of exclusive service suppliers, where a Party, formally or in effect:

   (a) authorises or establishes a small number of service suppliers; and

   (b) substantially prevents competition among those suppliers in its territory.

Article 8.16
Disclosure of Confidential Information

Nothing in this Chapter shall be construed as requiring a Party to provide to the other Party confidential information the disclosure of which would impede law enforcement or otherwise be contrary to the public interest or which would prejudice the legitimate commercial interests of particular juridical persons, public or private.

Article 8.17
Business Practices

1. The Parties recognise that certain business practices of service suppliers, other than those falling under Article 8.15 (Monopolies and Exclusive Service Suppliers), may restrain competition and thereby restrict trade in services.

2. Each Party shall, on request of the other Party, enter into consultations with a view to eliminating practices referred to in paragraph 1. The requested Party shall accord full and sympathetic consideration to such a request and shall cooperate through the supply of publicly available non-confidential information of relevance to the matter in question. The requested Party may also provide other information available to the requesting Party, subject to its laws and regulations and to the conclusion of a satisfactory agreement concerning the safeguarding of its confidentiality by the requesting Party.

Article 8.18
Payments and Transfers

1. Except under the circumstances envisaged in Article 18.4 (Measures to Safeguard the Balance of Payments), a Party shall not apply restrictions on international transfers or payments for current transactions relating to its commitments.

2. Nothing in this Chapter shall affect the rights and obligations of a Party as a member of the International Monetary Fund ("IMF") under the *Articles of Agreement of the International Monetary Fund,* adopted at the United Nations Monetary and Financial Conference (Bretton Woods, New Hampshire) on July 22, 1944 ("IMF Articles of Agreement"), as may be amended, including the use of exchange actions which are in conformity with the IMF Articles of Agreement, as may be amended, provided that the Party shall not impose restrictions on any capital transaction inconsistently with its commitments under this Chapter regarding such transactions, except under Article 18.4 (Measures to Safeguard the Balance of Payments) or on request of the IMF.

Article 8.19
Denial of Benefits

1. A Party may deny the benefits of this Chapter:

   (a) to the supply of any service, if it establishes that the service is supplied from or in the territory of a non-Party;

   (b) to a service supplier that is a juridical person, if it establishes that it is not a service supplier of the other Party; and

   (c) in the case of the supply of a maritime transport service, if it establishes that the service is supplied:

      (i) by a vessel registered under the laws and regulations of a non-Party; and

      (ii) by a person of a non-Party which operates or uses the vessel in whole or in part.

2. A Party may deny the benefit of this Chapter to a service supplier of the other Party, if the service supplier is a juridical person owned or controlled by persons of a non-Party, and the denying Party adopts or maintains measures with respect to the non-Party or a person of the non-Party that prohibit transactions with the juridical person or that would be violated or circumvented if the benefits of this Chapter were accorded to the juridical person.

Article 8.20
Safeguard Measures

1. The Parties note the multilateral negotiations pursuant to Article X of GATS on the question of emergency safeguard measures based on the principle of non-discrimination. The Parties shall review the incorporation of safeguard measures pending any further developments in the multilateral fora pursuant to Article X of GATS.

2. In the event that a Party encounters difficulties in the implementation of its commitments under this Chapter, that Party may request consultations with the other Party to address such difficulties.

Article 8.21
Subsidies

1. Notwithstanding subparagraph 3(b) of Article 8.2 (Scope), the Parties shall review the issue of disciplines on subsidies related to trade in services in light of any disciplines agreed under Article XV of GATS with a view to their incorporation into this Chapter.

2. A Party which considers that it is adversely affected by a subsidy of the other Party related to trade in services may request consultations with the other Party on such matters. The requested Party shall accord sympathetic consideration to such a request.

3. No Party shall have recourse to dispute settlement under Chapter 19 (Dispute Settlement) for any request made or consultations held under this Article, or any other dispute arising under this Article.

Article 8.22
Cooperation

1. The Parties shall strengthen cooperation efforts in sectors, including sectors which are not covered by current cooperation arrangements. The Parties shall discuss and agree on the sectors for cooperation and develop cooperation programmes in these sectors in order to improve their domestic services capacity and their efficiency and competitiveness.

2. Recognising that trade in audiovisual services, including film and television co-productions, can significantly contribute to the development of the audiovisual industry and to the intensification of cultural and economic exchange between them, the Parties shall endeavour to enhance cooperation in the sector.

Article 8.23
Committee on Trade in Services

1. The Parties hereby establish a Committee on Trade in Services ("Services Committee") composed of representatives of each Party.

2. Unless otherwise agreed by the Parties, the Services Committee shall meet once a year, or without undue delay at the request of either Party. The meetings shall take place in India or in New Zealand alternately or by any other appropriate means of communication, as agreed by the representatives of the Parties.

3. With respect to issues relating to this Chapter, the Services Committee shall:

   (a) monitor and review the implementation and operation of this Agreement;

   (b) consider and discuss technical issues arising from the implementation of this Agreement;

   (c) adopt decisions or make recommendations;

(d) conduct the preparatory work necessary to support the functions of the Joint Commission, including when the Joint Commission adopts decisions or recommendations; and

(e) provide a forum for the Parties to exchange information, discuss best practices and share implementation experiences.

4. The Services Committee may decide on its own rules of procedure, in the absence of which the Rules of Procedure of the Joint Commission shall apply *mutatis mutandis*.

5. The Services Committee shall report to the Joint Commission on the results and conclusions from each of its meetings.

Article 8.24
Contact Points

Each Party shall, within 60 days of entry into force of this Agreement, designate an official contact point to receive and facilitate official communications between the Parties on any matter relating to this Chapter. Each Party shall promptly notify the other Party, in writing, of any change to its contact point. On request of the other Party, the contact point shall:

(a) identify the office or official responsible for the relevant matter; and

(b) assist as necessary in facilitating communications with the requesting Party with respect to that matter.

ANNEX 8A

FINANCIAL SERVICES

Article 8A.1
Definitions

For the purposes of this Annex:

(a) **"financial service"** means any service of a financial nature offered by a financial service supplier of a Party. Financial services include all insurance and insurance-related services, and all banking and other financial services (excluding insurance). Financial services include the following activities:

Insurance and insurance-related services

(i) direct insurance (including co-insurance):

(A) life; and

(B) non-life;

(ii) reinsurance and retrocession;

(iii) insurance intermediation, such as brokerage and agency;

(iv) services auxiliary to insurance, such as consultancy, actuarial, risk assessment, and claim settlement services;

Banking and other financial services (excluding insurance)

(v) acceptance of deposits and other repayable funds from the public;

(vi) lending of all types, including consumer credit, mortgage credit, factoring, and financing of commercial transaction;

(vii) financial leasing;

(viii) all payment and money transmission services, including credit, charge and debit cards, travellers cheques, and bankers drafts;

(ix) guarantees and commitments;

(x) trading for own account or for account of customers, whether on an exchange, in an over-the-counter market or otherwise, the following:

(A) money market instruments (including cheques, bills, certificates of deposits);

(B) foreign exchange;

(C) derivative products including, but not limited to, futures and options;

(D) exchange rate and interest rate instruments, including products such as swaps and forward rate agreements;

(E) transferable securities; and

(F) other negotiable instruments and financial assets, including bullion;

(xi) participation in issues of all kinds of securities, including underwriting and placement as agent (whether publicly or privately) and provision of services related to such issues;

(xii) money broking;

(xiii) asset management, such as cash or portfolio management, all forms of collective investment management, pension fund management, custodial, depository, and trust services;

(xiv) settlement and clearing services for financial assets, including securities, derivative products, and other negotiable instruments;

(xv) provision and transfer of financial information, and financial data processing and related software by suppliers of other financial services; and

(xvi) advisory, intermediation and other auxiliary financial services on all the activities listed in subparagraphs (v) through (xv), including credit reference and analysis, investment and portfolio research and advice, advice on acquisitions and on corporate restructuring and strategy;

(b) **"financial service supplier"** means any natural person or juridical person of a Party seeking to supply or supplying financial services but the term "financial service supplier" does not include a public entity;[1]

[1] Where the financial service is not supplied directly by a juridical person but through other forms of commercial presence such as a branch or a representative office, the financial service supplier (i.e. the juridical person) shall, nonetheless, through such presence be accorded the treatment provided for financial service suppliers under this Annex. Such treatment shall be extended to the presence through which the financial service is supplied and need not be extended to any other parts of the financial service supplier located outside the territory where the financial service is supplied.

(c) **"new financial service"** means a financial service, including services related to existing and new financial products or the manner in which a financial product is delivered, that is not supplied by any financial service supplier in the territory of one Party, but which is supplied and regulated in the territory of the other Party;

(d) **"public entity"** means:

(i) a government, a central bank, or a monetary authority, of a Party, or an entity owned or controlled by a Party, that is principally engaged in carrying out governmental functions or activities for governmental purposes, not including an entity principally engaged in supplying financial services on commercial terms; or

(ii) a private entity, performing functions normally performed by a central bank or monetary authority, when exercising those functions;

(e) **"self-regulatory organisation"** means a non-governmental body, including any securities or futures exchange or market clearing or payment settlement agency, or other organisation or association, that exercises its own or delegated regulatory or supervisory authority over financial service suppliers which it receives through legislation or delegation from central or regional governments or authorities;[2]

(f) **"commercial presence"** means any type of business or professional establishment, including through:

(i) the constitution, acquisition or maintenance of a juridical person; or

(ii) the creation or maintenance of a branch or representative office, within the territory of a Party for the purpose of supplying a financial service;[3]

(g) **"trade in financial services**" means the supply of a financial service:

(i) from the territory of a Party into the territory of the other Party;

(ii) in the territory of a Party to a person of the other Party;

(iii) by a financial service supplier of a Party, through commercial presence in the territory of the other Party; or

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[2] For greater certainty, a Party may require a self-regulatory organisation to be recognised under that Party's law.

3 For greater certainty, commercial presence may be established for the purpose of supplying services other than financial services, provided that at least one financial service is supplied through such commercial presence.

(iv) by a financial service supplier of a Party, through presence of natural persons of that Party in the territory of the other Party; and

(h) **"electronic payments**" means an acceptable transfer of monetary value from a payer to a payee through electronic means.

Article 8A.2
Scope

1. This Annex shall apply to measures adopted or maintained by a Party affecting the supply of financial services. Reference to the supply of a financial service in this Annex shall mean the supply of a service as defined in subparagraph (s) of Article 8.1 (Definitions).

2. For the purposes of this Annex, "services supplied in the exercise of governmental authority" as referred to in subparagraph (p) of Article 8.1 (Definitions) means the following:

   (a) measures taken or activities conducted by a central bank or monetary authority or by any other public entity in pursuit of monetary and related credit or exchange rate policies;

   (b) activities forming part of a statutory system of social security or public retirement plans; or

   (c) other activities conducted by a public entity for the account or with the guarantee or using the financial resources of the government.

3. If a Party allows any of the activities referred to in subparagraph 2(b) or 2(c) to be conducted by its financial service suppliers in competition with a public entity or a financial service supplier, "services" shall include such activities.

4. The definition of "service supplied in the exercise of government authority" in Article 8.1 (Definitions) shall not apply to services covered by this Annex.

Article 8A.3
Prudential Measures

1. Notwithstanding any other provisions of this Agreement, a Party shall not be prevented from adopting or maintaining measures for prudential reasons, including for:

(a) the protection of investors, depositors, policyholders, or persons to whom a financial service supplier owes a fiduciary duty;

(b) the maintenance of the safety, soundness, integrity, or financial responsibility of a financial service supplier;

(c) ensuring the integrity and stability of a Party's financial system; or

(d) maintenance of the safety and financial and operational integrity, of payment, settlement and clearing systems or financial responsibility of a financial service supplier.

2. Where such measures do not conform with the provisions of this Agreement, they shall not be used as a means of avoiding the Party's commitments or obligations under this Agreement.

Article 8A.4
Financial Services New to the Territory of a Party

1. Each host Party shall endeavour to permit a financial service supplier of the other Party, established and supplying a new financial service in the territory of the other Party, to supply such new financial service, through commercial presence, in the territory of the host Party that the host Party would permit its own financial service suppliers, in like circumstances, to supply without adopting a law or modifying an existing law.[4]

2. Each Party may:

(a) notwithstanding subparagraph 2(e) of Article 8.5 (Market Access), determine the institutional and juridical form through which the new financial service may be supplied;

(b) require authorisation, regulation or supervision from the relevant regulator for the supply of the new financial service; and

(c) require the financial service supplier of the other Party to become authorised to do business and to be regulated or supervised by the relevant regulator under the law of the Party.

3. Where a Party requires authorisation to supply the new financial service, a decision by the relevant regulator as to whether to grant authorisation shall be made within a reasonable time.

[4] For greater certainty, a Party may issue a new regulation or other subordinate measure in permitting the supply of the new financial service.

4. To support innovation in financial services, the Parties shall endeavour to collaborate, and share knowledge, experiences and developments in financial services, to advance financial integrity, consumer protection, financial inclusion, competition and financial stability.

Article 8A.5
Treatment of Financial Services Information

Nothing in this Agreement shall be construed to require a Party to disclose information relating to the affairs and accounts of individual customers, or any confidential or proprietary information in the possession of public entities.

Article 8A.6
Recognition

1. A Party may recognise prudential measures of the other Party or a non-party, which may be based on relevant standards of any international standard setting body, in determining how the Party's measures relating to financial services shall be applied.[5] Such recognition may be:

   (a) accorded autonomously;

   (b) achieved through harmonisation or other means; or

   (c) based upon an agreement or arrangement with the international standard setting body, other Party or the non-Party.

2. Where a Party is a party to such an agreement or arrangement referred to in paragraph 1, whether future or existing, that Party shall provide adequate opportunity for the other Party to negotiate accession to such an agreement or arrangements, or to negotiate a comparable agreement or arrangement with it, under circumstances in which there would be equivalent regulation, oversight, implementation of such regulation, and, if appropriate, procedures concerning the sharing of information between the parties to the agreement or arrangement.

3. Where a Party accords recognition autonomously, it shall afford adequate opportunity for the other Party to demonstrate that such circumstances as referred to in paragraph 2 exist.

[5] For greater certainty, nothing in Article 8.6 (Most-Favoured-Nation Treatment) shall be construed to require a Party to accord such recognition to prudential measures of any other Party.

Article 8A.7
Transparency

1. Chapter 16 (Transparency) and Article 8.13 (Domestic Regulation) do not apply to a measure covered by this Annex.

2. The Parties recognise that transparent measures of general application governing the activities of financial service suppliers are important in facilitating their ability to gain access to and operate in each other's markets. Each Party commits to promote regulatory transparency in financial services.

3. Each Party shall ensure that all measures of general application to which this Annex applies are administered in a reasonable, objective, and impartial manner.

4. Each Party shall, to the extent practicable and in a manner consistent with its legal system for adopting measures:

   (a) ensure that all measures of general application to which this Annex applies are promptly published or otherwise made available to an interested person and the other Party;

   (b) ensure advance publication of any measures of general application to which this Annex applies that it proposes to adopt and provide an interested person and the other Party a reasonable opportunity to comment on those proposed measures;

   (c) maintain or establish enquiry points and appropriate mechanisms to respond, within a reasonable period of time, to an inquiry or a request for information from an interested person regarding measures of general application to which this Annex applies;

   (d) allow, a reasonable period of time between the final publication of a measure of general application to which this Annex applies and the date when it enters into effect; and

   (e) ensure that measures of general application adopted or maintained by a self-regulatory organisation of the Party, to which this Annex applies, are promptly published or otherwise made available to an interested person and the other Party.

5. If a Party adopts or maintains measures relating to authorisation for the supply of a financial service, the Party shall ensure that:

(a) such measures are based on objective and transparent criteria;[6] and

(b) the procedures are impartial, not more burdensome than necessary to ensure the quality of the financial service and do not in themselves constitute a restriction on the supply of the financial service.

6. If a Party requires authorisation for the supply of a financial service, the financial regulatory authorities of the Party shall:

(a) promptly publish[7] the information necessary for financial service suppliers to comply with the requirements and procedures for obtaining, maintaining, amending and renewing such authorisation. That information:

(i) shall include the contact information of relevant competent authorities; and

(ii) may include:

(A) any requirements or procedures,

(B) any procedures for appeal or review of a decision concerning an application,

(C) any procedures for monitoring or enforcing compliance with the terms and conditions of authorisation;

(b) to the extent practicable, not require an applicant to approach more than one financial regulatory authority for each application for authorisation. If a service is within the jurisdiction of multiple financial regulatory authorities, multiple applications for authorisation may be required;

(c) allow a reasonable period of time for the submission of an application;

(d) to the extent possible, accept applications in electronic format;

(e) accept copies, including electronic copies, of documents, that are authenticated in accordance with the Party's domestic law, in place of original documents, unless the financial regulatory

[6] Such criteria may include competence and the ability to supply a financial service, including to do so in a manner consistent with a Party's regulatory requirements. Financial regulatory authorities may assess the weight to be given to each criterion.

[7] For the purposes of these disciplines, "publish" means to include in an official publication or on an official website.

authorities require original documents to protect the integrity of the authorisation process;

(f) ensure that any authorisation fees[8] charged by financial regulatory authorities are reasonable, transparent and do not in themselves restrict the supply of the relevant service. Each Party shall endeavour to accept the payment of those authorisation fees by electronic means;

(g) confirm in writing[9] that an application has been received and, at the request of the applicant, provide without undue delay[10] information concerning the status of the application;

(h) in the case of an application considered complete for processing under the Party's law, make a decision on the application within a reasonable period of time and notify the applicant of the decision without undue delay. An application shall not be considered complete until all relevant proceedings are conducted and all necessary information is received. Where it is not practicable for a decision to be made within a reasonable period of time, the financial regulatory authorities shall notify the applicant of this without undue delay and shall endeavour to make the decision as soon as practicable;

(i) in the case of an application considered incomplete under the Party's law, within a reasonable period of time, to the extent practicable:

(A) inform the applicant that the application is incomplete;

(B) at the request of the applicant, provide guidance on why the application is considered incomplete; and

(C) provide the applicant with the opportunity[11] to provide the additional information that is required to complete the application, and ensure that any deadlines for the additional information required are made clear to the applicant;

however, if none of the actions in subparagraphs (i)(A) through (i)(C) are practicable, and the application is rejected due to

[8] For the purposes of this paragraph, authorisation fees do not include payment for auction, fees for tendering, or other non-discriminatory means of awarding concessions, or mandated contributions to universal services provision.

[9] References to "in writing" include in an electronic format.

[10] Financial regulatory authorities are not responsible for delays due to reasons outside their competence.

[11] Such opportunity does not require a financial regulatory authority to provide extensions of deadlines.

incompleteness, ensure that the applicant is informed within a reasonable period of time;

(j) if an application is rejected then, either upon the request of an unsuccessful applicant in writing, or upon their own initiative, to the extent practicable, inform the applicant of the reasons for denial of the application;

(k) not prevent an applicant, subject to its laws and regulations, from submitting another revised application solely on the basis that an application had been previously rejected; and

(l) ensure that authorisation, once granted, may enter into effect without undue delay, subject to the applicable terms and conditions.

Article 8A.8
Transfers of Financial Information and Processing of Financial Information

1. The Parties recognise that each Party may have its own legislative and regulatory requirements concerning the transfer of financial information, processing of financial information, storage of financial information and the use or location of financial services computing facilities[12] [13] in respect of any financial service supplier of the other party conducting business in the Party's territory.

2. A Party shall not take measures other than in pursuance of the requirements mentioned in paragraph 1, that:

(a) prevent transfers of financial information, including transfers of data by electronic or other means, necessary for the conduct of the ordinary business of a financial service supplier in its territory;

(b) prevent processing of financial information necessary for the conduct of the ordinary business of a financial service supplier in its territory; or

(c) require the use or location of financial services computing facilities or the storage of financial information in the territory of

[12] For greater certainty, a Party may adopt a different regulatory approach, and this paragraph does not affect and is without prejudice to a Party's rights and obligations under this Article.

[13] For greater certainty, "financial information" includes among others, any number or other personal data used to identify an account opened by, or card or payment instruments issued by a financial institution to a data principal, or data related to any payment transaction, or any personal data regarding the relationship between a financial institution and a data principal including financial status and credit history.

the Party as a condition for the conduct of the ordinary business of a financial service supplier of the other Party in its territory.

3. Nothing in paragraph 2 shall:

(a) prevent a regulatory authority of a Party, for regulatory or prudential reasons, from requiring a financial service supplier in its territory to comply with its laws and regulations in relation to data management and storage and system maintenance, as well as to retain within its territory copies of records[14], provided that such requirements shall not be used as a means of avoiding the Party's commitments or obligations under this Agreement;

(b) restrict the right of a Party to protect personal data, personal privacy, and the confidentiality of individual records and accounts including in accordance with its laws and regulations;

(c) be construed to require a Party to allow the cross-border supply or consumption abroad of services in relation to which it has not made commitments, including to allow non-resident suppliers of financial services to supply, as a principal, through an intermediary or as an intermediary, the provision and transfer of financial information and financial data processing as referred to in subparagraph (a)(xv) of Article 8A.1 (Definitions); or

(d) prevent New Zealand from adopting or maintaining measures that it deems necessary to protect or promote Māori rights, interests, duties and responsibilities[15] in respect of matters covered by this Article, including in fulfilment of New Zealand's obligations under te Tiriti o Waitangi/ the Treaty of Waitangi, provided that such measures are not used as a means of arbitrary or unjustified discrimination against persons of the other party or a disguised restriction on trade in goods, trade in services and investment. Chapter 19 (Dispute Settlement) does not apply to the interpretation of te Tiriti o Waitangi/ the Treaty of Waitangi, including as to the nature of the rights and obligations arising under it. Chapter 19 (Dispute Settlement) shall otherwise apply to this Article. A panel established under Article 19.7 (Request for Establishment of a Panel) may be requested to determine only whether any measure referred to in this sub paragraph is inconsistent with a Party's rights under this Agreement.

[14] Where a Party's regulatory authority requires financial service suppliers to retain within its territory copies of records, that regulatory authority may mandate for regulatory or prudential reasons that financial service suppliers in its territory store such copies only in the territory of that Party.

[15] For greater certainty, Māori rights, interests, duties and responsibilities include those relating to mātauranga Māori.

Article 8A.9
Self-Regulatory Organisations

If a Party requires a financial service supplier[16] of another Party to be a member of, participate in, or have access to a self-regulatory organisation to provide a financial service in its territory, that Party shall ensure that the self-regulatory organisation observes that Party's obligations under Article 8.4 (National Treatment).

Article 8A.10
Payment and Clearing Systems

Under the terms and conditions that accord national treatment, each Party shall grant financial service suppliers[17] of another Party established in its territory access to payment and clearing systems operated by public entities, and to official funding and refinancing facilities available in the normal course of ordinary business. This Article is not intended to confer access to the Party's lender of last resort facilities.[18]

Article 8A.11
Electronic Payments

1. Recognising the rapid growth of electronic payments, the Parties shall, while maintaining resilience, endeavour to work together to support the development of efficient, safe, affordable and secure cross-border electronic payments, including through:

   (a) encouraging mutual cooperation and sharing information about each other's experience, technical expertise and innovations in the area of digital payment infrastructure and products;

   (b) encouraging the adoption and use of internationally accepted standards or domestic payment standards;

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[16] For greater certainty, this Article does not prevent a Party from requiring a financial services supplier to be authorised, regulated or supervised, in its own as well as the other Party's territory, provided that this does not circumvent the Party's obligation under this Article.

[17] For greater certainty, this Article does not prevent a Party from requiring a financial services supplier to be authorised, regulated or supervised, in its own as well as the other Party's territory, provided that this does not circumvent the Party's obligation under this Article.

[18] For greater certainty, a Party need not grant access under this Article to a financial service supplier of another Party established in its territory if such access or treatment is not granted to its own like financial service supplier.

(c) promoting interoperability and interlinkages of electronic payment infrastructures including payment systems; and

(d) encouraging innovation and competition in electronic payments services.

2. To this end, each Party shall, subject to maintaining the integrity and stability of the financial system, endeavour to:

(a) make publicly available their respective regulations on electronic payments, including those pertaining to regulatory approval, licensing requirements, procedures, and make available technical standards when requested by the Parties' respective authorities;

(b) finalise decisions on regulatory or licensing approvals in a timely manner;

(c) encourage payment service providers to safely and securely make available new technologies and standards for their financial products and services, and facilitate greater interoperability;

(d) facilitate innovation and competition and the introduction of new electronic payment products and services; and

(e) maintain the confidentiality of information received under this article, except for publicly available information and data.

3. In view of paragraph 1, the Parties recognise the importance of enabling the introduction of cross-border electronic payment products and services in a timely manner, the importance of upholding safety, efficiency, trust and security in electronic payment systems through laws and regulatory measures, and that the adoption and enforcement of laws, regulatory measures and policies should take into account the risks undertaken by the payment service providers.

4. To enhance the accessibility and convenience of cross-border payments between India and New Zealand, the Parties shall collaborate towards the:

(a) development of Real Time Payments ("RTP") infrastructure to facilitate domestic payments interoperability as well as support real-time cross-border remittances and cross-border merchant payments in a reasonable time; and

(b) integration of Fast Payment Systems ("FPS") to enable real-time cross-border remittances and cross-border merchant payments through respective infrastructure.

5. Notwithstanding the other provisions of this Article, the Parties are not obliged to share information, the disclosure of which would prejudice the safety, security, confidentiality, and competitiveness of their respective payment systems.

Article 8A.12
Performance of Back-Office Functions

1. Each Party recognises that the performance of the back-office functions of a financial service supplier, established through commercial presence in its territory, by the head office or an affiliate of the established financial service supplier, inside its territory, is important to the effective management and efficient operation of that established financial service supplier.

2. While a Party may require established financial service suppliers that supply or seek to supply a financial service through commercial presence in its territory to ensure compliance with its domestic law applicable to those functions, including in relation to its core and critical functions, both Parties recognise the importance of avoiding the imposition of arbitrary requirements on the performance of those functions.

3. To the extent practicable, and subject to paragraph 2, each Party shall permit the performance of such back-office functions by such a head office or affiliate as is referred to in paragraph 1. For greater certainty, nothing in this Article prevents a Party from requiring a financial service supplier that supplies or seeks to supply a financial service through commercial presence in its territory to retain certain functions, including core and critical functions.

Article 8A.13
Credit Rating of Financial Services Suppliers

In relation to the provision of a financial service in the territory of a Party:

(a) by a financial service supplier of the other Party, which is already authorised by the Party to supply financial services through commercial presence in its territory; and

(b) where the provision of financial services is wholly or partially contingent on an assessment by the Party of the credit rating of that financial service supplier or the sovereign credit rating of the other Party;

the host Party shall, to the extent practicable, undertake its assessment in a reasonable manner.[19]

Article 8A.14
Cooperation and Exchange of Views on Financial Services including Financial Technology

The Parties shall strengthen cooperation efforts in the financial services sector and support the development of Financial Technology ("FinTech") initiatives, acknowledging the increasing role of technology in financial services. The Parties recognise that these efforts support objectives which include the following:

(a) enhancing financial services trade between the Parties, by promoting robust and efficient financial service suppliers, markets, and infrastructure;

(b) strengthening financial systems and promoting financial stability;

(c) promoting fair and competitive markets;

(d) protecting consumers, depositors, policy holders and persons to whom a fiduciary or statutory duty is owed by a financial service supplier;

(e) Application of emerging technologies in the field of financial services including but not limited to distributed ledger technology;

(f) use of supervisory technology and regulatory technology in financial services for enhancing regulatory monitoring, reporting, and compliance;

(g) learn from experiences of each other's regulatory sandbox including digital sandbox development for cross-border use;

(h) exchange experience in innovation facilitation, start-up incubation, acceleration, FinTech regulation, open finance;

(i) mutually learn and improve capabilities by collaborating on emerging technologies; and

(j) engage in an in-depth study, design and implementation of central bank digital currency (CBDC) in both retail and cross-border payments area.

[19] For greater certainty, this paragraph does not apply in relation to credit rating assessments undertaken by financial service suppliers.

Article 8A.15
Contact Points

1. For the purposes of this Annex, the contact points for financial services are:

   (a) for India, Department of Financial Services, Department of Economic Affairs and Department of Commerce; and

   (b) for New Zealand, the Ministry of Foreign Affairs and Trade, in coordination with financial services regulators.

2. A Party shall promptly notify the other Party of any change of its contact point.

Article 8A.16
Consultations Relating to Financial Services Issues

1. A Party may request consultations with the other Party regarding any matter arising under this Agreement that affects financial services. The other Party shall consider such a request.

2. Consultations under this Article shall include the relevant representatives of the contact points specified in Article 8A.15 (Contact Points).

Article 8A.17
Dispute Settlement

A panel established pursuant to Chapter 19 (Dispute Settlement) to examine matters relating to disputes on prudential issues and other financial matters shall have the necessary expertise relevant to the specific financial service under dispute.

ANNEX 8B

TELECOMMUNICATIONS SERVICES

Article 8B.1
Definitions

For the purposes of this Annex the term:

(a) "**essential facilities"** means facilities of a public telecommunications network or service that:

(i) are exclusively or predominantly provided by a single or limited number of suppliers; and

(ii) cannot feasibly be economically or technically substituted in order to provide a service;

(b) **"interconnection"** means linking with suppliers providing public telecommunications networks or services in order to allow the users of one supplier to communicate with users of another supplier and to access services provided by another supplier;

(c) **"leased circuits"** means telecommunications facilities between two or more designated points which are set aside for the dedicated use of, or availability to, particular users, and to which the public network is not connected;

(d) **"licence"** means any authorisation that a Party may require of a person, in accordance with its laws and regulations, in order for that person to offer a public telecommunications network or service, including concessions, permits or registrations;

(e) **"major supplier"** means a supplier of public telecommunications networks or services which has the ability to materially affect the terms of participation (having regard to price and supply), in the relevant market for public telecommunications networks or services as a result of:

(i) control over essential facilities; or

(ii) use of its position in that market;

(f) **"non-discriminatory"** means treatment no less favourable than that accorded to any other user of like public telecommunications networks or services;

(g) "**public telecommunications network"** means the public telecommunications infrastructure which permits telecommunications

between and among defined network termination points, as provided for in the laws and regulations of each Party;

(h) **"public telecommunications service"** means any telecommunications service that is offered to the public generally;

(i) **"reference interconnection offer"** means interconnection offer by a major supplier that is made publicly available, so that any supplier of public telecommunications services that is willing to accept it may obtain interconnection with the major supplier on that basis;

(j) **"telecommunications dispute resolution body"** means the body responsible for resolution of disputes concerning telecommunications;

(k) **"telecommunications regulatory"** body means body responsible for the regulation of telecommunications; and

(l) **"users"** means service consumers and service suppliers.

Article 8B.2
Scope

1. This Annex shall apply to measures affecting trade in public telecommunications services as set out in Annex 8H (Schedule of Specific Commitments - India) and Annex 8I (Schedule of Non-Conforming Measures - New Zealand).

2. This Annex shall apply subject to rules, regulations and licence conditions, as applicable within the territory of each Party.

3. This Annex shall not apply to:

   (a) measures affecting broadcasting services; or

   (b) measures affecting services providing, or exercising editorial control over, content transmitted using telecommunications networks or services.

4. Nothing in this Annex shall be construed:

   (a) to require a Party to authorise a service supplier of the other Party to establish, construct, acquire, lease, operate or supply telecommunications networks or services, other than as provided for in Annex 8H (Schedule of Specific Commitments - India) and Annex 8I (Schedule of Non-Conforming Measures - New Zealand); or

   (b) to require a Party, or to require a Party to oblige service suppliers in its territory, to establish, construct, acquire, lease,

operate or supply telecommunications networks or services not offered to the public generally.

Article 8B.3
Access to and Use of Public Telecommunications Networks and Services

1. Each Party shall ensure that any service supplier of the other Party is accorded access to and use of public telecommunications networks and services, on reasonable and non-discriminatory terms and conditions, for the supply of a service included in its Annex 8H (Schedule of Specific Commitments - India) and Annex 8I (Schedule of Non-Conforming Measures - New Zealand). This obligation shall be applied, *inter alia*, through paragraphs 2 through 6.

2. Each Party shall ensure that service suppliers of the other Party have access to and use of any public telecommunications networks or services offered through suppliers of public telecommunications networks or services of the former Party, within or across the border of the former Party, including private leased circuits, and to this end shall ensure, subject to paragraphs 5 and 6, that such service suppliers are permitted to:

   (a) purchase or lease and attach terminal or other equipment which interfaces with the public telecommunications network and which is necessary to supply a supplier’s services;

   (b) interconnect private leased or owned circuits with public telecommunications networks and services or with circuits leased or owned by another service supplier; and

   (c) use operating protocols of the service supplier’s choice in the supply of any service, other than as necessary to ensure the availability of telecommunications networks and services to the public generally.

3. Each Party shall ensure that service suppliers of the other Party may use public telecommunications networks and services for the movement of information within and across borders, including for intra-corporate communications of such service suppliers, and for access to information contained in databases or otherwise stored in machine-readable form in the Party.

4. Notwithstanding paragraph 3, a Party may take such measures as are necessary to ensure the security and confidentiality of messages or to protect the personal data of users subject to the requirement that such measures are not applied in a manner which would constitute a means of arbitrary or unjustifiable discrimination or a disguised restriction on trade in services.

5. Each Party shall ensure that no condition is imposed on access to and use of public telecommunications networks and services, other than as necessary:

(a) to safeguard the public service responsibilities of suppliers of public telecommunications networks or services, in particular their ability to make their networks or services available to the public generally;

(b) to protect the technical integrity of public telecommunications networks or services;

(c) to ensure that service suppliers of the other Party do not supply services unless permitted pursuant to commitments in the former Party's Schedules in Annex 8H (Schedule of Specific Commitments - India) and Annex 8I (Schedule of Non-Conforming Measures - New Zealand); or

(d) to ensure that such access to and use of public telecommunications networks and services shall not constitute a security and safety hazard and is in contravention of any statute, rule or regulation, including those related to public policy of the Party, which are publicly available and applied without discrimination on the suppliers and users of services of similar categories.

6. Provided that they satisfy the criteria set out in paragraph 5, conditions for access to and use of public telecommunications networks and services may include:

(a) restrictions on resale or shared use of such services;

(b) a requirement to use specified technical interfaces, including interface protocols, for the inter-connection with such networks and services;

(c) requirements, where necessary, for the inter-operability of such services;

(d) type approval of terminal or other equipment which interfaces with the network and technical requirements relating to the attachment of such equipment to such networks;

(e) restrictions on inter-connection of private leased or owned circuits with such networks or services or with circuits leased or owned by another service supplier; or

(f) notification, registration, and licensing.

Article 8B.4
Interconnection to be Ensured

Each Party shall ensure interconnection between a supplier of public telecommunications networks or services and any other suppliers of public telecommunications networks or services to the extent provided for in its laws and regulations.

Article 8B.5
Mobile Number Portability

Each Party shall ensure that suppliers of public telecommunications networks or services in its territory provide number portability for mobile services designated by that Party, to the extent technically feasible, on a timely basis, and on reasonable and non-discriminatory terms and conditions.

Article 8B.6
Competitive Safeguards

1. Each Party shall through its relevant authorities maintain appropriate measures for the purpose of preventing a major supplier from engaging in or continuing anti-competitive practices.

2. The anti-competitive practices referred to in paragraph 1 shall include:

   (a) engaging in anti-competitive cross-subsidisation;[1]

   (b) using information obtained from competitors with anti-competitive results; and

   (c) not making available to suppliers of public telecommunications networks or services, on a timely basis, technical information about essential facilities and commercially relevant information which are necessary for them to provide services.

Article 8B.7
Universal Service

1. Each Party has the right to define the kind of universal service obligation it wishes to maintain and to decide on their scope and implementation.

[1] This requirement shall not prejudice the utilisation of funds resulting from the universal service obligation, to address various public policy needs as determined by the Government.

2. Subject to paragraph 1, each Party shall administer any universal service obligation that it defines and maintains in a transparent, non-discriminatory manner and shall not be regarded as anti-competitive.

Article 8B.8
Public Availability of Licensing Criteria

1. Where a licence is required for the supply of a telecommunications service, a Party shall make publicly available:

   (a) all the licensing criteria and the period of time normally required, as far as practicable to reach a decision concerning an application for a licence; and

   (b) the terms and conditions of individual licences.

2. The reasons for the denial of a licence shall be made known to the applicant upon request.

Article 8B.9
Independent Regulatory and Dispute Resolution Body

1. Each Party shall ensure that its telecommunications regulatory body[2] and dispute resolution body are separate from, and not accountable to, any supplier of public telecommunications networks or services. This shall not however prejudice the right of each Party to issue directions on matters of policy to the relevant regulatory Authority.

2. Each Party shall ensure that the decisions of, and the procedures used by its telecommunications regulatory body and dispute resolution body are impartial with respect to all market participants.

Article 8B.10
Allocation and Use of Scarce Resources

1. Each Party shall administer its procedures for the allocation and use of scarce telecommunications resources, including frequencies, access to telephone numbers and rights of way in an objective, timely, transparent and non-discriminatory manner.

[2] In case of India, regulatory body or authority means Telecom Regulatory Authority of India (TRAI) or its successor. In the case of New Zealand, regulatory body means the New Zealand Commerce Commission or its successor.

2. Each Party shall make publicly available the current state of allocated frequency bands, but shall not be required to provide detailed identification of frequencies allocated for specific government uses.

3. Each Party retains the right to exercise its spectrum and frequency management policies which may affect the number of suppliers of public telecommunications network or services, provided that it does so in a manner that is consistent with this Agreement. Each Party also retains the right to allocate frequency bands taking into account current and future needs and spectrum availability.

Article 8B.11
Dispute Resolution and Appeal

1. Each Party shall ensure that suppliers of public telecommunications networks or services of the other Party have timely recourse to its telecommunications regulatory body or dispute resolution body to resolve disputes in accordance with the laws and regulations of the former Party.

2. Each Party shall ensure that any supplier of public telecommunications network or services aggrieved by a determination or decision of the relevant telecommunications regulatory body has the opportunity to appeal such determination or decision.

Article 8B.12
Transparency

Each Party shall ensure that relevant information on conditions affecting access to and use of public telecommunications networks and services is publicly available, including:

(a) tariffs and other terms and conditions of service;

(b) specifications of technical interfaces with such networks and services;

(c) information on bodies responsible for the preparation and adoption of standards affecting such access and use;

(d) conditions for attaching terminal or other equipment; and

(e) notifications, registration or licensing requirements.

Article 8B.13
Interconnection with Major Suppliers

1. Each Party shall ensure that a major supplier in its territory provides interconnection for the facilities and equipment of suppliers of public telecommunications networks or services of the other Party:

   (a) under non-discriminatory terms, conditions, including technical standards and specifications, and rates and of a quality no less favourable than that provided by the major supplier for its own like services or for like services of non-affiliated suppliers of public telecommunications networks or services or of its subsidiaries or other affiliates;

   (b) in a timely fashion, on terms, conditions (including technical standards and specifications) and cost-oriented rates that are transparent, reasonable, having regard to economic feasibility;

   (c) upon request, at points in addition to the network termination points offered to the majority of facilities based suppliers; and subject to mutually agreed charges that reflect the cost of construction of necessary additional facilities and mutually agreed terms and conditions.

2. Each Party shall ensure that a major supplier in its territory offers access to network elements on terms and conditions that are reasonable, non-discriminatory and transparent for the supply of public telecommunications services. A Party may determine the network elements required to be made available in its territory, and the suppliers that may obtain those elements, in accordance with its laws and regulations.

3. Each Party shall ensure that suppliers of public telecommunications networks or services of the other Party may interconnect with the facilities and equipment of major suppliers in its territory pursuant to at least one of the following options:

   (a) availability of the reference interconnection offer containing the rates, terms, and conditions that the major supplier offers generally to suppliers of public telecommunications networks or services; or

   (b) any existing interconnection agreement between the major supplier and any similarly situated supplier of public telecommunications networks or services.

4. Each Party shall ensure that the applicable procedures for interconnection negotiations with major suppliers in its territory are made publicly available.

5. Each Party shall ensure that major suppliers in its territory make publicly available either their interconnection agreements or a reference interconnection offer.

ANNEX 8C

TEMPORARY MOVEMENT OF NATURAL PERSONS

Article 8C.1
Definitions

For the purposes of this Annex:

(a) **"immigration formality"** means a visa, permit, pass or other document or electronic authority granting temporary entry;

(b) **"natural person of a Party"** means a natural person of a Party as defined in subparagraph (i) of Article 8.1 (Definitions); and

(c) **"temporary entry"** means entry by a natural person of a Party into the territory of the other Party without the intent to establish permanent residence.

Article 8C.2
Scope

1. This Annex shall apply to measures by a Party affecting the temporary movement of natural persons of the other Party into its territory, where a natural person is engaged in trade in goods, the supply of services, or the conduct of investment, and falls under the scope of a category set out in each Party's schedule in Annex 8J (Schedule of Specific Commitments on Temporary Movement of Natural Persons - India) or Annex 8K (Schedule of Specific Commitments on Temporary Movement of Natural Persons - New Zealand).

2. This Annex shall not apply to measures affecting natural persons seeking access to the employment market of a Party, nor shall it apply to measures regarding citizenship, nationality, residence or employment on a permanent basis.

3. Nothing in this Agreement shall prevent a Party from applying measures to regulate the entry of natural persons of the other Party into, or their temporary stay in, its territory, including those measures necessary to protect the integrity of, and to ensure the orderly movement of natural persons across its borders, provided that those measures are not applied in a manner as to nullify or impair the benefits accruing to the other Party under this Annex.

4. The sole fact that a Party requires natural persons of the other Party to obtain an immigration formality shall not be regarded as nullifying or impairing the benefits accruing to the other Party under this Annex.

Article 8C.3
Grant of Temporary Entry

1. Each Party shall set out in Annex 8J (Schedule of Specific Commitments on Temporary Movement of Natural Persons - India) or Annex 8K (Schedule of Specific Commitments on Temporary Movement of Natural Persons - New Zealand) the commitments it makes for the temporary entry of natural persons of the other Party, which shall specify the conditions and limitations for entry and temporary stay, including length of stay, for each category of natural persons specified by that Party in its Schedule.

2. Each Party shall grant temporary entry or extension of temporary stay to natural persons of the other Party to the extent provided for in its commitments made pursuant to paragraph 1, provided that those natural persons:

   (a) follow the granting Party's prescribed application procedures for the relevant immigration formality; and

   (b) meet all relevant eligibility requirements for temporary entry or extension of temporary stay in the granting Party.

3. The sole fact that a Party grants temporary entry to a natural person of the other Party pursuant to this Annex shall not be construed to exempt that natural person from meeting any applicable licensing or other requirements, including any mandatory codes of conduct, to practise a profession or otherwise engage in business activities.

4. In respect of the commitments on temporary entry in this Annex, neither Party shall:

   (a) adopt or maintain any limitations on the total number of each category of natural persons of the other Party to be granted temporary entry; or

   (b) require an economic needs test, including a labour market test, or other procedures of similar effect, as a condition for temporary entry except as provided for in Annex 8J (Schedules of Specific Commitments on Temporary Movement of Natural Persons - India) or Annex 8K (Schedule of Specific Commitments on Temporary Movement of Natural Persons - New Zealand).

5. New Zealand agrees that natural persons of India granted temporary stay in its territory shall not be required to make contributions to directly funded social security schemes[1,2] while in New Zealand. In such cases, those natural persons from India shall not be eligible for benefits deriving from such directly funded social security schemes in New Zealand for their duration of stay.

Article 8C.4
Processing of Applications

1. Each Party shall expeditiously process complete applications for immigration formalities, or extensions or renewals thereof, received from natural persons of the other Party covered under this Annex.

2. At the request of an applicant, or an applicant's authorised representative in accordance with a Party's laws and regulations, a Party that has received a completed application for an immigration formality or extension or renewal thereof, shall endeavour to promptly provide information concerning the status of the application to the applicant or the applicant's authorised representative in accordance with its laws and regulations.

3. Each Party shall promptly notify the applicant, either directly or through the applicant's authorised representative in accordance with its laws and regulations, of the decision on the application when a decision has been made by the Party. Such notifications shall include:

   (a) for approved applications, the period of temporary stay and, if practicable, any other relevant conditions; and

   (b) for refused or denied applications, information on any available review or appeal procedures and, to the extent required by the law of a Party, the reasons for refusal or denial.

4. To the extent permissible under its laws and regulations, each Party shall endeavour to accept applications relating to immigration formalities in an electronic format under the equivalent conditions of authenticity as paper submissions.

5. Where appropriate, a Party shall accept copies of documents authenticated in accordance with its laws and regulations, in place of original documents, to the extent permitted by its laws and regulations.

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[1] For greater certainty, this paragraph shall not apply to the indirect funding of social security schemes through, for example, general taxation.

[2] For greater certainty, "social security" does not include New Zealand's compensation scheme under the Accident Compensation Act 2001.

6. Each Party shall ensure that any fees charged by its competent authorities for the processing of an application for an immigration formality by a natural person covered under this Annex are reasonable, in that they do not unduly impair or delay trade in services or the conduct of investment activities under this Agreement.

Article 8C.5
Transparency

1. Each Party shall make publicly available information relating to its current requirements for the temporary entry by natural persons of the other Party covered by this Annex.

2. The information referred to in paragraph 1 shall include, where applicable, the following:

   (a) categories of immigration formality;

   (b) documentation required and conditions to be met;

   (c) method of filing an application and options on where to file, such as consular offices or online;

   (d) application fees and an indicative timeframe for the processing of an application;

   (e) the maximum length of stay under each category of immigration formality;

   (f) conditions for any available extension or renewal;

   (g) rules regarding accompanying dependants;

   (h) available review or appeal procedures; and

   (i) relevant measures of general application pertaining to the temporary entry of natural persons of the other Party.

3. Each Party shall:

   (a) upon modifying or amending any measure affecting the entry and stay of foreign nationals that affects temporary entry of natural persons of the other Party, ensure that the information published or otherwise made publicly available pursuant to paragraphs 1 and 2 is updated as soon as possible; and

   (b) maintain appropriate mechanisms to respond to enquiries from interested persons regarding measures relating to temporary entry and stay of natural persons covered under this Annex.

4. To the extent practicable and in a manner consistent with its laws and regulations, each Party shall provide a reasonable period of time between the publication of laws and regulations and their effective date affecting the temporary entry and stay of natural persons covered under this Annex, and such publication can be made electronically available.

5. Each Party shall publish, to the extent practicable, the information referred to in this Article in English.

Article 8C.6
Labour Market Information

1. Each Party shall endeavour to keep the other Party informed of the conditions and any changes thereof for entry, stay and work for natural persons covered under this Annex in their respective territories.

2. To this end, during the meetings of the Working Group on Temporary Movement of Natural Persons, the Parties shall:

   (a) exchange information on each other's labour market, including, to the extent practicable, relevant government reports, statistics, skill shortages and gaps in specific sectors or occupations, and other labour market-related information, including measures that may affect the temporary movement of natural persons; and

   (b) share information on any mutual recognition arrangements falling under the scope of Article 8.14 (Recognition).

3. Upon the entry into force of this Agreement, each Party shall designate a contact point to facilitate communication and coordination between the Parties on matters covered by this Article and shall notify the other Party of the contact details for the contact point. Each Party shall promptly notify the other Party of any change of those contact details.

Article 8C.7
Cooperation on Return and Readmissions

The Parties acknowledge that the temporary movement of natural persons requires the Parties' full cooperation to support the return and readmission of natural persons staying in a Party in contravention of its law for temporary entry.

Article 8C.8
Working Group on the Temporary Movement of Natural Persons

1. The Parties hereby establish a Working Group on the Temporary Movement of Natural Persons ("Working Group") composed of representatives of each Party.

2. Unless otherwise agreed by the Parties, the Working Group shall meet once a year, or without undue delay at the request of either Party. The meetings shall take place in India or in New Zealand alternately or by any other appropriate means of communication, as agreed by the representatives of the Parties.

3. With respect to issues relating to this Annex, the Working Group shall:

   (a) monitor and review the implementation and operation of this Annex;

   (b) consider and discuss technical issues arising from the implementation of this Annex;

   (c) adopt decisions or make recommendations;

   (d) conduct the preparatory work necessary to support the functions of the Joint Commission, including when the Joint Commission has to adopt decisions or recommendations; and

   (e) provide a forum for the Parties to exchange information, discuss best practices and share implementation experiences.

4. The Working Group may decide on its own rules of procedure, in the absence of which the Rules of Procedure of the Joint Commission shall apply *mutatis mutandis.*

5. The Working Group shall report to the Services Committee established under Article 8.23 (Committee on Trade in Services) on the results and conclusions from each of its meetings.

Article 8C.9
Dispute Settlement

1. The Parties shall endeavour to settle any differences arising out of the implementation of this Annex amicably through consultations or negotiations.

2. Neither Party shall have recourse to dispute settlement under Chapter 19 (Dispute Settlement) regarding a refusal to grant temporary entry unless:

   (a) the matter involves a pattern of practice; and

(b) the natural persons affected have exhausted all available administrative remedies regarding the particular matter.

3. The remedies referred to in subparagraph 2(b) shall be deemed to be exhausted if a final determination in the matter has not been issued by the other Party within a reasonable period of time after the date of the institution of proceedings for the remedy, including any proceedings for review or appeal, and the failure to issue such a determination is not attributable to delays caused by the natural persons concerned.

ANNEX 8D

PROFESSIONAL SERVICES

Article 8D.1
Definitions

For the purposes of this Annex:

(a) **"regulated or licensed occupation"** means occupations for which there are designated authorities, including regulators, that may determine eligibility to practise, including professional qualification, and may cover occupations requiring specific skill sets or expertise under various industry or business sectors or state and territory regulatory regimes.

Article 8D.2
Scope

This Annex shall apply to measures of a Party affecting the supply of professional services and services in regulated or licensed occupations.

Article 8D.3
Objectives

The objectives of this Annex are to:

(a) encourage the development of systems for the recognition of professional qualifications and experience, registration and licensing of professionals, including through mutual recognition or similar arrangements, to better facilitate trade in professional services between the Parties;

(b) facilitate the sharing of knowledge and expertise on professional services, accreditation, standards, and regulation between relevant bodies of the Parties in the development of best practices;

(c) enhance cooperation on skills development and mutual recognition of professional qualifications as well as education and training qualifications for regulated or licensed occupations; and

(d) support the sharing of information on developments in labour markets.

Article 8D.4
Recognition of Professional Qualifications, Licensing and Registration

1. Each Party shall engage with its relevant bodies and encourage them to establish dialogues with the relevant bodies of the other Party with a view to negotiating and concluding, within 12 months of the date of entry into force of this Agreement, mutual recognition or similar arrangements providing for the recognition of the qualifications, licensing, and registration procedures across professional services and services in regulated or licensed occupations of mutual interest. The Parties shall promptly exchange the relevant contact points to facilitate such dialogues.

2. Each Party shall encourage its relevant bodies to take into account, as appropriate, plurilateral or multilateral agreements or international frameworks that relate to professional services in the development of agreements on the recognition of professional qualifications, licensing, and registration.

Article 8D.5
Temporary, Limited or Project-Specific Licensing or Registration

1. The Parties may consider, if feasible, based on a foreign service supplier's home licence or recognised professional body membership, without the need for further written examination:

   (a) taking steps to implement a temporary, limited or project-specific licensing or registration regime; or

   (b) granting such licence or registration, if appropriate.

2. The temporary, limited or project-specific licence granted under paragraph 1 should not operate to prevent a foreign service supplier from gaining a local licence once that service supplier satisfies the applicable local licensing requirements.

Article 8D.6
Professional Standards

1. To facilitate the activities referred to in Article 8D.4 (Recognition of Professional Qualifications, Licensing and Registration), each Party shall encourage its relevant bodies to work towards the development of mutually acceptable professional standards and criteria in mutually agreed areas. In particular, such professional standards and criteria may include the following matters:

   (a) education;

(b) examinations;

(c) experience;

(d) conduct and ethics;

(e) professional development and re-certification;

(f) scope of practice;

(g) local knowledge; and

(h) consumer protection.

2. On request of the other Party, the requested Party shall, where practicable, provide information concerning standards and criteria for the licensing and certification of professional service suppliers, or otherwise provide information relating to the appropriate regulatory or other body to consult regarding these standards and criteria.

3. The Parties shall encourage their relevant bodies to refer to international frameworks, where applicable, in developing common standards and criteria for the relevant professions.

Article 8D.7
Cooperation in Regulated or Licensed Occupations

1. Each Party shall encourage the mutual recognition of the relevant qualifications, licensing or certification requirements including in regulated or licensed occupations under various industry and business sectors.

2. Each Party shall encourage its relevant bodies to organise or facilitate bilateral discussions on occupational skill sets and standards in specific regulated or licensed occupations, based on the request of the other Party.

3. The Parties shall endeavour to work towards sharing of information on the skill shortage and skill sets desirable for the occupations referred to in paragraph 2.

Article 8D.8
Professional Services Working Group

1. The Parties hereby establish a Working Group on the Professional Services ("Working Group") composed of representatives of each Party.

2. Unless otherwise agreed by the Parties, the Working Group shall meet once a year, or without undue delay at the request of either Party. The meetings shall take place in India or in New Zealand alternately or by any other appropriate means of communication, as agreed by the representatives of the Parties.

3. With respect to issues relating to this Annex, the Working Group shall:

   (a) monitor and review the implementation and operation of this Annex;

   (b) consider and discuss technical issues arising from the implementation of this Annex, without prejudice to Chapter 19 (Dispute Settlement);

   (c) adopt decisions or make recommendations;

   (d) conduct the preparatory work necessary to support the functions of the Joint Commission, including when the Joint Commission adopts decisions or recommendations; and

   (e) provide a forum for the Parties to exchange information, discuss best practices and share implementation experiences.

4. The Working Group may decide on its own rules of procedure, in the absence of which the Rules of Procedure of the Joint Commission shall apply *mutatis mutandis.*

5. The Working Group shall report to the Committee on Trade in Services established under Article 8.23 (Committee on Trade in Services) on the results and conclusions from each of its meetings.

ANNEX 8E

FOREIGN INVESTMENT FRAMEWORK

1. A decision or requirement under India's Foreign Investment Framework (including any amendments made to that Framework from time to time) which comprises of India's *Foreign Direct Investment Policy, Press Notes, Press Releases, Clarifications, the Foreign Exchange Management Act, 1999*, and any other Act or Policy mentioned therein and the Rules and Regulations thereunder shall not be subject to dispute settlement under Chapter 19 (Dispute Settlement).

2. A decision under New Zealand's *Overseas Investment Act 2005* to grant consent, or to decline to grant consent, to an overseas investment transaction that requires prior consent under that Act shall not be subject to the dispute settlement provisions under Chapter 19 (Dispute Settlement).

ANNEX 8F

STUDENTS' MOBILITY AND POST STUDY WORK VISAS

1. Each Party agrees to grant visas, subject to the fulfilment of immigration requirements, to students of the other Party who have been accepted by recognised education institutions in their respective territories and to accord multi-entry visas to such students, valid for the duration of their studies.

2. Neither Party shall impose any numerical limits on the admission and entry of students from the other Party to recognised education institutions in their respective territory, subject to the fulfilment of the prescribed eligibility conditions of the relevant educational institutions.

3. Each Party agrees to allow students from the other Party studying in recognised education institutions in their respective territories to work for at least 20 hours per week in line with each Party's respective national policies on the work provisions of student visas.

4. New Zealand agrees to maintain the following opportunities for students from India who have completed their full programme of study in New Zealand[1] through recognised education institutions to work temporarily in New Zealand, subject to their fulfilment of all relevant immigration requirements:[2]

   (a) upon completion of a bachelor's degree (including honours), periods of stay of up to two years;

   (b) upon completion of a master's by research or master's by coursework, periods of stay of up to three years; and

   (c) upon completion of a doctoral degree, periods of stay of up to four years.

5. The Parties acknowledge the important contribution to each Party made by Science, Technology, Engineering or Mathematics ("STEM") specialists, including Information and Communications Technology ("ICT") professionals. To enhance mobility in these fields, New Zealand shall extend possible stays from two to three years for Indian students graduating in New Zealand with bachelor's degrees with First Class Honours in the STEM fields, including ICT fields.

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[1] For greater certainty, a programme is considered to take place "in New Zealand" if students study full-time in New Zealand for at least 30 weeks each year.

[2] For greater certainty, if relevant immigration requirements include any labour market tests, such labour market tests shall be objective, reasonable and non-discriminatory.

6. India shall provide a work-based immigration route with reciprocal eligibility and duration to the commitments in paragraphs 4 and 5 for students from New Zealand who are natural persons of New Zealand and who successfully complete their studies in India and wish to supplement their education with professional experience in India.

7. Each Party shall arrange for its commitments contained in this Annex to be implemented within one year of the date of entry into force of this Agreement.

8. Neither Party shall have recourse to dispute settlement under Chapter 19 (Dispute Settlement) regarding any matter arising under or related to this Annex unless the matter involves a pattern of practice and the natural persons affected have exhausted all available administrative remedies regarding the particular matter.[3]

[3] The administrative remedies shall be deemed to be exhausted if the final determination in the matter has not been issued by the other Party within a reasonable period of time after the date of institution of the process for the remedy, including any proceedings for review or appeal, and the failure to issue such a determination is not attributable to delays caused by the natural persons concerned.

ANNEX 8G

HEALTH-RELATED SERVICES AND TRADITIONAL MEDICINE SERVICES

Article 8G.1
Scope and Objectives

1. The Parties recognise the importance of health-related services and traditional medicine services and the facilitation of trade in such services.

2. The Parties agree to facilitate trade in health-related services and traditional medicine services.

3. For the purposes of this Annex:

   (a) Health-related services, to the extent they are not a social services established for a public purpose, include:

      (i) Medical and dental services (CPC 9312);

      (ii) Services provided by midwives and nurses (CPC 93191**);

      (iii) Services provided by physiotherapists and para-medical personnel (CPC 93191**);

      (iv) Hospital services (CPC 9311);

      (v) Other Human Health Services (CPC 9319, other than 93191); and

      (vi) Other human health services n.e.c. (CPC 93199); and

   (b) Traditional Medicine Services include any service related to the practice of Rongoā Māori, Ayurveda, Siddha, Unani, and Sowa-Rigpa fields of medicine.

Article 8G.2
Qualification and Licensing Requirements

1. Where a Party imposes licensing or qualification requirements for the supply of health-related services or traditional medicine services, it shall ensure:

(a) that any fees charged for the completion of relevant licensing or qualification procedures are reasonable, transparent, and do not in themselves restrict the supply of a service;

(b) within a reasonable period of time after the submission of an application considered complete under its laws and regulations, inform the applicant of the decision concerning the application;

(c) to the extent practicable, establish an indicative time frame for processing of an application;

(d) on request of the applicant, provide, without undue delay, information concerning the status of the application;

(e) if a Party considers an application incomplete for processing under its laws and regulations, inform the applicant that the application is incomplete within a reasonable period of time, and on request of the applicant, identify, where practicable, all the additional information that is required to complete the application, and provide the opportunity to remedy deficiencies within a reasonable time frame;

(f) if an application is terminated or denied, to the extent possible and without undue delay, inform the applicant in writing of the reasons for such action. The applicant shall have the possibility of resubmitting, at its discretion, a new application;

(g) to the extent permissible under its laws and regulations, do not require physical presence of the applicant in the territory of a Party for the submission of an application for a licence or qualification;

(h) endeavour to accept applications in electronic format under the equivalent conditions of authenticity as paper submissions, in accordance with its laws and regulations; and

(i) where they deem appropriate, accept copies of documents authenticated in accordance with its laws and regulations, in place of original documents.

2. Each Party shall provide adequate procedures to verify the competence of professionals of the other Party. If licensing or qualification requirements include the completion of an examination, each Party shall, to the extent practicable, ensure that:

(a) the examination is scheduled at reasonable intervals;

(b) a reasonable period of time is provided to enable interested persons to submit an application; and

(c) having regard to the cost and administrative burden involved, encourage its competent authorities to use electronic means for the conduct of such examinations and to provide opportunities to taking such examinations in the home country of the applicant.

3. Where a competent authority considers it relevant, it shall give due consideration to relevant experience of the applicant and membership in a relevant association in the territory of other Party.

4. Each Party shall, to the extent practicable, avoid requiring an applicant to approach more than one competent authority for each application. If a service is within the jurisdiction of multiple competent authorities, multiple applications may be required.

5. If a Party imposes licensing or qualification requirements for the supply of a health-related service or traditional health service, it shall ensure that its competent authorities, to the extent practicable, permit submission of an application at any time throughout the year. If a specific time period for applying exists, the Party shall ensure that its competent authorities allow a reasonable period for the submission of an application.

Article 8G.3
Facilitating Medical Value Travel

1. Each Party shall not impose requirements that restrict or prohibit insurance coverage in respect of health-related and traditional medicine services.

2. Each Party shall endeavour to expedite the processing of an immigration visa in accordance with its laws and regulations, in respect of natural persons of the other Party who are seeking health-related and traditional medicine services in the territory of the first Party.

Article 8G.4
Traditional Medicine Services

1. The Parties shall cooperate on matters relating to trade in traditional-medicine services, including on research and development.

2. The Parties shall encourage strengthened engagement between their relevant professional bodies and authorities for recognition and accreditation of practitioners and therapists of traditional medicine services.

3. Where a Party requires registration or licencing of practitioners and therapists of traditional medicine services of the other Party based on specific qualification criteria, including experience or certification requirements, the Party shall encourage its relevant bodies to recognise the qualifications, including education or experience, licences or certifications, obtained in the other Party.

4. Each Party shall, to the extent practicable, publish information concerning standards and criteria for the licensing and certification of practitioners of traditional medicine services, including information concerning the appropriate regulatory or other body to consult on these standards and criteria.

Article 8G.5
Health-Related Standards

1. The Parties shall encourage their relevant health regulators and accreditation bodies to collaborate, where appropriate, on health standards, including potential methods of harmonisation of such standards.

2. In relation to natural persons supplying health-related and traditional medicine services, a Party shall, where appropriate, endeavour to conduct an assessment of requisite educational qualifications with the objective of achieving harmonisation of such requirements with the other Party.

Article 8G.6
Temporary Employment Entry of Healthcare professionals

The Parties acknowledge the important contribution to each Party made by healthcare professionals of the other Party. New Zealand's commitments in respect of the temporary employment entry of natural persons of India in the healthcare sector are set out in Annex 8L (Schedule of Specific Commitments on Temporary Employment Entry - New Zealand).

Article 8G.7
Training and Capacity Building

The Parties shall encourage collaboration for providing or facilitating training programs that can contribute to capacity building in the other Party.

Article 8G.8
Joint Research and Development

The Parties shall encourage collaboration between their relevant organisations or relevant regulators for the purposes of research and development of traditional medicine.

Article 8G.9
Working Group on Health-related Services and Traditional Medicine Services

1. The Parties hereby establish a Working Group on Health-related Services and Traditional Medicine Services ("Working Group") composed of representatives of each Party.

2. Unless otherwise agreed by the Parties, the Working Group shall meet once a year, or without undue delay at the request of either Party. The meetings shall take place in India or in New Zealand alternately or by any other appropriate means of communication, as agreed by the representatives of the Parties.

3. With respect to issues relating to this Annex, the Working Group shall:

   (a) monitor and review the implementation and operation of this Annex;

   (b) consider and discuss technical issues arising from the implementation of this Annex, without prejudice to Chapter 19 (Dispute Settlement);

   (c) adopt decisions or make recommendations;

   (d) conduct the preparatory work necessary to support the functions of the Joint Commission, including when the Joint Commission adopts decisions or recommendations; and

   (e) provide a forum for the Parties to exchange information, discuss best practices and share implementation experiences.

4. The Working Group may decide on its own rules of procedure, in the absence of which the Rules of Procedure of the Joint Commission shall apply *mutatis mutandis*.

5. The Working Group shall report to the Committee on Trade in Services established under Article 8.23 (Committee on Trade in Services) on the results and conclusions from each of its meetings.

ANNEX 8H

SCHEDULE OF SPECIFIC COMMITMENTS - INDIA

Explanatory Notes

1. Alphabetical divisions indicated against individual sectors or sub-sectors and numbers in brackets are references to the *Services Sectoral Classification List* (GATT Document MTN.GNS/W/120, dated 10 July 1991).

2. The reference to "CPC" against specific sectors is a reference to the *Provisional Central Product Classification* (Statistical Papers Series M No. 77, Department of International Economic and Social Affairs, Statistical Office of the United Nations, New York, 1991) except for:

   (a) sectors where "CPC Ver. 1.1" is indicated, the reference is to the *Central Product Classification* (Statistical Papers Series M No. 77, Ver. 1.1, Department of International Economic and Social Affairs, Statistical Office of the United Nations, New York, 2002); and

   (b) sectors where "CPC Ver. 2" is indicated, the reference is to the *Central Product Classification* (Statistical Papers Series M No. 77, Ver. 2, Department of International Economic and Social Affairs, Statistical Office of the United Nations, New York, 2008).

3. The alphabetical and numerical divisions are only indicative of the description of specific commitments, but shall not be construed as being a part of the specific commitments.

4. The use of "**" against individual CPC codes indicates that the specific commitment for that code does not extend to the total range of services covered under that code.

5. The term, limitation, condition, or qualification in this Schedule does not include measures relating to qualification requirements and procedures, technical standards, authorisation requirements and licensing requirements and procedures where they do not constitute a limitation within the meaning of Article 8.4 (National Treatment) or Article 8.5 (Market Access). These measures may include, in particular, the need to obtain a licence, to satisfy universal service obligations, to have recognised qualifications in regulated sectors, to have completed a recognised period of training, to pass specific examinations, including language examinations, to fulfil a membership requirement of a particular profession, such as membership in a professional organisation, to have a local agent for service, or to

maintain a local address, or any non-discriminatory requirements that certain activities may not be carried out in protected zones or areas. While not listed, those measures continue to apply.

6. Commitments on measures with respect to or relating to trade in financial services are undertaken subject to the limitations and conditions set forth in Chapter 8 (Trade in Services), Annex 8A (Financial Services), these Explanatory Notes and this Schedule.

7. Without prejudice to other means of prudential regulation, India reserves the right to require licensing or registration of financial service suppliers and of financial instruments.

8. New Zealand’s Schedule in Annex 8I (Schedule of Non-Conforming Measures - New Zealand) shall not be used to interpret India’s commitments or obligations under Chapter 8 (Trade in Services).

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
I. HORIZONTAL COMMITMENTS			
ALL SECTORS INCLUDED IN THIS SCHEDULE	1), 2), 3), 4) Unbound with respect to social services established or maintained for a public purpose, such as income security, social security, insurance, social welfare, public education, public training, public health, childcare, public utilities, public transport, freight transport and public housing. Such services may be subject to public monopolies or to exclusive rights granted to private operators. 3) (i) Legal Entity (a) Unless otherwise specified in the sectoral commitments, commercial presence shall take the form	1), 2), 3), 4) Taxation laws for domestic and foreign service suppliers, as per the provisions of the relevant applicable laws and regulations shall apply. 3) (i) As provided under the Market Access (MA) column, and in case of collaboration with public sector enterprises or government undertakings as joint venture partners,	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	of incorporation of a company in accordance with the laws of India. (b) Certain limited activities may also be undertaken as permitted under *Foreign Exchange Management Act, 1999* (FEMA) and any other applicable laws by a foreign entity through a liaison office/representative office, project office or branch office, subject to relevant approvals, and assessment of profitability and minimum net worth requirements of the parent company. 3) (ii) In addition and without prejudice to equity and other restrictions specified in sectoral commitments of this Schedule, MA and NT restrictions specified in the Consolidated FDI Policy	preference in access will be given to foreign service suppliers or entities which offer the best terms for transfer of technology. 3) (ii) Subsidies, where granted, shall be available only to domestic service suppliers. 3) (iii) In addition and without prejudice to equity and other restrictions specified in	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	Circular of 2020 and applicable regulations of the FEMA, as revised and amended from time to time, shall be applicable, provided that any changes to the Consolidated FDI Policy Circular of 2020 shall not be applied in a manner so as to nullify or impair the benefits under the terms of a specific commitment.[1]	sectoral commitments of this Schedule, MA and National Treatment (NT) restrictions specified in the Consolidated FDI Policy Circular of 2020 and applicable regulations of the FEMA, as revised and amended from time to time, shall be applicable, provided that any changes to the Consolidated FDI Policy Circular of 2020 shall not be applied in a manner so as to nullify or impair the benefits under the terms of a specific commitment.[2] 3) (iv) Acquisition of Immovable Property: A person resident	

[1] It is understood that with regard to equity and other restrictions specified in sectoral commitments such restrictions shall prevail over any provision of the Consolidated FDI Policy Circular of 2020 and applicable regulations of the FEMA or any amendments made thereto from time to time with regard to relevant sectoral commitments. It is further understood that India's commitments are without prejudice to any policies or regulations that it may maintain with a view to ensuring national security.

[2] It is understood that with regard to equity and other restrictions specified in sectoral commitments such restrictions shall prevail over any provision of the Consolidated FDI Policy Circular of 2020 and applicable regulations of the FEMA or any amendments made thereto from time to time with regard to relevant sectoral commitments.

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
		outside India who has established in India a branch office or other place of business authorized by the Reserve Bank of India, other than a liaison office, may acquire immoveable property when such acquisition is necessary for or incidental to carrying on of the permitted activity. 3) (v) Payments to a foreign collaborator resulting from foreign technology transfer or on the use of trademarks and brand names of the foreign collaborator will be regulated. 3 (vi) The composition of the Board and Management of a company incorporated in India shall be as per the Regulations notified by the	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
		relevant Regulator of the sector. 4) Unbound except as indicated in the market access column for the categories of Natural Persons of a Party as defined under Annex 8C (Temporary Movement of Natural Persons), and subject to the terms of the Chapter and this Schedule. The following restrictions shall apply for all categories of Natural Persons specified in the column on Market Access: (a) Taxation laws for domestic and foreign service suppliers, as per the provisions of the relevant applicable laws and regulations shall apply; (b) Subsidies, where granted, shall be available only to	
	4) Unbound except for measures concerning the entry and temporary stay of a Natural Person of a Party as defined under Annex 8C (Temporary Movement of Natural Persons), and subject to the terms of the Chapter and this Schedule.		

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
		natural persons who are citizens of India. 1), 2), 3), 4) India reserves the right to adopt or maintain any measure that it considers necessary to protect its national security interests.	
	1), 2), 3), 4) India reserves the right to adopt or maintain any measure that it considers necessary to protect its national security interests.		

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
II. SECTOR SPECIFIC COMMITMENTS			
1. BUSINESS SERVICES			
A. <u>Professional Services</u>			
(a) Accounting and Book Keeping Services (CPC 862**) (Excluding Auditing Services)	1) None 2) None 3) Unbound 4) Unbound except as indicated in the horizontal section.	1) None 2) None 3) Unbound 4) Unbound except as indicated in the horizontal section and further subject to the requirement of obtaining professional indemnity insurance from home country of service provider 1), 2), 4): Services requiring use of title of Chartered Accountant or Cost & Works	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
		Accountant under applicable domestic laws can be rendered only subject to registration with the relevant professional body under a scheme of reciprocity.	
(c) Advisory and consulting relating to taxation services (CPC 863**) (Services encompasses only advice and consulting relating to tax planning; but excludes: preparation of documentation such as returns or reports required for compliance with income tax laws, authentication and filing of such returns or reports or other statutory audit reports, and	1) None 2) None 3) Unbound 4) Unbound	1) None 2) None 3) Unbound 4) Unbound	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
representation before tax authorities or tribunals)			
(d) Architectural Services (CPC 8671)	1) None 2) None 3) None except that commercial presence would be only through incorporation as partnership firm constituted by Architects. 4) Unbound except for the categories of natural persons specified in the horizontal section who: (a) undertakes the function as a consultant or designer in India for a specific project with the prior	1) None 2) None 3) None 1), 2), 3) Services requiring use of title and style of 'Architect' under applicable national law shall be subject to registration with relevant professional body under a scheme of reciprocity. 4) Unbound except for the categories of persons indicated in the market access column and subject to restrictions specified in the horizontal section	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	permission of the Central Government; or (b) is recognized as an 'Architect' under applicable national laws, subject to registration with relevant professional body under a scheme of reciprocity between India and the government of the country of origin of such person.		
(e) Engineering Services (CPC 8672)	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
(f) Integrated engineering services (CPC 8673)	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	
(g) Urban planning and landscape architectural services (CPC 8674)	1) None 2) None 3) None except that commercial presence would be only through incorporation as partnership firm constituted by Architects. 4) Unbound except for the categories of natural persons	1) None 2) None 3) None 1), 2), 3) Services requiring use of title and style of 'Architect' under applicable national law shall be subject to registration with relevant professional body under a scheme of reciprocity. 4) Unbound except for the categories of persons	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	specified in the horizontal section who: (a) undertakes the function as a consultant or designer in India for a specific project with the prior permission of the Central Government; or (b) is recognized as an 'Architect' under applicable national laws, subject to registration with relevant professional body under a scheme of reciprocity between India and the government of the country of origin of such person.	indicated in the market access column and subject to restrictions specified in the horizontal section	
(h) Medical and Dental Services (CPC 9312)	1) None for provision of services on provider to provider basis such that the transaction is between established medical institutions covering areas of	1) None	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	second opinion to help in diagnosis of cases or in the field of research. 2) None 3) Commercial presence subject to the condition that the latest technology for treatment will be brought in and as provided in national treatment column. 4) Unbound except for categories of natural persons specified in the horizontal section, who are involved in charitable purposes, and	2) None 3) Professionals qualified outside India can practice medicine for charitable purposes, and dentistry for teaching and research purposes subject to permissions from relevant authorities under the applicable domestic laws. Publicly funded services will be available only to Indian citizens or will be supplied at differential prices to persons other than Indian citizens. 4) Unbound except for the categories of persons indicated in the market access column and subject to	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	subject to permissions from relevant authorities.	restrictions specified in the horizontal section.	
(i) Veterinary services (CPC 932)	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	
(j) Services provided by midwives, nurses, physiotherapists and para-medical personnel (CPC 93191)	1) None for provision of services on provider to provider basis such that the transaction is between established medical institutions covering areas of second opinion to help in diagnosis of cases or in the field of research. 2) None 3) None, subject to the condition that the latest technology for	1) None 2) None 3) Publicly funded services may be available only to Indian	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	treatment will be brought in and as provided in national treatment column. 4) Unbound except as indicated in the horizontal section	citizens or may be supplied at differential prices to persons other than Indian citizens. 4) Unbound except as indicated in the horizontal section	
B. Computer and Related Services (CPC 841, 842, 843, 844, 845+849)	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	
C. Research and Development Services Explanatory Note: Commitment on Research and Development Services does not include accessing biological resources for the purposes of R&D, or transfer of results based on R&D of biological resources accessed in India.			
(a) R&D services on the following natural sciences only:	1) None	1) None	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
Heat, light, electromagnetism, astronomy, but excluding atomic energy and related matters (CPC 85101) Engineering and technology, including applied science and technology for casting, metal, machinery, electricity, communications, vessels, aircrafts, civil engineering, construction, information, etc. (CPC 85103)	2) None 3) None 4) Unbound except as indicated in the horizontal section.	2) None 3) None 4) Unbound except as indicated in the horizontal section.	
R&D services in agricultural sciences (CPC 85104)	1) None 2) None 3) None	1) None 2) None 3) None	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	4) Unbound except as indicated in the horizontal section.	4) Unbound except as indicated in the horizontal section.	
b) R&D services on social sciences and humanities, excluding law (CPC 852**)	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	
R&D Services on Biotechnology excluding medical biotechnology	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
D. Real Estate Service			
b) on a fee or contract basis (CPC 822**)	1) None 2) None 3) None for Consultancy Services 4) Unbound except as indicated in the horizontal section.	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	
E. Rental/Leasing Services (without operators)			
a) Rental/leasing services without operators relating to ships (CPC 83103)	1) None 2) None 3) None	1) None 2) None 3) None	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
(excluding the services of actual international transport of Cargo)	4) Unbound except as indicated in the horizontal section.	4) Unbound except as indicated in the horizontal section.	
b) Rental/leasing services without operators relating to aircraft (CPC 83104)	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	1) None 2) None 3) None except that prescribed minimum capitalisation norms must be adhered to. 4) Unbound except as indicated in the horizontal section.	
c) Rental/leasing services without operator relating to other transport equipment (CPC 83101+ 83102+ 83105) (excluding Railroad	1) Unbound 2) None 3) None	1) Unbound 2) None 3) None except that prescribed minimum capitalisation norms must be adhered to.	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
Transport & Multimodal Transport)	4) Unbound except as indicated in the horizontal section.	4) Unbound except as indicated in the horizontal section.	
d) Rental/leasing services without operators relating to other machinery and equipment (CPC 83106 –83109)	1) Unbound 2) None 3) None 4) Unbound except as indicated in the horizontal section.	1) Unbound 2) None 3) None except that prescribed minimum capitalisation norms must be adhered to. 4) Unbound except as indicated in the horizontal section.	
e) Other			
Rental/leasing service concerning personal and household goods (CPC 832)	1) Unbound 2) None 3) None	1) Unbound 2) None 3) None except that prescribed minimum capitalisation norms must be adhered to.	

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	4) Unbound except as indicated in the horizontal section.	4) Unbound except as indicated in the horizontal section.	
F. Other Business Services			
(a) Advertising services Sale of leasing services of advertising space of time (CPC 87110) (b) Planning, creating and placement of services of advertising (CPC 87120)	1) None subject to the requirement that foreign channels must seek advertising for the down link beam through domestic entities and foreign print media must seek advertisement through domestic entities. 2) None 3) None except as provided in national treatment column. 4) Unbound except as indicated in the horizontal section.	1) None subject to the requirement that majority of content would be created locally by Indian nationals. 2) None 3) None except that persons controlling management of the company in India shall be resident in India. 4) Unbound except as indicated in the horizontal section.	

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
(c) Management consulting services excluding all services relating to legal consultancy (CPC 86501**, 86502**, 86503**, 86505**, 86506**, 86509**)	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	
(d) Services related to management consulting (CPC 86601)	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	
(e) Technical testing and analysis services (CPC 8676)	1) None 2) None	1) None 2) None	

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	3) None 4) Unbound except as indicated in the horizontal section.	3) None 4) Unbound except as indicated in the horizontal section.	
(g) Services incidental to Fishing (CPC 882)	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	
(h) Services incidental to mining (CPC 883 + 5115)	1) None 2) None 3) None	1) None 2) None 3) None	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	4) Unbound except as indicated in the horizontal section.	4) Unbound except as indicated in the horizontal section.	
(j) Services incidental to energy distribution (887**) excluding energy trading and load dispatch functions	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	
(k) Placement and supply services of Personnel (CPC 872)	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
(m) Related Scientific and technical consulting services (CPC 8675**) – excluding Map Making – CPC 86754 and hydrographic related surface surveying services	1) None 2) None 3) Unbound 4) Unbound except as indicated in the horizontal section.	1) None 2) None 3) Unbound 4) Unbound except as indicated in the horizontal section.	
(n) Maintenance and repair of equipment (CPC 633)	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	
(o) Building-cleaning services (CPC 874)	1) None 2) None	1) None 2) None	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	3) None 4) Unbound except as indicated in the horizontal section.	3) None 4) Unbound except as indicated in the horizontal section.	
(p) Photographic Services excluding aerial photography, satellite pictures and satellite enabled photography (CPC 875**)	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	
(q) Packaging Services (CPC 876)	1) None 2) None 3) None	1) None 2) None 3) None	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	4) Unbound except as indicated in the horizontal section.	4) Unbound except as indicated in the horizontal section.	
(s) Convention services (CPC 87909*)	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section	
(t) Specialty design services (CPC 87907**)	1) None 2) None 3) None except that commercial presence would be only through incorporation as partnership firm constituted by Architects.	1) None 2) None 3) None	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	4) Unbound except as indicated in the horizontal section for natural persons falling under a specified category who: (a) undertakes the function as a consultant or designer in India for a specific project with the prior permission of the Central Government; or (b) is recognized as an 'Architect' under applicable national laws, subject to registration with relevant professional body under a scheme of reciprocity between India and the government of the country of origin of such person.	4) Unbound except for the categories of persons indicated in the market access column and subject to restrictions specified in the horizontal section 1), 2), 3): Services requiring use of title and style of 'Architect' under applicable national law can be rendered only subject to registration with relevant professional body under a scheme of reciprocity.	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
<u>Other:</u> Telephone based support services (i) Telephone call centre services (CPC Ver. 1.1/2 - 85931): This subclass includes: a) taking orders for clients by telephone b) soliciting contribution or providing information for clients by telephone c) telemarketing, and (ii) Other telephone based support services (CPC Ver. 1.1/2 - 85939): This subclass includes:	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
a) telephone answering services b) telephone wake-up services			
Duplicating Services (CPC 87904)	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section	
Translation and interpretation services (CPC 87905)	1) None 2) None 3) None	1) None 2) None 3) None	

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	4) Unbound except as indicated in the horizontal section	4) Unbound except as indicated in the horizontal section	
TELECOMMUNICATION SERVICES[3] a) Voice telephone services (CPC 7521**) + Cellular mobile telephone b) Packet switched Data Transmission Services (CPC 7523**) (i) Radio Paging Services (ii) Internet Services	1) Unbound 2) None 3) The service will be permitted to be provided as per license agreement only after the Service Supplier, incorporated as a company in India, gets a licence from the Designated Authority. The Service Supplier should be a company registered in India with maximum foreign investment up to 74 percent subject to observance of licensing, security and other terms and conditions by	1) Unbound 2) None 3) (i) None except the following: • The Chief Officer incharge of Technical Network Operations, Chief Security Officer and officer/officials of the licensee companies, as may be specified under the security conditions, including those dealing with the lawful interception of messages, shall be resident Indian citizens.	

[3] Excluding broadcasting services and measures affecting such services.

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
c) Circuit switched data transmission services (CPC 7523**) d) Telex Service (CPC 7523**) e) Telegraph Services (CPC 7522**) f) Facsimile Services (CPC 7521** + CPC 7529**) g) Private Leased Circuit Services (CPC 7522** + 7523**) o) Others (i) V-Sat Services (ii) Global Mobile Personal Communications Services (iii) Infrastructure	licensee as well as investors. For foreign investment more than 49 percent, Government approval would be required. Number of licenses, may, however, be limited due to scarce resources such as right of way and spectrum availability subject to a minimum of two licenses in each service area. Resale of telephone services is not permitted.	• The majority Directors on the Board of the licensee company shall be Indian citizens. • The positions of the Chairman, managing Director, Chief Executive Officer and/or Chief Financial Officer, if held by foreign nationals, would require to be security vetted by the Government of India. • All foreign personnel likely to be deployed by the licensee for installation, operation and maintenance of the licensee's network shall also be security cleared by the Government of India prior to their deployment.	

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
Providers (Category I)	4) Unbound except as indicated in the horizontal commitments.	3. (ii) Unbound for Indian Government Public Sector Undertakings 4) Unbound except as indicated in the horizontal commitments.	
Data and Message Transmission Services, in the following: h) Electronic mail (CPC 7523**) i) Voice mail (CPC 7523**) j) On-line information and data base retrieval (CPC 7523**) k) Electronic Data Interchange (EDI) (CPC 7523**) l) Enhanced/value added facsimile services, including	1) None except the provision of all services is subject to commercial arrangements with licensed Telecom service suppliers. 2) None 3) The service will be permitted to be provided as per license agreement only after the Service Supplier, incorporated as a company in India, gets a licence from the Designated Authority.	1) None 2) None 3) None	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
store and forward, store and retrieve (CPC 7523**) n) On-line information and data processing (CPC 843**)	For foreign investment more than 49 percent, Government approval would be required 4) Unbound except as indicated in the horizontal commitments.	4) Unbound except as indicated in the Horizontal commitments.	
D. Audiovisual Services (a) Motion picture or video tape production services: (CPC 96112) Motion picture or video distribution services (CPC 96113)	1) Unbound 2) Unbound* 3) None, except that Import of titles restricted to 100 per year. 4) Unbound except as indicated in the horizontal section.	1) Unbound 2) Unbound* 3) None 4) Unbound except as indicated in the horizontal section.	
Sound recording services (CPC Ver.2 -CPC 9611):	1) None 2) None	1) None 2) None	

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
• Sound recording services: (CPC Ver. 2 96111) • Live recording services: (CPC Ver. 2 96112) • Sound recording originals: (CPC Ver. 2 96113) Audiovisual post-production services (CPC Ver.2 9613**):** Audiovisual editing services (CPC Ver.2 96131); Transfers and duplication of masters services (CPC Ver.2 96132); Colour correction and digital restoration services (CPC Ver.2 96133);	3) None 4) Unbound except as indicated in the horizontal section	3) None 4) Unbound except as indicated in the horizontal section	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
Visual effects services (CPC Ver.2 96134); Animation services (CPC Ver.2 96135); Captioning, titling and subtitling services (CPC Ver.2 96136); Sound editing and design services (CPC Ver.2 96137); Other post-production services (CPC Ver.2 96139)			
3. CONSTRUCTION AND RELATED ENGINEERING SERVICES			
A. General construction work for buildings (CPC 512) B. General Construction work for civil engineering (CPC 513)	1) None 2) None 3) None except:	1) None 2) None 3) None As provided in market access column, and additionally all	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
C. Installation and assembly work (CPC 514+516) D. Building completion and finishing work (CPC 517) E. Other CPC 511+515+518	(i) Foreign investment in construction of farm houses is prohibited (ii) Construction services relating to the petroleum sector shall be subject to economic needs tests and other applicable regulatory requirements. (iii) Subject to relevant state and local laws and regulations.	foreign investment (except in the case of construction work in respect of hotels, tourist resorts, hospitals special economic zones, educational institutions, old age homes and investments by non-resident Indians) shall be subject to regulatory requirements specified under the Consolidated FDI Policy Circular 2020 and relevant FEMA regulations such as restrictions on repatriation of the foreign investment during a lock-in period of three years calculated for each tranche of FDI. State and local level regulations including land-use requirements, building bye-laws and provision of community amenities and common facilities, shall apply	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	4) Unbound except as indicated in the horizontal section.	4) Unbound except as indicated in the horizontal section.	
4. DISTRIBUTION SERVICES (EXCLUDING LIVE ANIMALS)			
A. Commission agents' services covering sales on a fee or contract basis of: • Agricultural raw materials (CPC 62111**) • Food products excluding beverages and tobacco (CPC 62112**) • Machinery, industrial equipment and vehicles other than motor vehicles, bicycles and motorcycles (CPC 62114)	1) None 2) None 3) None, subject to approval of the Reserve Bank of India ("RBI")/ Government and in conformity with the FEMA regulations, as applicable, and except for requirements as may be specified under relevant state and local level laws and regulations. 4) Unbound, except as indicated in the horizontal commitments.	1) None 2) None 3) None 4) Unbound, except as indicated in the horizontal commitments.	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
• Furniture, household goods, hardware and ironmongery (CPC 62115) • Textiles, clothing and footwear (CPC 62116)			
B. Wholesale trade services • Agricultural raw materials excluding live animals (CPC 6221**) • Food excluding beverages and tobacco (CPC 6222**) • Textiles, clothing and footwear (CPC 6223) • Household appliances, articles and equipment (CPC 6224) • Miscellaneous consumer goods (CPC 6226)	1) None 2) None 3) None, subject to approval of RBI/ Government and in conformity with the FEMA regulations, as applicable, and requirements as may be specified under relevant state and local level laws and regulations. 4) Unbound except as indicated in the horizontal commitments.	1) None 2) None 3) None 4) Unbound, except as indicated in the horizontal commitments.	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
• Machinery, equipment and supplies (CPC 6228)			
C. Single Brand Product Retail Services (excluding in prohibited sectors as specified in India's Consolidated FDI Policy Circular of 2020 and in natural gas and petroleum and natural gas products, tobacco and liquor and subject to the conditions mentioned in India's Consolidated FDI Policy Circular of 2020 and applicable regulations under the Foreign Exchange Management Act.)	1) Unbound 2) Unbound 3) Foreign investment up to 51 percent allowed subject to conformity with India's Consolidated FDI Policy Circular of 2020 and FEMA regulations and any other laws and regulations including at state/local level, as applicable. 4) Unbound except as indicated in the horizontal section.	1) Unbound 2) Unbound 3) Unbound 4) Unbound except as indicated in the horizontal section.	
D. Franchising Services in respect of Single Brand	1) Unbound 2) Unbound	1) Unbound 2) Unbound	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
retailing services as specified in category C above.	3) None subject to approval of RBI and conformity with India's Consolidated FDI Policy Circular of 2020 with respect to Single Brand Product Retail trading and FEMA regulations and any other laws and regulations, including at state/local level, as applicable. 4) Unbound except as indicated in the horizontal section.	3) Unbound 4) Unbound except as indicated in the horizontal section.	
5. EDUCATIONAL SERVICES			
C. Higher Education Services (CPC 923)	1) None subject to the condition that service providers would be subject to regulations, as applicable to domestic providers in the country of origin and subject to terms and conditions of approval from relevant authority in	1) None	

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	India for educational programmes leading to award of a recognized degree, diploma, doctoral programmes, etc. 2) None 3) None subject to the condition that fees to be charged can be fixed by an appropriate authority and that such fees do not lead to charging capitation fees or to profiteering. Subject further to such regulations, already in place or to be prescribed by the appropriate regulatory authority including at State / Local levels. 4) Unbound except as indicated in the horizontal section.	2) None 3) None 4) Unbound except as indicated in the horizontal section.	

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
6. ENVIRONMENTAL SERVICES (excluding public services functions whether owned and operated or contracted out by local, regional or central government)			
B. Refuse Disposal Services (CPC 9402) C. Sanitation and Similar Services (CPC 9403)	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
7. FINANCIAL SERVICES			
All the commitments are subject to entry requirements, domestic laws, rules, regulations, guidelines and the terms and conditions of the Reserve Bank of India, Securities and Exchange Board of India, Insurance Regulatory and Development Authority of India and any other competent authority in India.			
A. Insurance and Insurance Related Services			
(i) Direct insurance (a) Life Insurance	1) Unbound 2) Unbound 3) None, except that commercial presence would be through incorporation of a company with foreign investment not exceeding 74 per cent and subject to fulfilment of minimum capitalisation norms. Additionally, following conditions will be applicable	1) Unbound 2) Unbound 3) As provided under Market Access column and provided that a majority of directors, key management persons; and at least one among the Chairperson of its Board, its Managing Director and its Chief Executive Officer, shall be Resident Indian Citizens	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	for Indian insurance company with more than 49% foreign investment: (i) Dividend for the financial year can be paid only after retaining 50% of net profit in general reserve, if solvency margin is less than 1.2 times the control level solvency margin. (ii) Not less than 50% of directors shall be independent directors, unless Chairperson of its Board is an independent director, in which case at least 1/3rd shall comprise of independent directors. 4) Unbound except as indicated in the horizontal section.	4) Unbound except as indicated in the horizontal section	

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
(i) Direct insurance (b) Non-life insurance	1) Unbound, except – (i) in the case of insurance of freight, where there is no requirement that goods in transit to and from India should be insured with Indian insurance companies only. Insurance is taken by the buyer or seller in accordance with the terms of the contract. Once under a contract the Indian importer or exporter agrees to assume the responsibility for insurance such as in the case of f.o.b. contracts for imports into India or c.i.f. contracts for exports from India, insurance has to be taken only with an Indian	1) Unbound	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	insurance company. (ii) that Indian companies are statutorily required to take prior permission of the Insurance Regulatory and Development Authority of India (IRDAI) before they take out or renew any policy of insurance in respect of any property in India or any ship or other vessel or aircraft registered in India with an insurer whose principal place of business is outside India. 2) Unbound 3) None except that commercial presence would be through incorporation of a company with foreign investment not exceeding 74 per cent and subject to fulfilment of	 2) Unbound 3) As provided under Market Access column and provided that a majority of directors, key management persons; and at least one among the Chairperson of its Board, its	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	minimum capitalisation norms. Additionally, following conditions will be applicable for Indian insurance company with more than 49% foreign investment: (i) Dividend for the financial year can be paid only after retaining 50% of net profit in general reserve, if solvency margin is less than 1.2 times the control level solvency margin (ii) Not less than 50% of directors shall be independent directors, unless Chairperson of its Board is an independent director, in which case at least 1/3rd shall comprise of independent directors	Managing Director and its Chief Executive Officer, shall be Resident Indian Citizens.	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	4) Unbound except as indicated in the horizontal section	4) Unbound except as indicated in the horizontal section	
(ii) Reinsurance and retrocession	1), 2) Reinsurance can be taken by non-life insurers with foreign reinsurers to the extent of the residual uncovered risk after obligatory or statutory placements domestically with Indian reinsurers. While obtaining reinsurance support, the order of preference shall be followed by non-life insurers as specified under IRDAI regulations 3) None except that commercial presence would be through incorporation of a company with foreign investment not exceeding 74 % and subject to fulfilment of minimum	1) Unbound 2) Unbound 3) For reinsurance companies incorporated in India, as provided under Market Access column and provided that a majority of directors, key management persons;	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	capitalisation norms. Additionally, following conditions will be applicable for Indian insurance company with more than 49% foreign investment: (i) Dividend for the financial year can be paid only after retaining 50% of net profit in general reserve, if solvency margin is less than 1.2 times the control level solvency margin. (ii) Not less than 50% of directors shall be independent directors, unless Chairperson of its Board is an independent director, in which case at least 1/3rd shall comprise of independent directors. 4) Unbound except as indicated	and at least one among the Chairperson of its Board, its Managing Director and its Chief Executive Officer, shall be Resident Indian Citizens 4) Unbound except as indicated	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	in the horizontal section	in the horizontal section	
(iii) Insurance intermediation	1), 2) Unbound except that reinsurance of domestic risks can be placed abroad with foreign reinsurers through a reinsurance broker registered with IRDAI. 3) (i) Overseas brokers are allowed subject to registration by the IRDAI and in compliance with the extant regulations. (ii) The reinsurance/ composite brokers registered with the IRDAI shall not share more than 50% of the remuneration with the foreign insurance	1) Unbound 2) Unbound 3) Unbound	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	broker for the services obtained from them. 4) Unbound except as indicated in the horizontal section	 4) Unbound except as indicated in the horizontal section	
(iv) Services auxiliary to insurance, such as consultancy, actuarial, risk assessment [excluding claim settlement services]	1) None 2) Unbound 3) Auxiliary services, other than actuarial services: None except that commercial presence would be through incorporation of a company in India Actuarial Services: Commercial presence through partnerships subject to approval under applicable law and formal certification	1) None, except for certification and residency requirements for actuarial services. 2) None 3) Auxiliary services, other than actuarial services: As provided under Market Access column and provided that residency requirements for key managerial personnel, restrictions on repatriation and compliance with disclosure requirements, shall apply as provided under law.	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	by Institute of Actuaries of India. 4) Unbound except as in the horizontal section.	Actuarial Services – Unbound 4) Unbound except as in the horizontal section.	
B. Banking and other financial services (excluding insurance)			
(i) Acceptance of deposits and other repayable funds from the public (ii) Lending of all types, including consumer credit, mortgage credit, Factoring, and financing of commercial transactions (iii) All payment and money transmission services including credit, charge and debit cards, travellers cheques and bankers' drafts (iv) Guarantees and	1) Unbound 2) Unbound 3) (i) In each of the services sub-sectors indicated in (i)-(vi) in which commitments are being undertaken for banking and non-banking financial services companies, access is subject to fulfilment of minimum capitalization norms and subject to regulations of	1) Unbound 2) Unbound 3) (i) Unbound for wholly owned subsidiaries (ii) Public sector enterprises can invest surplus funds in term deposits only with scheduled commercial banks incorporated in India; their investment of surplus funds in term deposits with wholly	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
commitments (v) Trading for own account of the following: (A) money market instruments (including cheques, bills, certificates of deposits) (B) foreign exchange (C) transferable securities (vi) Clearing services for cheques, drafts and other payment instruments	the Reserve Bank of India and any other competent authority in India. (ii) The applicable legal form of presence for all activities listed in this section of the Schedule, except where separately specified under the specific sub-sectors, shall be only through one of the three channels, i.e., (a) branch operations of a foreign bank: 15 branches over 4 years for NZ banks, or (b) as a wholly owned subsidiary (WOS) of a foreign bank licensed and supervised as a bank in its home country; or	owned subsidiaries would be subject to applicable guidelines/ law. (i) For transferable securities [(v) (C)], Unbound except as indicated in the market access column.	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	(c) through foreign investment by a foreign bank in a private sector bank in India through FDI, subject to foreign investment ceiling of 74 per cent (with 49% under automatic route, and beyond 49% with approval from the Government /RBI). The single mode of presence under (a) or (b) shall be subject to the following requirements: - opening of branches by foreign banks in branch or WOS mode shall also be subject to the requirements regarding economic needs tests, reciprocity, inclusive		

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	banking and any other prudential requirements, that may be specified by the Reserve Bank of India. - the branch operations or WOS can also hold investment not exceeding five percent in a private sector bank in India. In the private sector banks under sub-clause (c), any acquisition and maintenance of five per cent or more of the paid-up capital or voting rights of the bank by a single entity or group of related entities shall be subject to prior approval of the Reserve Bank of India and periodic assessment		

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	of the concerned shareholder by the concerned bank. Foreign banks shall not acquire any fresh stake in a bank's equity shares, if by such acquisition, the investing bank's holding is 10 per cent or more of the investee bank's equity capital. Investments in other financial services companies by branches of foreign banks licensed to do banking business in India individually not to exceed 10 per cent of owned funds or 30 per cent of the invested company's capital whichever is lower. Licences for new foreign bank branches may be		

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	denied when the maximum share of assets in India both on and off balance sheet of foreign banks to total assets both on and off balance sheet of the banking system exceeds 15 per cent. Restrictions would be placed on further entry of new wholly owned subsidiary of foreign banks, when the capital and reserves of foreign banks (i.e., WOSs and foreign bank branches) in India exceed 20% of the capital and reserves of the banking system. In such eventuality prior approval of RBI will be required for capital infusion into the existing WOSs of foreign banks.		

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	Foreign banks are subject to non-discriminatory resource allocation requirements. For transferable securities [(v) (C)] – In addition to the above conditions, commercial presence through locally incorporated joint venture company with foreign investment not exceeding 74 per cent. The foreign investment participation will be limited to recognized foreign stock broking companies. 4) Unbound except as indicated in the horizontal section	4) Unbound except as indicated in the horizontal section.	

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
Financial Leasing; Factoring; Venture capital; Participation in issues of all kinds of securities, including underwriting and placement as agent (whether publicly or privately) and provision of services related to such issues	1) Unbound 2) Unbound 3) (i) Access is subject to fulfilment of minimum capitalization norms, and subject to regulations of the Reserve Bank of India, Securities and Exchange Board of India and any other competent authority in India. (ii) Allowed for foreign financial services companies (including banks) through incorporation as a company in India. 4) Unbound except as indicated in the horizontal section.	1) Unbound 2) Unbound 3) Unbound except for entities established in accordance with the limitation specified in the market access column. 4) Unbound except as indicated in the horizontal section	

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
Money broking	1) 2) and 3) Unbound 4) Unbound except as indicated in the horizontal section.	1) 2) and 3) Unbound 4) Unbound except as indicated in the horizontal section.	
Provision and transfer of financial information, and financial data processing and related software by suppliers of other financial services	1), 2) and 3) None, except that supply of services shall be subject to domestic laws or regulations (extant and future) with reference to data, including its transfer, storage and processing. 4) Unbound except as indicated in the horizontal section	1), 2) and 3) None, except as indicated in the market access column. 4) Unbound except as indicated in the horizontal section	
Asset Management, such as cash or portfolio management, all forms of collective investment management, custodial, depository and trust services (excluding pension fund management)	1) Unbound 2) Unbound 3) (i) Access is subject to fulfilment of minimum	1) Unbound 2) Unbound 3) None, except as indicated in market access column	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	capitalization norms, and subject to regulations of the Reserve Bank of India, Securities and Exchange Board of India and any other competent authority in India. (ii) Commercial presence would be through incorporation as a company in India. 4) Unbound except as indicated in the horizontal section	4) Unbound except as indicated in the horizontal section	
Financial consultancy services, i.e., financial advisory services provided by financial advisers, etc. to customers on financial matters, investment and portfolio research and advice, advice on acquisitions and on	1) Unbound except for research analysts' services by New Zealand entities who have entered into an agreement with research analysts or research entities registered under the respective laws of India	1) Unbound except as indicated in the market access column	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
corporate restructuring and strategy.	2) Unbound 3) (i) Access is subject to fulfilment of minimum capitalization norms, and subject to regulations of the Reserve Bank of India, Securities and Exchange Board of India and any other competent authority in India. (ii) Allowed for Foreign banks licensed to do banking business in India. (iii) Allowed for foreign financial services companies (including banks) through incorporation 4) Unbound except as indicated in the horizontal section	2) Unbound 3) Unbound except as indicated in the market access column 4) Unbound except as indicated in the horizontal section	

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
Electronic Payment systems	1) Access to respective Fast Payment Systems (FPS) infrastructure on a reciprocal basis, without a need to get onboarded onto the other payment system, through interlinking of FPS for (i) cross-border merchant payments and (ii) real-time cross-border remittances, except that supply of services shall be subject to domestic laws or regulations (extant and future) with reference to data, including its transfer, storage and processing. 2) Unbound 3) Unbound 4) Unbound	1) Unbound 2) Unbound 3) Unbound 4) Unbound	

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
8. HEALTH-RELATED AND SOCIAL SERVICES			
A. Hospital Services (CPC 9311)	1) None for provision of services on provider to provider basis 2) None 3) None except that Commercial presence subject to the condition that the latest technology for treatment will be brought in. 4) Unbound except as indicated in the horizontal section. None for charitable purposes.	1) None. 2) None 3) None 4) Unbound except as indicated in the horizontal section.	
9. TOURISM AND TRAVEL-RELATED SERVICES			
A. Hotels and other lodging services (CPC 641- 643)	1) None 2) None	1) None 2) None	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	3) None 4) Unbound except as indicated in the horizontal section.	3) None 4) Unbound except as indicated in the horizontal section.	
B. Travel Agency and Tour Operator Services (CPC 7471)	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	
C. Tourist Guides Services (CPC 7472)	1) Unbound* 2) None 3) Numerical ceiling in relation to the number of tourist guides for this agreement will be in accordance with the India's Revised Offer number TN/S/O/IND Rev.1* dated 24 August 2005 under the	1) Unbound* 2) None 3) None	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	GATS. The current limit is 500 guides. 4) Numerical ceiling in relation to the number of tourist guides for this agreement will be in accordance with the India's Revised Offer number TN/S/O/IND Rev.1* dated 24 August 2005 under the GATS. The current limit is 500 guides. For others: Unbound except as indicated in horizontal section.	4) Unbound except as indicated in the horizontal section.	
10. RECREATIONAL, CULTURAL AND SPORTING SERVICES (other than audio-visual services)			
A. Entertainment Services (including theatre and live bands (CPC 9619**)	1) Unbound 2) None 3) None	1) Unbound 2) None 3) None	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	4) Unbound except as indicated in the horizontal section.	4) Unbound except as indicated in the horizontal section.	
C Library Services (CPC 96311) and Archive Services, excluding archival management of public records (CPC 96312**)	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section	
D. Sporting and other recreational services (CPC 964**) (excluding lottery, gambling, and betting services)	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section and subject to reciprocity.	1) None 2) None 3) None 4) Unbound except as indicated in the horizontal section.	

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
11. TRANSPORT SERVICES			
A. Maritime transport services The commitments in Maritime Transport are made in accordance with the GATS. All commitments are subject to domestic laws, entry requirements, rules and regulations and the terms and conditions of the Directorate General of Shipping, RBI and any other competent authority in India. For supply of Maritime Auxiliary Services through commercial presence under Mode 3, it will be only by establishing a Company registered under any Central Act or State Act in India and having its principal place of business in India and subject to the conditions as are required by law and applicable to such companies.			
International Transport (Freight and Passengers excluding cabotage and offshore transport as defined in the Attachment)	1) (a) Liner Shipping And (b) Bulk Shipping (i) Dry, Liquid and Gas (other than LNG) None, except that: - For government	1) (a) Liner Shipping And (b) Bulk Shipping (i) Dry, Liquid and Gas (other than LNG) None except that: - For government	Access to and use of Port Facilities No measures shall be applied to the following services which deny reasonable and non-discriminatory access to international maritime suppliers: 1. Pilotage

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	cargoes, and Government owned/controlled cargo, and in all cases Tendering by Government authorities or public sector undertakings for import or export of cargo, and for chartering a vessel for carriage of any government or privately owned/controlled cargoes for export or import: Preference will be given to Indian Flag vessels - Government policy on FOB/FAS will hold good	cargoes, and Government owned/controlled cargo, and in all cases Tendering by Government authorities or public sector undertakings for import or export of cargo, and for chartering a vessel for carriage of any government or privately owned/controlled cargoes for export or import: Preference will be given to Indian Flag vessels - Government policy on FOB/FAS will hold good.	2. Towing, tug assistance & pushing 3. Provisioning, fuelling & watering 4. Garbage collecting & ballast water disposal 5. Port Captain services 6. Navigation aids water and electrical supplies.

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	(ii) LNG: Unbound (c) Passenger: None, except that all such transport shall be on the basis of bilateral agreements on reciprocity basis. 2) None 3) (a) None, but condition that for operating a ship under the Indian flag, a registered company, or a cooperative society under any Central Act or State Act having its principal place of business in India, must be established. (b) Other forms of commercial presence for	(ii) LNG: Unbound (c) Passenger: None, except that all such transport shall be on the basis of bilateral agreements on reciprocity basis. 2) None 3) (a) None, but conditions that for operating a ship under the Indian flag, a registered company, or a cooperative society under any Central Act or State Act having its principal place of business in India, must be established; and (b) Other forms of commercial presence for	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	the supply of International Maritime Transport Services (as per definitions): Unbound 4) Unbound	the supply of International Maritime Transport Services (as per definitions): Unbound 4) Unbound	
MARITIME AUXILIARY SERVICES			
Maritime Cargo Handling Services	1) Unbound* 2) None 3) None, except as indicated in Horizontal commitment/ Head Note to this schedule. 4) Unbound except as indicated in the horizontal section.	1) Unbound* 2) None 3) None, except as indicated in Horizontal commitment/ Head Note to this schedule. 4) Unbound except as indicated in the horizontal section.	
Storage and Warehousing Services in Ports	1) Unbound*	1) Unbound*	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	2) None 3) None, except as indicated in Horizontal commitment/ Head Note to this Schedule. 4) Unbound except as indicated in the horizontal section.	2) None 3) None, except as indicated in Horizontal commitment/ Head Note to this Schedule. 4) Unbound except as indicated in the horizontal section.	
Customs Clearance Services	1) Unbound 2) None 3) Unbound 4) Unbound except as indicated in the horizontal section.	1) Unbound 2) None 3) Unbound 4) Unbound except as indicated in the horizontal section.	
Container Station and Depot Services	1) Unbound 2) None 3) None, except as indicated in Horizontal commitment/Head Note to	1) Unbound 2) None 3) None, except as indicated in Horizontal commitment/Head Note to	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	this schedule. 4) Unbound except as indicated in the horizontal section.	this schedule. 4) Unbound except as indicated in the horizontal section.	
Maritime Agency Services	1) Unbound 2) None 3) None, except as indicated in Horizontal commitment/ Head Note to this Schedule. 4) Unbound except as indicated in the horizontal section.	1) Unbound 2) None 3) None, except as indicated in Horizontal commitment/ Head Note to this Schedule. 4) Unbound except as indicated in the horizontal section.	
Maritime Freight Forwarding Services	1) Unbound 2) None 3) None, except as indicated in Horizontal commitment/ Head Note to this Schedule. 4) Unbound except as indicated	1) Unbound 2) None 3) None, except as indicated in Horizontal commitment/ Head Note to this schedule. 4) Unbound except as indicated	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	in the horizontal section.	in the horizontal section.	
International rental/ charter of vessels with crew or on bareboat basis (excluding cabotage and offshore transport)	1) Unbound 2) None except obtaining permission from Director General (Shipping) for chartering a foreign flag vessel in the absence of availability of a suitable Indian vessel. 3) Unbound 4) Unbound except as indicated in the horizontal section.	1) Unbound 2) None except vessels rented by Indian nationals are considered as foreign vessels. 3) Unbound 4) Unbound except as indicated in the horizontal section.	
Maintenance and repairs of seagoing vessels	1) None 2) None 3) None, except as indicated in Horizontal commitment/ Head Note to this Schedule	1) None 2) None 3) None, except as indicated in Horizontal commitment/ Head Note to this Schedule.	

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
	4) Unbound except as indicated in the horizontal section.	4) Unbound except as indicated in the horizontal section.	
Ship Broking Service (CPC 748**)	1) Unbound 2) None 3) None, except as indicated in Head Note 4) Unbound except as indicated in the horizontal section.	1) Unbound 2) None 3) None, except as indicated in Horizontal commitment/Head Note to this schedule. 4) Unbound except as indicated in the horizontal section.	
Air Transport Services and Airport Services The commitments below are subject to the terms and conditions of the GATS Annex on Air Transport Services			
Aircraft repair and maintenance services, i.e., activities when undertaken on an aircraft or a part thereof while it is withdrawn	1) None 2) None	1) None 2) None	

Modes of supply: 1) Cross-border supply 2) Consumption abroad 3) Commercial presence 4) Presence of natural persons

Sector or Sub-sector	Limitations on Market Access	Limitations on National Treatment	Additional Commitments
from service and do not include so-called line maintenance	3) None 4) Unbound except as indicated in the horizontal section	3) None 4) Unbound except as indicated in the horizontal section	
F. Road Transport Services			
(a) Passenger Transport (CPC 7121 + 7122) (b) Freight Transport (CPC 7123** excluding mail transportation (CPC 71235))	1) Unbound 2) None 3) Unbound 4) Unbound except as indicated in the horizontal section	1) Unbound 2) None 3) Unbound 4) Unbound except as indicated in the horizontal section	

(*) Unbound due to lack of technical feasibility

(**) Specific commitment for that code does not extend to the total range of services covered under that code.

APPENDIX 8H-1

Attachment to Annex 8H (Schedule of Specific Commitments – India): Definitions Related to Maritime Transport Services for the purposes of Schedule of Specific Commitments – India

1. **"International Transport (Freight and Passenger)"**, for the purpose of this Schedule, is to mean transportation of international Maritime Freight and Passengers by seagoing vessels from the port of loading in one country to the port of discharge in another country.

2. Cabotage: This Schedule does not include any commitments on **"Cabotage"** or **"Maritime Transport Services"** which are described as transportation of passengers or goods between any port or place located in India and any other port or place located in India and transportation of passengers or goods originating or terminating in the same port or place located in India, including transportation of passengers or goods between a port or a place located in India and another port, place, installation or structures situated in the Exclusive Economic Zone of India or on the continental shelf of India. Maritime cabotage shall further include services such as floating storage, offloading, towing, anchor-handling, dredging, off-shore drilling or production, diving support, maintenance support, various types of surveys, cable laying, sea-bed mining operations, pipe-laying, lighterage, salvage, marine construction, hook-up, port and terminal related support services, provided such services are supplied in the above areas by the vessels.

3. Offshore Transport: For the purposes of the Schedule only, **"Offshore Transport"** refers to shipping services involving the transportation of passengers or goods between a port located in India and any location installation or structure associated with or incidental to the exploration or exploitation of natural resources of the continental shelf of India, the seabed of the Indian coastal seas and the subsoil of the seabed, or situated on the continental shelf of India.

4. **"Other forms of Commercial Presence for the supply of International Transport Services"** means ability for International Maritime Transport Service suppliers to undertake local activities which are necessary for the supply to their customers of a partially or fully integrated transport service, within which maritime transport constitutes a substantial element.

   These activities include, but are not limited to:

   (a) marketing and sales of maritime transport and related services through direct contact with customers, from quotation to invoicing, these services being those operated or offered by

the service supplier itself or by service suppliers with which the service seller has established standing business arrangements;

(b) acquisition on their own about or on behalf of their customers (and the resale to their customers) for any transport and related services, including anchorage, berth and berth services, and onward transport services by any mode, particularly road and rail, inland waterways, necessary for the supply of the integrated services;

(c) the preparation of transport documents, customs documents, or other documents related to the origin and character of goods transported;

(d) the provision of business information, including computerized information systems and electronic data interchange;

(e) setting up of business arrangements with any locally established shipping agency and the appointment of personnel recruited locally (or, in the case of foreign personnel, subject to horizontal commitments on movement of personnel);

(f) organizing any aspect of the call of the vessel or taking control over cargoes;

(g) the provision of Ships Managers' Services.

NOTE: In order to enforce certain standards and conditions which need to be fulfilled by shipping service suppliers, particularly those providing ship personnel and crew and also those engaged in providing ships management services, and to ensure that the owner, operator, agent or manager has:

- the capability of implementing international standards as well as IMO stipulations and recommendations;

- the necessary financial structure so that he is responsible and accountable;

- the capability of implementing, the safety; and marine pollution controls;

- fulfilled requirements of quality management and his operations are transparent, a system of registration/ licensing of shipping service supplier is under consideration in India.

5. **"Ship Managers"** means persons entering India as the agents or representatives of a ship's owner or operator for the purposes of assessing requirements, negotiating and authorizing expenditures

necessary to the maintenance and operations of a vessel as well as the Handling of Cargo.

6. **"Maritime Cargo Handling Services"** means activities exercised by stevedore companies, including terminal operators, but not including the direct activities of dock workers, when this workforce is organized independently of the stevedoring or terminal operator companies. The activities covered, include the organization and supervision of:

- the loading/discharging of cargo to/from a ship;

- the lashing/unlashing of cargo;

- the reception/delivery and safekeeping of cargoes before shipment or after discharge.

The organization and supervision includes the arrangements for (1) engaging skilled workers (dockworkers), (2) using all necessary equipment for on board or shore use and appropriate storage space, whether by ownership, rental or otherwise, (3) the checking of parcels and markings, the weighing and measuring of cargo, and (4) the administrative duties and responsibilities related to the services.

7. **"Maritime Freight Forwarding Services"** means the activity of organizing and monitoring shipments on behalf of shippers through providing such services as the arrangement of actual transport and related services, consolidation, aggregation, packing of cargo, preparation of documentation and provision of business information.

8. **"Maritime Agency Services"** means activities in representing, within a given geographic area, the business interests of-one or more shipping lines or shipping companies for the following purposes:

- marketing and sales of maritime transport and related activities from quotation to invoicing (cargo booking and canvassing);

- issuance of bills of lading on behalf of the companies;

- acquisition and resale of other necessary related services (settlement of disbursements and claims) preparation of documentation, and provision of business information;

- acting on behalf of the companies in organizing the call of the ship or taking control of cargoes;

- to make arrangement in order to get all necessary port services required by the foreign vessel during its stay in Indian Ports;

- to appoint a stevedoring company for cargo loading and unloading on behalf of its principal;

- to collect freight on behalf of the principal.

9. **"Government Cargo"** means cargo originating from other countries (import cargoes including crude oil), petroleum by products, coal, natural gas, raw materials for fertilizers, food-grains etc.) purchased by Indian Government Agencies/Departments or based on loan/ credit agreements with other countries, as well as exports by Indian Government Agencies/ Departments including Government aid.

10. **"Maintenance and Repairs of Vessels"** means services such as repairs and management of vessels, mending, fixing or overhauling of a vessel, management of crew and marine insurance, provided on behalf of a maritime passenger or cargo transport business, or vessel leasing business.

11. **"International rental of vessels with crew or on bare-boat charter basis"** means rental and/or leasing services of all types of sea-going vessels with crew or on bare-boat basis (whereafter the ship will be manned by Indian nationals only during the period of rental or lease) for the purposes of international trade (like tankers, dry bulk cargo vessels, cargo and freight vessels et cetera).

APPENDIX 8H-2

Most-Favoured-Nation Treatment Sectoral Coverage

1. The reference to "CPC" against specific sectors or sub-sectors is a reference to the *Provisional Central Product Classification* (Statistical Papers, Series M, No. 77, Department of International Economic and Social Affairs, Statistical Office of the United Nations, New York, 1991).

2. India reserves the right to adopt or maintain any measure that accords more favourable treatment to any services and service suppliers of a country included in the United Nations' list of least developed countries under any international agreement in force or signed after the date of entry into force of this Agreement.

3. For greater certainty, the "treatment" referred to the Article 8.6 (Most-Favoured-Nation Treatment) does not include dispute settlement procedures provided for in other international agreements.

4. With regard to any bilateral or multilateral international agreement that India may enter into after the date of entry into force of this Agreement, India reserves the right to adopt or maintain any measure that accords more favourable treatment to any services and service suppliers of a party to such an agreement in all sectors, except in the sectors listed below:

   (a) Taxation Services (CPC 863);

   (b) Architectural Services (CPC 8671);

   (c) Urban Planning and landscape architectural services (CPC 8674);

   (d) Engineering Services (CPC 8672);

   (e) Integrated Engineering Services (CPC 8673);

   (f) Medical and dental services (CPC 9312);

   (g) R & D services on natural sciences and engineering (CPC 851);

   (h) Interdisciplinary R & D services (CPC 853);

   (i) Advertising services (CPC 871);

   (j) Services incidental to agriculture (CPC 8811);

   (k) Services incidental to manufacturing (CPC 884+885);

(l) Services incidental to forestry (CPC 8814);

(m) Management consulting services – excluding services relating to legal consultancy (CPC 865);

(n) Services related to management consulting (CPC 866);

(o) Related scientific and technical consulting services (CPC 8675);

(p) Building cleaning services (CPC 874);

(q) Photographic services (CPC 875);

(r) Packaging services (CPC 876);

(s) Convention services (CPC 87909);

(t) Interior design services (CPC 87907);

(u) Audio-visual services (CPC 9611, 9612, 9613);

(v) Construction and related engineering services (CPC 512, 514, 516, 517);

(w) Higher education services (CPC 923);

(x) Adult education services (CPC 924);

(y) Environmental services (CPC 9401-9406, 9409);

(z) Hospital services (CPC 9311);

(aa) Tourism and travel related services (CPC 641, 642, 643, 7471, 7472);

(ab) Computer and related services (CPC 841, 842, 843, 844, 845, 849);

(ac) Veterinary Services (CPC 932);

(ad) Services provided by midwives, nurses, physiotherapists and paramedical personnel (CPC 93191); and

(ae) Accounting and auditing services (CPC 862).

ANNEX 8I

SCHEDULE OF NON-CONFORMING MEASURES - NEW ZEALAND

LIST A
EXISTING MEASURES

Explanatory Notes

1. List A sets out, under Article 8.8 (Schedule of Non-Conforming Measures), the existing measures of New Zealand that do not conform with obligations imposed by:

   (a) Article 8.4 (National Treatment);

   (b) Article 8.5 (Market Access); or

   (c) Article 8.6 (Most-Favoured-Nation Treatment).

2. The reservations of New Zealand are without prejudice to the rights and obligations of the Parties under GATS.

3. Each entry sets out the following elements:

   (a) **"sector"** refers to the general sector in which the entry is made;

   (b) **"sub-sector"** refers to the specific sector in which the entry is made;

   (c) **"industry classification"** refers, where applicable, to the activity covered by the entry according to the CPC, ISIC Rev. 3.1, or as expressly otherwise described in that entry;

   (d) **"obligations concerned"** specifies the obligation referred to in paragraph 1 for which an entry is made;

   (e) **"level of government"** indicates the level of government maintaining the listed measure;

   (f) **"measures"** identifies the laws, regulations or other measures for which the entry is made. A "measure" cited in the "measures" element:

      (i) means the measure as amended, continued or renewed as of the date of entry into force of this Agreement; and

(ii) includes any subordinate measure adopted or maintained under the authority of and consistent with the measure; and

(g) **"description"** sets out the non-conforming aspects of the existing measure for which the entry is made.

4. In the interpretation of an entry, all elements of the entry shall be considered. An entry shall be interpreted in the light of the relevant obligations of the Chapter against which the entry is made. In the event of an inconsistency between the "measures" element and the other elements of an entry, the "measures" element shall prevail.

5. For the purposes of this Schedule:

(a) **"ISIC Rev. 3.1"** means the International Standard Industrial Classification of All Economic Activities as set out in Statistical Office of the United Nations, Statistical Papers, Series M, No.4, ISIC Rev. 3.1, 2002; and

(b) **"CPC"** means the Provisional Central Product Classification (Statistical Papers, Series M No. 77, Department of International Economic and Social Affairs, Statistical Office of the United Nations, New York, 1991).

6. For greater certainty, an entry for a requirement to have a local presence, including residency or nationality requirements, in the territory of New Zealand is made against Article 8.4 (National Treatment).

7. An entry made at the level of New Zealand applies to a measure of the central government or a local government.

8. This list of entries does not include measures relating to qualification requirements and procedures, technical standards and licensing requirements and procedures where they do not constitute a limitation within the meaning of Article 8.4 (National Treatment) or Article 8.5 (Market Access). Such measures may include the need to obtain a licence, satisfy a universal service obligation, have a recognised qualification in a regulated sector, pass a specific examination, including a language examination, fulfil a membership requirement of a particular profession, such as membership of a professional organisation, have a local agent for service, or to maintain a local address, or any other non-discriminatory requirements that certain activities may not be carried out in protected zones or areas. While not listed, such measures continue to apply.

9. For greater certainty, non-discriminatory measures do not constitute a market access limitation within the meaning of Article 8.5 (Market Access) for any measure:

(a) requiring the separation of the ownership of infrastructure from the ownership of the goods or services provided through that infrastructure to ensure fair competition, for example in the fields of energy, transportation and telecommunications;

(b) restricting the concentration of ownership to ensure fair competition;

(c) seeking to ensure the conservation and protection of natural resources and the environment, including a limitation on the availability, number and scope of concessions granted, and the imposition of a moratorium or ban;

(d) limiting the number of authorisations granted because of technical or physical constraints, for example telecommunications spectra and frequencies; or

(e) requiring that a certain percentage of the shareholders, owners, partners, or directors of a juridical person be qualified or practice a certain profession such as lawyers or accountants.

10. With respect to computer services, any of the following services shall be considered as computer and related services, regardless of whether they are delivered via a network, including the internet:

(a) consulting, adaptation, strategy, analysis, planning, specification, design, development, installation, implementation, integration, testing, debugging, updating, support, technical assistance or management of or for computers or computer systems;

(b) computer programmes defined as the sets of instructions required to make computers work and communicate (in and of themselves), as well as consulting, strategy, analysis, planning, specification, design, development, installation, implementation, integration, testing, debugging, updating, adaptation, maintenance, support, technical assistance, management or use of or for computer programmes;

(c) data processing, data storage, data hosting or database services;

(d) maintenance and repair services for office machinery and equipment, including computers; and

(e) training services for staff of clients, related to computer programmes, computers or computer systems, and not elsewhere classified.

For greater certainty, services enabled by computer and related services, other than those listed in subparagraphs (a) through (e) of this

paragraph, shall not be regarded as computer and related services in themselves.

11. With respect to New Zealand's obligations imposed by Article 8.5 (Market Access), juridical persons supplying financial services and constituted under the laws of New Zealand are subject to non-discriminatory limitations on juridical form.[1]

12. For greater certainty, the measures that New Zealand may take in accordance with Article 8A.3 (Prudential Measures), provided they meet the requirements of that Article, include those governing:

(a) licensing, registration or authorisation as a financial institution or cross-border financial service supplier, and corresponding requirements;

(b) juridical form, including legal incorporation requirements for systemically important financial institutions and limitations on deposit-taking activities of branches of overseas banks, and corresponding requirements;

(c) requirements pertaining to directors and senior management of a financial institution or cross-border financial service supplier;

(d) capital, related party exposures, liquidity, disclosure and other risk management requirements;

(e) payment, clearance and settlement systems (including securities systems);

(f) anti-money laundering and countering financing of terrorism; and

(g) distress or failure of a financial institution or cross-border financial service supplier.

[1] For example, partnerships and sole proprietorships are generally not acceptable juridical forms for authorised depository institutions in New Zealand. This headnote is not in itself intended to affect, or otherwise limit, a choice by a financial institution of the other Party between branches or subsidiaries.

List A: Entry 1

Sector	All Sectors
Obligations concerned	National Treatment Market Access
Measure	*Companies Act 1993* *Financial Reporting Act 2013*

Description

1. Consistent with New Zealand's financial reporting regime established under the *Companies Act 1993* and *Financial Reporting Act 2013,* the following types of entities are required to prepare financial statements that comply with generally accepted accounting practice, and have those statements audited and registered with the Registrar of Companies (unless exceptions to any of those requirements apply):

   (a) any body corporate that is incorporated outside New Zealand (an "overseas company") that carries on business in New Zealand within the meaning of the *Companies Act 1993* and which is "large"[2];

[2] An overseas company or subsidiary of an overseas company is "large" in respect of an accounting period if at least one of the following applies:

(i) as at the balance date of each of the two preceding accounting periods, the total assets of the entity and its subsidiaries (if any) exceed NZ$ 20 million; or

(ii) in each of the two preceding accounting periods, the total revenue of the entity and its subsidiaries (if any) exceeds NZ$ 10 million.

An audit report is required unless the New Zealand business of that overseas company is not "large" and the law in the jurisdiction where the company is incorporated does not require an audit.

(b) any “large” New Zealand company in which shares that in aggregate carry the right to exercise or control the exercise of 25 % or more of the voting power at a meeting of the company are held by[3]:

(i) a subsidiary of a body corporate incorporated outside New Zealand;

(ii) a body corporate incorporated outside New Zealand; or

(iii) a person not ordinarily resident in New Zealand;

(c) any “large” company incorporated in New Zealand which is a subsidiary of an overseas company.

2. If a company is required to prepare financial statements and if it has one or more subsidiaries, it must, instead of preparing financial statements in respect of itself, prepare group financial statements that comply with generally accepted accounting practice in relation to that group. This obligation does not apply if:

(a) the company (A) is itself a subsidiary of a body corporate (B), where body corporate (B) is:

(i) incorporated in New Zealand; or

(ii) registered or deemed to be registered under Part 18 of the *Companies Act 1993;* and

(b) group financial statements in relation to a group comprising B, A, and all other subsidiaries of B that comply with generally accepted accounting practice are completed; and

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[3]A New Zealand company is “large” in respect of an accounting period if at least one of the following paragraphs applies:

(i) as at the balance date of each of the two preceding accounting periods, the total assets of the entity and its subsidiaries (if any) exceed NZ$ 60 million; or

(ii) in each of the two preceding accounting periods, the total revenue of the entity and its subsidiaries (if any) exceeds NZ$ 30 million.

(c) a copy of the group financial statements referred to in paragraph (b) and a copy of the auditor's report on those statements are delivered for registration under the *Companies Act 1993* or for lodgement under another Act.

2. If an overseas company is required to prepare:

(a) financial statements under the *Companies Act 1993* it must also, if its New Zealand business meets the asset and revenue thresholds that apply in respect of "large" overseas companies, prepare, in addition to the financial statements of the large overseas company itself, financial statements for its New Zealand business prepared as if that business were conducted by a company formed and registered in New Zealand; and

(b) group financial statements under the *Companies Act 1993*, and if the group's New Zealand business meets the asset and revenue thresholds that apply in respect of "large" overseas companies, the group financial statements that are prepared must include, in addition to the financial statements of the group, financial statements for the group's New Zealand business prepared as if the members of the group were companies formed and registered in New Zealand.

List A: Entry 2

Sector	Agriculture, including Services Incidental to Agriculture
Obligations concerned	Market Access National Treatment
Measure	*Dairy Industry Restructuring Act 2001*
Description	The *Dairy Industry Restructuring Act 2001* (DIRA) and regulations provide for the management of a national database for herd testing data. The DIRA: (a) provides for the New Zealand Government to determine arrangements for the database to be managed by another dairy industry entity. In doing so the New Zealand Government may: (i) take into account the nationality and residency of the entity, persons that own or control the entity, and the senior management and Board of Directors of the entity; and (ii) restrict who may hold shares in the entity, including on the basis of nationality; (b) requires the transfer of data by those engaged in herd testing of dairy cattle to the Livestock Improvement Corporation (LIC) or successor entity; (c) establishes rules regarding access to the database and may deny that access on the basis that the database's intended use could be "harmful to the New Zealand dairy industry", which denial may take into account the nationality or residency of the person seeking access.

List A: Entry 3

Sector	Communication Services Telecommunications
Obligations concerned	National Treatment
Measure	Constitution of Chorus Limited
Description	The Constitution of Chorus Limited requires New Zealand Government approval for the shareholding of any single overseas entity to exceed 49.9 percent. At least half of the board directors are required to be New Zealand citizens.

List A: Entry 4

Sector	Agriculture, including Services Incidental to Agriculture
Obligations concerned	Market Access National Treatment
Measure	*Primary Products Marketing Act 1953*
Description	Under the *Primary Products Marketing Act 1953,* the New Zealand Government may impose regulations to enable the establishment of statutory marketing authorities with monopoly marketing and acquisition powers (or lesser powers) for "primary products", being products derived from beekeeping, fruit growing, hop growing, deer farming or game deer, or goats, being the fur bristles or fibres grown by the goat. Regulations may be issued under the *Primary Products Marketing Act 1953* concerning a broad range of the marketing authority's functions, powers and activities. In particular, regulations may require that board members or personnel be nationals of or resident in New Zealand.

List A: Entry 5

Sector	Air Transportation
Obligations concerned	National Treatment
Measure	Constitution of Air New Zealand Limited
Description	No one foreign national may hold more than 10% of shares that confer voting rights in Air New Zealand unless they have the permission of the Kiwi Shareholder.[4] In addition (a) at least three members of the Board of Directors must be ordinarily resident in New Zealand; (b) more than half of the Board of Directors must be New Zealand citizens; (c) the Chairperson of the Board of Directors must be a New Zealand citizen; and (d) the location of the Head Office of Air New Zealand, and its principal place of business, shall be in New Zealand.

[4] The Kiwi Share in Air New Zealand is a single NZ$1 special rights convertible preference share issued to the Crown. The Kiwi Shareholder is His Majesty the King in Right of New Zealand.

List A: Entry 6

Sector	All Sectors
Obligations concerned	Market Access National Treatment
Measure	*Overseas Investment Act 2005* *Fisheries Act 1996* *Overseas Investment Regulations 2005*
Description	Consistent with New Zealand's overseas investment regime as set out in the relevant provisions of the *Overseas Investment Act 2005,* the *Fisheries Act 1996* and the *Overseas Investment Regulations 2005,* the following investment activities require prior approval from the New Zealand Government: (a) acquisition or control by non-government sources of 25 per cent or more of any class of shares[5] or voting power[6] in a New Zealand entity where either the consideration for the transfer or the value of the assets exceeds NZ$200 million; (b) commencement of business operations or acquisition of an existing business by non-government sources, including business assets, in New Zealand, where the total expenditures to be incurred in setting up or acquiring that business or those assets exceed NZ$200 million; (c) acquisition or control by government sources of 25 per cent or more of any class of shares[7] or voting power[8] in a New

[5] For greater certainty, the term 'shares' includes shares and other types of securities.

[6] For greater certainty, 'voting power' includes the power to control the composition of 25 percent or more of the governing body of the New Zealand entity.

[7] For greater certainty, the term 'shares' includes shares and other types of securities.

[8] For greater certainty, 'voting power' includes the power to control the composition of 25 percent or more of the governing body of the New Zealand entity.

Zealand entity where either the consideration for the transfer or the value of the assets exceeds NZ$100 million;

(d) commencement of business operations or acquisition of an existing business by government sources, including business assets, in New Zealand, where the total expenditures to be incurred in setting up or acquiring that business or those assets exceed NZ$100 million;

(e) acquisition or control, regardless of dollar value, of certain categories of land that are regarded as sensitive or require specific approval according to New Zealand's overseas investment legislation; and

(f) any transaction, regardless of dollar value, that would result in an overseas investment in fishing quota.

Overseas investors must comply with the criteria set out in the overseas investment regime and any conditions specified by the regulator and the relevant Minister or Ministers.

This entry should be read in conjunction with List B Entry 10.

List A: Entry 7

Sector	Financial Services Insurance and Insurance-related Services
Obligations concerned	National Treatment Market Access
Measure	*Commodity Levies Act 1990* *Commodity Levies Amendment Act 1995* *Kiwifruit Industry Restructuring Act 1999* and *r*egulations
Description	The provision of crop insurance for wheat can be restricted in accordance with the *Commodity Levies Amendment Act 1995* ("CLA"). Section 4 of the CLA provides for the use of funds derived under a mandatory commodity levy on wheat growers to be used for the purpose of funding a scheme insuring wheat crops against damage or loss. The provision of insurance intermediation services related to the export of kiwifruit can be restricted in accordance with the *Kiwifruit Industry Restructuring Act 1999* and regulations relating to the export marketing of kiwifruit.

List A: Entry 8

Sector	Financial Services Banking and Other Financial Services (excluding Insurance)
Obligations concerned	National Treatment
Measure	*KiwiSaver Act 2006* *Financial Markets Conduct Act 2013*
Description	The fund manager of a registered KiwiSaver scheme and the corporate trustee of a registered KiwiSaver scheme that is a restricted scheme must both have at least one director that is a New Zealand resident for tax purposes.

List A: Entry 9

Sector	Communication Services Audio-visual and other Services
Obligations concerned	National Treatment
Existing measures	*Radiocommunications Act 1989*
Description	The acquisition of licences or management rights to use the radio frequency spectrum, or any interest in such licences or management rights, under the *Radiocommunications Act 1989* by foreign governments or agents on behalf of foreign governments is subject to the written approval of the Chief Executive of the Ministry of Business, Innovation and Employment.

LIST B
FUTURE MEASURES

Explanatory Notes

1. List B sets out, under Article 8.8 (Schedule of Non-Conforming Measures), the entries made by New Zealand with respect to existing, or more restrictive or new measures that do not conform with obligations imposed by:

   (a) Article 8.4 (National Treatment);

   (b) Article 8.5 (Market Access); or

   (c) Article 8.6 (Most-Favoured-Nation Treatment).

2. The reservations of New Zealand are without prejudice to the rights and obligations of the Parties under GATS.

3. Each entry sets out the following elements:

   (a) **"sector"** refers to the general sector in which the entry is made;

   (b) **"sub-sector"** refers to the specific sector in which the entry is made;

   (c) **"industry classification"** refers, where applicable, to the activity covered by the entry according to the CPC, ISIC Rev 3.1, or as otherwise expressly described in that entry;

   (d) **"obligations concerned"** specifies the obligation referred to in paragraph 1 for which an entry is made;

   (e) **"description"** sets out the scope of the sector, sub-sector or activities covered by the entry; and

   (f) **"existing measures"** identifies, for transparency purposes, existing measures that apply to the sector, sub-sector or activities covered by the entry.

4. In the interpretation of an entry, all elements of the entry shall be considered. Where an inconsistency arises in relation to the interpretation of an entry, the "description" element of the entry shall prevail.

5. For the purposes of this Schedule:

   (a) **"ISIC Rev. 3.1"** means the *International Standard Industrial Classification of All Economic Activities* as set out in Statistical

Office of the United Nations, Statistical Papers, Series M, No.4, ISIC Rev. 3.1, 2002; and

(b) **"CPC"** means the *Provisional Central Product Classification* (Statistical Papers, Series M No. 77, Department of International Economic and Social Affairs, Statistical Office of the United Nations, New York,1991).

6. For greater certainty, an entry for a requirement to have a local presence, including residency or nationality requirements, in the territory of New Zealand is made against Article 8.4 (National Treatment).

7. An entry made at the level of New Zealand applies to a measure of the central government or a local government.

8. The list of entries below does not include measures relating to qualification requirements and procedures, technical standards and licensing requirements and procedures where they do not constitute a limitation within the meaning of Article 8.4 (National Treatment) or Article 8.5 (Market Access). Such measures may include, the need to obtain a licence, satisfy a universal service obligation, have a recognised qualification in a regulated sector, pass a specific examination, including a language examination, fulfil a membership requirement of a particular profession, such as membership in a professional organisation, have a local agent for service, or to maintain a local address, or any other non-discriminatory requirements that certain activities may not be carried out in protected zones or areas. While not listed, such measures continue to apply.

9. For greater certainty, non-discriminatory measures do not constitute a market access limitation within the meaning of Article 8.5 (Market Access) for any measure:

(a) requiring the separation of the ownership of infrastructure from the ownership of the goods or services provided through that infrastructure to ensure fair competition, for example in the fields of energy, transportation and telecommunications;

(b) restricting the concentration of ownership to ensure fair competition;

(c) seeking to ensure the conservation and protection of natural resources and the environment, including a limitation on the availability, number and scope of concessions granted, and the imposition of a moratorium or ban;

(d) limiting the number of authorisations granted because of technical or physical constraints, for example telecommunications spectra and frequencies; or

(e) requiring that a certain percentage of the shareholders, owners, partners, or directors of a juridical person be qualified or practice a certain profession such as lawyers or accountants.

10. With respect to computer services, any of the following services shall be considered as computer and related services, regardless of whether they are delivered via a network, including the Internet:

(a) consulting, adaptation, strategy, analysis, planning, specification, design, development, installation, implementation, integration, testing, debugging, updating, support, technical assistance or management of or for computers or computer systems;

(b) computer programmes defined as the sets of instructions required to make computers work and communicate (in and of themselves), as well as consulting, strategy, analysis, planning, specification, design, development, installation, implementation, integration, testing, debugging, updating, adaptation, maintenance, support, technical assistance, management or use of or for computer programmes;

(c) data processing, data storage, data hosting or database services;

(d) maintenance and repair services for office machinery and equipment, including computers; and

(e) training services for staff of clients, related to computer programmes, computers or computer systems, and not elsewhere classified.

For greater certainty, services enabled by computer and related services, other than those listed in subparagraphs (a) through (e) of this paragraph, shall not be regarded as computer and related services in themselves.

11. With respect to Article 8.5 (Market Access), juridical persons supplying financial services and constituted under the law of New Zealand are subject to non-discriminatory limitations on legal form.[9]

[9] For example, partnerships and sole proprietorships are generally not acceptable juridical forms for financial institutions in New Zealand. This headnote is not in itself intended to affect, or otherwise limit, a choice by a financial institution of the other Party between branches or subsidiaries.

List B: Entry 1

Sector	All Sectors
Obligations concerned	National Treatment Most-Favoured-Nation Treatment Market Access
Description	New Zealand reserves the right to adopt or maintain any measure with respect to: (a) and the provision of public law enforcement correctional services; and (b) the following, to the extent that they are social services established for a public purpose: (i) childcare; (ii) health; (iii) income security and insurance; (iv) public education; (v) public housing; (vi) public training; (vii) public transport; (viii) public utilities; (ix) refuse disposal; (x) sanitation; (xi) sewage; (xii) waste water management; (xiii) waste management; (xiv) social security and insurance; and (xv) social welfare.

List B: Entry 2

Sector	Financial Services
Obligations concerned	National Treatment Most-Favoured-Nation Treatment Market Access
Description	New Zealand reserves the right to adopt or maintain any measure with respect to the supply of: (a) compulsory social insurance for personal injury caused by accident, work related gradual process disease and infection, and treatment injury; and (b) disaster insurance for residential property for replacement cover up to a defined statutory maximum.
Existing measures	*Accident Compensation Act 2001* *Natural Hazards Insurance Act 2023*

List B: Entry 3

Sector Financial Services

Obligations concerned National Treatment

Market Access

Description Cross border trade in services

New Zealand reserves the right to adopt or maintain any measures with respect to:

(a) insurance and insurance-related services, except for:

(i) insurance of risk relating to:

(A) maritime shipping and commercial aviation and space launching and freight (including satellites), with such insurance to cover any or all of the following: the goods being transported, the vehicle transporting the goods, and any liability deriving therefrom;

(B) goods in international transit;

(C) credit and suretyship;

(D) land vehicles including motor vehicles;

(E) fire and natural forces;

(F) other damage to property;

(G) general liability;

(H) miscellaneous financial loss; and

(I) difference in conditions and difference in limits, where the difference in conditions or difference in limits cover is provided under a master policy

issued by an insurer to cover risks across multiple jurisdictions;

(ii) reinsurance and retrocession as referred to in subparagraph (ii) of the definition of “financial service” in Article 8A.1 (Definitions);

(iii) services auxiliary to insurance, as referred to in subparagraph (iv) of the definition of “financial service” in Article 8A.1 (Definitions); and

(iv) insurance intermediation, such as brokerage and agency, as referred to in subparagraph (iii) of the definition of “financial service” in Article 8A.1 (Definitions), of insurance risks relating to services listed in subparagraph (i) in this paragraph.

(b) Paragraph (a) does not permit suppliers of the services listed in subparagraphs (a)(i)(C) through (a)(i)(I) to provide a service to a retail client.

(c) In this entry, for New Zealand, “retail client” means:

(i) a natural person; or

(ii) a retail client as defined in clause 3 of Schedule 5 of the *Financial Markets Conduct Act 2013.*

(d) New Zealand reserves the right to adopt or maintain any measures with respect to banking and other financial services (excluding insurance), except for:

(i) provision and transfer of financial information and financial data processing and related software, as referred to in subparagraph (xv) of the definition of financial services in Article 8A.1 (Definitions);

(ii) advisory and other auxiliary financial services, excluding intermediation, relating to banking and other financial services, as referred to in

subparagraph (xvi) of the definition of financial services in Article 8A.1 (Definitions);

(iii) portfolio management services by a financial services supplier of India to:

(A) a registered scheme; and

(B) insurance companies.

(e) for the purposes of the commitment made in subparagraph (d)(iii):

(i) a **"registered scheme"** means a registered scheme as defined under the *Financial Markets Conduct Act 2013;*

(ii) **"portfolio management"** means managing portfolios in accordance with mandates given by clients on a discretionary client-by-client basis and where such portfolios include one or more financial instruments; and

(iii) portfolio management services do not include:

(A) custodial services;

(B) trustee services; or

(C) execution services.

List B: Entry 4

Sector	Financial Services Banking and Other Financial Services (excluding Insurance)
Obligations concerned	National Treatment Market Access
Description	New Zealand reserves the right to adopt or maintain any measure with respect to the establishment or operation of exchanges, securities markets, or futures markets. For greater certainty, this reservation does not apply to financial institutions participating in, or seeking to participate in, any such exchange, securities market, or futures market.

List B: Entry 5

Sector	Financial Services Banking and Other Financial Services (excluding Insurance)
Obligations concerned	National Treatment Market Access
Description	New Zealand reserves the right to adopt or maintain any measures with respect to the establishment or operation of any unit trust, market or other facility established for the trade in, or allotment or management of, securities in the co-operative dairy company arising from the amalgamation authorised under the *Dairy Industry Restructuring Act 2001* (or any successor body).

List B: Entry 6

Sector	Financial Services Insurance and Insurance-related Services
Obligations concerned	National Treatment Market Access
Description	New Zealand reserves the right to adopt or maintain any measure with respect to insurance and insurance-related services for industry marketing boards established for products under the following CPC codes: (a) 01, except 01110 and 01340 (products of agriculture, horticulture and market gardening, except wheat and kiwifruit); (b) 02 (live animals and animal products); (c) 211, except 21111, 21112, 21115, 21116 and 21119 (meat and meat products, except beef, sheep meat, poultry and offal); (d) 213-216 (prepared and preserved vegetables, fruit juices and vegetable juices, prepared and preserved fruit and nuts, animal and vegetable oils and fats); (e) 22 (dairy); (f) 2399 (other food products); and (g) 261, except for 2613, 2614, 2615, 02961, 02962 and 02963 (natural textile fibres prepared for spinning, excluding wool).
Existing measures	*Commodity Levies Act 1990*

List B: Entry 7

Sector	All Sectors
Obligations concerned	Market Access National Treatment
Description	New Zealand reserves the right to adopt or maintain any measure with respect to water, including the allocation, collection, treatment and distribution of drinking water.

List B: Entry 8

Sector	All Sectors
Obligations concerned	Market Access National Treatment Most-Favoured-Nation Treatment
Description	New Zealand reserves the right to adopt and maintain any measure solely as part of the act of devolving a service that is provided in the exercise of governmental authority at the date of entry into force of the Agreement. Such measures may include: (a) restricting the number of service suppliers; (b) allowing a juridical person, wholly or majority owned by the Government of New Zealand, to be the sole service supplier or one amongst a limited number of service suppliers; (c) imposing restrictions on the composition of senior management and boards of directors; (d) requiring local presence; and (e) specifying the juridical form of the service supplier.

List B: Entry 9

Sector	All Sectors
Obligations concerned	Market Access National Treatment Most-Favoured-Nation Treatment
Description	Where the New Zealand Government wholly owns or has effective control over a juridical person, then New Zealand reserves the right to adopt or maintain any measures regarding the sale of any shares in that juridical person or any assets of that juridical person to any person, including according more favourable treatment to New Zealand nationals.

List B: Entry 10

Sector	All Sectors
Obligations concerned	Market Access National Treatment
Description	New Zealand reserves the right to adopt or maintain any measure that sets out the approval criteria to be applied to the categories of overseas investment that require approval under New Zealand's overseas investment regime. For transparency purposes those categories, as set out in List A are: (a) acquisition or control by non-government sources of 25 per cent or more of any class of shares[10] or voting power[11] in a New Zealand entity where either the consideration for the transfer or the value of the assets exceeds NZ$200 million; (b) commencement of business operations or acquisition of an existing business by non-government sources, including business assets, in New Zealand, where the total expenditures to be incurred in setting up or acquiring that business or those assets exceed NZ$200 million; (c) acquisition or control by government sources of 25 per cent or more of any class of shares[12] or voting power[13] in a New Zealand entity where either the consideration for the transfer or the value of the assets exceeds NZ$100 million; (d) commencement of business operations or acquisition of an existing business by

[10] For greater certainty, the term "shares" includes shares and other types of securities.

[11] For greater certainty, "voting power" includes the power to control the composition of 25 percent or more of the governing body of the New Zealand entity.

[12] For greater certainty, the term "shares" includes shares and other types of securities.

[13] For greater certainty, "voting power" includes the power to control the composition of 25 percent or more of the governing body of the New Zealand entity.

government sources, including business assets, in New Zealand, where the total expenditures to be incurred in setting up or acquiring that business or those assets exceed NZ$100 million;

(e) acquisition or control, regardless of dollar value, of certain categories of land that are regarded as sensitive or require specific approval according to New Zealand's overseas investment legislation; and

(f) any transaction, regardless of dollar value, that would result in an overseas investment in fishing quota.

Existing measures

Overseas Investment Act 2005

Fisheries Act 1996

Overseas Investment Regulations 2005

List B: Entry 11

Sector	All Sectors
Obligations concerned	Most-Favoured-Nation Treatment
Description	New Zealand reserves the right to adopt or maintain any measure that accords differential treatment to a Party or a non-Party under any international agreement in force or signed after the date of entry into force of this Agreement involving: (a) aviation; (b) fisheries; and (c) maritime matters.

List B: Entry 12

Sector	All Sectors
Obligations concerned	National Treatment
Description	New Zealand reserves the right to adopt or maintain any measure regarding the control, management or use of: (a) protected areas, being areas established under and subject to the control of legislation, including resources on land, interests in land or water, that are set up for heritage management purposes (both historic and natural heritage), public recreation, and scenery preservation; or (b) species owned under enactments by the Crown or that are protected by or under an enactment.
Existing measures	*Conservation Act 1987* and the enactments listed in Schedule 1 of the *Conservation Act 1987* *Resource Management Act 1991* *Fast-track Approvals Act 2024* *Local Government Act 1974.*

List B: Entry 13

Sector	All Sectors
Obligations concerned	National Treatment Market Access
Description	New Zealand reserves the right to adopt or maintain any nationality or residency measures in relation to: (a) animal welfare; and (b) the preservation of plant, animal and human life and health; including in particular: (i) food safety of domestic and exported foods; (ii) animal feeds; (iii) food standards; (iv) biosecurity; (v) biodiversity; and (vi) certification of the plant or animal health status of goods. New Zealand also reserves the right to adopt or maintain any measures requiring the purchase in its territory of compliance, monitoring and similar services to ensure that regulatory requirements relating to the following matters are met: (a) animal welfare; (b) food safety of domestic and exported foods; (c) animal feeds; (d) food standards; (e) biosecurity;

(f) biodiversity;

(g) certification of the plant or animal health status of goods;

(h) climate change mitigation; and

(i) sustainability.

Nothing in this reservation shall be construed to derogate from the obligations of Chapter 6 (Sanitary and Phytosanitary Measures) or the obligations of the SPS Agreement or the Sanitary Agreement.

Nothing in this reservation shall be construed to derogate from the obligations of Chapter 7 (Technical Barriers to Trade), or the obligations of the TBT Agreement.

List B: Entry 14

Sector	All Sectors
Obligations concerned	Market Access National Treatment
Description	New Zealand reserves the right to maintain or adopt any measure made by or under an enactment in respect of the foreshore and seabed, internal waters as defined in international law (including the beds, subsoil and margins of such internal waters), territorial sea, the Exclusive Economic Zone, and the continental shelf, including for the issuance of maritime concessions in the continental shelf.
Existing measures	*Resource Management Act 1991* *Fast-track Approvals Act 2024* *Marine and Coastal Area (Takutai Moana) Act 2011* *Continental Shelf Act 1964* *Crown Minerals Act 1991* *Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act 2012*

List B: Entry 15

Sector	Business Services Fire Services
Obligations concerned	National Treatment Market Access
Description	New Zealand reserves the right to adopt or maintain any measure with respect to the provision of fire prevention and firefighting services, excluding aerial firefighting services.
Existing measures	*Fire and Emergency New Zealand Act 2017*

List B: Entry 16

Sector	Business Services Research and Development
Obligations concerned	Market Access National Treatment
Description	New Zealand reserves the right to adopt or maintain any measure with respect to: (a) Research and development services carried out by State funded tertiary institutions or by Public Research Organisations when such research is conducted for a public purpose; or (b) Research and experimental development services on physical sciences, chemistry, biology, engineering and technology, agricultural sciences, medical, pharmaceutical and other natural sciences, i.e. CPC 8510.

List B: Entry 17

Sector	Business Services Technical Testing and Analysis Services
Obligations concerned	National Treatment Market Access
Description	New Zealand reserves the right to adopt or maintain any measures in respect of: (a) composition and purity testing and analysis services (CPC 86761); (b) technical inspection services (CPC 86764); (c) other technical testing and analysis services (CPC 86769); (d) geological, geophysical, and other scientific prospecting services (CPC 86751); and (e) drug testing services.

List B: Entry 18

Sector	Business Services Fisheries and Aquaculture Services related to Fisheries and Aquaculture
Obligations concerned	Market Access National Treatment Most-Favoured-Nation Treatment
Description	New Zealand reserves the right to control the activities of foreign fishing, including fishing landing, first landing of fish processed at sea, and access to New Zealand ports (port privileges) consistent with the provisions of the United Nations Convention on the Law of the Sea.
Existing measures	*Fisheries Act 1996* *Aquaculture Reform (Repeals and Transitional Provisions) Act 2004*

List B: Entry 19

Sector	Business Services
	Energy
	Manufacturing
	Wholesale trade
	Retail
Obligations concerned	Market Access
	National Treatment
	Most-Favoured-Nation Treatment
Description	New Zealand reserves the right to adopt any measure in order to prohibit, regulate, manage or control the production, use, distribution or retail of nuclear energy, including setting conditions for natural persons or juridical persons to do so.

List B: Entry 20

Sector	Agriculture, including Services Incidental to Agriculture
Obligations concerned	Market Access National Treatment
Description	New Zealand reserves the right to adopt or maintain any measures with respect to: (a) the holding of shares in the co-operative dairy company arising from the amalgamation authorised under the *Dairy Industry Restructuring Act 2001* ("DIRA"), or any successor body; and (b) the disposition of assets of that company or its successor bodies.
Existing measures	*Dairy Industry Restructuring Act 2001.*

List B: Entry 21

Sector	Agriculture, including Services Incidental to Agriculture
Obligations concerned	Market Access National Treatment
Description	New Zealand reserves the right to adopt or maintain any measures with respect to the export marketing of fresh kiwifruit to all markets other than Australia.
Existing measures	*Kiwifruit Industry Restructuring Act 1999* and regulations.

List B: Entry 22

Sector	Agriculture, including Services Incidental to Agriculture
Obligations concerned	Market Access National Treatment
Description	New Zealand reserves the right to adopt or maintain any measure with respect to: (a) specifying the terms and conditions for the establishment and operation of any government endorsed allocation scheme for the rights to the distribution of export products falling within the HS categories covered by the WTO Agreement on Agriculture to markets where tariff quotas, country-specific preferences or other measures of similar effect are in force; and (b) the allocation of distribution rights to wholesale trade service suppliers pursuant to the establishment or operation of such an allocation scheme. This entry is not intended to have the effect of prohibiting all investment in the provision of wholesale trade and distribution services relating to goods in the HS chapters covered by the WTO Agreement on Agriculture.

List B: Entry 23

Sector	Agriculture, including Services Incidental to Agriculture
Obligations concerned	Market Access National Treatment
Description	New Zealand reserves the right to maintain or adopt any measure, including nationality or residency measures, necessary to give effect to the establishment or the implementation of mandatory marketing plans (also referred to as "export marketing strategies") for the export marketing of products derived from: (a) agriculture; (b) beekeeping; (c) horticulture; (d) arboriculture; (e) arable farming; and (f) the farming of animals, where there is support within the relevant industry that a mandatory collective marketing plan should be adopted or activated. For the avoidance of doubt, mandatory marketing plans, in the context of this reservation exclude measures limiting the number of market participants or limiting the volume of exports. This reservation only relates to the supply of a service via commercial presence.
Existing measures	*New Zealand Horticulture Export Authority Act 1987*

List B: Entry 24

Sector	Health and Social Services
Obligations concerned	Most-Favoured-Nation Treatment Market Access
Description	New Zealand reserves the right to adopt or maintain any measure with respect to all services suppliers and investors for the supply of adoption services.
Existing measures	*Adoption Act 1995* *Adoption (Intercountry) Act 1997*

List B: Entry 25

Sector	Recreation, Cultural and Sporting
Obligations concerned	Market Access National Treatment
Description	New Zealand reserves the right to adopt or maintain any measure with respect to gambling, betting and prostitution services.
Existing measures	*Gambling Act 2003* and *Regulations* *Prostitution Reform Act 2003* *Racing Industry Act 2020* *Racing (Harm Prevention and Minimisation) Regulations 2004* *Racing (New Zealand Greyhound Racing Association Incorporated) Order 2009*

List B: Entry 26

Sector	Recreation, Cultural and Sporting Library, Archive, Museum and Other Cultural Services
Obligations concerned	National Treatment Market Access Most-Favoured-Nation Treatment
Description	New Zealand reserves the right to adopt or maintain any measures in respect of: (a) cultural heritage of national value; including ethnological, archaeological, historical, literary, artistic, scientific or technological heritage, as well as collections that are documented, preserved and exhibited by museums, galleries, libraries, archives and other heritage collecting institutions; (b) public archives; (c) library and museum services; and (d) services for the preservation of historical or sacred sites or historical buildings.

List B: Entry 27

Sector	Transport Maritime Services
Obligations concerned	National Treatment Market Access Most-Favoured-Nation Treatment
Description	New Zealand reserves the right to adopt or maintain any measure with respect to: (a) the carriage by sea of passengers or cargo between a port located in New Zealand and another port located in New Zealand and traffic originating and terminating in the same port in New Zealand (maritime cabotage), with the exception of the movement of empty containers; (b) feeder services; (c) the establishment of registered companies for the purpose of operating a fleet under the New Zealand flag; and (d) the registration of vessels in New Zealand.

List B: Entry 28

Sector	Distribution Services
Obligations concerned	Market Access
Description	New Zealand reserves the right to adopt or maintain any measure for public health or social policy purposes with respect to wholesale and retail trade services of tobacco products and alcoholic beverages.

List B: Entry 29

Sector	All Sectors
Obligations concerned	National Treatment
Description	New Zealand reserves the right to adopt or maintain any taxation measure with respect to the sale, purchase or transfer of residential property (including interests that arise via leases, financing and profit-sharing arrangements, and acquisition of interests in juridical persons that own residential property). For greater certainty, residential property does not include non-residential commercial real estate.

List B: Entry 30

Sector	All Sectors
Obligations concerned	National Treatment
Description	New Zealand reserves the right to adopt or maintain any measure to require companies established in New Zealand to have: (a) one member of a Board of Directors to be a New Zealand national; or (b) a minority of a Board of Directors to be a New Zealand national, where that requirement would not materially impair the ability of the investor to exercise control over its juridical person, provided that the requirement is for the purpose of securing compliance with laws or regulations that are not inconsistent with this Agreement.
Existing measures	*Companies Act 1993* *Limited Partnerships Act 2008*

List B: Entry 31

Sector	Communication Services Postal and Courier Services
Obligations concerned	Market Access
Description	New Zealand reserves the right to adopt or maintain any measure that would impose on postal operators additional conditions for operation in the market or de-registration where operators engage in anti-competitive behaviour. New Zealand reserves the right to adopt or maintain any measure that would allow it to restrict the issue of postage stamps bearing the words “New Zealand”.[14]

[14] The issue of stamps bearing the words “New Zealand” to Universal Postal Union designated operators except where the words “New Zealand” form part of the name of the operator issuing the stamps.

List B: Entry 32

Sector

Distribution Services

Commission Agents' Services

Obligations concerned

Market Access

Description

New Zealand reserves the right to adopt or maintain any measure in respect of sectors not falling within the following CPC Codes:

(a) CPC 62113-62115;

(b) CPC 62117-62118;

(c) CPC 62111 except for 02961-02693 (ovine wool);

(d) CPC 62112 except for CPC 21111, 21112, 21115, 21116 and 21119 (edible offals of bovine and ovine origin) and 02961-02963 (ovine wool); and

(e) CPC 62116 except for 2613-2615 (ovine wool).

In respect of sectors falling within the following CPC codes:

(a) CPC 62111 only in respect of 02961-02693 (ovine wool);

(b) CPC 62112 only in respect of CPC 21111, 21112, 21115, 21116 and 21119 (edible offals of bovine and ovine origin) and 02961-02963 (ovine wool); and

(c) CPC 62116 only in respect of 2613-2615 (ovine wool),

New Zealand reserves the right to adopt or maintain any measure regarding export distribution that relates to:

(a) the allocation of distribution rights related to exports of products to

export markets where tariff quotas, country specific preferences and other measures of similar effect are found which places limitations on the numbers of services suppliers, total value of services transactions or numbers of services operations; and

(b) mandatory export marketing strategies where there is support within the relevant industry. These export marketing strategies do not include measures limiting the number of market participants or limiting the volume of exports.

List B: Entry 33

Sector	Distribution Services Wholesale Trade Services
Obligations concerned	Market Access
Description	New Zealand reserves the right to adopt or maintain any measure in respect of sectors not falling within the following CPC codes: (a) CPC 6223-6226, and 6228; (b) CPC 6221 except for 02961-02963 (ovine wool); (c) CPC 6222 except for CPC 21111, 21112, 21115, 21116 and 21119 (edible offals of ovine and bovine origin); and (d) CPC 62277 except for 2613-2615 (ovine wool). In respect of sectors falling within the following CPC codes: (a) CPC 6221 only in respect of 02961-02963 (ovine wool); (b) CPC 6222 only in respect of CPC 21111, 21112, 21115, (c) 21116 and 21119 (edible offals of ovine and bovine origin); and (d) CPC 62277 only in respect of 2613-2615 (ovine wool), New Zealand reserves the right to adopt or maintain any measure regarding export distribution that relates to: (a) the allocation of distribution rights related to exports of products to export markets where tariff quotas, country

specific preferences and other measures of similar effect are found which places limitations on the numbers of services suppliers, total value of services transactions or numbers of services operations; and

(b) mandatory export marketing strategies where there is support within the relevant industry. These export marketing strategies do not include measures limiting the number of market participants or limiting the volume of exports.

List B: Entry 34

Sector	Air and Maritime Transport Selling and Marketing of Air and Maritime Transport Services
Obligations concerned	Market Access
Description	New Zealand reserves the right to adopt or maintain any measure with respect to products covered under CPC 01, 02, 211, 213-216, 22, 2399 and 261 (except for marketing and sales relating to CPC 21111, 21112, 21115, 21116 and 21119 (edible offals of bovine and ovine origin), CPC 2613 and 2615 (ovine wool), and CPC 02961 – 02963 (ovine wool)).

List B: Entry 35

Sector	Maritime Transport International Transport
Obligations concerned	Market Access
Description	New Zealand reserves the right to adopt or maintain any measure with respect to the establishment of a registered company for the purpose of operating a fleet under the New Zealand flag. This reservation relates to services covered under CPC Code 7211 (passenger transportation, except cabotage) and 7212 (freight transportation, except cabotage).

List B: Entry 36

Sector	Professional Services
Obligations concerned	Market Access
Description	New Zealand reserves the right to adopt or maintain any measure in relation to the following sub-sectors: (a) auctioneering services; (b) insolvency and receivership services; (c) map-making services; (d) franchising services; (e) patent agent services; (f) trademark agent services; (g) quantity surveying and services; (h) scientific and technical consulting services; (i) printing and publishing services; and (j) research and development on social sciences and humanities.

List B: Entry 37

Sector	Business Services
Obligations concerned	Market Access
Description	New Zealand reserves the right to adopt or maintain any measure in relation to the following sub-sectors: (a) leasing or rental services concerning containers; (b) licencing of intellectual property, including trademarks; (c) licencing of research and development products; (d) licencing of entertainment, literary or artistic originals; (e) mineral exploration and evaluation; (f) security system services; (g) guard services; (h) investigation services; (i) security consulting services; (j) armoured car services; and (k) other security services.

List B: Entry 38

Sector	Maintenance and Repair Services
Obligations concerned	Market Access
Description	New Zealand reserves the right to adopt or maintain any measure in relation to maintenance and repair services for: (a) fabricated metal products, machinery and equipment; (b) other machinery and equipment; (c) electrical household appliances; (d) telecommunication equipment and apparatus; (e) medical, precision and optical instruments; (f) consumer electronics; (g) commercial and industrial machinery; (h) elevators and escalators; and (i) other equipment. .

List B: Entry 39

Sector	Health Services
Obligations concerned	Market Access
Description	New Zealand reserves the right to adopt or maintain any measure in relation to the following sub-sectors: (a) private health and social services; and (b) services provided by midwives, nurses, physiotherapists and para-medical personnel.

List B: Entry 40

Sector	Recreational, Cultural, and Sporting Services
Obligations concerned	Market Access
Description	New Zealand reserves the right to adopt or maintain any measure in relation to recreational, cultural and sporting services.

List B: Entry 41

Sector	Transport Services
Obligations concerned	Market Access
Description	New Zealand reserves the right to adopt or maintain any measure in relation to the following sub-sectors: (a) pilotage and berthing services; (b) rental of vessels with crew for maritime transport services; (c) Pushing and towing services (maritime); (d) local water transport services of passengers; (e) rental services of water vessels with operator; (f) cross-border supply of maritime container handling services[15] from the territory of the India into the territory of New Zealand. This reservation does not apply through (i) transhipment (board to board or via the quay) and (ii) the use of on board cargo handling equipment; (g) maintenance and repair of vessels;

[15] "maritime container handling services" means activities exercised by stevedoring companies, including terminal operators, but not including the direct activities of dockers when this workforce is organised independently of the stevedoring or terminal operator companies. The activities include the organisation and supervision of:

(a) the loading or discharging of containers to or from a ship:

(b) the lashing or unlashing of containers; and

(c) the reception or delivery, and safekeeping, of containers before shipment or after discharge.

(h) vessel salvage and refloating services;

(i) internal waterways transport;

(j) freight transport for internal waterways transport;

(k) passenger transportation (internal waterways);

(l) pushing and towing services for internal waterways transport;

(m) rental of vessels with crew for internal waterways transport;

(n) supporting services for internal waterway transport;

(o) control, inspection and surveillance of airport and heliports;

(p) space transport services of passengers;

(q) space transport services of freight;

(r) supporting services for space transport;

(s) supporting services for rail transport services;

(t) road transport services for mail;

(u) maintenance and repair of road transport equipment;

(v) parking lot services;

(w) supporting services for road transport services;

(x) supply of desalinated water to ships berthed at ports or in territorial waters; and

(y) shipbuilding and repairing, and marine engine services.

List B: Entry 42

Sector	Utilities Services
Obligations concerned	Market Access
Description	New Zealand reserves the right to adopt or maintain any measure in relation to the following sub-sectors: (a) energy services; (b) oil and other hydrocarbon services; (c) services supporting the petroleum industry; (d) services related to oil and gas resources; (e) services incidental to energy distribution; and (f) electricity, gas and water distribution (on own account).

List B: Entry 43

Sector	Other Services
Obligations concerned	Market Access
Description	New Zealand reserves the right to adopt or maintain any measure in relation to the following sub-sectors: (a) handicraft industries; (b) market research and public opinion polling services (CPC 8640); (c) packaging services (CPC 8760); (d) cemeteries and cremation services (CPC 9703); (e) jewellery design; (f) support services to aquaculture; (g) services provided to extraterritorial organisations and bodies (CPC 9900); (h) domestic services (CPC 87204); (i) cosmetic treatment, manicuring and pedicuring services (CPC 97022); (j) hairdressing and barbers services (CPC 97021); (k) beauty and physical well-being services (CPC 97029); (l) grant giving services; (m) weather forecasting and meteorological services; (n) services furnished by political organisations (CPC 95920);

(o) services furnished by other membership organisations (CPC 9599);

(p) services furnished by trade unions (CPC 9520);

(q) services furnished by human rights organisations;

(r) services furnished by business, employers and professional organisations (CPC 951);

(s) specialty design services (except interior design services);

(t) design originals; and

(u) combined office administration services.

List B: Entry 44

Sector	Other services not included elsewhere
Obligations concerned	National Treatment Market Access Market Access
Description	New Zealand reserves the right to adopt or maintain any measure with respect to the provision of new services other than those classified in the CPC.

List B: Entry 45

Sector	All Sectors – Movement of Natural Persons
Obligations concerned	Market Access
Description	New Zealand reserves the right to adopt or maintain any measure with respect to the supply of a service through the presence of natural persons, subject to the provisions of Annex 8C (Temporary Movement of Natural Persons), that is not inconsistent with New Zealand's obligations under the GATS.

List B: Entry 46

Sector	All Sectors
Obligations concerned	National Treatment Most-Favoured-Nation Treatment
Description	New Zealand reserves the right to adopt or maintain any measure necessary to protect national treasures or specific sites of historical or archaeological value, or measures necessary to support creative arts[16] of national value.

[16] "Creative arts" include ngā toi Māori (Māori arts), the performing arts – including theatre, dance, and music, haka (traditional Māori posture dance), waiata (song or chant) – visual arts and craft – such as painting, sculpture, whakairo (carving), raranga (weaving), and tā moko (traditional Māori tattoo) – literature, language arts, creative online content, indigenous traditional practice and contemporary cultural expression, and digital interactive media and hybrid art work, including those that use new technologies to transcend discrete art form divisions. The term encompasses those activities involved in the presentation, execution, and interpretation of the arts; and the study and technical development of these art forms and activities.

List B: Entry 47

Sector	All Sectors
Obligations concerned	National Treatment Market Access
Description	New Zealand reserves the right to adopt or maintain measures it deems necessary to protect or promote Māori rights, interests, duties and responsibilities in respect of trade enabled by electronic means, including in fulfilment of its obligations under te Tiriti o Waitangi / the Treaty of Waitangi, provided that such measures are not used as a means of arbitrary or unjustified discrimination against persons of the other Party or as a disguised restriction on trade in services and investment. The Parties agree that the interpretation of te Tiriti o Waitangi / the Treaty of Waitangi, including as to the nature of the rights and obligations arising under it, shall not be subject to the dispute settlement provisions of this Agreement.

List B: Entry 48

Sector	Communication Services Audio-visual and other Services
Obligations concerned	Most-Favoured-Nation Treatment
Description	New Zealand reserves the right to adopt or maintain preferential co-production arrangements for film and television productions. Official co-production status, which may be granted to a co production produced under these co-production arrangements, confers national treatment on works covered by these arrangements.
Existing Measures:	For greater transparency, section 18 of the *New Zealand Film Commission Act 1978* limits Commission funding to films with a "significant New Zealand content". This criterion is deemed to be satisfied if made pursuant to a co-production agreement or arrangement with the partner country in question.

List B: Entry 49

Sector	Communication Services Audio-visual and other Services
Obligations concerned	National Treatment Market Access
Description	New Zealand reserves the right to adopt or maintain any measure with respect to the promotion of film and television production in New Zealand and the promotion of local content on public radio and television, and in films.

ANNEX 8J

SCHEDULE OF SPECIFIC COMMITMENTS ON TEMPORARY MOVEMENT OF NATURAL PERSONS - INDIA

The Schedule of New Zealand shall not be used to interpret India's commitments or obligations under Annex 8C (Temporary Movement of Natural Persons) or other Chapters of this Agreement.

Category of Natural Persons	Duration of stay
A. Business Visitors	
1. **"Business visitors"** being natural persons seeking to travel to India for business purposes whose remuneration and financial support for the duration of the visit must be derived from sources outside India and who must not engage in making direct sales to the general public or in supplying the goods or services themselves. **Business visitors** comprises: (a) business visitors being natural persons not based in India who are sales representatives of a service supplier and are seeking temporary entry for the purpose of negotiating for the sale of services or entering into agreements to sell services for that service supplier; (b) business visitors being natural persons seeking to travel to India for the purpose of participating in business negotiations or meetings; (c) business visitors being natural persons who are seeking to travel to India for business purposes, including investment purposes; and (d) business visitors being natural persons who are seeking entry for the purposes of negotiating the sale of goods where such negotiations do not involve direct sale to the general public. 2. Access of business visitors to India is subject to the condition that the business	Entry and temporary stay of business visitors shall be granted for a period not more than 180 days, which may be extended at the discretion of India and subject to its laws.

Category of Natural Persons	Duration of stay
visitors will not be engaged in making direct sales to the general public or in supplying services or making the investment (except establishing investments) themselves. 3. A visa shall be granted provided the business visitors: (a) present proof of nationality; and (b) does not receive any remuneration from a source located within the Party granting the visa.	
B. Intra-Corporate Transferees	
"Intra-Corporate Transferees" comprises natural persons of New Zealand within the categories of employees listed below who are in the employment of a juridical person of New Zealand and being transferred temporarily to a branch, a representative office or a juridical person owned or controlled by the aforesaid juridical person in the context of provision of a service in India: (a) **Managers**, being persons who direct a branch office or one or more departments as their head, or supervise or control the work of other supervisory, professional or managerial personnel, and who have the authority to appoint or remove the personnel and powers to exercise discretionary authority over day-to-day operations; (b) **Executives**, being persons who are in senior positions within a juridical person, including a branch, who primarily direct the management, have wide decision-making powers and either are members of the board of directors or receive directions from the board or the general body of shareholders; or	Entry and temporary stay of intra-corporate transferees, who otherwise meet the criteria for the granting of an immigration visa, shall be granted for an initial period of up to 1 year or the period of the contract, whichever is less, subject to any other condition prescribed under India's immigration regulations. The period of stay may be extended on a year-to-year basis for a total term not exceeding 5 years.

Category of Natural Persons	Duration of stay
(c) **Specialists**, being persons who possess high qualifications and knowledge at an advanced level relevant to the organisation's activities or of the organisation's research, equipment, techniques or management and may include persons who are members of accredited professional bodies.	
C. Contractual Service Suppliers	
1. **"Contractual Service Suppliers"** comprises employees of juridical persons who are: (a) employees of a New Zealand-based company or partnership who travel to India temporarily for short periods of stay of up to 1 year or the duration of their contract, whichever is less, in order to perform a service pursuant to a contract between their employer and a client(s) located in India; or (b) employees of a New Zealand-based company or partnership who travel to India temporarily for short periods of stay of up to 1 year in order to fulfil qualification and licensing requirements where presence in India is an essential condition for the fulfilment of these requirements. 2. The contract must be obtained in one of the sectors listed below and is subject to the conditions inscribed in Annex 8C (Temporary Movement of Natural Persons) and the additional conditions, if any, mentioned in the sector or the relevant sub-sector in Annex 8H (Schedule of Specific Commitments - India): (a) Engineering services;	Entry and temporary stay of contractual service suppliers shall be granted for an initial period of up to 1 year or the period of the contract, whichever is less, provided all immigration measures applicable are complied with.

Category of Natural Persons	Duration of stay
(b) Integrated engineering services; (c) Architectural services; (d) Urban planning and landscape architectural services; (e) Taxation advisory services (excluding legal advisory and legal representational services on tax matters); (f) Accounting and book keeping services (excluding auditing services); (g) Computer and related services; (h) Research and development services; (i) Management consulting services (excluding all services relating to legal consultancy); (j) Services related to management consulting (excluding all services relating to legal consultancy); (k) Insurance and insurance related services, only in respect of advisory and consulting services; (l) Other financial services, only in respect of advisory and consulting services; (m) Advertising services; (n) Site investigation work; (o) Mining (advisory or consulting services only); (p) Telecommunication services, only in respect of advisory and consulting services; (q) Environmental services;	

Category of Natural Persons	Duration of stay
(r) Related scientific and technical consulting services; (s) Technical testing and analysis services; (t) Transport (advisory and consulting services only); (u) Maintenance and repair of vessels, rail, road, and aircraft equipment; (v) Translation and interpretation services (excluding official or certified activities); (w) Maintenance and repair of personal and household goods; (x) Manufacturing (advisory and consulting services only); (y) Hotel and restaurant services; (z) Travel agency and tour operator services; and (aa) Tourist guides services. 3. Access of contractual service suppliers to India shall be available only in the specific service sector in which the relevant contract has been entered into and employees should have appropriate educational and professional qualifications relevant to the services to be provided. 4. Further, entry and temporary stay is subject to the requirements of: (a) the requisite visa; (b) the conditions attached to entry and temporary stay under such a visa; and (c) the fulfilment of specific requirements regarding information in support of the application such as required documentation, including a proof of	

Category of Natural Persons	Duration of stay
contract and possession of requisite educational and professional qualifications relevant to the service to be provided including work experience. 5. Entry and temporary stay is also subject to any other condition prescribed under India's immigration regulations.	
D. Independent Professionals	
1. "**Independent Professionals"** comprises: (a) natural persons who travel to India temporarily for short periods of stay of up to 12 months with permission to extend for a maximum of 3 months or the duration of the contract, whichever is less, in order to perform a service pursuant to a contract(s) between them and a client(s) located in India for which they possess the necessary academic credentials and qualifications and have obtained, wherever necessary, registration with the professional body, and remuneration is to be paid solely to the natural person; and (b) natural persons who travel to India temporarily for short periods of stay of up to 12 months in order to fulfil qualification and licensing requirements where presence in India is an essential condition for the fulfilment of these requirements. 2. Entry granted in accordance with subparagraphs 1 (a) and 1 (b) has to be obtained in one of the sectors listed below and is subject to the additional conditions mentioned in relation to the sector or the relevant sub-sector in India's Schedule in	Entry and temporary stay of independent professionals shall be granted for an initial period of up to 1 year or the period of the contract, whichever is less provided all immigration measures applicable are complied with.

Category of Natural Persons	Duration of stay
Annex 8H (Schedule of Specific Commitments - India): (a) Accounting and book-keeping services; (b) Engineering services; (c) Integrated engineering services; (d) Architectural services; (e) Urban planning and landscape architectural services; (f) Computer and related services; (g) Research and development services; (h) Management consulting services (excluding all services relating to legal consultancy); (i) Services related to management consulting (excluding all services relating to legal consultancy); (j) Hotel and restaurant services; (k) Travel agency and tour operator services; or (l) Tourist guides services. 3. Access of independent professionals to India under a category in paragraph 2 shall be available only in the specific service sector in which the relevant contract has been entered into and employees should have appropriate educational and professional qualifications relevant to the services to be provided. 4. Further, entry and temporary stay is subject to the requirements of: (a) requisite visa;	

Category of Natural Persons	Duration of stay
(b) the conditions attached to entry and temporary stay under such a visa; and (c) fulfilment of specific requirements regarding information in support of the application such as required documentation, including a proof of contract and possession of requisite educational and professional qualifications relevant to the service to be provided including work experience. 5. Entry and temporary stay is also subject to any other condition prescribed under India's immigration regulations.	
E. Installer & Servicer	
1. India shall grant temporary entry to an installer and servicer of New Zealand, who otherwise meets its criteria for the grant of an immigration visa, for a duration of 3 months or the period of contract, whichever is less. 2. Such installers' and servicers' temporary entry shall be granted provided that the natural person: (a) complies with immigration measures applicable to temporary entry; (b) provides proof of their nationality; (c) provides documentation demonstrating that he or she will be engaged and describing the purpose of entry, including a bona fide letter of contract from the entity engaging the services of the natural person in the host Party; and (d) provides documentation demonstrating the attainment of the relevant minimum educational	3 months or the period of the contract, whichever is less.

Category of Natural Persons	Duration of stay
requirements or alternative credentials.	

Accompanying Spouse and Dependents

1. For a natural person of New Zealand who has been granted temporary entry and temporary stay, or an extension in temporary stay, under the commitments set out in categories (B), (C) & (D) of this Schedule, the accompanying spouse and dependents of that natural person are accorded temporary entry and temporary stay for an equal period to that of the natural person, provided that the stay in India of that natural person is for a period of 12 months or longer.

2. The working rights of the above-mentioned accompanying spouse and dependents in India are subject to relevant domestic laws and regulations.

ANNEX 8K

SCHEDULE OF SPECIFIC COMMITMENTS ON TEMPORARY MOVEMENT OF NATURAL PERSONS - NEW ZEALAND

1. This Schedule sets out New Zealand's commitments in accordance with Article 8C.3 (Grant of Temporary Entry) in respect of the entry and temporary stay of natural persons.

2. For the purposes of this Schedule, the term **"CPC"** means the Provisional Central Product Classification (Statistical Papers Series M No. 77, Department of International Economic and Social Affairs, Statistical Office of the United Nations, New York, 1991).

3. For the purposes of this Schedule, the term **"enterprise"** means a juridical person of a Party as defined in Article 8.1 (Definitions).

4. Notwithstanding the commitments set out below, New Zealand remains unbound in cases of labour or management disputes, and also with respect to ships' crews.

5. With respect to audio-visual services, New Zealand immigration instructions stipulate a special procedure for the granting of visas to entertainers, performing artists and associated support personnel for work purposes. To be eligible for a work visa or work permit, such applicants must come within the policy guidelines agreed to between the Minister of Immigration, independent promoters, agents or producers and the relevant performing artists' unions.

A. Business Visitors

Description of Category	Conditions and Limitations (including length of stay)
Definition: **"Business Visitors"** comprise a business person: (a) who is seeking temporary entry to New Zealand for the purpose of: (i) meetings and consultations: business persons attending	All sectors: Entry for a period of stay up to 90 days in any 12-month period.

Description of Category	Conditions and Limitations (including length of stay)
meetings or conferences, or engaged in consultations with business associates; (ii) training seminars: personnel of an enterprise who enter the territory of a Party to receive informal training in techniques and work practices which are relevant to the operation of the enterprise, provided that the training received is confined to observation, familiarisation, and theoretical instruction only and does not lead to the award of a formal qualification;[1] (iii) trade fairs and exhibitions: personnel attending a trade fair for the purpose of promoting their company or its products or services; (iv) sales: representatives of a supplier of services or goods taking orders or negotiating the sale of services or goods or entering into agreements to sell services or goods for that supplier, but not delivering goods or supplying services themselves; (v) purchasing: buyers purchasing goods or services for an enterprise, or management and supervisory personnel, engaging in a commercial transaction carried out in the territory of the Party of which	

[1] "Formal qualification" means a qualification under the New Zealand Qualifications Framework.

Description of Category	Conditions and Limitations (including length of stay)
the short-term business visitor is a natural person; (vi) commercial transactions: management and supervisory personnel and financial services personnel (including insurers, bankers, and investment brokers) engaging in a commercial transaction for a business enterprise of which the short-term business visitor is a natural person; (vii) undertaking business consultations or negotiations concerning the establishment, expansion, or winding up of a business enterprise or investment in New Zealand, or any related matter; and (viii) tourism personnel: tour and travel agents, tour guides or tour operators attending or participating in conventions; (b) who is not seeking to enter the labour market of New Zealand; and (c) whose principal place of business, actual place of remuneration and predominant place of accrual of profits remain outside New Zealand.	

B. Intra-Corporate Transferees

Description of Category	Conditions and Limitations (including length of stay)
Intra-Corporate Transferees comprise an **Executive, Manager** or a **Specialist**: (a) who is an employee of a goods supplier, service supplier or investor of a Party with a commercial presence in New Zealand; and (b) whose salary and any related payments are paid entirely by the service supplier or enterprise that employs the Intra-Corporate Transferee.	All Sectors:
For the purposes of this definition, **"Executive"** means a natural person who primarily directs the management of an enterprise, exercises wide latitude in decision making and receives only general supervision or direction from higher level executives, the board of directors or stockholders of the enterprise. An executive would not directly perform tasks related to the actual provision of the service or the operation of the enterprise. Executives must have been employed by their employer for at least 12 months prior to their proposed transfer to New Zealand.	Executives: Entry for a period of initial stay up to a maximum of 3 years.
For the purposes of this definition, **"Manager"** means a natural person who will be responsible for or directs the entire or a substantial part of the operations of the enterprise in New Zealand, receiving general supervision or direction principally from higher level executives, the board of directors or stockholders of	Managers: Entry for a period of initial stay up to a maximum of 3 years.

Description of Category	Conditions and Limitations (including length of stay)
the enterprise; supervising and controlling the work of other supervisory, professional or managerial employees; and having the authority to establish goals and policies of the entire or a substantial part of the operations of the enterprise. Managers must have been employed by their employer for at least 12 months prior to their proposed transfer to New Zealand. For the purposes of this definition, **"Specialist"** means a natural person with advanced trade, technical or professional skills within an organisation who possesses knowledge at an advanced level of technical expertise, and who possesses proprietary knowledge of the organisation's service, research equipment, techniques or management. Such specialists are responsible for or employed in a particular aspect of an organisation's operations in New Zealand. Skills are assessed in terms of the applicant's employment experience, qualifications, and suitability for the position.	Specialists: Entry for a period of initial stay up to a maximum of 3 years.

C. Installers and Servicers

Description of Category	Conditions and Limitations (including length of stay)
Definition: "**Installers and Servicers**" comprise a natural person who is an Installer or	Entry for periods not exceeding 90 days in any 12 month period.

Description of Category	Conditions and Limitations (including length of stay)
Servicer of machinery or equipment, in situations when such installation or servicing by the supplying company is a condition of purchase or lease of the machinery or equipment. An Installer/Servicer cannot perform services which are not related to the service activity which is the subject of the contract.	

D. Contractual Services Suppliers

Description of Category	Conditions and Limitations (including length of stay)
Definition: **"Contractual Services Supplier"** means a natural person employed by a juridical person of a Party that: (a) is not an agency for placement and supply services of personnel and is not acting through such an agency; (b) has not established in the territory of New Zealand; and (c) has concluded a *bona fide* contract to supply services to a final consumer in New Zealand, requiring the presence, on a temporary basis, of its employees in New Zealand in order to fulfil the contract to supply services. A Contractual Services Supplier must have:	Entry for a cumulative period of not more than 12 months or for the duration of the contract, whichever is less, and subject to economic needs tests. The Contractual Service Supplier entering New Zealand has been offering such services as an employee of the enterprise supplying the services for at least one year immediately preceding the date of submission of an application for entry into New Zealand. The Contractual Services Supplier entering New Zealand must have a valid employment contract with a juridical person of a Party and receive pay, while in New Zealand, that is at least equivalent to that which a comparable New Zealand worker providing a like service in the same or similar field would be expected to receive.

Description of Category	Conditions and Limitations (including length of stay)
(a) a tertiary-level degree of at least 3 years in duration[2] and the professional qualifications legally required to exercise that activity in the other Party; and (b) at least 6 years of experience. The 6 years of experience must be relevant to the field of the contract to supply services. New Zealand undertakes commitments for contractual service suppliers in respect of the service sectors or sub-sectors set out below: (a) legal advisory services in respect of public international law and foreign law (part of CPC 861); (b) accounting, auditing, and bookkeeping services (CPC 862); (c) taxation advisory services (part of CPC 863); (d) urban planning and landscape architectural services (CPC 8674); (e) medical and dental services (CPC 9312); (f) midwives' services (part of CPC 93191); (g) services provided by nurses, physiotherapists, and paramedical personnel (part of CPC 93191);	The contractual services supplier must be employed on conditions that are equivalent to New Zealand minimum employment standards. The Contractual Services Supplier does not receive remuneration for the provision of services in the territory of New Zealand other than the remuneration paid by the enterprise employing the Contractual Services Supplier or from a source outside New Zealand. The number of persons covered by the services contract shall not be larger than necessary to provide the services as stipulated in the contract. The contract to supply a service in New Zealand shall comply with the law of New Zealand.

[2] For greater certainty, these qualifications must be recognised by the appropriate New Zealand authority where New Zealand law requires such recognition as a condition of the provision of that service in New Zealand.

Description of Category	Conditions and Limitations (including length of stay)
(h) research and development services (CPC 851-853); (i) advertising services (CPC 871); (j) market research and opinion polling (CPC 864); (k) management consulting services (CPC 865); (l) services related to management consulting (CPC 866); (m) technical testing and analysis services (CPC 8676); (n) related scientific and technical consulting services (CPC 8675); (o) mining services (advisory and consulting only) (part of CPC 883, CPC 5115); (p) translation and interpretation services (CPC 87905**); (q) telecommunication services (CPC 752); (r) postal and courier services (advisory and consulting only) (part of CPC 751);' (s) insurance and insurance-related advisory and consulting services (part of CPC 812); (t) other financial services (advisory and consulting services) (parts of CPC 8131**, 8133**); (u) transport advisory and consulting services (parts of	

Description of Category	Conditions and Limitations (including length of stay)
CPC 74490**, 74590**, 74690**); and (v) manufacturing advisory and consulting services (part of CPC 884-885).	

E. Independent Professionals

Description of Category	Conditions and Limitations (including length of stay)
Definition: **"Independent Professionals"** means a self-employed natural person with advanced technical or professional skills, without the requirement for a commercial presence, working under a valid contract in New Zealand. Only in respect of the service sectors set out in New Zealand's Schedule of Specific Commitments in the WTO (as currently set out in GATS/SC/62, GATS/SC/62/Suppl.1 and GATS/SC/62/Suppl.2) and the following additional service sectors: 1. BUSINESS SERVICES A. Professional services (a) legal services (international and foreign law);	An Independent Professional must have: (a) a tertiary level qualification resulting from at least three years of formal post-secondary school education, recognised as comparable to the domestic standard in New Zealand; and (b) at least six years of experience working in the relevant field. Both (a) and (b) must be in the field in which the Independent Professional wishes to supply their professional services.[3] Entry for a period of stay up to a maximum of 12 months, subject to economic needs tests.

[3] For greater certainty, these qualifications must be recognised by the appropriate New Zealand authority where under New Zealand law such recognition is a condition of the provision of that service in New Zealand.

Description of Category	Conditions and Limitations (including length of stay)
(f) integrated engineering services; and (g) consultancy related to urban planning and landscape architectural services. B. Computer and related services (e) maintenance and repair of office machinery and equipment including computers; and (f) other computer services. F. Other business services (c) management consultancy services; (d) services related to management consultancy; (f) services incidental to animal husbandry; (k) placement and supply services of personnel; (p) photographic services; (s) convention services; and (t) other (credit reporting, collection agency services,	

Description of Category	Conditions and Limitations (including length of stay)
interior design, telephone answering and duplicating services). 5. EDUCATIONAL SERVICES E. Other education services (a) language training provided in private specialist language institutions; and (b) tuition in subjects taught at the primary and secondary levels, provided by private specialist institutions operating outside the New Zealand compulsory school system. 6. ENVIRONMENTAL SERVICES (a) waste water management; (b) waste management; (c) sanitation and similar services; (d) protection of ambient air and climate: consultancy only; (e) noise and vibration abatement: consultancy only; (f) protection of biodiversity and landscape:	

Description of Category	Conditions and Limitations (including length of stay)
consultancy only; and (g) Other environmental and ancillary services: consultancy only.	

F. Partners and dependent children

Description of Category	Conditions and Limitations (including length of stay)
Partners and dependent children New Zealand shall allow the entry and temporary stay of the partner and any dependent children accompanying a natural person of a Party that has been granted entry and temporary stay for a period of over 12 months under this Annex. For the purposes of this commitment: **"partner"** means any spouse or civil partner from India of the recipient of a visa under this Annex including under a marriage, civil union, or equivalent union or partnership, recognised as such in accordance with the law of New Zealand. For greater certainty, this includes any unmarried or same sex partner; and **"dependent children"** means children under the age of 20 who are dependent on the recipient of a visa under this Annex and who are recognised as dependent children in accordance with the law of New Zealand where, either:	Partner and dependent children: The period of temporary stay for that partner and, where relevant, dependent children, shall be the same as that granted to the recipient of a visa under this Annex.

Description of Category	Conditions and Limitations (including length of stay)
(a) the applicant has the legal right to remove them from their home country; or (b) both of the children's parents will be granted entry and temporary stay in accordance with this Agreement.	

ANNEX 8L

SCHEDULE OF COMMITMENTS ON TEMPORARY EMPLOYMENT ENTRY - NEW ZEALAND

Article 8L.1
Definitions

For the purposes of this Annex:

(a) **"temporary employment entry"** means entry by a natural person of India, including a skilled worker, into the territory of New Zealand, in order to work under a fixed term employment contract concluded pursuant to the law of New Zealand, without the intent to establish permanent residence.

Article 8L.2
Grant of Temporary Employment Entry

1. New Zealand shall make commitments in respect of the temporary employment entry of natural persons.

2. Such commitments and the conditions governing them shall be inscribed in New Zealand's Schedule to this Annex.

3. Where New Zealand makes a commitment under paragraphs 1 and 2, it shall grant temporary employment entry to the extent provided for in that commitment, provided that such natural persons:

   (a) meet all relevant eligibility requirements for temporary employment entry into New Zealand;

   (b) are in possession of a genuine employment offer from an accredited employer in New Zealand; and

   (c) are otherwise qualified under all applicable immigration measures.

4. New Zealand shall ensure that any fees charged by its competent authorities for the processing of an application for temporary employment entry and stay by a natural person covered under this Annex are reasonable, in that they do not unduly impair or delay trade in services or the conduct of investment activities under this Agreement.

5. The granting of temporary employment entry shall not replace the requirements to carry out a profession or activity according to the specific laws and regulations in force in the territory of New Zealand.

6. Nothing in this Annex shall apply to measures regarding citizenship, nationality, residence or employment on a permanent basis.

APPENDIX 8L-1

SCHEDULE OF TEMPORARY EMPLOYMENT ENTRY – NEW ZEALAND

Explanatory notes:

1. This Schedule sets out New Zealand's commitments, including the conditions and limitations governing those commitments, in respect of the temporary employment entry and stay of natural persons of India.

2. This Schedule is divided into the following sections:

   (a) Section A sets out New Zealand's commitments in respect of temporary employment entry for iconic Indian occupations; and

   (b) Section B sets out New Zealand's commitments in respect of temporary employment entry for skilled workers in specified occupations drawn from sectors in which New Zealand has an identified skills shortage.

. **Section A: Commitments on Temporary Employment Entry for Iconic Indian Occupations**

This Section sets out commitments, including the conditions and limitations governing those commitments, in respect of the temporary employment entry and stay of natural persons of India in iconic Indian occupations:

Temporary employment entry for natural persons in the following iconic Indian occupations	**Conditions and Limitations, including numbers, duration of stay and other requirements**
Horizontal Conditions and Limitations	Up to a maximum of 600 temporary employment entry visas at any one time.
1. Yoga instructors	Up to a maximum of 100 visas at any one time. **Duration** Duration of stay of up to three years at any one time, dependent upon the employment agreement. This cannot be extended beyond three years, and Yoga instructors who have spent three years in New Zealand working under this Annex are not eligible for a further work visa or work permit under this Annex until they have spent a minimum of three years outside New Zealand. **Requirements** A natural person of India who has a recognised Yoga qualification, of least a bachelor's degree in Yoga from an institution[1] recognised by the Indian Government, and holds an International English Language Testing System ("IELTS") Level 5 in Listening and Speaking English, or an equivalent score in an English language testing system recognised by the New Zealand Government.

[1] For greater certainty, these qualifications must be recognised by the appropriate New Zealand authority where New Zealand law requires such recognition as a condition of the provision of that service in New Zealand.

Temporary employment entry for natural persons in the following iconic Indian occupations	Conditions and Limitations, including numbers, duration of stay and other requirements
2. Indian Chefs	Up to a maximum of 250 visas at any one time. **Duration** Duration of stay of up to three years at any one time, dependent upon the employment agreement. This cannot be extended beyond three years, and Indian chefs who have spent three years in New Zealand working under this Annex are not eligible for a further work visa or work permit under this Annex until they have spent a minimum of three years outside New Zealand. **Requirements** A natural person of India who has a tertiary level qualification in Indian cuisine, obtained after at least two years of successful study at an institution recognised by the Indian Government[2], and who has at least two years of relevant work experience post-qualification, and holds an IELTS Level 5 in Listening and Speaking English, or an equivalent score in an English language testing system recognised by the New Zealand Government.
3. Music Teachers	Up to a maximum of 50 visas at any one time. **Duration** Duration of stay of up to 3 years, dependent on the employment agreement. This cannot be extended beyond 3 years, and music teachers who have spent 3 years in New Zealand working under this Annex are not eligible for a further work visa or work permit under this Annex until they have spent a minimum of 3

[2] For greater certainty, these qualifications must be recognised by the appropriate New Zealand authority where New Zealand law requires such recognition as a condition of the provision of that service in New Zealand.

Temporary employment entry for natural persons in the following iconic Indian occupations	Conditions and Limitations, including numbers, duration of stay and other requirements
	years outside New Zealand. **Requirements** A natural person of India who has Bachelor's degree or equivalent three-year tertiary qualification in music, has at least two years' relevant work experience as a music teacher, and holds IELTS score of 6.5, or an equivalent score in an English language testing system recognised by the New Zealand Government.
4. Ayush Practitioners **(excluding yoga instructors)**	Up to a maximum of 200 visas at any one time. This commitment is for natural persons of India seeking employment as an Ayush Practitioner, including the following fields: (a) Ayurveda; (b) Naturopathy; (c) Unani; (d) Siddha; (e) Sowa Rigpa; and (f) Homeopathy. **Duration** Duration of stay of up to three years at any one time, dependent upon the employment agreement. This cannot be extended beyond three years. Ayush Practitioners who have spent three years in New Zealand working under this Annex are not eligible for a further work visa or work permit under this Annex until they have spent a minimum of three years outside New Zealand.

Temporary employment entry for natural persons in the following iconic Indian occupations	Conditions and Limitations, including numbers, duration of stay and other requirements
	Requirements A natural person of India who: (a) holds a bachelor's degree in Indian Traditional Medicine/Ayush Systems of Medicine, recognised by the Indian Ministry of Ayush, and which required at least three years of successful study from an institution recognised by the Indian Government[3]; (b) has at least four years of professional experience working as a recognised practitioner of ayurveda, yoga and naturopathy, Unani, Siddha, Sowa Rigpa, or homeopathy; and (c) holds an IELTS score of 6.5 or an equivalent score in an English language testing system recognised by the New Zealand Government.

[3] For greater certainty, these qualifications must be recognised by the appropriate New Zealand authority where under New Zealand law such recognition is a condition of the provision of that service in New Zealand.

Section B: Commitments on Temporary Employment Entry for Skilled Occupations

1. This Section sets out commitments, including the conditions and limitations governing those commitments, in respect of skilled workers in specified occupations drawn from sectors in which New Zealand has an identified skills shortage.

2. The occupations listed below, to which the corresponding entries apply, shall be reviewed every five years by the Committee on Trade in Services.

3. The Parties shall work towards the conclusion of a mutually satisfactory outcome to the review pursuant to paragraph 2. Until agreement is reached, or as otherwise mutually agreed, the five-year arrangement applying immediately prior to the review shall remain in place.

Temporary employment entry for natural persons in the following skilled occupations	**Conditions and Limitations (including numbers, duration of stay and other requirements)**
Horizontal Conditions and Limitations	The following are general requirements for all temporary employment entry for skilled occupations set out in Entries 1 through 5 of this Section. A natural person of India who seeks temporary employment entry under this Section must: (a) hold the minimum required qualifications[4] and relevant work experience as specified for each category; (b) hold International English Language Testing System ("IELTS") score of 6.5, or an equivalent score in an English language testing system recognised by the New Zealand government. (c) have registered with the appropriate professional body or have obtained licence or approval to work in New Zealand from the appropriate

[4] For greater certainty, these qualifications must be recognised by the appropriate New Zealand authority where under New Zealand law such recognition is a condition of the provision of that service in New Zealand.

Temporary employment entry for natural persons in the following skilled occupations	Conditions and Limitations (including numbers, duration of stay and other requirements)
	regulatory authority, where required.
1. Visa commitments on temporary employment entry for the following skilled workers in the IT Sector: (a) Software engineers; (b) Software and applications programmers; and (c) ICT project managers.	Up to a maximum of 1,000 temporary employment entry visas at any one time. **Duration** Duration of stay of up to three years at any one time, dependent upon the employment agreement. This cannot be extended beyond three years. Recipients of visas under the temporary employment entry commitment who have spent three years in New Zealand under this Annex are not eligible for a further work visa or work permit under this Annex until they have spent a minimum of three years outside New Zealand. **Requirements** Holds a bachelor's degree in software engineering, Engineering, or an equivalent degree and has at least five years of professional experience working in that field.
2. Visa commitments on temporary employment entry for the following skilled workers in Engineering Occupations: (a) Civil Engineer; (b) Mechanical Engineer; (c) Structural Engineer; and (d) Environmental Engineer.	Up to a maximum of 1,000 temporary employment entry visas at any one time. **Duration** Duration of stay of up to three years at any one time, dependent upon the employment agreement. This cannot be extended beyond three years. Recipients of visas under the temporary employment entry commitment who have spent three years in New Zealand under this Annex are not eligible for a further work visa or work permit under this Annex until they have spent a minimum of three years outside New Zealand.

Temporary employment entry for natural persons in the following skilled occupations	Conditions and Limitations (including numbers, duration of stay and other requirements)
	Requirements One of the following: (a) a Washington Accord accredited (initial) engineering degree; (b) Bachelor of Engineering with Honours (NZQCF Level 8); (c) a qualification at NZQCF Level 7 or higher, with a letter from Engineering New Zealand certifying that the degree and any further learning meet the benchmark requirements towards Chartered Professional Engineer professional status in New Zealand; or (d) registration as a Chartered Professional Engineer by Engineering New Zealand.
3. Visa commitments on temporary employment entry for the following skilled workers in the Construction Sector: (a) Construction Project Manager; and (b) Building Project Manager.	Up to a maximum of 700 temporary employment entry visas at any one time. **Duration** Duration of stay of up to three years at any one time, dependent upon the employment agreement. This cannot be extended beyond three years. Recipients of visas under the temporary employment entry commitment who have spent three years in New Zealand under this Annex are not eligible for a further work visa or work permit under this Annex until they have spent a minimum of three years outside New Zealand. **Requirements** One of the following: (a) Bachelor of Engineering with Honours (NZQCF Level 8); (b) Bachelor of Engineering Technology

Temporary employment entry for natural persons in the following skilled occupations	Conditions and Limitations (including numbers, duration of stay and other requirements)
	(NZQCF Level 7); (c) Bachelor of Construction (NZQCF Level 7); (d) a bachelor's degree at NZQCF Level 7, or a higher qualification with the minimum equivalent of 360 credits, which includes the requirements of a New Zealand major in the focus areas of construction management, civil engineering, or highway engineering; (e) a Graduate Diploma at NZQCF Level 7, or a higher qualification which includes the knowledge requirements of a New Zealand Graduate Diploma in the focus areas of construction management, highway engineering, civil engineering or construction project management; (f) a diploma at NZQCF Level 6, or a higher qualification, with the minimum equivalent of 240 credits, which includes the knowledge requirements of a New Zealand Diploma in the focus areas of civil engineering, highway engineering, construction or construction management; (g) a Washington Accord or Sydney Accord accredited undergraduate (initial) engineering degree in Civil Engineering; (h) a qualification at NZQCF Level 7 or higher, with a letter from Engineering New Zealand certifying that the degree and any further learning meet the benchmark requirements towards Chartered Professional Engineer professional status in New Zealand; or (i) NZ registration in the field of civil engineering as a Chartered

Temporary employment entry for natural persons in the following skilled occupations	Conditions and Limitations (including numbers, duration of stay and other requirements)
	Professional Engineer or an Engineering Technologist by Engineering New Zealand. One of the following: (a) a bachelor's degree at NZQCF Level 7, or a higher qualification with the minimum equivalent of 360 credits, which includes the requirements of a New Zealand major in quantity surveying or construction economics; (b) a Graduate Diploma at NZQCF Level 7, or a higher qualification, which includes the knowledge requirements of a New Zealand Graduate Diploma in the focus areas of construction, construction management or construction project management; or (c) a diploma at NZQCF Level 6, or a higher qualification, with the minimum equivalent of 240 credits, which includes the knowledge requirements of a New Zealand Diploma (Level 6) in the focus areas of quantity surveying, construction economics, construction management or building.
4. Visa commitments on temporary employment entry for the following skilled workers in the Education Sector: (a) Primary School Teacher; and (b) Secondary School Teacher.	Up to a maximum of 500 temporary employment entry visas at any one time. **Duration** Duration of stay of up to three years at any one time, dependent upon the employment agreement. This cannot be extended beyond three years. Recipients of visas under the temporary employment entry commitment who have spent three years in New Zealand under this Annex are not eligible for a further work visa or work permit under this Annex until they have spent a minimum of three years outside

Temporary employment entry for natural persons in the following skilled occupations	Conditions and Limitations (including numbers, duration of stay and other requirements)
	New Zealand. **Requirements for both primary and secondary school teachers** NZ registration with the appropriate licensing or regulatory body and with either a provisional or full practising certificate issued by the appropriate licensing or regulatory body. For transparency, examples of the qualifications that are acceptable, include the following: (a) Bachelor of Education; (b) Bachelor of Education (Early Childhood); (c) Bachelor of Education (Technology); (d) Bachelor of Teaching; (e) Bachelor of Teaching (Early Childhood Education); and (f) Bachelor's degree with a Graduate diploma in Education or Teaching.
5. Visa commitments on temporary employment entry for the following skilled workers in the Health Sector: (a) Registered Nurse (all categories); and (b) Physiotherapist.	**Duration:** Duration of stay of up to three years at any one time, dependent upon the employment agreement. This cannot be extended beyond three years. Medical and health practitioners who have spent three years in New Zealand working under this Annex are not eligible for a further work visa or work permit under this Annex until they have spent a minimum of three years outside New Zealand. Up to a maximum of 900 temporary employment entry visas issued at any one time

Temporary employment entry for natural persons in the following skilled occupations	Conditions and Limitations (including numbers, duration of stay and other requirements)
	Requirements A natural person of India who: (a) is registered with the appropriate licensing or regulatory body[5] of New Zealand; and (b) has at least three years of professional experience working in that occupation. For transparency, examples of the qualifications that are acceptable, include Bachelor of Nursing or equivalent. Up to a maximum of 300 temporary employment entry visas at any one time. **Requirements** A natural person of India who: (a) is registered with the appropriate licensing or regulatory body[6] of New Zealand; and (b) has at least three years of professional experience working in that occupation. For transparency, examples of the qualifications that are acceptable, include Bachelor of Physiotherapy or Bachelor of Health Sciences (Physiotherapy) or equivalent.

[5] For greater certainty, these qualifications must be recognised by the appropriate New Zealand authority where under New Zealand law such recognition is a condition of the provision of that service in New Zealand.

[6] For greater certainty, these qualifications must be recognised by the appropriate New Zealand authority where under New Zealand law such recognition is a condition of the provision of that service in New Zealand.

CHAPTER 9

INVESTMENT PROMOTION AND COOPERATION

Article 9.1
Objectives

1. The objective of this Chapter is to enhance foreign direct investment ("FDI") as a means for fostering economic growth, capital intensity, capacity building and innovation, as well as generating employment opportunities.

2. The Parties seek to deepen their economic relationship through mutually beneficial cooperation, contributing to economic growth, development and prosperity, grounded in the principles of good faith, mutual benefit and the Parties' right to regulate.

3. To fulfil the objectives of this Chapter, New Zealand shall aim to increase foreign direct investment into India from investors of New Zealand in accordance with Article 9.2 (Investment Promotion).

Article 9.2
Investment Promotion

New Zealand shall promote FDI[1] from investors of New Zealand into India with the aim to increase such investment by US Dollars 20 billion within 15 years of the date of entry into force of this Agreement.[2]

Article 9.3
Investment Cooperation

1. The Parties recognise the importance of enhancing both the quantity and quality of FDI, including through joint initiatives for research and innovation, technology flows, technical and skill development,

[1] Investments routed from outside New Zealand shall be taken into account if shown that the investments are made by investors of New Zealand. Investments routed through New Zealand by investors of non-Parties either not established in New Zealand, or established in New Zealand but without substantial business activities in New Zealand, shall not be considered as investments from New Zealand.

[2] The Parties recognise that India's economic development over the last two decades was accompanied by a sustained increase of nominal FDI into India, reflecting a confidence of foreign investors in the potential of the Indian economy. Based on this observation, and on estimated nominal GDP growth rate of India over the next 15 years, in line with the past growth rates, New Zealand aims to strengthen its FDI footprint in India, leveraging a full implementation of this Agreement by the Parties.

exchange of knowledge and capacity building, towards achieving economic growth and development.

2. Cooperation between the Parties in this respect may include:

(a) conducting information exchanges between the Parties to identify investment opportunities of mutual interest with the aim of enhancing FDI, technological advancement, skill development, and growth;

(b) developing strategies and programs to promote investment, R&D collaboration, technology cooperation, and skill development, focusing on high-value-added sectors linked to regional and global value chains, including but not limited to renewable energy, digital services, and infrastructure;

(c) developing mechanisms for joint investments and ventures between enterprises, including with SMEs and seeking to incorporate programs for capacity-building and the exchange of technological know-how into these ventures;

(d) facilitating public-private dialogues for the identification of investment opportunities in, and matchmaking of investors between, the Parties;

(e) facilitating continued skill development, vocational education and training, including for SMEs, including to support the adoption of new technologies and best practices;

(f) encouraging technological partnerships and joint ventures, with an emphasis on technology adoption, and workforce upskilling; and

(g) facilitating partnerships among centres of excellence, government agencies and expert institutes in fields of mutual interest and leveraging such partnerships to further industrial competitiveness and capabilities, technological advancements, skill-development, exchange of technological know-how, and inclusive development.

3. The Parties may cooperate pursuant to paragraph 2 through activities such as:

(a) regular missions in areas of mutual interest with high-ranking delegations;

(b) promoting cooperation with relevant government agencies to expand opportunities for business and industry

(c) annual high-level meetings, virtual or in-person, with the participation of the private sector; to discuss, *inter alia,* opportunities for enhancing investment, technological

advancement, knowledge exchange, and skill development, in sectors of mutual interest, including renewable energy, digital services and other technology-driven sectors;

(d) regular investment promotion events, including at various international fora with participation of the private sector and industry bodies from both Parties, aimed at meeting the objectives of this Chapter;

(e) sector-specific business roundtables; thematic expert exchanges and workshops; and promotional events in India and in New Zealand to identify opportunities of investment, promote stakeholder collaboration, knowledge and technology flows, joint initiatives for research and development, and exchange of skills and vocational training practices in areas of mutual interest;

(f) support for investment promotion agencies and other industry bodies and associations in setting up representations and engagement in each Party's market;

(g) support for vocational education and training projects, especially in sectors where skill gaps are prominent; and

(h) other activities as mutually agreed by the Parties.

Article 9.4
Investment Desks

1. To the extent practicable, each Party shall establish an Investment Desk to support[3] the activities referred to in Article 9.3 (Investment Cooperation).

2. In view of promotion activities for investment into India, India shall establish a dedicated Investment Desk to assist[4] investors from New Zealand seeking to invest, investing or having invested, in particular with any problems that may arise. For India, such a desk would also account for India's commitments under paragraph 1.

[3] For greater certainty, such support does not include any amendments or exceptions pertaining to any laws, regulations, procedure, administrative decision, practice or requirement of either Party.

[4] For greater certainty, "assist" does not include any amendments or exceptions pertaining to any laws, regulations, procedure, administrative decision, practice or requirement of India.

Article 9.5
Contact Points

1. Each Party shall, within 60 days of the date of entry into force of this Agreement, designate an official contact point to address matters related to this Chapter. Each Party shall promptly notify the other Party of any change to its contact point.

2. The contact points shall endeavour to facilitate communication and coordination between the Parties regarding the implementation of this Chapter.

Article 9.6
Transparency[5]

Each Party shall aim to publish[6], or otherwise make publicly available, to the extent practicable, the information[7] necessary for investors to comply with the requirements and procedures for obtaining the authorisation, in such a manner as to enable investors to become acquainted with it.

Article 9.7
Committee on Investment Promotion and Cooperation

1. In order to pursue the objectives of this Chapter, the Parties hereby establish the Committee on Investment Promotion and Cooperation ("Investment Committee"), which shall be composed of representatives of each Party, and be co-chaired jointly by one representative of each Party.

2. The functions of the Investment Committee shall be to:

   (a) assess, review and monitor, the implementation of this Chapter;

   (b) undertake reviews of the progress made towards achievement of commitment as set out in Article 9.2 (Investment Promotion) and the implementation of the activities as set out in Article 9.3 (Investment Cooperation);

   (c) provide a platform for the Parties to exchange information, review developments, discuss progress and identify additional

[5] Chapter 16 (Transparency) or any other transparency related provision in this Agreement shall not apply to this Chapter.

[6] For the purposes of this Chapter, "publish" means to include in an official publication, such as an official journal, or on an official website.

[7] For greater certainty, nothing in this Article shall require a Party to disclose confidential or sensitive information.

opportunities of mutual interest for engagement pursuant to Article 9.3 (Investment Cooperation). The outcomes of the reviews may be placed in a Report on Investment Cooperation, identifying achievements, and mutually agreed proposals for the way forward;

(d) seek to resolve any issues or differences pertaining to matters covered by this Chapter;

(e) by mutual agreement of the Parties, engage with the private sector and other stakeholders on exploring opportunities to pursue the objectives of this Chapter;

(f) make recommendations for amendments or modification of this Chapter, as required, by mutual agreement of the Parties;

(g) recommend a mechanism to discuss challenges faced by investors, discuss best practices and exchange information on a periodic basis, with the intent to find mutually agreeable resolution to such problems;

(h) report and make recommendations to the Joint Commission, as necessary; and

(i) consider any other issues regarding investment opportunities that are referred to it by the Joint Commission.

3. Within 120 days of its first meeting, the Investment Committee shall establish the Working Procedures to govern its functioning and procedures for realising the objectives of this Chapter.

4. The Investment Committee shall meet within one year of the date of entry into force of this Agreement. Thereafter, the Investment Committee shall meet whenever necessary but normally once every two years. The Investment Committee shall meet either physically or through electronic videoconferencing, or other means.

5. Each Party may request at any time, through a notice in writing to the other Party, that a special meeting of the Investment Committee be held. Such a meeting shall take place within 30 days of receipt of the request, unless the Parties agree otherwise.

6. The Investment Committee may, by mutual agreement of the Parties, engage with the private sector, and other stakeholders, on exploring opportunities to pursue the objectives as set out in Article 9.1 (Objectives).

7. The Investment Committee shall make decisions by consensus.

8. In performing its duties, the Investment Committee may work with other committees and subsidiary bodies established under the Agreement.

9. All official communications related to this Chapter shall be undertaken in the English language.

Article 9.8
Consultations

Any differences concerning the fulfilment of the commitment set out in Article 9.2 (Investment Promotion) shall be resolved in accordance with Article 9.9 (Review, Reporting and Three-tier Government-to-Government Consultations).

Article 9.9
Review, Reporting and Three-tier Government-to-Government Consultations

1. The Parties agree to a three-tier government-to-government consultations procedure for resolution of differences raised in relation to the commitment set out in Article 9.2 (Investment Promotion).

2. The Investment Committee shall review progress towards the achievement of the objective to increase investment from New Zealand into India by US Dollars 20 billion (hereinafter “investment objective”) and the commitment undertaken by New Zealand as set out in Article 9.2 (Investment Promotion).

3. The first review by the Investment Committee shall be held no later than five years after the date of entry into force of this Agreement. The second review by the Investment Committee shall be held no later than 10 years after the date of entry into force of this Agreement. The final review by the Investment Committee shall take place 15 years after the date of entry into force of this Agreement. The Parties may mutually agree on a different timeline or additional reviews.

4. For each such review under paragraph 3, the Investment Committee shall review the progress towards achievement of the investment objective and the commitment undertaken by New Zealand as set out Article 9.2 (Investment Promotion) and record its findings in a report titled “Investment Report”, including recording any unforeseen circumstances which have had a material bearing on the progress.

5. In case of occurrence of any unforeseen circumstances including global pandemic, war, geopolitical disruptions, financial crisis or sustained economic underperformance, or other similar factors beyond New Zealand’s control which have had a material bearing on the progress to achieve the objective, the Parties may adjust the investment objective by mutual agreement of the Parties, accordingly through an amendment of Article 9.2 (Investment Promotion).

6. Should the investment objective not be achieved by the final review, and India considers that New Zealand has not fulfilled its commitment set out in Article 9.2 (Investment Promotion), India may request consultations by the Investment Committee. The Investment Committee shall be convened within 30 days of receipt of India's written request for such consultations.

7. The scope of the consultations shall be limited to determining whether New Zealand has fulfilled its commitment as set out in Article 9.2 (Investment Promotion), and where applicable, to finding a mutually agreed solution between the Parties.

8. The Investment Committee shall endeavour to settle issues within 60 days from convening of the Investment Committee, with due consideration to the final report. This period may be extended by no more than six months by mutual agreement of the Parties.

9. If the Investment Committee determines that the commitment set out in Article 9.2 (Investment Promotion) has not been fulfilled, the Investment Committee shall make recommendations to the Joint Commission.

10. If after the 8-month period from the request of consultations by India, the matter remains unresolved, then the Investment Committee shall refer the matter to the Joint Commission for consultations, with its recommendations.

11. The Joint Commission shall begin consultations upon the receipt of the referral from the Investment Committee under paragraph 9 or paragraph 10, with a view to reaching a mutually agreed solution. If the Joint Commission cannot resolve the matter within six months of the date of receipt of the reference from the Investment Committee, the same shall be referred to the representatives of New Zealand and India at the level of Ministers. Such representatives shall be identified in writing.

12. Such representatives of New Zealand and India shall begin consultations within 30 days of the receipt of the referral from the Joint Commission. The representatives of the Parties shall take no more than six months from the receipt of the referral from the Joint Commission, to arrive at a mutually agreed solution to the matter raised by the requesting Party. If the matter is not fully resolved within six months from the date of receipt of the referral from the Joint Commission, New Zealand may request a grace period of an additional three years. The request shall state the grounds and may outline possible actions from New Zealand towards the achievement of the investment objective set out in Article 9.2 (Investment Promotion). India may consider granting such request with due consideration to the reports of the Investment Committee, and the recommendations of the Joint Commission as well as discussions held by representatives of the Parties at the level of Ministers.

13. Nothing in this Chapter shall require the Parties to disclose any information that they consider confidential. The Parties shall treat as confidential any information designated as such by the Party providing the information.

Article 9.10
Remedial Measures

1. If no mutually agreed solution subsequent to consultations under paragraphs 6 through 12 of Article 9.9 (Review, Reporting and Three-tier Government-to-Government Consultations) has been found, and the grace period, if granted by India, has elapsed, and India determines that New Zealand has not fulfilled its commitment set out in Article 9.2 (Investment Promotion), India may, notwithstanding any other provision under this Agreement, undertake proportionate remedial measures to rebalance the concessions provided to New Zealand by India pursuant to Annex 2A (Schedules of Tariff Commitments).

2. India shall, no later than 30 days before the date on which the remedial measures are due to take effect, notify New Zealand of the remedial measures it intends to take, the grounds for such remedial measures and when they will commence.

3. The Parties agree that the remedial measures are intended to be temporary and shall be terminated once the investment objective set out in Article 9.2 (Investment Promotion) has been achieved.

4. New Zealand may request consultations under the Joint Commission if the remedial measures have continued beyond five years. Such a request shall include the New Zealand's grounds for the request for modification or termination of remedial measures.

5. The Joint Commission shall begin consultations within 30 days of the receipt of the request from New Zealand pursuant to paragraph 4. The Joint Commission will assess the grounds for modification or termination in New Zealand's request, and accordingly, aim to facilitate a mutually agreed solution between the Parties. If the Joint Commission cannot resolve the matter within six months, the same shall be referred to the representatives of New Zealand and India at the level of Ministers.

6. Upon receipt of reference from the Joint Commission pursuant to paragraph 5, the representatives of the Parties at the level of Ministers, will aim to facilitate a mutually agreed solution. If the representatives cannot resolve the matter within six months, the remedial measures will be deemed to be continued until the next such review pursuant to paragraph 7.

7. If the Joint Commission or the representatives at the level of Ministers recommend modification or termination of the remedial measures under paragraphs 5 through 6, the measures necessary to modify or terminate shall be taken within an agreed time period. Unless such remedial measures are terminated, the Joint Commission shall thereafter examine the continuation or modification of the remedial measures every three years following the same procedure, until the remedial measures have ceased to apply.

Article 9.11
Non-Application of Dispute Settlement

Neither Party shall have recourse to dispute settlement under Chapter 19 (Dispute Settlement) for any matter arising under this Chapter.

CHAPTER 10

COMPETITION

Article 10.1
Objectives

1. The objectives of this Chapter are to promote fair competition and consumer welfare, in order to facilitate trade and investment flows between the Parties and the efficient functioning of each Party's market through:

   (a) the maintenance and enforcement of law to address anti-competitive practices; and

   (b) enhancing cooperation on competition law enforcement and competition policy.

2. The pursuit of these objectives will help the Parties to secure the benefits of this Agreement.

Article 10.2
Competition Law and Authorities

1. Each Party shall apply its competition law to all commercial activities in its territory[1], including to public enterprises, which:

   (a) prohibits anti-competitive agreements between enterprises, including cartel agreements;

   (b) prohibits the abuse of a dominant position by an enterprise; and

   (c) effectively addresses combinations or mergers with substantial anti-competitive effects.

2. Each Party may provide for certain exemptions from the application of its national competition law provided that those exemptions are transparent, established in law and are based on public policy grounds or public interest grounds.

3. Each Party shall maintain a national competition authority responsible for the effective application and enforcement of its competition law. Each Party's national competition authority shall be operationally

[1] For greater certainty, this paragraph does not preclude a Party from applying its competition law to commercial activities outside its territory in accordance with its laws and regulations.

independent and apply the Party's competition law in a manner which does not discriminate between persons on the basis of nationality.

Article 10.3
Procedural Fairness

1. This Article shall be implemented by each Party in accordance with its laws and regulations.

2. Each Party shall apply its competition law in a transparent manner, respecting the principles of procedural fairness, including the rights of defence of the enterprises concerned, in particular the right to be heard and the right to judicial review.

3. Each Party shall ensure that where information which is protected as confidential by its law, is obtained by its national competition authority during investigations, that information is not disclosed, except where required by applicable legal exceptions.

Article 10.4
Cooperation

1. The Parties and their national competition authorities may cooperate to foster effective competition law enforcement and competition policy. This cooperation may include:

   (a) exchange of non-confidential information; and

   (b) coordination of activities on matters of mutual interest.

2. Any cooperation shall be compatible with each Party's law and interests, and within the available resources of the Party and its national competition authority.

Article 10.5
Consultations

Each Party may request consultations with the other Party with respect to any matter related to this Chapter. The request for consultations shall set out the reasons for the request. The Party to which the request is made shall accord full and sympathetic consideration to the concerns of the requesting Party.

Article 10.6
Non-Application of Dispute Settlement

Neither Party shall have recourse to dispute settlement under Chapter 19 (Dispute Settlement) for any matter arising under this Chapter.

CHAPTER 11

INTELLECTUAL PROPERTY

Section A: General Provisions

Article 11.1
Definitions

For the purposes of this Chapter:

(a) **"geographical indication"** means an indication that identifies a good as originating in the territory of a Party, or a region or locality in that territory, where a given quality, reputation or other characteristic of the good is essentially attributable to its geographical origin;

(b) **"intellectual property"** means all categories of intellectual property that are covered by Sections 1 to 7 of Part II of the TRIPS Agreement;

(c) **"national"** means, in respect of the relevant right, a person of a Party that would meet the criteria for eligibility for protection provided for in the TRIPS Agreement; and

(d) **"WIPO"** means the World Intellectual Property Organization.

Article 11.2
Objectives

The protection and enforcement of intellectual property rights should contribute to the promotion of technological innovation and to the transfer and dissemination of technology, to the mutual advantage of producers and users of technological knowledge and in a manner conducive to social and economic welfare, and to a balance of rights and obligations.

Article 11.3
Principles

1. A Party may adopt appropriate measures to prevent the abuse of intellectual property rights by right holders or the resort to practices that unreasonably restrain trade or adversely affect the international transfer of technology, provided that such measures are consistent with this Chapter.

2. A Party may, in formulating or amending its laws and regulations, adopt measures necessary to protect public health and nutrition, and to promote the public interest in sectors of vital importance to their socio-economic and technological development, provided that such measures are consistent with the provisions of this Chapter.

Article 11.4
Understandings in Respect of this Chapter

Having regard to the underlying public policy objectives of the respective domestic intellectual property systems, the Parties recognise the need to:

(a) promote innovation and creativity;

(b) facilitate the diffusion of information, knowledge, technology (including through technology transfer), culture and the arts; and

(c) protect against unfair competition in accordance with the TRIPS Agreement,

through their respective intellectual property systems, while respecting the principles of transparency and due process, and taking into account the interests of right holders, users, and the public.

Article 11.5
Nature and Scope of Obligations

Each Party shall give effect to the provisions of this Chapter. A Party may, but shall not be obliged to, provide more extensive protection for, or enforcement of, intellectual property rights under its law than is required by this Chapter, provided that such protection or enforcement does not contravene the provisions of this Chapter. Each Party shall be free to determine the appropriate method of implementing the provisions of this Chapter within its own law and practice.

Article 11.6
International Agreements

The Parties affirm their obligations set out in the following multilateral agreements:

(a) TRIPS Agreement;

(b) *Patent Cooperation Treaty,* done at Washington on 19 June 1970, as amended on 3 October 2001;

(c) *Paris Convention for the Protection of Industrial Property,* done at Paris on 20 March 1883, as revised at Stockholm on 14 July 1967, as amended on 28 September 1979;

(d) *Berne Convention for the Protection of Literary and Artistic Works*, done at Berne on 9 September 1886, as revised at Paris on 24 July 1971, as amended on 28 September 1979 ("Berne Convention");

(e) *Protocol Relating to the Madrid Agreement Concerning the International Registration of Marks,* done at Madrid on 27 June 1989, as amended on 12 November 2007;

(f) *WIPO Performances and Phonogram Treaty,* adopted at Geneva on 20 December 1996 ("WPPT");

(g) *WIPO Copyright Treaty,* adopted at Geneva on 20 December 1996 ("WCT");

(h) *Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure,* done at Budapest on 28 April 1977, as amended on 26 September 1980; and

(i) *Marrakesh Treaty to Facilitate Access to Published Works for Persons Who Are Blind, Visually Impaired or Otherwise Print Disabled,* done at Marrakesh on 27 June 2013.

Article 11.7
Intellectual Property and Public Health

1. The Parties affirm their commitment to the *Declaration on the TRIPS Agreement and Public Health,* adopted at Doha on 14 November 2001 by the Ministerial Conference of the WTO ("Doha Declaration") and confirm that the provisions of this Chapter are without prejudice to the Doha Declaration.

2. Nothing in this Chapter shall limit a Party's rights and obligations pursuant to Article 31 and Article 31*bis* of the TRIPS Agreement, and the Annex and the Appendix to the Annex to the TRIPS Agreement.

3. Parties affirm that this Chapter can and should be interpreted and implemented in a manner supportive of each Party's right to protect public health and, in particular, to promote access to medicines for all.

4. Each Party has the right to determine what constitutes a national emergency or other circumstances of extreme urgency, it being understood that public health crises, including those relating to HIV/ AIDS, tuberculosis, malaria, COVID-19, and other epidemics, can represent a national emergency or other circumstances of extreme urgency.

Article 11.8
National Treatment

1. In respect of all categories of intellectual property covered in this Chapter, each Party shall accord to nationals of the other Party treatment no less favourable than it accords to its own nationals with regard to the protection[1] of intellectual property rights in accordance with Article 3(1) of the TRIPS Agreement.

2. A Party may derogate from paragraph 1 in relation to its judicial and administrative procedures, including requiring a national of the other Party to designate an address for service of process in its territory, or to appoint an agent in its territory, provided that such derogation is:

   (a) necessary to secure compliance with laws or regulations that are not inconsistent with this Chapter; and

   (b) not applied in a manner that would constitute a disguised restriction on trade.

3. Paragraph 1 does not apply to procedures provided in multilateral agreements concluded under the auspices of WIPO relating to the acquisition or maintenance of intellectual property rights.

Article 11.9[2]
Transparency

1. Each Party shall endeavour, subject to its legal system and practice, to make information concerning application and registration of trade marks, geographical indications, industrial designs, and patents accessible for the general public.

2. The Parties also acknowledge the importance of informational materials, such as publicly accessible databases of registered intellectual property rights to enable the public to become acquainted with the registered or granted intellectual property rights.

3. Each Party shall endeavour to make available such information on the internet.

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[1] For the purposes of this paragraph, “protection” shall include matters affecting the availability, acquisition, scope, maintenance, and enforcement of intellectual property rights as well as those matters affecting the use of intellectual property rights specifically covered by this Chapter.

[2] The commitment contained in Article 16.4 (Review and Appeal) that a review be ‘prompt’ shall not apply to this Chapter.

Article 11.10
Application of Chapter to Existing Subject Matter

This Chapter does not give rise to obligations in respect of acts that occurred before the date of entry into force of this Agreement for a Party.

Article 11.11
Exhaustion of Intellectual Property Rights

Nothing in this Agreement prevents a Party from determining whether or under what conditions the exhaustion of intellectual property rights applies under its law.[3]

Article 11.12
Concessions for Certain Categories

Each Party may provide concessions, such as reduced fees for filing, processing, registration, grant, and maintenance of intellectual property rights, to small and medium enterprises, startups, and educational institutions, in accordance with its laws and regulations.

Section B: Cooperation

Article 11.13
Cooperation Activities and Initiatives

1. The Parties shall endeavour to cooperate on the subject matter covered by this Chapter, such as through appropriate coordination, training and exchange of information between the respective intellectual property offices of the Parties, or other institutions, as determined by each Party.

2. Cooperation activities and initiatives undertaken under this Chapter shall be subject to the availability of resources, on request, and on terms and conditions mutually agreed upon between the Parties.

[3] For greater certainty, this Article is without prejudice to any provisions addressing the exhaustion of intellectual property rights in international agreements to which a Party is a party.

Section C: Trade Marks

Article 11.14
Types of Signs Registrable as Trade Marks

Neither Party shall deny registration of a trade mark only on the ground that the sign of which it is composed is a sound. A Party may require a concise and accurate description, or graphical representation, or both, as applicable, of the trade mark.

Article 11.15
Use of Identical or Similar Signs

Each Party shall provide that the owner of a registered trade mark has the exclusive right to prevent third parties that do not have the owner's consent from using in the course of trade identical or similar signs for goods or services that are related to those goods or services in respect of which the owner's trade mark is registered, where such use would result in a likelihood of confusion. In the case of the use of an identical sign for identical goods or services, a likelihood of confusion shall be presumed.

Article 11.16
Exceptions

A Party may provide limited exceptions to the rights conferred by a trade mark, such as fair use of descriptive terms, provided that those exceptions take account of the legitimate interest of the owner of the trade mark, and of third parties.

Article 11.17
Well-Known Trade Marks

For the purposes of giving effect to the protection of well-known trade marks, as referred to in Article 6*bis* of the Paris Convention and paragraphs 2 and 3 of Article 16 of the TRIPS Agreement, each Party recognises the importance of the *Joint Recommendation Concerning Provisions on the Protection of Well-Known Marks* adopted by the Assembly of the Paris Union for the Protection of Industrial Property and the General Assembly of WIPO at the Thirty-Fourth Series of Meetings of the Assemblies of the Member States of WIPO from 20 to 29 September 1999.

Article 11.18
Procedural Aspects of Examination, Opposition and Cancellation of Registered Trade Marks

Each Party shall provide a system for the examination and registration of trade marks which includes among other things:

(a) communicating to the applicant in writing, which may be by electronic means, the reasons for any refusal to register the trade mark;

(b) providing the applicant with an opportunity to respond to communications from the competent authorities, to respond to any initial refusal, and to make a judicial appeal against any final refusal to register the trade mark;

(c) providing an opportunity to oppose the registration of a trade mark or to seek cancellation[4] of the trade mark; and

(d) requiring decisions in the administrative proceedings of opposition and cancellation to be reasoned and in writing, which may be provided by electronic means.

Article 11.19
Classification of Goods and Services

Each Party shall adopt or maintain a trade mark classification system that is consistent with the *Nice Agreement Concerning the International Classification of Goods and Services for the Purposes of the Registration of Marks*, done at Nice on 15 June 1957, as revised and amended ("Nice Classification"). Each Party shall provide that:

(a) registrations and the publications of applications indicate the goods and services by their names, grouped according to the classes established by the Nice Classification;[5] and

(b) goods or services may not be considered as being similar to each other on the ground that, in any registration or publication, they are classified in the same class of the Nice Classification and conversely that goods or services may not be considered as being dissimilar from each other on the ground that, in any registration or publication, they are classified in different classes of the Nice Classification.

[4] For greater certainty, cancellation for the purposes of this Section may be implemented through nullification or revocation proceedings.

[5] A Party that relies on translations of the Nice Classification shall follow updated versions of the Nice Classification to the extent that official translations have been issued and published.

Article 11.20
Term of Protection for Trade Marks

Each Party shall provide that initial registration and each renewal of registration of a trade mark is for a term of no less than 10 years.

Section D: Country Names

Article 11.21
Country Names

Each Party may provide the legal means for interested persons to prevent commercial use of the country name of a Party in relation to a good in a manner that misleads consumers as to the origin of that good.

Section E: Geographical Indications

Article 11.22
Protection[6] of Geographical Indications

The Parties reaffirm that geographical indications may be protected through a trade mark or *sui generis* system or other legal means.

Article 11.23
Opposition Procedures

If a Party provides administrative procedures for seeking protection or recognition of geographical indications, whether through a trade mark or a *sui generis* system, it shall, in accordance with its laws and regulations, provide procedures that allow at least interested persons to oppose applications for such protection or recognition of a geographical indication.

[6] For greater certainty, protection of geographical indications collectively means protection by registration or recognition, as may be applicable to a Party.

Section F: Patents

Article 11.24
Regulatory Review Exception

Without prejudice to the scope of, and consistent with, Article 11.29 (Exceptions), each Party shall provide that a third party may do an act that would otherwise infringe a patent if the act is done for purposes connected with obtaining regulatory approval[7] in that Party or a non-Party.

Article 11.25
Other Use Without Authorisation of the Right Holder

Nothing in this Chapter shall limit a Party's rights and obligations under the TRIPS Agreement in relation to the use, or authorisation of the use of, a patent without the authorisation of the right holder.

Article 11.26
Conditions on Patent Applicants

1. Each Party shall require an applicant for a patent to disclose the invention in a manner sufficiently clear and complete for the invention to be carried out by a person skilled in the art and may require the applicant to indicate the best mode for carrying out the invention known to the inventor at the filing date or, where priority is claimed, at the priority date of application.

2. A Party may require a patent applicant to provide information concerning the applicant's corresponding foreign applications and grants.

Article 11.27
Patent Working Disclosure Requirement

1. Each Party may require a patent owner to provide periodic disclosure of information concerning the working of a patent.

2. Notwithstanding paragraph 1, a Party may require a patent owner to provide a disclosure concerning the working of a patent, in a given case, in accordance with its law.

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[7] For the purpose of this Article, a Party may treat "regulatory approval" to mean "marketing approval".

Article 11.28
Procedural Aspects of Examination, Opposition, and Invalidation or Cancellation of Registered Patents

Each Party shall provide a system for the examination and grant of patents which includes among other things:

(a) communicating to the applicant in writing, which may be by electronic means, the reasons for any refusal to register the patent;

(b) providing the applicant with an opportunity to respond to communications from the competent authorities, to respond to any initial refusal, and to make a judicial appeal against any final refusal to grant the patent;

(c) providing an opportunity for interested parties to seek cancellation or invalidation of a granted patent. In addition, each Party may provide an opportunity for interested parties to oppose the grant of the patent;

(d) making decisions in opposition, revocation or invalidation proceedings, to be reasoned and in writing, which may be delivered by electronic means; and

(e) providing an applicant with at least one opportunity to make amendments, corrections or observations, in connection with an application that has been filed[8] [9] with the competent authority of the Party in accordance with the laws and regulations of that Party.

Article 11.29
Exceptions

A Party may provide limited exceptions to the exclusive rights conferred by a patent, provided that such exceptions do not unreasonably conflict with a normal exploitation of the patent and do not unreasonably prejudice the legitimate interests of the right holder, taking account of the legitimate interests of third parties.

[8] For greater certainty, for the purpose of this Article, “filed” does not include notional applications or applications deemed to have been filed in a Party.

[9] A Party may provide that such amendments do not go beyond the scope of the disclosure of the invention, as of the filing date.

Section G: Industrial Designs

Article 11.30
Protection of Registered Industrial Designs

Each Party shall provide for the protection of independently created industrial designs that are new or original. This protection shall be provided by registration and shall confer an exclusive right upon the holder in accordance with the provisions of the TRIPS Agreement.

Article 11.31
Exceptions

A Party may provide limited exceptions to the exclusive rights conferred by the protection of an industrial design, provided that such exceptions do not unreasonably conflict with a normal exploitation of an industrial design and do not unreasonably prejudice the legitimate interests of the right holder, taking account of the legitimate interests of third parties.

Section H: Genetic Resources, Traditional Knowledge, And Traditional Cultural Expressions

Article 11.32
Genetic Resources, Traditional Knowledge, and Traditional Cultural Expressions

1. The Parties recognise the relevance of intellectual property systems and traditional knowledge associated with genetic resources to each other, when that traditional knowledge is related to those intellectual property systems.

2. The Parties affirm the importance of the *WIPO Treaty on Intellectual Property, Genetic Resources and Associated Traditional Knowledge,* adopted at Geneva on 24 May 2024.

3. The Parties affirm the importance of the work carried out on traditional knowledge and traditional cultural expressions by the WIPO Intergovernmental Committee on Intellectual Property and Genetic Resources, Traditional Knowledge and Folklore.

4. The Parties shall endeavour to exchange views and information and cooperate through their respective agencies responsible for intellectual property rights covered by this Chapter, with the participation of relevant stakeholders, if such participation is appropriate and

practicable, to enhance the understanding of intellectual property related aspects of genetic resources, traditional knowledge, and traditional cultural expressions.

Article 11.33
Patent Examination and Traditional Knowledge Associated with Genetic Resources

The Parties shall endeavour to pursue quality patent examination, which shall include:

(a) that in determining prior art, relevant publicly available documented information related to traditional knowledge associated with genetic resources may be taken into account;

(b) an opportunity for third parties to cite, in writing, to the competent examining authority prior art disclosures that may have a bearing on patentability, including prior art disclosures related to traditional knowledge associated with genetic resources;

(c) if applicable and appropriate, the use of databases or digital libraries such as India's Traditional Knowledge Digital Library ("TKDL"), containing traditional knowledge associated with genetic resources; and

(d) if agreed and subject to available resourcing, cooperation in the training of patent examiners in the examination of patent applications related to traditional knowledge associated with genetic resources.

Section I: Copyright And Related Rights

Article 11.34
General Provision

Consistent with the obligations set out in the applicable international agreements to which the Parties are party and in accordance with its laws and regulations, each Party shall provide adequate and effective protection to authors for their works, performers for fixations of their performances in phonograms, producers for their phonograms and broadcasters for their broadcasts.

Article 11.35
Limitations and Exceptions

1. A Party may provide limitations or exceptions in its domestic law to the rights provided under this Section, but shall confine such limitations or exceptions to exclusive rights to certain special cases that do not conflict with a normal exploitation of the work, performance or phonogram, and do not unreasonably prejudice the legitimate interests of the right holder.

2. This Article does not reduce or extend the scope of applicability of the limitations and exceptions permitted by the TRIPS Agreement, the Berne Convention, the WCT or the WPPT.

Article 11.36
Obligations Concerning Protection of Rights-Management Information

Each Party shall provide adequate and effective legal remedies against any person who knowingly and without authorisation:

(a) removes or alters any electronic rights-management information; or

(b) distributes, imports for distribution, broadcasts or communicates to the public, works or copies of works, knowing that electronic rights-management information has been removed or altered without authorisation.

Article 11.37
Collective Management

1. The Parties recognise the role of collective management societies for copyright and related rights in collecting and distributing royalties based on practices that are fair, efficient, transparent and accountable, which may include appropriate record keeping and reporting mechanisms.

2. Each Party shall encourage the establishment of reciprocal arrangements between their respective collective management societies for the purposes of ensuring easier licensing of content and sharing of rights revenues.

Section J: Enforcement

Article 11.38
General Obligation in Enforcement

The Parties shall provide in their respective law for the enforcement of intellectual property rights covered by this Chapter consistent with the TRIPS Agreement, in particular Articles 41 through 61.

Article 11.39
Border Measures

1. Each Party shall, in conformity with its law and the provisions of Part III, Section 4 of the TRIPS Agreement, adopt procedures to enable a right holder, who has valid grounds for suspecting that the importations of counterfeit trade mark or pirated copyright goods may take place, to lodge an application in writing with the competent authorities, administrative or judicial, in the Party in which the border measure procedures are applied, for the suspension by that Party's customs authorities of the release into free circulation of such goods.

2. A Party may enable such an application to be made in respect of goods which involve other infringements of intellectual property rights, provided that the requirements of Part III, Section 4 of the TRIPS Agreement are met. A Party may also provide for corresponding procedures concerning the suspension by the customs authorities of the release of infringing goods destined for exportation from their territory in accordance with its law.

CHAPTER 12

TRADE AND SUSTAINABLE DEVELOPMENT

Article 12.1
Scope, Context and Objectives

1. Recalling the *Rio Declaration on Environment and Development and the Agenda 21* adopted by the United Nations Conference on Environment and Development in Rio de Janeiro on 14 June 1992, the *Johannesburg Declaration on Sustainable Development and its Plan of Implementation* adopted in Johannesburg on 4 September 2002, the *International Labour Organization* ("ILO") *Declaration on Fundamental Principles and Rights at Work* adopted by the International Labour Conference at its 86th Session in Geneva on 18 June 1998, as amended in 2022 ("ILO Declaration on Fundamental Principles and Rights at Work"), the *ILO Declaration on Social Justice for a Fair Globalization* adopted by the International Labour Conference at its 97th Session in Geneva on 10 June 2008, as amended in 2022 ("ILO Declaration on Social Justice for a Fair Globalization"), the *Outcome Document of the UN Conference on Sustainable Development of 2012 entitled "The Future We Want" endorsed by the UN General Assembly Resolution 66/288* adopted on 27 July 2012 ("the RIO+20 Outcome Document "The Future We Want"), the *UN 2030 Agenda for Sustainable Development*, adopted by the UN General Assembly Resolution 70/1 on 25 September 2015 and its Sustainable Development Goals, and the multilateral environmental agreements to which the Parties are party, the Parties affirm their commitment to pursue the objective of sustainable development, whose pillars, economic development, social development and environmental protection are mutually supportive, interdependent and essential requirements of sustainable development.

2. The Parties agree to promote international trade in such a way as to contribute towards sustainable development for eradicating poverty and hunger, including towards broad-based, sustained and inclusive economic growth, social development, high levels of environmental protection and progress towards long-term strategies for transition, and to work to integrate and reflect this objective in their trade relationship.

3. For greater certainty, the Parties emphasise that it is their aim to strengthen their trade relations and cooperation in ways that promote sustainable development, and that this Chapter does not oblige the Parties to harmonise their environmental and social standards of protection.

4. This Chapter embodies a cooperative approach based on common values and interests, taking into account the differences in the Parties' respective levels of development, priorities and circumstances.

5. For the purposes of this Chapter, **"laws and regulations"** means:

   (a) for India, an Act of the Parliament of India or delegated legislation framed pursuant to an Act of the Parliament of India, which is enforceable by action of the Central or Union level of Government; and

   (b) for New Zealand, an Act of the Parliament of New Zealand or a regulation made under an Act of the Parliament of New Zealand by the Governor-General in Council, which is enforceable by action of the central level of government.

Article 12.2
Right to Regulate and Upholding Levels of Protection

1. Recognising the right of each Party, in a manner consistent with the provisions of this Chapter, to set its domestic sustainable development policies and priorities, to establish its own levels of environmental, and labour protection, and to adopt or modify accordingly its relevant laws and policies, each Party shall seek to ensure that its laws, policies and practices provide for and encourage achieving sustainable development as referred to in Article 12.1 (Scope, Context and Objectives).

2. The Parties are committed not to encourage trade by derogating from or, through a sustained or recurring course of action or inaction, failing to effectively enforce their respective environmental and labour laws in a manner affecting trade between the Parties.

3. The Parties stress that environmental and labour measures shall not be applied in a manner that would constitute a means of arbitrary or unjustifiable discrimination between the Parties or a disguised restriction on trade.

4. The Parties recognise the value of international agreements on the environment and on labour as means to address global and regional environmental and social challenges. The Parties recall that the ILO Declaration on Social Justice for a Fair Globalization states that the violation of fundamental principles and rights at work cannot be invoked or otherwise used as a legitimate comparative advantage and that labour standards should not be used for protectionist trade purposes. In this context, the Parties note that their comparative advantage should in no way be called into question. The Parties also stress that neither environmental issues nor labour standards shall be used for protectionist trade purposes.

Article 12.3
Trade and Labour

1. The Parties, in accordance with their obligations as members of the ILO and the ILO Declaration on Fundamental Principles and Rights at Work, commit to respect, promote and realise, in good faith, the fundamental principles and rights at work which are the subject of the fundamental ILO Conventions.

2. Each Party affirms their commitment to effectively implement in their laws and practices the ILO Conventions which that Party has ratified. Each Party will make efforts towards ratifying the fundamental ILO Conventions in a promotional and flexible manner without time limits and consistent with the ILO Declaration on Social Justice for a Fair Globalization.

3. In view of the objectives set out in Article 12.1 (Scope, Context and Objectives), the Parties agree to enhance their cooperation by exchanging information, discussing best practices and sharing implementation experiences in areas of mutual interest, such as:

   (a) best practices relating to corporate social responsibility including encouraging businesses to adopt responsible business conduct policies;

   (b) relevant aspects of the ILO Decent Work Agenda, such as labour statistics and labour market developments;

   (c) sharing expertise, information and best practices in respect of identifying and addressing skill shortages and gaps;

   (d) human capital development and the enhancement of employability, including through apprenticeship programmes, lifelong learning, continuous education, training and the development and upgrading of skills;

   (e) exploring opportunities for skilling, upskilling and re-skilling to facilitate a just transition and decent work in accordance with the *ILO Guidelines for a Just Transition Towards Environmentally Sustainable Economies and Societies for All*, published by the ILO at Geneva on 2 February 2016 ("ILO Guidelines for a Just Transition") and the Decent Work Agenda; and

   (f) promotion of productive, quality employment and green entrepreneurship linked to sustainable growth, support for workers as part of a just transition in line with the ILO Guidelines for a Just Transition, and skill development for jobs in emerging industries, including environmental industries.

Article 12.4
Trade and Gender Equality

1. The Parties recognise the importance of gender equality and the empowerment of all women in advancing sustainable and inclusive economic growth and development, including through women's participation in international trade.

2. The Parties also recognise that gender-responsive policies and practices are important to advancing gender equality and the empowerment of all women. The Parties recognise the importance of adopting, maintaining and implementing women's economic empowerment and equality laws, regulations, policies and best practices, in line with the Sustainable Development Goal 5 of the UN 2030 Agenda on Sustainable Development. The Parties also recognise the importance of the *Convention on the Elimination of all Forms of Discrimination Against Women* done at New York City on 18 December 1979 and the *Beijing Declaration and Platform for Action, Fourth World Conference on Women* done at Beijing on 15 September 1995.

3. Accordingly, each Party shall endeavour to:

   (a) foster women's entrepreneurship and leadership, including promoting women's access to the benefits and opportunities of this Agreement;

   (b) promote the exchange of information and best practice related to the design, implementation, monitoring, evaluation and strengthening of policies and programmes, aimed at enhancing women's participation in economic activity, including international trade; and

   (c) cooperate to identify and address the barriers faced by women in trade and investment including safety and access to information, networks and finance.

4. The Parties agree to implement the Agreement and the cooperation activities established under this Article in a manner that advances the full, equal and meaningful participation of women in the economy and in a manner that protects and promotes their human rights and economic wellbeing.

Article 12.5
Multilateral Environmental Agreements

1. The Parties recognise the important role multilateral environmental agreements play in protecting the environment, including reducing biodiversity loss and addressing climate change, and the need for

mutual supportiveness between trade and environmental laws and policies.

2. The Parties affirm their adherence to the principles reflected in the international environmental instruments referred to in Article 12.1 (Scope, Context and Objectives).

3. The Parties affirm their commitment to implement the multilateral environmental agreements to which the Parties are a party.

Article 12.6
Trade and Environment

1. The Parties recognise that in accordance with the objective of sustainable development, the Parties shall allow for the optimal use of the world's resources, and will seek to protect and preserve the environment, and to enhance the means for doing so in a manner consistent with their respective needs and concerns at different levels of economic development. The Parties further recognise the importance, and positive role, that the multilateral trading system and the WTO may play in encouraging sustainable use of resources, sustainable ecosystems, sustainability of services and sustainable long-term growth.

2. The Parties also recognise the importance of strengthening policies and defining programmes that encourage sustainable and inclusive growth. The Parties recall that the Rio+20 Outcome Document "The Future We Want" provides sufficient flexibility and policy space for the Parties to make their own choices out of a broad menu of options and define their paths towards sustainable development based on each Party's stage of development, national circumstances and priorities.

3. The Parties also recognise that policy objectives to facilitate the transition to a resource efficient and circular economy includes extending product lifetimes, increasing the proportion of materials and products that are reused and recycled, and reducing waste throughout supply chains.

4. The Parties recognise the importance of conserving, and sustainably using, biological diversity consistent with relevant multilateral environmental agreements to which the Parties are a party, including the *Convention on Biological Diversity*, done at Rio de Janeiro on 5 June 1992 and its Protocols, the *Convention on the Conservation of Migratory Species of Wild Animals*, done at Bonn on 23 June 1979, the *Ramsar Convention on Wetlands*, done at Ramsar on 02 February 1971, and the *Convention on International Trade in Endangered Species of Wild Fauna and Flora*, done at Washington D.C. on 3 March 1973, and the decisions adopted thereunder.

5. The Parties recognise the importance of the conservation and sustainable management of forests for providing environmental functions and economic and social opportunities for present and future generations.

6. Accordingly, the Parties shall endeavour to cooperate in areas of mutual interest, including:

   (a) sharing best practices in promoting integrated and sustainable management of natural resources and ecosystems, including conservation and sustainable use of biodiversity;

   (b) taking appropriate action to conserve biological diversity, including to prevent the spread of invasive alien species;

   (c) supporting cooperation between enterprises in relation to goods, services and technologies that contribute to sustainable development;

   (d) sharing policy frameworks conducive to the deployment of best available technologies for sustainable development, including with regard to the promotion of eco-innovation, research activities, dissemination of results, and efforts to ensure that such technologies are available in the public domain and are accessible at affordable prices;

   (e) promoting the conservation and sustainable management of forests;

   (f) encouraging trade in forest products from sustainable supply chains; and

   (g) contributing to combatting illegal logging, illegal deforestation, and associated trade, including with respect to communities dependent on forests.

7. Recognising the importance of cooperation and supportive measures, the Parties affirm their commitment to implement their respective commitments regarding cooperation and supportive measures, such as financial, technological, technical or capacity building support, as relevant, under the international agreements referred to in this Chapter.

Article 12.7
Marine Fisheries

1. The Parties recognise the importance of conserving and sustainably managing marine fisheries. The Parties also underline the importance of the marine fisheries sector to their development and to the livelihoods of their fishing communities, including artisanal or small-scale fisheries.

2. Accordingly, the Parties agree to:

(a) support national, regional and international goals to address illegal, unreported and unregulated fishing in accordance with national and international instruments, and by using relevant international frameworks; and

(b) cooperate on aspects of fishery policies and measures bilaterally, regionally, and in international fora as appropriate, which are important to promoting sustainable fishing practices.

Article 12.8
Climate Change

1. The Parties recognise the importance of achieving, the objectives of the *United Nations Framework Convention on Climate Change*, done at New York on 09 May 1992 (hereinafter referred to as "UNFCCC") and the goals of the *Paris Agreement*, done at Paris on 12 December 2015, reflecting the principles of the UNFCCC and the Paris Agreement including equity and the principle of common but differentiated responsibilities and respective capabilities, in light of different national circumstances and based on best available science, in order to address the urgent threat of climate change.

2. The Parties reaffirm their commitment to implement their respective obligations and commitments under the UNFCCC and the Paris Agreement.

3. The Parties underline the importance of climate actions, to be implemented in accordance with each Party's national circumstances, capabilities and equity.

4. Pursuant to paragraph 1, the Parties shall endeavour to cooperate bilaterally, and in other fora, as appropriate, in areas of mutual interest related to mitigation of and adaptation to climate change, including but not limited to the following:

(a) mobilising investment and sustainable finance;

(b) sharing knowledge and evidence-based innovations, including traditional, local and Indigenous knowledge, especially technological innovations, to support solutions to climate change, including climate-smart and resilient agriculture production;

(c) exploring cooperation under Article 6 of the Paris Agreement;

(d) exploring opportunities for climate and energy solutions; and

(e) sharing information on innovation, research and development which promotes clean energy, and climate-friendly technologies.

Article 12.9
Cooperation

1. The Parties recognise cooperation as a means to implement this Chapter, to enhance its benefits and to strengthen the Parties' joint and individual capacities to promote sustainable development as they strengthen their trade relations. The Parties recognise that cooperation activities undertaken pursuant to this Agreement seek to complement and build upon existing agreements or arrangements between the Parties.

2. The Parties shall endeavour to strengthen their cooperation on environment, climate and other issues of mutual interest in relevant bilateral, regional, and multilateral fora in which the Parties participate. Cooperative activities agreed under this Chapter shall align with the Parties' respective national circumstances, environmental commitments, climate commitments and other commitments outlined in the Chapter.

3. Cooperation under this Chapter may include the following:

   (a) technical assistance and capacity building;

   (b) mobilising financial resources and instruments;

   (c) sharing of know-how and facilitating technology development and transfer in furtherance of the Parties' respective commitments under multilateral environmental agreements;

   (d) sharing of information, data and best practices on policies and procedures, including through joint analysis and the exchange of experts;

   (e) dialogues, workshops, seminars, conferences, collaborative programmes and projects, including joint research projects on environmental technologies; and

   (f) other means, as the parties may decide.

4. Each Party shall, as appropriate:

   (a) share its priorities for cooperation with the other Party, including the objectives of that cooperation;

   (b) propose cooperation activities related to the implementation of this Chapter; and

(c) develop and participate in mutually agreed cooperation activities and programmes in accordance with the priorities identified and agreed by the Parties.

5. In implementing the cooperation activities under this Chapter, the Parties may invite the views and participation of relevant stakeholders.

Article 12.10
Trade and Sustainable Development Committee

1. The Parties hereby establish the Committee on Trade and Sustainable Development ("Committee") composed of government representatives of each Party.

2. The Committee shall be jointly co-chaired by the Parties. It shall meet within one year of the date of entry into force of this Agreement and thereafter as agreed by the Parties. Meetings may occur in person, or by any other means of communication as agreed by the representatives of the Parties.

3. All decisions of the Committee shall be made by agreement of the Parties.

4. The Committee shall, with respect to this Chapter, have the following functions:

(a) review and monitor the implementation and operation of this Chapter;

(b) discuss technical issues arising from the implementation of this Chapter;

(c) foster understanding and facilitate consultations and dialogue regarding matters arising under this Chapter;

(d) consider priorities and proposals referred to the Committee by the Parties and, where appropriate, agree cooperation activities in accordance with Article 12.9 (Cooperation); and

(e) consider any other matter related to this Chapter, as agreed between the Parties.

5. The Committee may:

(a) exchange information, discuss best practices and share implementation experiences on issues of mutual interest relating to this Chapter; and

(b) seek advice from, or invite, representatives of relevant business, non-government or other civil society organisations, as agreed by the Parties.

6. The Committee shall:

(a) report to the Joint Commission on the results and conclusions from each of their meetings; and

(b) carry out any task assigned and any responsibility delegated to it by the Joint Commission.

Article 12.11
Contact Points

1. Each Party shall designate a contact point to receive and facilitate official communications between the Parties on any matter relating to this Chapter.

2. Each Party shall promptly notify the other Party, in writing, of any changes to its contact point.

Article 12.12
Consultations and Dialogue

1. The Parties recognise the importance of cooperation and consultation, based on the principle of mutual respect, and shall endeavour to resolve any matter arising under this Chapter.

2. After a request for information about a matter arising under this Chapter is made, the requesting Party may request in writing consultations with the other Party on the matter.

3. If a request for consultations is received in accordance with paragraph 2, the Parties shall enter into consultations in good faith no later than 150 days after the receipt of the request, unless agreed otherwise.

4. The Parties shall endeavour to achieve a mutually satisfactory resolution of the matter through consultations initiated in accordance with paragraph 3. The Parties may agree to seek advice from an independent expert or experts chosen by them to assist. The Parties shall document any outcome.

5. Consultations shall take place in the Committee on Trade and Sustainable Development.

6. Consultations may be held in person or by other technological means available.

7. Consultations under this Article, and the positions taken by the Parties during such consultations shall be confidential. Each Party shall treat any information exchanged in the consultations as confidential unless stated otherwise by the Party sharing the information.

8 The outcomes of consultations under this Article shall be made public, unless the Parties agree otherwise. If the outcome of consultations is published, it shall be published in a jointly agreed report.

9. For greater certainty, where the matter arising under this Chapter regards compliance with obligations under a multilateral environmental agreement to which the Parties are a party, the requesting Party shall, where appropriate, address the matter through the consultative procedure or other procedures under that multilateral environmental agreement.

Article 12.13
Review

The Parties shall review this Chapter in accordance with Article 20.4 (General Review), inviting, as appropriate, the views and participation of relevant stakeholders.

Article 12.14
Non-application of Dispute Settlement

Neither Party shall have recourse to dispute settlement under Chapter 19 (Dispute Settlement) for any matter arising under this Chapter.

CHAPTER 13

CULTURAL, TRADE, TRADITIONAL KNOWLEDGE AND ECONOMIC COOPERATION

Article 13.1
Objective

1. The Parties recognise that trade agreements play a role in facilitating and expanding trade, and economic opportunities for, with, and between people, including Māori for New Zealand, as well as addressing disparities, including to enhance trade for, with, and between them, to preserve, protect, and promote traditional knowledge, including traditional systems of medicine, and traditional cultural expressions. The Parties note that traditional knowledge and practices are important contributors to innovation, sustainability, and economic empowerment. The Parties intend to preserve and promote traditional language, culture and heritage that are vital for economic benefit and cultural continuity.

2. The Parties further recognise that integrating traditional knowledge into this Agreement can lead to shared economic growth, cultural preservation and sustainability. Further, the Parties affirm the importance of defensive protection mechanisms that assist in preventing the misappropriation of traditional knowledge, such as the Traditional Knowledge Digital Library (“TKDL”) of India and New Zealand’s Māori Cultural and Intellectual Property Committees.

3. The objective of this Chapter is to pursue mutual cooperation to contribute towards the Parties efforts to enable and advance their peoples’ economic and cultural aspirations, including Māori for New Zealand. The Parties recognise that for New Zealand, cooperation under this Chapter should be implemented in a manner consistent with te Tiriti o Waitangi / the Treaty of Waitangi.

Article 13.2
International Cooperation

1. The Parties recognise the following relevant multilateral instruments to which the Parties are party:

   (a) the *United Nations Educational, Scientific and Cultural Organization Convention on the Protection and Promotion of the Diversity of Cultural Expressions,* adopted in Paris on 20 October 2005; and

(b) the *Convention on Biological Diversity,* particularly Article 8(j), adopted in Rio de Janeiro on 5 June 1992.

2. The Parties, subject to their respective reservations, affirm the following:

(a) the *United Nations Declaration on the Rights of Indigenous Peoples,* adopted in New York on 13 September 2007 and their respective positions made on that Declaration;[1, 2]

(b) the *United Nations Guiding Principles on Business and Human Rights* adopted via Resolution 17/4 by UN Human Rights Council on 16 June 2011*;*

(c) *International Treaty on Plant Genetic Resources for Food and Agriculture* done at Rome on 03 November 2001*;*

(d) TRIPS Agreement and acknowledge the instruction provided under the *Doha Declaration*, adopted in Doha on 14 November 2001, for the Council for TRIPS to examine, *inter alia,* the relationship between the TRIPS Agreement and the Convention on Biological Diversity, the protection of traditional knowledge and folklore, and other relevant new developments raised by WTO members pursuant to Article 71.1 of TRIPS;

(e) the *United Nations 2030 Agenda for Sustainable Development,* adopted in New York by the UN General Assembly Resolution 70/1 on 25 September 2015*;* and

(f) *United Nations Educational, Scientific and Cultural Organization Convention on the Protection and Promotion of the Diversity of Cultural Expressions* done at Paris on 20 October 2005*.*

3. The Parties shall avoid duplication of any work, process or cooperation in any other fora and under this Agreement.

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[1] For greater certainty, this includes qualifying statement by India at the United Nations, accessible at “General Assembly Adopts Declaration on Rights of Indigenous Peoples; ‘Major Step Forward’ towards Human Rights for All, Says President” United Nations Meetings Coverage and Press Releases (GA/10612, 13 September 2007), <https://press.un.org/en/2007/ga10612.doc.htm>. India notes that “India voted in favour of the United Nations Declaration on the Rights of Indigenous Peoples on the condition that after independence all Indians are indigenous”.

[2] The Parties agree that for India, “Indigenous Peoples” is without prejudice to India’s domestic legal classification, and any recognition of indigenous status shall be in accordance with India’s law or policy.

Article 13.3
Cooperation Activities

1. The Parties acknowledge that cooperation activities under this Chapter shall be carried out within the existing framework set out in this Agreement and be carried out through forms to be agreed upon by the Parties, that may include technical assistance, trainings, exchanges of data and information, seminars and workshops, sharing of best practices, studies, research and innovation, and awareness raising on trade opportunities.

2. To achieve this Chapter's objectives, the Parties may coordinate cooperation activities between their people, including Māori for New Zealand, as deemed appropriate. Such cooperation activities may include:

   (a) exchanging related information on best practices, lessons learned, and technical matters among the Parties and stakeholders in the Parties;

   (b) collaborating on traditional knowledge that may help to innovate or to adapt to new challenges;

   (c) exchanging, preserving, documenting or cooperating in traditional medicines and healing systems, including Ayurveda, Yoga, and Naturopathy, Unani, Sowa-Rigpa, Siddha, Homeopathy ("AYUSH"), ethno-medicine , herbalist and ritual-based healing systems for India and Rongoā Māori (a multi-dimensional form of Māori care and healing) for New Zealand, that offer a holistic approach to health and well-being, including physical, mental, emotional and spiritual health;

   (d) collaborating to enhance the ability for SMEs, Māori-owned enterprises, tribal enterprises, artisans, and community-led startups to access and benefit from the trade opportunities created by this Agreement, including through promoting information exchange on product certifications and standards, including AYUSH products, and professional qualifications with a view to improving mutual understanding and identifying potential areas for future harmonisation as well as entrepreneurship development, capacity building and other initiatives that empower SMEs, artisans, and community-led startups;

   (e) supporting science, research and innovation links, as appropriate;

   (f) identifying potential areas of cooperation between businesses for the mutual benefit of both Parties, and developing, supporting and strengthening business networks, cooperation and partnerships, including through trade missions;

(g) promoting trade in sectors relevant for SMEs, Māori-owned enterprises, tribal enterprises, including businesses that relate to or derive from traditional knowledge, biodiversity, and traditional cultural expressions such as arts and crafts, dance, music and tourism;

(h) facilitating study-abroad programmes or other similar educational or research practices, cultural exchanges, research and development;

(i) undertake joint research projects, publications, and extra-curricular academic events;

(j) collaborate and cooperate in training, research and teaching activities for AYUSH and Rongoā Māori (a multi-dimensional form of Māori care and healing) practitioners;

(k) enhance the dialogue between the Parties to consolidate and expand the trade relationship, understanding, and cooperation in fields of common interest between the people of the Parties; and

(l) any other area of mutual interest that the Parties may agree.

Article 13.4
Implementation

1. The implementation of this Chapter and activities therein shall be subject to available resources and in accordance with each Party's law and policy.

2. This Chapter does not impose any legal or financial obligations requiring the Parties to explore, commence or conclude any individual cooperation activities.

3. Resources for economic cooperation, technical assistance and capacity building under this Chapter shall be provided as mutually agreed by the Parties.

4. The activities under this Chapter shall be carried out through the Joint Commission.

Article 13.5
Contact Points

1. Each Party shall designate and notify a contact point for implementing this Chapter.

2. Each Party shall promptly notify the other Party of any change to its contact point no later than 7 days from such change.

3. The contact points shall facilitate communication, coordination, and information exchange between the Parties:

   (a) for all matters or activities, the Parties consider relevant under this Chapter; and

   (b) as required for coordinating between any subcommittee, working group, or other subsidiary body established under this Agreement, on matters covered by this Chapter.

Article 13.6
Non-Application of Dispute Settlement

Neither Party shall have recourse to dispute settlement under Chapter 19 (Dispute Settlement) for any matter arising under this Chapter.

CHAPTER 14

ECONOMIC COOPERATION AND TECHNICAL ASSISTANCE

Section A: Objectives, Scope and General Provisions

Article 14.1
Objectives

1. The objective of this Chapter is to support the effectiveness and efficiency of the implementation and utilisation of this Agreement through activities that relate to trade, investment and capacity building.

2. Cooperation and provision of technical assistance under this Chapter is intended to promote and facilitate trade and investment between the Parties and to foster economic growth.

Article 14.2
General Provisions

1. Economic cooperation and technical assistance under this Chapter shall be built upon a common understanding between the Parties to support the implementation of this Agreement, with the objective of maximising its benefits, building capacity, supporting pathways to trade and investment facilitation, and further improving market access and openness to contribute to the sustainable inclusive economic growth and prosperity of the Parties.

2. The Parties agree that economic cooperation and technical assistance activities under this Chapter should complement existing development and economic cooperative partnerships between the Parties in trade and investment related areas, taking into account the needs that are identified and mutually determined.

3. The Parties shall strive to promote cooperation and provision of technical assistance under this Chapter for their mutual benefit, in order to promote and facilitate trade and investment between the Parties and foster economic growth, including through activities that relate to trade, investment and capacity building.

4. The Parties shall, in accordance with this Chapter:

   (a) promote opportunities for cooperation and the provision of technical assistance between the Parties, their respective business communities, scientific and academic communities,

Māori in the case of New Zealand, or other stakeholders as appropriate, in areas of common interest under this Agreement with a view to benefitting from the complementarities of their economies and the opportunities created under this Agreement and with priorities to be mutually determined and subject to available resources; and

(b) where any cooperation or technical assistance activities are agreed under this Chapter, take the necessary steps to facilitate those activities in accordance with the relevant terms as agreed between the Parties.

5. The Parties acknowledge the provisions to encourage and facilitate cooperation included in other Chapters of this Agreement, including in particular where required for the coordination of regulatory cooperation between the Parties. Cooperation and technical assistance activities under this Chapter may complement and supplement those activities.

Article 14.3
Scope of Cooperation Activities and Technical Assistance

1. Areas of cooperation and technical assistance may include:

(a) any of the thematic areas set out in Annex 14A (Agriculture Cooperation and Technical Assistance Thematic Areas);

(b) any of the thematic areas set out in Annex 14B (Non-Agricultural and Technical Assistance Thematic Areas); and

(c) any other area of cooperation and technical assistance mutually agreed by the Parties.

2. In addition to and without limiting the activities identified in relation to each thematic area set out in Annex 14A (Agriculture Cooperation and Technical Assistance Thematic Areas) or Annex 14B (Non-Agricultural and Technical Assistance Thematic Areas) the Parties may cooperate or undertake technical cooperation through activities such as:

(a) exchanging information, technical knowledge and expertise relevant to the area of cooperation;

(b) policy dialogues and sharing best practices;

(c) training, education, skills development, and exchange of personnel, including through visits of experts, scientists and technicians, as well as their participation in seminars, conferences and other professional events;

(d) engaging in dialogues, technical consultations, exchanges and collaborative initiatives;

(e) offering technical support and capacity building;

(f) technology transfer;

(g) conducting joint research and development, including through the organisation of scientific workshops in both countries;

(h) undertaking two-way technical visits and exchanges of experts, researchers, students and relevant professionals, including in-person visits and interactions involving relevant government agencies, academic institutions, industry associations, businesses and relevant stakeholders of both Parties;

(i) collaborative training exercises, in particular for students and graduates from educational institutions in the fields of agriculture, dairying, food technology and other fields as mutually decided;

(j) organisation of trade missions, business and networking events, and trade fairs;

(k) the promotion of collaborative initiatives between entrepreneurs of the Parties; and

(l) any other form of cooperation that may be mutually agreed by the Parties.

Section B: Agriculture Productivity Partnership

Article 14.4
Purpose of the Agriculture Productivity Partnership

1. The Parties hereby establish an Agriculture Productivity Partnership ("APP") to promote productivity in agriculture and allied sectors[1] for the purpose of:

(a) establishing a long-term cooperation partnership between New Zealand and India to help increase returns to Indian farmers, fishers and producers through improved productivity in agricultural and allied sectors;

(b) promoting and facilitating engagement in agriculture and allied sectors across the value chain between New Zealand and India to foster economic growth; and

[1] For greater certainty, "allied sectors" include livestock, fisheries, apiculture, forestry, and food processing, among others.

(c) the effective implementation and operation of this Chapter in relation to cooperation and technical assistance in agriculture and allied sectors.

2. For the purpose of this Chapter, cooperation and technical assistance in agricultural and allied sectors, referred to in subparagraph 1(a), includes any cooperation or technical assistance falling within:

(a) sectors associated with the thematic areas set out in Section A of Annex 14A (Agriculture Cooperation and Technical Assistance Thematic Areas);

(b) to the extent they overlap with any of the sectors referred to in subparagraph 2(a), any of the cross-cutting thematic areas set out in Section B of Annex 14A (Agriculture Cooperation and Technical Assistance Thematic Areas); and

(c) any other agriculture or allied sectors or any cross-cutting thematic areas agreed by the Joint Agriculture Productivity Council.

Article 14.5
Joint Agriculture Productivity Council

1. Recognising the purposes of the APP set out in paragraph 1 of Article 14.4 (Purpose of the Agriculture Productivity Partnership) for the agriculture and allied sectors, the Parties hereby establish a Joint Agriculture Productivity Council ("JAPC").

2. The JAPC shall consist of the following representatives of each Party, or their successors:

(a) for India, the Secretary, Agriculture and Farmers Welfare; and

(b) for New Zealand, the Director General, Ministry for Primary Industries.

3. The JAPC shall meet on an annual basis, unless otherwise agreed.[2]

4. The JAPC shall undertake the following functions:

(a) facilitate the effective implementation and operation of the APP;

[2] The Parties note that for the purposes of paragraphs 4 and 5 of Article 14A.2 (Forestry Cooperation) and Article 14A.3 (Horticulture Cooperation) of Annex 14A (Agriculture Cooperation and Technical Assistance Thematic Areas), and as agreed in Annex 2B (Implementation and Review of Economic Cooperation Action Plans and Related Tariff Rate Quotas), the JAPC shall meet every six months, unless otherwise agreed.

(b) provide oversight and review of the progress of agreed cooperation and technical assistance activities under the APP;

(c) review the implementation and progress of other cooperation and technical assistance arrangements and activities in agriculture and allied sectors outside the scope of the APP;

(d) provide an opportunity to the Parties to raise and, if agreed, discuss matters within the wider agriculture relationship between the Parties; and

(e) in relation to cooperation and technical assistance in agricultural and allied sectors under this Chapter:

(i) facilitate the sharing of cooperation and technical assistance priorities between the Parties;

(ii) set the overarching direction for cooperation and technical assistance;

(iii) consider any proposal or suggested modification of any opportunity, or new ideas for cooperation and technical assistance activities;

(iv) promote projects being undertaken under the APP;

(v) by mutual agreement of the representatives of each Party, or their successors, establish, restructure, dissolve and oversee working groups in accordance with Article 14.7 (Working Groups);

(vi) coordinate, monitor and review progress of working groups in accordance with sub-subparagraph 2(f)(i) of Article 14.7 (Working Groups);

(vii) receive and consider annual reports on progress from working groups; and

(viii) report to the Joint Commission in relation to the implementation of cooperation and technical assistance under this Chapter and under other cooperative arrangements in agriculture and allied sectors between the Parties.

5. The JAPC Group may decide on its own rules of procedure, in the absence of which the rules of procedure of the Joint Commission shall apply *mutatis mutandis.*

Section C: Committee on Economic Cooperation and Technical Assistance

Article 14.6
Operation of Committee on Economic Cooperation and Technical Assistance

1. The Parties hereby establish a Committee on Economic Cooperation and Technical Assistance ("CECTA") for cooperation and technical assistance in sectors other than agriculture and allied sectors.

2. The CECTA shall meet on an annual basis, unless otherwise agreed.

3. The CECTA shall undertake the following functions in relation to any economic cooperation and technical assistance not falling within the scope of the Agriculture Productivity Partnership, including those listed under Annex 14B (Non-Agricultural Cooperation and Technical Assistance Thematic Areas):

   (a) facilitate the sharing of cooperation and technical assistance priorities between the Parties;

   (b) set the overarching direction for cooperation and technical assistance;

   (c) review the implementation and progress of other cooperation and technical assistance arrangements and activities not falling within agriculture and allied sectors or within the CECTA's areas of responsibility;

   (d) consider any proposal or suggested modification of any opportunity, or new ideas for cooperation and technical assistance activities;

   (e) promote projects being undertaken within CECTA's areas of responsibility;

   (f) establish, restructure, dissolve and oversee working groups, based on mutual agreement, in accordance with Article 14.7 (Working Groups);

   (g) coordinate, monitor and review progress of working groups in accordance with sub-subparagraph 2(f)(ii) of Article 14.7 (Working Groups);

   (h) receive and consider annual reports on progress from working groups; and

(i) report to the Joint Commission in relation to the implementation of cooperation and technical assistance falling within the scope of CECTA.

4. The CECTA may decide on its own rules of procedure, in the absence of which the rules of procedure of the Joint Commission shall apply *mutatis mutandis.*

Section D: Working Groups, Work Programmes and Action Plans

Article 14.7
Working Groups

1. The JAPC or the CECTA may, in relation to any relevant thematic area or sector falling within the scope of their responsibility:

   (a) establish, restructure or dissolve working groups, in specific areas of interest;

   (b) coordinate, monitor and review, annually, the progress of working groups' activities or projects in operation to assess their overall effectiveness; and

   (c) receive and consider reports from working groups.

2. Each working group shall, unless otherwise agreed in accordance with paragraph 1, undertake the following functions in relation to its relevant sector or thematic area:

   (a) agree on a work programme, which sets out activities to be undertaken;

   (b) agree on the budget, resources, funding and specificities of activities within that work programme;

   (c) monitor and evaluate progress of and, where needed, adapt activities under that work programme;

   (d) bring in expertise outside of the governments of the Parties, as agreed, to join that working group or undertake the activities;

   (e) where relevant, coordinate the development of any action plan; and

(f) produce a report on the progress of activities conducted under that work programme by the end of each calendar year, and where relevant:

(i) in carrying out the reporting referred to in sub-subparagraph 4(e)(vii) of Article 14.5 (Joint Agriculture Productivity Council) produce that report to the JAPC at least one month prior to the next relevant meeting of the JAPC; or

(ii) in carrying out the reporting referred to in subparagraph 3(h) of Article 14.6 (Operation of Committee on Economic Cooperation and Technical Assistance) produce that report to the CECTA at least one month prior to the next relevant meeting of the CECTA,

3. Each working group may decide on its own rules of procedure, in the absence of which the rules of procedure of the Joint Commission shall apply *mutatis mutandis*.

Article 14.8
Work Programmes

Any work programme developed, adopted and maintained under this Chapter shall:

(a) include planned, ongoing and completed activities;

(b) be guided by the objectives and principles agreed in Article 14.1 (Objectives) and Article 14.2 (General Provisions); and

(c) address the mutual priorities of the Parties.

Article 14.9
Action Plans

1. The Parties may develop, agree and implement action plans in relation to an activity, or group of related activities, including where the Parties agree that an activity or group of related activities is not suitable for a work programme as a result of that activity or group of related activities requiring a significant programme of work, resources, investment or other contribution by a Party, non-Parties or other persons.

2. Where a Party proposes the development of an action plan under paragraph 1 that aligns with the purposes of this Chapter, the other Party shall consider that proposal and, where appropriate and subject to any resourcing constraints, work with the proposing Party to develop

a suitable action plan. Any developed action plan is subject to the agreement of the Parties.

3. Any action plan developed, agreed and implemented under this Chapter shall:

   (a) be guided by the objectives and principles agreed in Article 14.1 (Objectives) and Article 14.2 (General Provisions); and

   (b) address the mutual priorities of the Parties.

Section E: Final Provisions

Article 14.10
Technology Development, Sharing and Transfer

1. The Parties acknowledge that agreed cooperation and technical assistance activities under this Chapter may involve the transfer, sharing or use of existing technologies or the development of new technologies.

2. With respect to areas covered within Annex 14A (Agriculture Cooperation and Technical Assistance Thematic Areas) and Annex 14B (Non-Agricultural and Technical Assistance Thematic Areas), the Parties may identify and agree to share, transfer or jointly develop technologies for mutual benefit.

3. Where any activity agreed under this Chapter involves the assignment, licence or any other transfer of intellectual property or the development of any new intellectual property, the participants in that activity may enter suitable agreements for that assignment, licence or transfer or to address the rights and responsibilities in relation to any new intellectual property.

4. The Parties shall undertake appropriate efforts towards the facilitation of such sharing, transfer or development of technology, subject to the mutual agreement of the Parties.

Article 14.11
Priorities and Resources

1. Priorities for cooperation and technical assistance activities shall be decided by the Parties based on their interests, available resources, benefits resulting from those activities, and in accordance with the laws and regulations of the Parties. This is without prejudice to the support

and assistance agreed to be provided by New Zealand, in respect of the cooperation activities agreed under paragraphs 4 and 5 of Article 14A.2 (Forestry Cooperation), and Article 14A.3 (Horticulture Cooperation) of Annex 14A (Agriculture Cooperation and Technical Assistance Thematic Areas), Annex 2B (Implementation and Review of Economic Cooperation Action Plans and Related Tariff Rate Quotas) and the action plans referred to therein. Such support and assistance by New Zealand is excluded from investment by New Zealand in accordance with the Chapter 9 (Investment Promotion and Cooperation).

2. The Parties, on the basis of mutual benefit, may consider cooperation with, and contributions from, external parties to support their cooperation activities.

Article 14.12
Contact Points

1. Each Party shall, within 60 days of the date of entry into force of this Agreement, designate an official contact point to address matters related to this Chapter. Each Party shall promptly notify the other Party of any change to its contact point.

2. The contact points shall endeavour to facilitate regular communication and coordination between the Parties and work together to develop and implement cooperative and technical assistance activities as mutually agreed.

Article 14.13
Non-application of Dispute Settlement

Neither Party shall have recourse to dispute settlement under Chapter 19 (Dispute Settlement) for any matter arising under this Chapter.

ANNEX 14A

AGRICULTURE COOPERATION AND TECHNICAL ASSISTANCE THEMATIC AREAS

Article 14A.1
Scope

This Annex is intended to be used by the Parties as an indicative list outlining areas of interest for cooperation under the APP.

Section A: Sector Specific Thematic Areas

Article 14A.2
Forestry Cooperation

1. The Parties recognise their common interest in strengthening cooperation in the forestry sector by building relationships between forestry-related entities and organisations.

2. In furtherance of paragraph 1 and for the purpose of Article 14.3 (Scope of Cooperation Activities and Technical Assistance), in relation to cooperation and technical assistance within the forestry and allied sectors, the Parties may undertake cooperation and technical assistance through activities such as:

   (a) sustainable forest management;

   (b) agroforestry;

   (c) research and innovation;

   (d) education and capacity building;

   (e) harvesting, utilisation, and certification; and

   (f) use of timber products and applicable standards.

Article 14A.3
Horticultural Cooperation

1. The Parties recognise their common interest in strengthening cooperation in the area of horticulture.

2. In furtherance of paragraph 1 and for the purpose of Article 14.3 (Scope of Cooperation Activities and Technical Assistance), in relation to cooperation and technical assistance within the horticulture sector, the Parties may undertake cooperation and technical assistance through activities such as:

(a) active horticulture policy and technology exchanges, learnings regarding advanced technologies and successful experiences in the fields of agriculture and horticulture;

(b) establishing a Centre of Excellence or Centres of Excellence for horticultural products and produce to facilitate collaboration on the production, research, and harvesting techniques of temperate fruits such as kiwifruit, apples, wine grapes, avocado, berries, stone fruits, and other horticultural products, as mutually agreed by the Parties;

(c) introduction of high-yield, low-input plant varieties of these fruits through relevant technology, exchange of high yield varieties of seeds and planting materials subject to agreement and after completion of all related formalities such as plant quarantine and varieties related issues all subject to relevant intellectual property protection in India and in New Zealand;

(d) the plant variety protection of each other's plant varieties in the Parties' respective area of jurisdiction, where possible. Facilitation would be through working with the relevant departments of each Party's government to support capacity building in DUS guidelines development and testing, and exploring harmonisation of processes through organisation of sensitisation and study visits, where possible;

(e) post-harvest and processing technologies, including prevention of losses, post-harvest management and storage systems at the field level as well as the consumption level for horticulture produce;

(f) skill development, training, and exchange of personnel, including through the exchange of visits of experts, personnel, scientists and technicians to research centre and experiment stations, as well as participation in seminars, conferences and other professional events;

(g) joint research and development programmes through the organisation of scientific workshops on designated subjects, in both countries subject to available budget of each Party;

(h) to facilitate the understanding of supply chain management systems for horticultural crops to assess and manage the gaps in demand and supply of fruits and vegetables in the country,

to link fresh produce from farmers to consumers along with getting remunerative prices to farmers; or

(i) facilitation of exposure visits for stakeholders, including horticulturists, scientists and students, with a view to familiarising them with best practices, advanced technologies, and innovations in horticultural production and post-harvest management.

3. The Parties also note the progress in the discussions on the development and towards finalisation of the Kiwifruit Action Plan and Apple Action Plan, in accordance with the *Memorandum of Cooperation on Horticulture between the Ministry of Agriculture and Farmer's Welfare, India and the Ministry for Primary Industries, New Zealand,* signed in New Delhi on 17 March, 2025.

4. Under the Kiwifruit Action Plan, New Zealand shall work with Indian kiwifruit sector partners to support efforts aimed at enhancing kiwifruit production and fruit quality in India. This shall include activities within the following components:

(a) **Enhancing on-Orchard Performance -** establishment of Centres of Excellence for kiwifruit under India's Mission for Integrated Development of Horticulture, with a view to enhancing availability of quality planting materials, building growers' technical expertise and supporting the uptake of best practices in production techniques. This may include exchange of information, expert and stakeholder, including Indian kiwifruit farmer visits, and enhancing inter-institutional linkages; and

(b) **Improving Post-Harvest and Supply Chain Performance -** activities will involve analysis of post-harvest facilities and initiatives towards enhancing supply chain integration and resilience. New Zealand shall provide the necessary technical expertise, assist in developing recommendations and initiating activities to Indian industry stakeholders in improving postharvest and food safety practices.

5. The Parties also note the progress in the discussions on the development and towards finalisation of the Apple Action Plan, and their overarching goal of enhancing horticultural productivity at orchard level, improving rootstock, yield, and post-harvest performance, in India. In addition, the Parties recognise their focus on commercialising modern premium apple cultivars in India. The broad pillars under the Apple Action Plan shall be:

(a) **Collaborative Research and Development for Innovation -** New Zealand will partner with and support Indian growers, together with research organisations and universities, to improve grower prosperity. In this context, the on-orchard areas of focus include pest and disease control, climate

resilience, productivity improvements, orchard management, harvest management, and the long-term objective of opening opportunities for the establishment of high-density Apples Centres of Excellence in India;

(b) **Strengthening India's Policy Framework -** New Zealand shall collaborate with India's policy makers to enhance India's regulatory framework, particularly in the areas of plant variety rights and intellectual property protection, to enable introduction of high-value, globally developed intellectual property protected plant varieties into India; and

(c) **Strategic Role in India's Supply Chain Resilience -** enhancing and managing the supply of apples in India through improvements in packhouse and cool store design and management for efficiency, cold chain dynamics for longer term storage, efficiency gains for processing facilities, food safety guidance, opportunities for exchanges, targeted formalised training options and business immersion.

6. The Parties agree to work towards achieving meaningful outcomes and tangible progress under the Kiwifruit Action Plan and the Apple Action Plan, including the activities listed in paragraphs 4 and 5. Based on the review of the progress under the actions plans and activities listed above by the JAPC, India shall continue the market access liberalisation (based on the agreed terms) for kiwifruit, and apples as agreed in Annex 2B (Implementation and Review of Economic Cooperation Action Plans and Related Tariff Rate Quotas).

Article 14A.4
Apiculture and Honey Cooperation

1. The Parties recognise their common interest in enhancing bilateral cooperation in apiculture and honey and the contribution that bilateral exchange and collaboration may make to the economic development of their respective communities and businesses involved in apiculture and honey.

2. In furtherance of paragraph 1 and for the purpose of Article 14.3 (Scope of Cooperation Activities and Technical Assistance), in relation to cooperation and technical assistance within the apiculture and honey sector, the Parties may undertake cooperation and technical assistance through activities such as:

(a) improving quality, safety, and traceability of honey and apiculture products;

(b) supporting branding and marketing of high-value honey varieties;

(c) promoting sustainable beekeeping practices;

(d) enhancing the global visibility and market presence of high-quality honey products;

(e) exchanging information and dialogue on technical barriers to trade, including labelling and packaging requirements;

(f) encouraging the relevant bodies to explore the possibility of mutual recognition or equivalence of relevant standards and conformity assessment procedures, where appropriate;

(g) collaborating on the development of honey quality parameters based on best practices, including but not limited to moisture content, sugar profile, hydroxymethylfurfural (HMF) levels, and contaminants;

(h) collaborating in other high-value areas of apiculture, such as bee venom, royal jelly, bee pollen, and bee propolis, pharmaceuticals and health applications, including joint initiatives on technology transfer, research, and education;

(i) exchanging information and best practices regarding certification schemes, including for organic and monofloral honey;

(j) implementing joint research initiatives on bee health, disease control, climate adaptation in apiculture, and floral mapping;

(k) exchanging technical expertise and innovations in hive management and breeding; and

(l) organising training programs, study visits, and exchange of best practices for stakeholders, including beekeepers, regulators, researchers, and certification personnel.

3. The Parties note the progress in the discussions on the development and towards finalisation of the Apiculture and Honey Cooperation Action Plan to support the development of India's honey industry through targeted programmes and enhanced cooperation, including on honey research, quality assurance, and market development. The broad pillars under the Apiculture and Honey Cooperation Action Plan shall include:

(a) **Research, testing, and productivity -** establishment of a Centre of Excellence for honey research, testing and productivity in India, to strengthen capacity for scientific testing, quality verification and certification of honey-related bee products, including supporting the set-up of pilot model apiary clusters in regions as mutually decided, using New Zealand's sustainable bee keeping practices, to demonstrate practical ways of increasing productivity;

(b) **Innovation, digital skills and future application -** work on rapid authentication and residue analysis to support quality and consistency of India's honey production, including digital traceability systems, and joint research on bee propolis, royal jelly and organic or monofloral models to explore new avenues for high-value niche products; and

(c) **Learning and development for Indian beekeepers and honey experts -** hosting inbound delegations of Indian beekeepers and sectoral experts to New Zealand to provide useful opportunities to view and learn first-hand from New Zealand's experience and practice.

4. The Parties agree to work towards achieving meaningful outcomes and tangible progress under the Apiculture and Honey Cooperation Action Plan, including the activities listed in paragraph 3. Based on the review of the progress under the Action Plan and the activities listed above by the JAPC, India shall continue the market access liberalisation, based on the agreed terms, for mānuka honey, as agreed in the Annex 2B (Implementation and Review of Economic Cooperation Action Plans and Related Tariff Rate Quotas).

Article 14A.5
Livestock Cooperation

1. The Parties recognise their common interest in sharing their respective experiences and practices in designing, implementing, monitoring, evaluating, and strengthening policies and programs to encourage cooperation in the livestock sector.

2. In furtherance of paragraph 1 and for the purpose of Article 14.3 (Scope of Cooperation Activities and Technical Assistance), in relation to cooperation and technical assistance within the livestock sector, the Parties may undertake cooperation and technical assistance through activities such as:

(a) epidemiology, including the management, surveillance, and prevention of animal diseases;

(b) biosecurity measures, including risk analysis, standard setting systems, border controls, monitoring and surveillance systems, traceability, animal disease outbreaks and investigations, and testing laboratories;

(c) sharing experiences of community participation in animal disease control, and examples of rural development policies and programmes, including indigenous development;

(d) technical capacity building, including technical assistance, and exchanges for government officials, farmers and veterinarians, as well as courses and training, particularly across the value chain;

(e) sustainable animal husbandry and dairying, including exchanges on policy, research and practice related to animal husbandry, dairying and animal welfare;

(f) facilitating relationships between the cooperative and private sectors of the Parties and, where possible and within the commercial interests of individual companies, explore mutually beneficial commercial partnership opportunities related to the dairy and animal husbandry supply chains, in accordance with their respective law, rules, regulations and guidelines;

(g) exploring opportunities for improved trade and investment promotion across areas of policy, research, science technology, education, enterprises, and associations, with the exploration of commercial partnerships between the cooperative and private sectors of the Parties;

(h) for exchange of germplasm and other breeding materials, the respective laws, rules, regulations and guidelines shall apply, unless agreed otherwise;

(i) explore collaborative opportunities for livestock emissions mitigation strategies;

(j) exploring various aspects of methane emission measurement and mitigation strategies, net zero strategies for dairy sector and digital information management systems tailored for greenhouse gas accounting;

(k) exploring the development of novel diagnostics for early detection or novel testing methods for on-farm use in the areas of acute and chronic animal health and metabolic conditions; and

(l) other areas of mutual interest.

Article 14A.6
Fisheries and Aquaculture Cooperation

1. The Parties recognise their common interest in strengthening bilateral cooperation in the marine fisheries with a view to enhancing sustainable development, improving trade facilitation, encouraging scientific and technical collaboration, and supporting the livelihoods of communities dependent on marine resources, including small scale and artisanal fisheries.

2. In furtherance of paragraph 1 and for the purpose of Article 14.3 (Scope of Cooperation Activities and Technical Assistance), in relation to cooperation and technical assistance within the fisheries and aquaculture sector, the Parties may undertake cooperation and technical assistance through activities such as:

(a) exchanging best practices on sustainable management of marine and inland fisheries and ecosystem-based approaches;

(b) promoting capacity building and skill development initiatives, including through training programs, academic exchanges, and technical workshops;

(c) building capacity in deep sea fishing technologies;

(d) exchanging best practices on developing expertise and encouraging entrepreneurship in processing and marketing of products from high seas fisheries for entrepreneurship development;

(e) encouraging investment and joint ventures in fisheries infrastructure, value-added processing, and cold chain logistics;

(f) undertaking joint research and dialogue on marine biodiversity and coastal ecosystems;

(g) organising exposure visits of stakeholders, including experts, researchers, students, and traders, with the objective of facilitating knowledge exchange on advanced fishing practices, sustainable technologies, and innovative approaches in fisheries management;

(h) to further enhance cooperation in the sector, the Parties may explore the possibility of signing a memorandum of understanding between, for India, the Fisheries Survey of India and the Central Institute of Fisheries Nautical and Engineering Training, and a relevant institution in New Zealand, for the purpose of training and capacity building of stakeholders in the deep-sea fishing sector; and

(i) the Parties shall explore the possibility of concluding a memorandum of understanding on fisheries and aquaculture cooperation to further advance collaboration on the fisheries and aquaculture related matters.

Article 14A.7
Wine Sector Cooperation

1. The Parties recognise their common interest in strengthening their cooperation in the wine sector, including through knowledge exchanges, regulatory alignment and sustainable development.

2. In furtherance of paragraph 1 and for the purpose of Article 14.3 (Scope of Cooperation Activities and Technical Assistance), in relation to cooperation and technical assistance within the wine sector, the Parties may undertake cooperation and technical assistance through activities such as:

   (a) capacity building programmes for the researchers and industry representatives;

   (b) engaging in dialogues, technical consultations, and collaborative projects;

   (c) exchanging information, expertise and best practices on relevant issues of mutual interest;

   (d) strengthening technical advisory and institutional collaboration by promoting exchange of expertise and technical know-how between the relevant institutes of India and New Zealand, including between the National Institute of Food Technology, Entrepreneurship and Management, Thanjavur, and its New Zealand counterparts, and to establish it as a Centre of Excellence;

   (e) establishing collaboration and exchanging technical expertise and best practices with respect to establishment of state-of-art wine testing and analysis laboratories;

   (f) encouraging the relevant bodies and research institutions to undertake joint research in grapevine and oenology;

   (g) collaborating on sustainable vineyard practices, including water conservation, carbon neutrality, regenerative viticulture, and packaging innovation;

   (h) sharing best practices on relevant policies and procedures; and

   (i) exploring and organising exposure visits of relevant stakeholders, including producers, vineyard operators and researchers to each other’s territories, as part of best practice studies.

Section B: Cross Cutting Thematic Areas

Article 14A.8
Organics Cooperation

1. Recognising the importance of promoting organic agriculture and fostering international collaboration, the Parties agree to explore, where appropriate in respect of each thematic area, the use and promotion of organic practices to provide further opportunities for value addition for farmers, farmer producer organisations, and industry more generally.

2. Accordingly, this may include cooperation in areas such as:

   (a) sharing of information, techniques, and best practice application of organic farming methods, soil health, pest control and sustainable supply chains; and

   (b) research and development on new areas of organic cultivation, sharing innovations on organic inputs, biofertilizers, pest control solutions and digital tools in farm management.

3. Recognising the growth of trade in organic products and its potential in increasing incomes and enhancing livelihood opportunities for farmers, producers and relevant stakeholders, the Parties affirm their commitment to enhancing cooperation in the field of organic trade between them.

Article 14A.9
Cooperatives

1. The Parties recognise their common interest in supporting the important role of cooperatives and community-based enterprises for rural livelihoods and in fostering inclusive and sustainable economic development.

2. In furtherance of paragraph 1 and for the purpose of Article 14.3 (Scope of Cooperation Activities and Technical Assistance), in relation to cooperation and technical assistance within cooperatives, the Parties may undertake cooperation and technical assistance, where it is possible to do so under sectoral cooperation. This may include the following activities:

   (a) encouraging institutional linkages between cooperatives, training institutions to support capacity building, policy dialogue, and the exchange of best practices related to cooperative governance, leadership development, cooperative heritage, and member participation;

(b) exploring avenues for cooperatives, particularly those engaged in agriculture, dairy, food processing, and services, into bilateral trade and value chains; and

(c) facilitating mentorship, technical assistance, and entrepreneurial development programs aimed at increasing their participation in domestic and international trade.

ANNEX 14B

NON-AGRICULTURE COOPERATION AND TECHNICAL ASSISTANCE THEMATIC AREAS

Article 14B.1
Scope

This Annex is intended to be used by the Parties as an indicative list outlining areas of interest for cooperation under the APP.

Article 14B.2
Traditional Knowledge and Traditional Medicine

1. The Parties recognise their respective heritages and mutual interest in traditional knowledge and traditional medicine, and the contribution that bilateral exchange and collaboration can make to the economic growth and development of their respective communities and businesses involved in this field, including by creating trade opportunities for them. Accordingly, the Parties agree to enhance their bilateral cooperation in the field of traditional knowledge and traditional systems of medicine.

2. In furtherance of paragraph 1 and for the purpose of Article 14.3 (Scope of Cooperation Activities and Technical Assistance), in relation to traditional knowledge and traditional systems of medicine, the Parties may, while respecting any rights, interests, duties, and responsibilities of holders of traditional knowledge and traditional systems of medicine, undertake cooperation and technical assistance through activities such as:

   (a) promoting collaboration between relevant parties in New Zealand with their counterparts in India, including in relation to traditional systems of medicine in the case of India, the prominent Ayush institutes established or functioning under the Ministry of Ayush;

   (b) facilitating the exchange of traditional knowledge experts, traditional medicine practitioners, health professionals, scientists, researchers, academicians, and students for the purposes of training, capacity building, and experience sharing;

   (c) encouraging and facilitating joint research collaboration and exchanges in the field of traditional systems of medicine, with a view to enhancing scientific validation, evidence-based practices, and innovation, including through use of biotechnology;

(d) developing pilot projects and bilateral working groups to facilitate the appropriate integration of traditional knowledge, in market ready products, including the integration of traditional medicine in healthcare therapeutics, cosmetics, functional foods, supplements and related goods and services;

(e) organising short-term courses, webinars, awareness programmes and certification courses in areas of mutual interest;

(f) establishing business forums to provide platforms for structured engagement between exporters of traditional medicine and wellness and healthcare enterprises of each Party, with a view to facilitating networking, information exchange, and the exploration of potential commercial collaborations;

(g) exploring ways to promote bilateral trade that relates are related to or derives from traditional knowledge and traditional systems of medicine; and

(h) strengthening cooperation on the development and use of emerging technologies for the preservation and restoration of traditional knowledge and traditional medicine systems, including artificial intelligence-based software, e-commerce, and digital distribution platforms.

Article 14B.3
Tourism

1. The Parties recognise their common interest in enhancing bilateral cooperation in tourism and the contribution that bilateral exchange and collaboration may make towards the development of their respective people, communities and businesses involved in tourism.

2. In furtherance of paragraph 1 and for the purpose of Article 14.3 (Scope of Cooperation Activities and Technical Assistance) in relation tourism, the Parties may undertake cooperation through activities such as:

(a) exploring opportunities to strengthen capability in the hospitality and tourism sectors, including through academic collaboration where possible which, in the case of India, may include exploring opportunities where appropriate for students and faculty members of India’s Institutes of Hotel Management;

(b) knowledge sharing and exchange of best practices on the development of eco-tourism and sustainable tourism projects which may include the conduct of training programmes and visits of officials, as appropriate;

(c) exchanging information, experiences and best practices on tourism infrastructure planning and investment; and

(d) encouraging collaboration, engagement and regular interactions between tourism stakeholders of the Parties.

3. The Parties shall explore the possibility of concluding a memorandum of understanding on tourism cooperation in due course, to further articulate shared priorities on tourism-related matters.

Article 14B.4
Audio-Visual Production

1. The Parties recognise their common interest in strengthening cooperation in the area of audio-visual production, with a view to fostering cultural exchange, promoting the growth of creative industries, supporting sustainable economic development, and enhancing people-to-people linkages.

2. In furtherance of paragraph 1, and for the purpose of Article 14.3 (Scope of Cooperation Activities and Technical Assistance) in audio-visual production, the Parties may undertake cooperation and technical assistance through activities such as:

(a) facilitating the sharing of best practices in screenwriting, direction, production management, cinematography, editing, sound and visual effects, as well as film financing, sales, and distribution;

(b) promoting co-productions, including through the *Agreement on Audio-visual Co-productions* between the Government of New Zealand and the Government of India, done at New Delhi on 28 June 2011 and encouraging partnerships between production companies, filmmakers, and digital platforms in the territories of both Parties;

(c) promoting participation in, and leading delegations to, international film festivals, markets, and trade fairs hosted in the territory of either Party, and promoting bilateral film weeks, showcases, and retrospectives;

(d) facilitating the exchange of filmmakers and technicians through networking events, familiarisation visits, training workshops, co-production summits, mentorship programmes, and residencies in the territories of both Parties;

(e) promoting cooperation on film policies and incentive schemes, facilitating exchanges on intellectual property protection and regulatory frameworks, and encouraging measures to simplify

and enable film production across locations in the territories of both Parties; and

(f) facilitating the sharing of knowledge and best practices in emerging technologies in film, including virtual and augmented reality, artificial-intelligence-based production, post-production, restoration and archiving, and digital distribution platforms.

Article 14B.5
Sports

1. The Parties recognise the benefits of further developing relations in the field of sports, and desire to promote and strengthen existing friendly relations and cooperation.

2. Noting the *Memorandum of Cooperation between Sport New Zealand of the Government of New Zealand and the Ministry of Youth Affairs and Sports of the Government of the Republic of India on Cooperation in the Field of Sports* signed in New Delhi on 15 March 2025, in furtherance of paragraph 1, and for the purpose of Article 14.3 (Scope of Cooperation Activities and Technical Assistance) in relation to the area of sports cooperation and technical assistance, the Parties may undertake cooperation and technical assistance through activities such as:

   (a) exchange of subject matter experts, government officials, coaches and athletes in the areas of sports;

   (b) exchange of sports sciences personnel, sports leaders, sports administrators, professionals, technicians, and sport support personnel;

   (c) access to training centres, international competition between athletes and teams, and share programmes and knowledge related to coaching, talent development, athlete services and well-being, sports science, and innovation;

   (d) share programmes and approaches to increase participation, especially with regard to children and young people, and collaboration in the area of physical education and associated curriculum;

   (e) share information, policy, programmes, research and learning related to sports, including system strategy, sport integrity, governance and organisational capability, major events, and other associated activities; and

   (f) collaboration in the area of physical education and fitness development programmes which may include training, exchange and attachment programmes, and exchange of technology and research in the field.

CHAPTER 15

SMALL AND MEDIUM-SIZED ENTERPRISES

Article 15.1
General Principles

1. The Parties, recognising the fundamental role of SMEs in maintaining dynamism and enhancing competitiveness of their respective economies and their contribution to economic growth, sustainable development, and innovation, shall foster close cooperation between SMEs of the Parties and cooperate in promoting jobs and growth in SMEs.

2. The Parties recognise the integral role of the private sector in the SME cooperation to be implemented under this Chapter.

Article 15.2
Cooperation to Increase Trade and Investment Opportunities for SMEs

With a view to facilitating more robust cooperation between the Parties to enhance commercial opportunities for SMEs, each Party shall seek to increase trade and investment opportunities. In particular, each Party may:

(a) promote cooperation between the Parties' small business support infrastructure including dedicated SME centres, incubators and accelerators, export assistance centres, and other centres, as appropriate, to create an international network for sharing best practices, exchanging market research, and promoting SME participation in international trade, as well as creating business growth in local markets;

(b) strengthen its collaboration with the other Party on activities to promote SMEs owned by women and youth, start-ups, and partnership among these SMEs and their participation in international trade;

(c) enhance cooperation with the other Party to exchange information and best practices in areas including improving SME access to capital and credit, SME participation in government procurement opportunities, and helping SMEs adapt to changing market conditions;

(d) encourage participation in purpose-built mobile or web-based platforms, for entrepreneurs to share information and best practices to help SMEs link with international suppliers, buyers, and other potential business partners;

(e) promote the participation in international trade of SMEs owned by underrepresented groups, such as women, youth, and minority groups; and

(f) support SMEs to participate in digital trade and e-commerce to take advantage of opportunities resulting from this Agreement.

Article 15.3
Information Sharing

1. Each Party shall establish or maintain its own free, publicly accessible website containing information regarding this Agreement, including:

   (a) the text of this Agreement;

   (b) a summary of this Agreement; and

   (c) information designed for SMEs that contains:

      (i) a description of the provisions in this Agreement that the Party considers to be relevant to SMEs; and

      (ii) any additional information that would be useful for SMEs interested in benefitting from the opportunities provided by this Agreement.

2. Each Party shall include in its website, referred to in paragraph 1, links to:

   (a) the equivalent website of the other Party; and

   (b) to the extent feasible, the websites of its own government agencies and other relevant entities that provide information which the Party considers useful to any person interested in trading, investing, or doing business in that Party's territory.

3. Subject to each Party's laws and regulations, the information described in subparagraph 2(b) may include:

   (a) customs regulations, procedures, or enquiry points;

   (b) regulations or procedures concerning intellectual property rights;

   (c) technical regulations, standards, quality or conformity assessment procedures;

   (d) relevant sanitary or phytosanitary measures relating to importation or exportation;

(e) foreign investment regulations;

(f) business registration procedures;

(g) trade promotion programmes;

(h) competitiveness programmes;

(i) SME investment and financing programmes;

(j) taxation information, such as regulations and reporting procedures, or enquiry points etc.;

(k) government procurement opportunities;

(l) employment regulations; and

(m) other information which the Party considers to be useful for SMEs.

4. Each Party shall regularly review the information and links on the website referred to in paragraphs 1 and 2 to ensure the information and links are up to date and accurate.

5. To the extent possible, each Party shall make the information referred to in paragraphs 1 through 3 available in English.

Article 15.4
Contact Points

1. Each Party shall, within 60 days of the entry into force of this Agreement, designate an SME contact point to address matters related to this Chapter. Each Party shall notify the other Party promptly in the event of any change to its contact point.

2. The contact points shall meet as necessary and shall carry out their work through communication channels such as email, virtual meetings or other means.

3. Where appropriate and to the extent practicable, the contact points shall:

(a) exchange information to assist in monitoring the implementation of this Agreement as it relates to SMEs;

(b) exchange information including sharing best practices in supporting and assisting SMEs with respect to, among other things, capacity building, training and skill development;

(c) promote seminars, workshops, webinars, mentorship sessions, or other activities to inform SMEs of the benefits available to them under this Agreement;

(d) facilitate regular communication and coordination between the Parties; and

(e) cooperate and coordinate, including with other appropriate agencies of their governments and any relevant committee or subsidiary body established under this Agreement, to develop and implement joint cooperation initiatives that enhance the ability of SMEs to benefit from opportunities arising under this Agreement.

4. The contact points may:

(a) facilitate provision of recommendations, as necessary, to any relevant committee or the Joint Commission established under this Agreement;

(b) facilitate the development of programmes to assist SMEs to participate and integrate effectively into the Parties' regional and global supply chains;

(c) consider any other matter pertaining to SMEs, including any issues raised by SMEs regarding their ability to benefit from this Agreement; and

(d) seek to cooperate with experts and relevant organisations, as appropriate, in carrying out their activities.

5. The Parties recognise the importance of cooperation and consultation, based on the principle of mutual respect, and shall endeavour to resolve any matter arising under this Chapter.

Article 15.5
Non-Application of Dispute Settlement

Neither Party shall have recourse to dispute settlement under Chapter 19 (Dispute Settlement) for any matter arising under this Chapter.

CHAPTER 16

TRANSPARENCY

Article 16.1
Definitions

For the purposes of this Chapter, **"administrative ruling of general application"** means an administrative ruling or interpretation that applies to all persons and fact situations that fall generally within the ambit of that administrative ruling or interpretation, that establishes a norm of conduct, and is relevant to the implementation of this Agreement, but does not include:

(a) a determination or ruling made in an administrative or quasi-judicial proceeding that applies to a particular person, good, or service of the other Party in a specific case; or

(b) a ruling that adjudicates with respect to a particular act or practice.

Article 16.2
Publication

Each Party shall ensure that its laws, regulations, procedures, and administrative rulings of general application with respect to any matter covered by this Agreement are promptly published, and made available in the public domain, including on an official website in such a manner as to enable interested persons and the other Party to become acquainted with them.

Article 16.3
Administrative Proceedings

With a view to administering its laws, regulations, procedures, and administrative rulings of general application with respect to any matter covered by this Agreement in a consistent, impartial, objective, and reasonable manner, each Party shall ensure in its administrative proceedings applying such measures to a particular person, good, or service of the other Party in specific cases that:

(a) wherever possible, persons of the other Party that are directly affected by an administrative proceeding are provided with reasonable notice, including a description of the nature of the proceeding, a statement of the legal authority under which the proceeding is initiated, and a general description of any issues in question;

(b) such persons are afforded a reasonable opportunity to present facts and arguments in support of their positions prior to any final administrative action, when time, the nature of the proceeding, and the public interest permit; and

(c) it follows its procedures in accordance with its domestic law.

Article 16.4
Review and Appeal

1. Each Party shall establish or maintain judicial, quasi-judicial, or administrative tribunals, or procedures, as applicable, for the purpose of the prompt review and, where warranted, correction of final administrative actions regarding matters covered by this Agreement. Such tribunals shall be impartial and independent of the office or authority entrusted with administrative enforcement and shall not have any substantial interest in the outcome of the matter.

2. Each Party shall ensure that, in any such tribunals or procedures, the parties to the proceedings are provided with the right to:

   (a) reasonable opportunity to support or defend their respective positions; and

   (b) a decision based on the evidence and submissions of record.

3. Each Party shall ensure, subject to appeal or further review as provided in its domestic law, that such decision shall be implemented by, and shall govern the practice of, the office or authority with respect to the administrative action at issue.

Article 16.5
Notification and Provision of Information

1. To the extent possible, each Party shall notify the other Party of any measure that the Party considers might materially affect the operation of this Agreement or otherwise substantially affect the other Party's interests under this Agreement.

2. On request of the other Party, a Party shall within a reasonable period of time provide information and respond to questions pertaining to any measure, whether or not that other Party has been previously notified of that measure.

3. Any notification, information, document or communication provided under this Article between the Parties shall be in the English language.

4. Any notification, information, document, or communication under this Article shall be conveyed to the other Party through its relevant contact point pursuant to Article 17.8 (Contact Points and Communications).

5. Any notification, information, document, or communication under this Article shall be without prejudice as to whether the measure in question is consistent with this Agreement.

CHAPTER 17

ADMINISTRATIVE AND INSTITUTIONAL PROVISIONS

Article 17.1
Establishment of the Joint Commission

The Parties hereby establish a Joint Commission, which shall be composed of government representatives of the Parties at the level of senior officials or, when agreed by the Parties, at the level of Ministers.

Article 17.2
Functions of the Joint Commission

1. The Joint Commission shall:

   (a) assess, review and monitor the implementation and operation of this Agreement;

   (b) consider any matter relating to the implementation or operation of this Agreement;

   (c) consider ways to further trade and investment between the Parties, including improving market access;

   (d) consider any proposal to amend or modify this Agreement, and if appropriate, make recommendations to the Parties;

   (e) supervise and coordinate the work of committees, subsidiary bodies and working groups established under this Agreement;

   (f) conduct a general review, in accordance with Article 20.4 (General Review); and

   (g) consider any other matter that may affect the operation of this Agreement.

2. The Joint Commission may:

   (a) adopt decisions or make recommendations as envisaged by this Agreement;

   (b) seek to resolve differences or disputes that may arise under this Agreement without prejudice to the rights of the Parties under Chapter 19 (Dispute Settlement);

(c) as appropriate, issue interpretations of this Agreement;[1]

(d) establish, assign tasks to, delegate functions to, or consider matters raised by any committee, subsidiary body or working group;

(e) restructure, reorganise or dissolve any committee, subsidiary body or working group established under this Agreement;

(f) unless otherwise provided in this Agreement, determine the functions of the committees, subsidiary bodies or working groups established under this Agreement;

(g) consider and adopt, subject to the completion of any necessary legal procedures by each Party, modifications to the following parts of the Agreement:

(i) Annex 2A (Schedules of Tariff Commitments);

(ii) Annex 3A (Product Specific Rules of Origin);

(iii) Annex 19A (Rules of Procedure for Dispute Settlement); and

(iv) Annex 19B (Code of Conduct for Dispute Settlement); and

(h) carry out any other such functions as may be agreed by the Parties.

Article 17.3
Meetings of the Joint Commission

1. The Joint Commission shall meet within one year of entry into force of this Agreement. Thereafter, it shall meet every two years, unless the Parties agree otherwise, to consider any matter relating to this Agreement.

2. Meetings conducted pursuant to paragraph 1 shall be held alternately in the territories of the Parties, unless the Parties agree otherwise. The Party hosting a session of the Joint Commission shall provide any necessary administrative support for such session.

3. Upon request by a Party, the Joint Commission and any committee, subsidiary body or working group established under this Agreement

[1] Interpretations issued by the Joint Commission are binding for panels established under Chapter 19 (Dispute Settlement).

may, if agreed by the Parties, hold special sessions at a mutually convenient date without undue delay.

4. Each Party shall be responsible for the composition of its delegation.

Article 17.4
Rules of Procedure

1. The Joint Commission shall establish its own rules of procedure at its first meeting. The Joint Commission if necessary, may also establish its own financial arrangements.

2. Unless otherwise provided in this Agreement, the Joint Commission and any committee, subsidiary body or working group established under this Agreement shall carry out its work through whatever means as appropriate, which may include through electronic means.

3. The Joint Commission and any committee, subsidiary body or working group established under this Agreement, shall be co-chaired by representatives from both the Parties.

Article 17.5
Committees and Subsidiary Bodies

1. The following committees are hereby established:

   (a) Committee on Trade in Goods;

   (b) Committee on Rules of Origin;

   (c) Committee on Trade Facilitation;

   (d) Committee on Sanitary and Phytosanitary Measures;

   (e) Committee on Technical Barriers to Trade;

   (f) Committee on Trade in Services;

   (g) Committee on Trade and Sustainable Development;

   (h) Joint Agriculture Productivity Council;

   (i) Committee on Economic Cooperation and Technical Assistance; and

   (j) Committee on Biosecurity, Food and Primary Products.

2. A Committee on Investment Promotion and Cooperation is also hereby established.

3. The following subsidiary bodies are hereby established:

   (a) Working Group on Health-Related Services and Traditional Medicine Services;

   (b) Working Group on Professional Services;

   (c) Working Group on the Temporary Movement of Natural Persons; and

   (d) Working Group on Wine, Whisky and Other Distilled Spirits.

4. The committees and subsidiary bodies referred to in this Article shall meet once a year, or as otherwise agreed. The meetings shall take place in India or in New Zealand alternately or by any other appropriate means of communication, as agreed by the representatives of the Parties. The committees and subsidiary bodies shall agree on their meeting schedule and set their agenda.

5. The committees and subsidiary bodies shall comprise representatives of each Party and they shall be co-chaired, at an appropriate level, by representatives of each Party.

Article 17.6
Committee on Biosecurity, Food and Primary Products

1. The Committee on Biosecurity, Food and Primary Products, established under Article 17.5 (Committees and Subsidiary Bodies), may, as agreed by the Parties, consider any technical measure that is not being addressed by another Committee under this Agreement, that falls under the jurisdiction of the respective competent authorities responsible for regulation of agricultural, food, forestry and fisheries products ("Food and Primary Products"). Such consideration shall be complementary to and not be a substitute for the functions of committees established under the specific chapters of this Agreement.

2. The Committee shall comprise representatives of those competent authorities of the Parties that have regulatory authority for the matters under consideration, and shall meet as mutually determined by the Parties in accordance with the agreed agenda. All decisions of the Committee shall be made by consensus. Meetings of the Committee may be in person, or by any other means as mutually determined by the Parties.

3. The purpose of the Committee is to:

   (a) facilitate appropriate coordination on the resolution of technical measures related to the implementation of Chapter 2 (Trade in Goods), Chapter 6 (Sanitary and Phytosanitary Measures),

and Chapter 7 (Technical Barriers to Trade), where such matters may affect the trade in Food and Primary Products;

(b) provide a forum for technical measures referred to in subparagraph (a), for improved communication, cooperation, and consultation between the Parties to facilitate trade between the Parties, including addressing unjustified barriers to trade; and

(c) promote mutual understanding of each Party's regulatory approaches and procedures relating to Biosecurity, Food and Primary Products.

4. In order to give effect to paragraph 3, the Committee may:

(a) establish, monitor and review work plans; and

(b) initiate, develop, adopt, review, and modify implementing arrangements in relation to such technical measures.

Article 17.7
Decision-making

1. All decisions of the Joint Commission shall be made by mutual agreement of the Parties.

2. All decisions of the committees, subsidiary bodies or working groups established under this Agreement shall be made by mutual agreement of the Parties.

Article 17.8
Contact Points and Communications

1. Each Party shall designate a contact point to receive and facilitate official communications between the Parties on any matter covered by this Agreement, except for matters for which this Agreement establishes a specific contact point.

2. Unless otherwise provided in this Agreement, each Party shall notify the other Party in writing of its designated contact points no later than 60 days after the date of entry into force of this Agreement.

3. All official communications in relation to this Agreement shall be in the English language.

4. Each Party shall promptly notify the other Party, in writing, of any changes to its overall contact point or any other contact point.

CHAPTER 18

EXCEPTIONS AND GENERAL PROVISIONS

Article 18.1
General Exceptions

1. For the purposes of Chapter 2 (Trade in Goods), Chapter 3 (Rules of Origin), Chapter 4 (Customs Procedures and Trade Facilitation), Chapter 6 (Sanitary and Phytosanitary Measures) and Chapter 7 (Technical Barriers to Trade) of this Agreement, Article XX of GATT 1994, including its interpretative notes, is incorporated into and made part of this Agreement, *mutatis mutandis*.

2. For the purposes of Chapter 8 (Trade in Services) and Chapter 9 (Investment Promotion and Cooperation), Article XIV of GATS, including its footnotes, is incorporated into and made part of this Agreement, *mutatis mutandis*.

Article 18.2
Security Exceptions

1. Nothing in this Agreement shall be construed to:

   (a) require a Party to furnish any information, the disclosure of which it considers contrary to its essential security interests;

   (b) prevent a Party from taking any action which it considers necessary for the protection of its essential security interests:

      (i) relating to the production of or traffic in arms, ammunition and implements of war and to such traffic in other goods and materials, or relating to the supply of services as carried out directly or indirectly for the purpose of supplying or provisioning a military establishment;

      (ii) relating to fissionable or fusionable materials or the materials from which they are derived;

      (iii) relating to the protection of critical public infrastructure, whether publicly or privately owned, including communications, power and water infrastructure; or

      (iv) taken in time of national emergency, war or other emergency in international relations; or

(c) prevent a Party from taking any action in pursuance of its obligations under the United Nations Charter for the maintenance of international peace and security.

Article 18.3
Direct Taxation Measures

1. For the purposes of this Agreement, "direct taxes" comprise all taxes on total income, on total capital or on elements of income or of capital, including taxes on gains from the alienation of property, taxes on estates, inheritances and gifts, and taxes on the total amounts of wages or salaries paid by enterprises, as well as taxes on capital appreciation; and also include the taxes covered under the *Convention between the Government of the Republic of India and the Government of New Zealand for the Avoidance of Double Taxation and the Prevention of Fiscal Evasion with respect to Taxes on Income and on Capital*, done at Auckland on 17 October 1986, as amended by any Protocols thereto ("India-New Zealand DTAA").

2. Nothing in this Agreement shall apply to any direct taxation measure.[1]

3. Nothing in this Agreement shall affect the rights and obligations of either Party under any tax convention[2]. In the event of any inconsistency between this Agreement and any tax convention, that convention shall prevail over this Agreement.

4. In the case of a tax convention between or including the Parties, if an issue arises as to whether any inconsistency exists between this Agreement and the tax convention, the issue shall be referred to the relevant competent authorities of the Parties. The competent authorities shall jointly determine the existence and the extent of such inconsistency.

5. Nothing in this Agreement shall oblige a Party to apply any most-favoured-nation obligation in this Agreement with respect to an advantage accorded by a Party pursuant to a tax convention.

[1] For greater certainty, "direct taxation measure" neither includes any indirect taxation measure including customs duties as defined in Article 2.1 (Definitions) nor does it include the measures listed in subparagraphs (i), (ii) and (iii) of Article 2.1 (Definitions).

[2] "tax convention" means the India-New Zealand DTAA, or any other international taxation agreement or arrangement including any other convention for the avoidance of double taxation.

Article 18.4
Measures to Safeguard the Balance of Payments

1. Where a Party is in serious balance of payments and external financial difficulties, or under threat thereof, it may:

   (a) in the case of trade in goods, in accordance with GATT 1994 and the WTO *Understanding on the Balance-of-Payments Provisions of the GATT 1994*, including its interpretative notes, adopt restrictive import measures; and

   (b) in the case of trade in services, in accordance with Article XII of GATS, adopt or maintain restrictions on trade in services on which it has undertaken specific commitments, including on payments or transfers for transactions related to such commitments. The Parties recognise that particular pressures on the balance of payments of a Party in the process of economic development may necessitate the use of restrictions on trade in services to ensure, *inter alia*, the maintenance of a level of financial reserves adequate for the implementation of its programme of economic development.

2. Any restrictions adopted or maintained by a Party under paragraph 1, or any changes therein, shall be notified promptly to the other Party from the date such measures are taken.

3. To the extent that it does not duplicate the process under the WTO or the International Monetary Fund, the Party adopting or maintaining any restrictions under paragraph 1 shall promptly commence consultations with the other Party from the date of notification in order to review the measures adopted or maintained by it.

Article 18.5
Tiriti o Waitangi / Treaty of Waitangi

1. Provided that such measures are not used as a means of arbitrary or unjustified discrimination against persons of the other Party or as a disguised restriction on trade in goods and services, nothing in this Agreement shall preclude the adoption by New Zealand of measures it deems necessary to accord more favourable treatment to Māori in respect of matters covered by this Agreement, including in fulfilment of its obligations under te Tiriti o Waitangi / the Treaty of Waitangi.

2. The Parties agree that the interpretation of te Tiriti o Waitangi / the Treaty of Waitangi, including as to the nature of the rights and obligations arising under it, shall not be subject to the dispute settlement provisions of this Agreement. Chapter 19 (Dispute Settlement) shall otherwise apply to this Article. A panel established under Article 19.7 (Request for Establishment of a Panel) may be

requested by India to determine only whether any measure referred to in paragraph 1 is inconsistent with their rights under this Agreement.

Article 18.6
Disclosure of Information

Nothing in this Agreement shall be construed to require either Party to furnish or allow access to information the disclosure of which it considers:

(a) would be contrary to the public interest;

(b) is contrary to any of its legislation including those protecting personal privacy or the financial affairs and accounts of individual customers of financial institutions;

(c) would impede law enforcement; or

(d) would prejudice legitimate commercial interests of particular enterprises, public or private.

Article 18.7
Confidentiality

1. Each Party shall, in accordance with its laws and regulations, maintain the confidentiality of information designated as confidential by the other Party pursuant to this Agreement.

2. Information designated as confidential shall be used only for the purposes specified by the Party providing the information.

3. Notwithstanding paragraph 1, the information designated as confidential and provided pursuant to this Agreement may be transmitted to a third party subject to prior consent of the Party providing the information.

4. Nothing in this Article shall prevent a Party from disclosing information where it is required to do so under its law, or to the extent that it may be necessary in the context of judicial or quasi-judicial proceedings. In such situations, the Party that has received the information shall notify the other Party of the release or disclosure.

Article 18.8
Financial Provisions

Any cooperative activities envisaged or undertaken under this Agreement shall be subject to the availability of resources and to the laws, regulations and

policies of the Parties. Costs of cooperative activities shall be borne in such manner as may be mutually determined from time to time between the Parties.

CHAPTER 19

DISPUTE SETTLEMENT

Article 19.1
Definitions

For the purposes of this Chapter:

(a) **"Code of Conduct"** means the code of conduct referred to in Article 19.11 (Rules of Procedure and Code of Conduct) and set out in Annex 19B (Code of Conduct for Dispute Settlement);

(b) **"complaining Party"** means the Party requesting consultations under Article 19.5 (Consultations);

(c) **"compliance review panel"** means a panel reconvened under Article 19.15 (Compliance Review);

(d) **"confidential information"** means information which is designated as confidential by a Party;

(e) **"DSU"** means the *Understanding on Rules and Procedures Governing the Settlement of Disputes* set out in Annex 2 of the WTO Agreement;

(f) **"panel"** means a panel established under Article 19.7 (Request for Establishment of a Panel)**;**

(g) **"reconvened panel"** means a panel reconvened under Article 19.16 (Compensation and Suspension of Concessions or Other Obligations) or Article 19.17 (Review after the Suspension of Concessions or Other Obligations);

(h) **"responding Party"** means the Party to which a request for consultations is made under Article 19.5 (Consultations); and

(i) **"Rules of Procedure"** means the rules of procedure referred to in Article 19.11 (Rules of Procedure and Code of Conduct) and set out in Annex 19A (Rules of Procedure for Dispute Settlement).

Article 19.2
Cooperation

The Parties shall endeavour to agree on the interpretation and application of this Agreement in accordance with customary rules of interpretation of public international law. The Parties shall make every attempt through cooperation

and consultations to arrive at a mutually agreed solution to any matter that might affect its operation.

Article 19.3
Scope

1. Unless otherwise provided in this Agreement, this Chapter shall apply with respect to the avoidance or settlement of all disputes between the Parties regarding the implementation, interpretation or application of this Agreement or whenever a Party considers that:

   (a) a measure of the other Party is inconsistent with its obligations under this Agreement; or

   (b) the other Party has otherwise failed to carry out its obligations under this Agreement.

2. Unless the Parties agree otherwise, the timeframes and procedural rules set out in this Chapter shall apply to all disputes governed by this Chapter.

3. Findings, determinations or recommendations of a panel, a compliance review panel, or a reconvened panel cannot add to or diminish the rights, and obligations of the Parties under this Agreement.

4. The Parties agree that a panel appointed under this Chapter shall interpret and apply this Agreement in accordance with customary rules of interpretation of public international law.

5. The panel shall take into account any relevant findings in adopted GATT dispute settlement reports, and rulings and recommendations of the WTO Dispute Settlement Body.

Article 19.4
Choice of Forum

1. If a dispute regarding any matter arises under this Agreement and another international agreement to which the Parties are party, including the WTO Agreement, the complaining Party may select the forum in which to settle the dispute. The forum selected shall be used to the exclusion of other fora.[1]

2. For the purposes of this Article, the complaining Party shall be deemed to have selected the forum in which to settle the dispute when it has requested the establishment of a panel pursuant to paragraph 1 of

[1] The exclusion of other fora includes the exclusion of consultations in those fora.

Article 19.7 (Request for Establishment of a Panel) or requested the establishment of, or referred a matter to, a dispute settlement panel under another international agreement. Where panel procedures are not provided for under another international agreement, the complaining Party shall be deemed to have selected the forum when it commences a dispute under the dispute settlement procedures in the relevant international agreement.

Article 19.5
Consultations

1. Either Party may request consultations with the other Party with respect to any matter described in Article 19.3 (Scope) by providing written notification to the other Party. The complaining Party shall set out the reasons for the request, including identification of the measure at issue and an indication of the legal basis for the complaint, and any other issue of concern. Each Party shall accord adequate opportunity for consultations regarding the request for consultation made by the other Party.

2. If a request for consultations is made, the Party to which the request is made shall reply to the request within 10 days of receipt of the request and shall enter into consultations within a period no later than 30 days after the receipt of the request or, within 15 days of receipt of the request in the case of perishable goods, with a view to reaching a mutually agreed solution.

3. The Parties shall make every effort to reach a mutually agreed solution to any matter through consultations. To this end:

   (a) the Parties shall provide sufficient information as may be available at the stage of consultations to enable a full examination of the matter subject to consultations;

   (b) the Parties shall endeavour to ensure the participation of personnel of their competent governmental authorities or other regulatory bodies who have responsibility for or expertise in the matter subject to the consultations;

   (c) the Parties shall treat any confidential information exchanged in the course of consultations on the same basis as the Party providing the information; and

   (d) the consultations under this Article shall be confidential and without prejudice to the rights of either Party in any further or other proceedings.

Article 19.6
Good Offices, Conciliation or Mediation

1. The Parties may at any time agree to good offices, conciliation, or mediation. Such procedures may begin at any time and be terminated by either Party at any time.

2. Proceedings involving good offices, conciliation, or mediation and the particular positions taken by the Parties in these proceedings shall be confidential and without prejudice to the rights of either Party in any further or other proceedings.

3. If the Parties agree, procedures for good offices, conciliation, or mediation may continue while the dispute proceeds for resolution before a panel established under Article 19.7 (Request for Establishment of a Panel).

Article 19.7
Request for Establishment of a Panel

1. The complaining Party may request the establishment of a panel to examine the matter, if:

   (a) the responding Party does not enter into consultations within 30 days of receipt of the request for consultations under Article 19.5 (Consultations) or within 15 days of such a request in the case of perishable goods; or

   (b) the Parties fail to resolve the matter within 60 days of receipt of the request for consultations or within 30 days of such a request in the case of perishable goods, or within such other period as the Parties mutually agree.

2. The request to establish a panel shall be made in writing and shall identify:

   (a) the specific measures at issue;

   (b) whether consultations have been held; and

   (c) a brief summary of the factual, and legal, basis of the complaint sufficient to present the problem clearly, including the relevant provisions of this Agreement at issue.

3. Once a request for the establishment of a panel is made in conformity with paragraph 2, a panel shall be established in accordance with Article 19.8 (Composition of Panels).

Article 19.8
Composition of Panels

1. Unless the Parties agree otherwise, a panel shall consist of three members.

2. Within 30 days of the receipt of the written notification requesting the establishment of a panel, each Party shall appoint one panellist, who may be its national, and provide to the other Party a list of up to four nominees for appointment as the chair. The Parties shall agree on the chair from the nominees proposed by each Party.

3. Within 45 days of receipt of the request for the establishment of a panel, any panellist not yet appointed shall be appointed by the Parties, on request of either Party, by draw of lot from the list of the candidates proposed in accordance with paragraph 2. Where more than one panellist, including the chair is to be selected by draw of lot, the chair shall be selected first.

4. Where a Party fails to submit its list of up to four nominees within the period specified in paragraph 2, the chair shall be appointed by random draw of lot from the list of nominees already submitted by the other Party.

5. The date of establishment of the panel shall be the date on which the last panellist is appointed.

6. If a panellist appointed under this Article resigns or becomes unable to act, a successor panellist shall be appointed in the same manner as prescribed for the appointment of the original panellist and shall have all the powers and duties of the original panellist. In such a case, the work of the panel and any time period applicable to the panel proceedings shall be suspended for the period beginning the date the original panellist becomes unable to act and ending on the date the new panellist is appointed.

7. Where a panel is reconvened under paragraph 1 of Article 19.15 (Compliance Review), paragraph 6 of Article 19.16 (Compensation and Suspension of Concessions or Other Obligations), or paragraph 4 of Article 19.17 (Review after the Suspension of Concessions or Other Obligations) the reconvened panel shall, where possible, have the same panellists as in the original panel. If the panel cannot be reconvened with all of its original panellists, the procedures for selection of the panellists set out in paragraphs 2 through 5 shall apply for the appointment of any replacement panellist.

Article 19.9
Qualification of Panellists

1. Any person appointed as a panellist pursuant to Article 19.8 (Composition of Panels) shall:

   (a) have expertise or experience in law, international trade, other matters covered by this Agreement, or the resolution of disputes arising under international trade agreements;

   (b) be chosen strictly on the basis of impartiality, objectivity, reliability, sound judgement and independence;

   (c) not be employed by, affiliated with, or take instructions from either Party;

   (d) not have dealt with the matter in any capacity;

   (e) disclose to the Parties information which may give rise to justifiable doubts as to their independence or impartiality; and

   (f) comply with the Code of Conduct.

2. In addition to the requirements under paragraph 1, the chair shall neither be a national of either Party, nor have their usual place of residence in either Party. The chair shall also have experience in dispute settlement procedures.

3. An individual shall not serve as a panellist for a dispute in which that person has participated under Article 19.6 (Good Offices, Conciliation, or Mediation).

4. If a Party believes that a panellist is in violation of any of these requirements, the Parties shall consult and, if they agree, the panellist shall be replaced by a new panellist in accordance with the manner prescribed for the appointment of the original panellist. The new panellist shall have all the powers and duties of the original panellist.

Article 19.10
Functions and Proceedings of Panels

1. Unless the Parties agree otherwise, a panel shall perform its functions and conduct its proceedings in a manner consistent with this Agreement, the Rules of Procedure, and the Code of Conduct.

2. A panel shall make an objective assessment of the matter before it, including an objective assessment of:

   (a) the facts of the case;

(b) the applicability of the relevant provisions of this Agreement cited by the Parties;

(c) whether:

(i) the measure at issue is inconsistent with the obligations of this Agreement; or

(ii) a Party has otherwise failed to carry out its obligations under this Agreement; and

(d) any other issue of concern that the Parties have jointly requested that the panel address.

3. Unless the Parties agree otherwise within 30 days of the date of receipt of the request for the establishment of the panel, or within 15 days of the date of receipt of the request for establishment in the case of perishable goods, the panel's terms of reference shall be:

"To examine, in light of the relevant provisions of this Agreement cited by the Parties, the matter referenced in the request for the establishment of the panel under paragraph 1 of Article 19.7 (Request for Establishment of a Panel), and to make and present in a written report, its findings of law and fact and, if jointly requested by the Parties, its recommendations."

Article 19.11
Rules of Procedure and Code of Conduct

1. The Rules of Procedure shall ensure that:

(a) there is at least one hearing before the panel at which each Party may present views orally;

(b) hearings shall be open to the public, unless the Parties agree otherwise;

(c) each Party has an opportunity to provide at least an initial submission;

(d) the panel may at any time during the proceeding address questions in writing to a Party or the Parties;

(e) subject to subparagraph (g), each Party may release to the public its own:

(i) written submissions;

(ii) written versions of oral statements; or

(iii) responses to any requests or questions from the panel;

(f) subject to consultations with the Parties, the panel may seek information or technical advice from an expert that it deems appropriate; and

(g) confidential information is protected.

2. The panel, after consulting with the Parties, or on the joint request of the Parties may adopt additional Rules of Procedure not inconsistent with this Chapter or the Rules of Procedure.

Article 19.12
Reports of the Panel

1. The reports of the panel shall be drafted without the presence of the Parties. The panellists shall assume full responsibility for the drafting of the reports. Opinions expressed in the reports of the panel by individual panellists shall be anonymous. The reports shall include any separate or dissenting opinions on matters not unanimously agreed by the panel.

Initial Report

2. Unless the Parties agree otherwise, the panel shall base its report on the relevant provisions of this Agreement, on the submissions and arguments of the Parties, and on any information or technical advice it has obtained in accordance with the Rules of Procedure.

3. Unless the Parties agree otherwise, the panel shall, within 180 days of the date the panel is established, or in the case of perishable goods, endeavour to, within 120 days of the date the panel is established, present to the Parties an initial report containing:

(a) a descriptive section summarising the submissions and arguments of the Parties;

(b) its findings of fact;

(c) its findings as to whether:

(i) the measure at issue is inconsistent with obligations under this Agreement; or

(ii) a Party has otherwise failed to carry out its obligations under this Agreement.

(d) any other issue of concern that the Parties have jointly requested that the panel address;

(e) the reasons for the panel's findings; and

(f) if jointly requested by the Parties, its recommendations, if any, on the means to resolve the dispute.

4. Each Party may submit written comments to the panel on its initial report within 20 days of presentation of the report unless otherwise agreed between the Parties.

5. If the panel receives written comments from the Parties pursuant to paragraph 4, the panel may reconsider and modify its report, including on the basis of any further examination it considers appropriate after taking into account those comments. The panel shall specify the reasons for any modifications to its report in its final report including a discussion of written comments.

6. If the panel considers that it cannot present its initial report within the time period specified in paragraph 3, it shall inform the Parties in writing of the reasons for the delay together with an estimate of the period within which it will present its report. Any delay shall not exceed a further period of 30 days unless the Parties agree otherwise and in the case of perishable goods, the panel shall make every effort to not exceed 15 days.

Final Report

7. The panel shall present a final report to the Parties within 45 days of presentation of the initial report, unless the Parties agree otherwise.

8. Either Party may make the final report available to the public once it has been presented to the Parties, subject to the protection of confidential information

Article 19.13
Implementation of Final Report

1. The final report of a panel shall be binding on the Parties and shall not be subject to appeal.

2. Where the final report of a panel contains a finding that the measure at issue of the responding Party is inconsistent with its obligations under this Agreement, or that it has otherwise failed to carry out its obligations under this Agreement, the responding Party has an obligation to bring the measure at issue into conformity with this Agreement.

3. Within 30 days of the presentation of the final report of the panel to the Parties, the responding Party shall notify the complaining Party:

(a) of its intentions with respect to implementation, including an indication of actions it proposes to take to comply with paragraph 2;

(b) whether such implementation can take place immediately; and

(c) if such implementation is not practicable immediately, the reasonable period of time the responding Party would need to implement its proposed actions.

Article 19.14
Reasonable Period of Time

1. If the responding Party makes a notification that a reasonable period of time is required pursuant to subparagraph 3(c) of Article 19.13 (Implementation of Final Report), it shall, whenever possible, be mutually agreed by the Parties. Where the Parties are unable to agree on the reasonable period of time within 45 days of the presentation of the final report, either Party may request the chair of the panel to determine the reasonable period of time. Such request shall be made no later than 90 days after the presentation of the final report.

2. Where a request is made pursuant to paragraph 1, the chair of the panel shall present the Parties with a report containing a determination of the reasonable period of time and the reasons for such determination no later than 45 days after the request to the panel.

3. As a guideline, the reasonable period of time determined by the panel should not exceed 15 months from the date of the presentation of the report made pursuant to paragraph 2. However, such reasonable period of time may be shorter or longer, depending upon the particular circumstances. Further, the panel, in the determination of the reasonable period of time, may take into account relevant jurisprudence under Article 21.3(c) of the DSU.

Article 19.15
Compliance Review

1. Where there is disagreement as to whether the responding Party has complied with paragraph 2 of Article 19.13 (Implementation of Final Report), a Party may request that the panel reconvene to decide the matter.

2. A request pursuant to paragraph 1 may only be made after the earlier of either:

   (a) the expiry of the reasonable period of time determined in accordance with Article 19.14 (Reasonable Period of Time); or

   (b) a notification by the responding Party that it has complied with paragraph 2 of Article 19.13 (Implementation of Final Report).

3. Any request for the compliance review panel shall provide a brief summary of the factual, and legal, basis for the complaint, including the reason why the complaining Party considers that the responding Party has not complied with paragraph 2 of Article 19.13 (Implementation of Final Report).

4. When a request is made by the complaining Party in accordance with paragraphs 1 through 3, the compliance review panel shall be reconvened within 30 days of receipt of the request. The period for the compliance review panel proceedings, from the date of its reconvening until the date on which it presents its report to the Parties, shall not exceed 135 days, unless the Parties agree otherwise.

5. The compliance review panel shall make an objective assessment of the matter before it, including an objective assessment of:

   (a) the factual aspects of any implementation action taken by the responding Party to comply with paragraph 2 of Article 19.13 (Implementation of Final Report); and

   (b) whether the responding Party has complied with paragraph 2 of Article 19.13 (Implementation of Final Report),

6. The compliance report of the compliance review panel shall include:

   (a) a descriptive part summarising the submissions and arguments of the Parties;

   (b) its findings on the facts of the dispute arising under this Article;

   (c) its findings on whether the responding Party has complied with paragraph 2 of Article 19.13 (Implementation of Final Report); and

   (d) the reasons for such findings.

7. The compliance review panel shall, where possible, present an interim compliance report to the Parties within 90 days of the panel reconvening pursuant to paragraph 4, and thereafter its final report within 45 days of issuing the interim compliance report. In exceptional cases, if the compliance review panel considers that it cannot release its interim compliance report within this time period, it shall promptly inform the Parties in writing of the reasons for the delay together with an estimate of when it will present its report. The panel shall not exceed an additional period of 30 days and, in the case of perishable goods, shall make every effort to not exceed 15 days.

8. The compliance review panel shall accord adequate opportunity to the Parties to submit written comments on the interim compliance report. Such comments shall be submitted to the compliance review panel within 20 days of the presentation of the interim compliance report, unless the Parties agree otherwise. After considering any written

comments by the Parties on the interim compliance report, the panel may modify its report and make any further examination it considers appropriate. The panel shall include a discussion in its final compliance report of any comments made by the Parties on the interim compliance report.

Article 19.16
Compensation and Suspension of Concessions or Other Obligations

1. The responding Party shall, if requested by the complaining Party, enter into negotiations with a view to agreeing on mutually acceptable compensation, where:

   (a) the responding Party has notified the complaining Party that it will not comply with paragraph 2 of Article 19.13 (Implementation of Final Report) within the reasonable period of time determined in accordance with Article 19.14 (Reasonable Period of Time);

   (b) the responding Party has failed to notify pursuant to paragraph 3 of Article 19.13 (Implementation of Final Report); or

   (c) the compliance panel finds, pursuant to Article 19.15 (Compliance Review), that the responding Party has failed to comply with the final report.

2. If:

   (a) no mutually satisfactory agreement on compensation is reached within 30 days of the date of the request to enter into negotiations in accordance with paragraph 1; or

   (b) the Parties have agreed on compensation but the complaining Party considers that the responding Party has failed to observe the terms of the agreement,

   the complaining Party may at any time thereafter provide written notice to the responding Party specifying the level of concessions or other obligations that it intends to suspend equivalent to the level of nullification or impairment. The complaining Party shall have the right to begin suspending concessions or other obligations 30 days after receipt of the written notice.

3. In considering what benefits to suspend in accordance with paragraph 2:

   (a) a complaining Party should first seek to suspend concessions or other obligations in the same sector or sectors as that affected by the measure that the panel has found to be inconsistent with this Agreement; and

(b) a complaining Party may suspend concessions or other obligations in other sectors if it considers that it is not practicable or effective to suspend benefits in the same sector or sectors.

4. Any suspension of concessions or other obligations shall be restricted to concessions or other obligations accruing under this Agreement and shall not exceed the level of nullification or impairment.

5. Notwithstanding paragraph 2, the complaining Party shall not exercise the right to suspend concessions or other obligations under paragraph 2 where:

(a) a review is undertaken in accordance with paragraph 6 or 7; or

(b) a mutually agreed solution has been reached.

6. If the responding Party:

(a) objects to the level of suspension proposed in the notification made in accordance with paragraph 2 on the basis that it exceeds the level of nullification or impairment;

(b) considers that it has complied with the terms and conditions of any compensation agreed pursuant to paragraph 1; or

(c) claims the complaining Party has failed to follow the principles set out in paragraph 3,

then, the responding Party may request, in writing, no later than 30 days after receipt of the notification referred to in paragraph 2, the panel to reconvene to make findings on the matter.

7. If a panel is requested to reconvene pursuant to paragraph 6, it shall reconvene within 30 days of receipt of the request. The reconvened panel shall present its findings and determinations to the Parties no later than 60 days after the receipt of the request. In exceptional cases, if the reconvened panel considers that it cannot present its determination within this time period it shall inform the Parties in writing of the reasons for the delay together with an estimate of when it will present its decision. The panel shall not exceed an additional period of 30 days and, in the case of perishable goods, shall make every effort to not exceed 15 days.

8. The panel's findings and determinations shall be provided in writing and shall include:

(a) a descriptive part summarising the submissions and arguments of the Parties;

(b) its findings and determinations on the dispute arising under this Article; and

(c) the reasons for such findings and determinations.

9. Concessions or other obligations shall not be suspended until the reconvened panel has presented its findings and determinations. Any suspension of concessions or other obligations shall be consistent with the reconvened panel's decision.

Article 19.17
Review after the Suspension of Concessions or Other Obligations

1. Compensation and the suspension of concessions or other obligations shall be temporary and shall only be applied until such time as the responding Party has complied with paragraph 2 of Article 19.13 (Implementation of Final Report) or the Parties have reached a mutually agreed solution, whichever is earlier.

2. If the right to suspend benefits has been exercised pursuant to paragraph 2 of Article 19.16 (Compensation and Suspension of Concessions or Other Obligations), or mutually acceptable compensation has been agreed pursuant to paragraph 1 of Article 19.16 (Compensation and Suspension of Concessions or Other Obligations), and the responding Party considers that it has complied with paragraph 2 of Article 19.13 (Implementation of Final Report), the responding Party shall notify the complaining Party of the steps it has taken to comply.

3. Subject to paragraph 4, the complaining Party shall terminate the suspension of concessions or other obligations within 30 days of receipt of the notification in paragraph 2. In cases where compensation has been applied, and subject to paragraph 4, the responding Party may terminate the application of such compensation within 30 days of the complaining Party's receipt of the notification in paragraph 2.

4. If the Parties disagree on the existence or consistency with this Agreement of any steps notified in accordance with paragraph 2, no later than 30 days after the date of the complaining Party's receipt of the notification, a Party may request the panel in writing to reconvene to examine the matter.[2]

5. Paragraphs 5 through 8 of Article 19.15 (Compliance Review) shall apply if the panel reconvenes pursuant to paragraph 4.

6. If the reconvened panel decides that the steps notified in accordance with paragraph 2 achieve compliance with paragraph 2 of Article 19.13 (Implementation of Final Report), the suspension of benefits or the

[2] Where a panel is reconvened pursuant to this paragraph, it may also, on request of a Party, assess whether the level of any existing suspension of concessions or other obligations by the complaining Party is still appropriate and, if not, assess an appropriate level.

application of the compensation, shall be terminated no later than 30 days after the date of the decision.

7. If the reconvened panel decides that the steps notified in accordance with paragraph 2 do not achieve compliance with paragraph 2 of Article 19.13 (Implementation of Final Report), the suspension of benefits, or the application of the compensation, may continue. Where relevant, the level of suspension of benefits or of the compensation, shall be adapted in light of the decision of the panel.

Article 19.18
Suspension or Termination of Proceedings

1. The Parties may agree that the panel suspend its work at any time for a period not exceeding 12 months from the date of such agreement. Within this period, the suspended panel shall be resumed upon the request of either Party. If the work of the panel has been suspended for more than 12 consecutive months, the authority for the establishment of the panel shall lapse unless the Parties agree otherwise.

2. The Parties may agree to terminate the proceedings before a panel at any time by jointly notifying the chair to this effect. Before the panel presents its final report, it may at any stage of the proceedings propose to the Parties that the dispute be settled amicably. The proceedings may be terminated at any time before the presentation of the panel's initial report under Article 19.12 (Reports of the Panel) if the complaining Party withdraws its complaint.

Article 19.19
Mutually Agreed Solution

1. The Parties may reach a mutually agreed solution at any time with respect to any dispute referred to in Article 19.3 (Scope).

2. If a mutually agreed solution is reached during panel proceedings, the Parties shall jointly notify the agreed solution to the panel. Upon such notification, the proceedings of the panel shall terminate.

3. Each Party shall take measures necessary to implement the mutually agreed solution within the agreed time period.

Article 19.20
Official Language

All proceedings and all documents submitted to the panel shall be in the English language.

Article 19.21
Time Periods

Any time periods provided for in this Chapter may be modified by mutual agreement of the Parties.

Article 19.22
Expenses

1. Unless agreed otherwise, each Party shall bear the costs of its appointed panellist and its own expenses and legal costs.

2. Unless the Parties agree otherwise, the costs of the chair of the panel and other expenses associated with the conduct of its proceedings shall be borne in equal parts by the Parties.

Article 19.23
Contact Point

1. Each Party shall designate a contact point for this Chapter and shall notify the other Party of the contact details of that contact point within 30 days of entry into force of this Agreement. Each Party shall promptly notify the other Party of any change to those contact details.

2. Any request, notification, written submission, or other document made in accordance with this Chapter shall be delivered to the other Party through its designated contact point.

Article 19.24
Private Rights

Neither Party shall provide for a right of action under its law against the other Party on the ground that a measure of the other Party is inconsistent with this Agreement or that the other Party has otherwise failed to carry out its obligation under this Agreement.

ANNEX 19A

RULES OF PROCEDURE FOR DISPUTE SETTLEMENT

Section A: Definitions and General Provisions

Rule 1
Definitions

For the purposes of this Annex:

(a) **"adviser"** means a person retained by a disputing Party to advise or assist the disputing Party in connection with the panel proceeding;

(b) **"assistant"** means a person who is retained by a panellist pursuant to Rule 7 (Operation of the Panel) to conduct research or provide support to the panellist;

(c) **"Code of Conduct"** means the Code of Conduct for Panellists established pursuant to Article 19.11 (Rules of Procedure and Code of Conduct) in Annex 19B (Code of Conduct for Dispute Settlement);

(d) **"panellist"** means a member of a panel established under Article 19.8 (Composition of Panels);

(e) **"proceeding"**, unless otherwise specified, means the proceeding of a panel under Chapter 19 (Dispute Settlement); and

(f) **"representative"** means an employee of a government department or agency or of any other government entity of a Party, or any person appointed or retained by a government department or agency, or any other government entity of a Party, who represents, advises, or assists that Party for the purposes of a dispute under this Chapter.

Rule 2
General Provisions

1. Unless the Parties agree otherwise, these Rules of Procedure shall apply to proceedings of a panel established under Chapter 19 (Dispute Settlement).

2. In the event of an inconsistency between these Rules of Procedure and Chapter 19 (Dispute Settlement), the provisions of that Chapter shall prevail to the extent of the inconsistency.

3. Except as provided otherwise, any reference made in these Rules of Procedure to an Article is a reference to the appropriate Article in Chapter 19 (Dispute Settlement) of the Agreement.

Section B: Panel Procedures

Rule 3
Notifications

1. Any request, notice, written submission, or other document in a proceeding transmitted by:

   (a) the panel shall be sent to both Parties at the same time;

   (b) a Party to the panel shall be copied to the other Party at the same time; and

   (c) a Party to the other Party shall be copied to the panel at the same time, where appropriate.

2. The notification to a Party of any document under Chapter 19 (Dispute Settlement), these Rules of Procedure, or the Code of Conduct shall be addressed to that Party's contact point designated pursuant to Article 19.23 (Contact Point).

3. The Parties or panel shall deliver any request, notice, written submission, or other document by email or, where appropriate, other electronic means (where possible in a searchable format) that provides a record of the sending thereof. Unless proven otherwise, any request, notice, written submission, or other document shall be deemed to be received on the date of its sending. The date of sending shall be determined according to the time zone in the capital city of the sending Party.

4. If it is not possible to deliver a document or any part thereof, including an exhibit or exhibits, in electronic form, the Party submitting the document shall inform the panel and the other Party of its inability to do so. That Party shall also deliver, by the most expeditious means practicable, a copy of the document or any part thereof, including an exhibit or exhibits, to each of the panellists and to the other Party.

5. If the last day for delivery of a document falls on a non-business day of a Party or on any other day on which the offices of the Government of a Party are closed, the document may be delivered on the next business day.

6. Minor errors of a clerical nature in any request, notice, written submission, or other document related to the proceeding may be corrected by delivering a new document clearly indicating the changes. Any such correction shall not affect the timetable for the proceeding. Any disagreement regarding whether or not the correction is of a clerical nature shall be resolved by the panel after consulting the Parties.

Rule 4
Appointment of Panellists

1. If a panellist is to be selected by lot pursuant to Article 19.8 (Composition of Panels), the complaining Party shall promptly notify the responding Party in writing of the date, time, and venue of the selection by lot. The selection by lot shall take place no earlier than 7 days after the date of delivery of the notification. The responding Party shall have a reasonable opportunity to be present when the lot is drawn.

2. The Parties shall notify, in writing, each individual who has been selected to serve as a panellist pursuant to Article 19.8 (Composition of Panels) of their selection. Each individual shall confirm their availability to both Parties no later than 5 days after the date of delivery of the notification.

3. If an individual who has been selected to serve as a panellist does not confirm their availability within the time period provided for in paragraph 2, or notifies that they are unavailable, a new individual shall be selected. To that end, the procedure provided for in Article 19.8 (Composition of Panels) shall be repeated, starting with the selection method that led to the selection of the unavailable individual.

4. The panellists shall accept their appointment by signing the appointment contracts and returning a signed copy to the Parties. The Parties shall endeavour to ensure that, at the latest by the time all the selected panellists have confirmed their availability, they have agreed on the remuneration and the reimbursement of expenses of the panellists and assistants, and have prepared the necessary appointment contracts, with a view to having them signed promptly.

Rule 5
Organisational Meeting

1. Unless the Parties agree otherwise, the Parties shall meet with the panel within 7 days of the date of establishment of the panel in order:

(a) for the Parties to agree the remuneration and expenses to be paid to the panellists and their assistants, in accordance with Rule 16 (Remuneration and Expenses);

(b) for the panel to consult the Parties on the timetable for the proceedings including precise dates for the filing of submissions and the date of the oral hearing; and

(c) to discuss any other matter that the Parties or the panel deem appropriate.

2. The meeting referred to in paragraph 1 may be conducted by any means as agreed by the Parties including telephone, video conference or other electronic means of communication.

Rule 6
Timetable

1. After consulting the Parties pursuant to Rule 5 (Organisational Meeting), a panel shall, as soon as practicable and whenever possible within 15 days of the date of establishment of the panel, fix the timetable for the panel process. The timetable shall provide sufficient time for the Parties to prepare their respective submissions and shall set precise deadlines for written submissions by the Parties.

2. If the panel considers there is a need to modify or adjust the timetable, the panel shall consult the Parties in writing of the proposed modification and the reason for it. The Panel may modify the timetable for the proceeding or make any adjustments as may be required.

Rule 7
Operation of the Panel

1. The chair of the panel shall preside at all of its meetings. The panel may delegate to the chair the authority to make administrative and procedural decisions.

2. Panel deliberations shall be confidential. Only panellists may take part in the deliberations of the panel, but the panel may permit assistants or designated note-takers to be present during such deliberations.

3. The panel shall, where possible, take its decisions by consensus. If a panel is unable to reach consensus, it may take its decisions by majority vote.

4. Except as otherwise provided in this Annex, the panel may conduct its business by any means, including by email, telephone, facsimile

transmission, videoconference, or any other means of electronic communication.

5. The reports of the panel shall be drafted and presented in accordance with Article 19.12 (Reports of the Panel). The panellists shall not delegate their responsibility for the drafting of the reports as provided for in paragraph 1 of Article 19.12 (Reports of the Panel).

6. If a procedural question arises that is not covered by Chapter 19 (Dispute Settlement) or its Annexes, the panel, after consulting the Parties, or on the joint request of the Parties, shall adopt an appropriate rule of procedure that is not inconsistent with the Agreement or these Rules of Procedure.

Rule 8
Written Submissions

1. Subject to Rule 6 (Timetable), the complaining Party shall deliver its first written submission to the panel no later than 14 days after the date of establishment of the panel. The responding Party shall deliver its first written submission to the panel no later than 30 days after the date of delivery of the complaining Party's first written submission. Copies shall be provided for each panellist.

2. The complaining Party shall deliver a rebuttal submission no later than 15 days after the date of delivery of the first written submission of the responding Party. In that case, the responding Party may submit its response no later than 15 days after the date of delivery of the rebuttal submission of the complaining Party.

3. No later 12 days after the last day of the hearing, each Party may deliver to the panel a supplementary written submission responding to any matter that arose during the hearing, if requested by the panel. Each Party may provide written comments on the other Party's supplementary written submission no later than 10 days after receipt of the other Party's supplementary written submission.

Rule 9
Hearings

1. The timetable established pursuant to Rule 6 (Timetable) shall provide for at least one hearing for the Parties to present their case to the panel. Based on the timetable determined pursuant to Rule 6 (Timetable), the chair of the panel shall fix the time of the hearing. The chair shall notify in writing to the Parties the time and location of the hearing. The panel shall seek to hold the hearing at least 14 days after the date of delivery of the written rebuttal submissions.

2. Unless the Parties agree otherwise, the hearing shall be held in the capital of the responding Party.

3. On request of a Party, or on its own initiative, a panel may convene additional hearings if the Parties so agree. Any additional hearings shall alternate between the capital cities of the Parties.

4. Unless the Parties agree otherwise, the Party in whose capital city the hearing is held shall be responsible for the logistical arrangements for the hearing, in particular the organisation of the venue.

5. All presentations and statements made at hearings shall be made in the presence of the Parties to the dispute.

6. All panellists shall be present during the entirety of each hearing. If a replacement panellist has been appointed after a hearing has occurred but before the panel's report is published, the panel may hold a new hearing if a Party requests, or if the panel considers a new hearing to be appropriate.

7. The following persons may also be present at hearings:

   (a) representatives of the Parties;

   (b) administrative personnel, translators, and designated note-takers of the panel; and

   (c) panellists' assistants.

   Any such arrangements established by the panel may be modified with the agreement of the Parties.

8. Unless the Parties agree otherwise, all hearings of the panel shall be open for the public to observe,[1] except that the panel shall close the hearing for any discussion of confidential information.[2] Attendance in the hearing room shall be limited to the persons referred to in paragraphs 6 and 7.

9. The Parties to the dispute shall make available to the panel written versions of their oral statements before the panel no later than 7 days after the last day of the relevant hearing. For greater certainty, this does not include responses to any questions asked orally during the hearing.

10. No later than five days before the date of a hearing, each Party shall deliver to the panel and to the other Party a list of names of the persons

[1] For greater certainty, the expression "open for the public to observe" does not include physical presence at the hearing. To facilitate public observation of a hearing, that hearing may be transmitted electronically to the public at the time of the hearing at a different venue or at a later date or time, or through any other procedure as both Parties consider appropriate.

[2] For greater certainty, hearings held in closed session shall be confidential.

who shall make oral arguments or presentations in the hearing on behalf of that Party, and of other representatives and advisers who shall be attending the hearing.

11. The hearing shall be conducted by the panel in a manner ensuring that the complaining Party and the responding Party are afforded equal time to present their case.

12. As a general rule, the panel shall conduct the hearing in the following manner:

Argument

(a) argument of the complaining Party;

(b) argument of the responding Party;

Rebuttal Argument

(c) the reply of the complaining Party;

(d) the counter-reply of the responding Party;

Closing Argument

(e) closing statement of the complaining Party; and

(f) closing statement of the responding Party.

13. The panel may direct questions to a Party at any time during the hearing.

14. The panel may decide, after consulting the Parties, to hold a virtual or hybrid hearing and make appropriate arrangements, taking into account the rights of due process.

15. The panel shall arrange for a transcript of the hearing to be prepared and delivered to the Parties as soon as possible after the hearing. The Parties may comment on the transcript and the panel may consider those comments and, if required, address any inaccuracies in the transcript.

Rule 10
Written Questions from the Panel

1. The panel may direct questions in writing to either Party at any time during the proceedings. The Parties shall respond promptly and fully in writing to any request by the panel for such information. Any question directed by the panel to one Party shall be copied to the other Party.

2. Each Party shall also provide a copy of its response to such questions to the other Party at the same time as it is delivered to the panel. Each Party shall be given a reasonable opportunity to provide written comments on the response of the other Party.

Rule 11
No *Ex Parte* Communications

1. The panel shall not meet or contact a Party in the absence of the other Party.

2. Neither Party shall meet or contact any panellists in relation to the dispute in the absence of the other Party. Any contact between a Party and a person who is under consideration for selection as a panellist shall be limited to issues relating to that person's availability and the appointment contract.

3. No panellist shall discuss any aspect of the subject matter of the proceeding with a Party in the absence of the other Party or the other panellists.

Rule 12
Technical Advice

1. On request of a Party, or on its own initiative, the panel may, subject to consultations with the Parties, seek information or technical advice from any individual or body that it deems appropriate. If the Parties agree that the panel should not seek information or technical advice, the panel shall resume without the information or technical advice.

2. Any information or technical advice received by the panel pursuant to paragraph 1 shall be provided to the Parties for comment. Where the panel takes the information or technical advice into account in the preparation of its report, it shall also take into account any comments by the Parties on the information or technical advice.

Rule 13
Confidential Information

1. Each Party shall treat as confidential any information submitted by the other Party which that Party has designated as confidential.

2. If a Party designates information as confidential, it shall on the request of the other Party, provide the panel and the other Party with a non-

confidential summary of that information no later than 10 days after the date of request.

Rule 14
Public Release of Documents

1. Subject to the protection of confidential information, each Party may release a copy of the request for consultations and the request for establishment of a panel to the public. The timetable for hearings may be released to the public if both Parties agree.

2. Subject to the protection of confidential information, a Party may disclose statements of its own positions to the public, including releasing to the public its own written submissions, written versions of oral statements, and written responses to requests or questions from the panel.[3]

Section C: Ancillary Provisions

Rule 15
Replacement of Panellists

1. If a Party considers that a panellist has violated the requirement to comply with the Code of Conduct, that Party shall notify the other Party no later than 5 days after the date on which it obtained sufficient evidence of the panellist's alleged failure to comply with the Code of Conduct.

2. The Parties shall consult no later 15 days after the date of the notification referred to in paragraph 1. They shall inform the panellist of the alleged non-compliance and may request the panellist to take steps to remedy it. If the Parties agree, the Parties may remove the panellist and select a new panellist in accordance with Article 19.8 (Composition of Panels).

3. Any period of time applicable to the panel proceedings shall be suspended for a period beginning on the date a panellist resigns, is removed, or is authorised to seek to remedy the non-compliance, and ending on the date a replacement panellist is appointed or the non-compliance has ceased after amelioration.

[3] A Party releasing such written submissions, written versions of oral statements, and written responses to requests or questions from the panel, shall pay due regard to withhold information contained in them that pertains specifically to the other Party's position.

4. If the Parties fail to agree on the need to replace a panellist other than the chair of the panel, either Party may refer this matter to the chair of the panel, whose decision shall be final.

5. If the chair of the panel finds that the panellist does not comply with the requirements of Code of Conduct, the panellist shall be removed and a new panellist shall be selected in accordance with Article 19.8 (Composition of Panels).

6. If the Parties fail to agree on the need to replace the chair, they will consult with each other and determine a mutually agreeable pathway to resolve the matter.

Rule 16
Remuneration and Expenses

1. Unless the Parties agree otherwise, the costs of the panellists and other expenses associated with the conduct of the panel proceedings shall be borne by each Party in accordance with Article 19.22 (Expenses).

2. Each panellist shall keep a record and render a final account to the Parties of all time devoted to and expenses incurred in connection with the proceeding, as well as the time and expenses of their assistants. The panel shall keep a record and render a final account to the Parties of its administrative expenses.

3. Unless the Parties agree otherwise, remuneration for panellists shall be paid based on the rate for non-governmental panellists used by the World Trade Organization on the date a Party makes a written request for the establishment of a panel under Article 19.7 (Request for Establishment of a Panel).

4. Unless the Parties agree otherwise, expenses shall be paid at the Daily Subsistence Allowance rate for the location of the hearing established by the United Nations International Civil Service Commission on the date a Party makes a written request for the establishment of a panel under Article 19.7 (Request for Establishment of a Panel).

5. Each panellist may hire one assistant to provide research, translation, or interpretation support, unless a panellist requires an additional assistant and the disputing Parties agree that, due to exceptional circumstances, the panellist should be permitted to hire an additional assistant. Unless the Parties agree otherwise, the total remuneration of an assistant or all assistants of a panellist shall not exceed 50% of the remuneration of that panellist.

6. If the panel seeks information or technical advice pursuant to Rule 12 (Technical Advice), the amount and details of the remuneration and expenses an expert is to receive shall be determined by the Parties and

shall be borne by the Parties in equal share. Experts shall keep a record and render a final account to the Parties of all time devoted to and expenses incurred in connection with the proceeding.

7. In case of resignation or removal of a panellist, assistant, expert, or if the Parties reach a mutually agreed solution, the Parties will make payment of the remuneration and expenses owed, using resources provided equally by the Parties, on submission of a final account, following the procedures in paragraphs 2 and 6, as applicable.

8. A Party may at any time in the proceedings make reasonable request to the panel to furnish a statement of its costs to date in the proceedings and to provide an estimate of the additional work that is required.

ANNEX 19B

CODE OF CONDUCT FOR DISPUTE SETTLEMENT

Rule 1
Definitions and Scope

1. For the purposes of this Annex:

(a) **"ADR provider"** means a provider of alternative dispute resolution ("ADR") services, namely a provider of good offices, a conciliator, or a mediator who provides their services pursuant to Article 19.6 (Good Offices, Conciliation, or Mediation);

(b) **"assistant"** means a person who is retained by a panellist pursuant to Rule 7 (Operation of the Panel) in Annex 19A (Rules of Procedure for Dispute Settlement) to conduct research or provide support to the panellist;

(c) **"candidate"** means an individual who is under consideration for selection as a panellist under Article 19.8 (Composition of Panels);

(d) **"covered person"** means a person serving as a panellist, a former panellist, an ADR provider, an expert, a panellist's assistant, or staff involved in a proceeding;

(e) **"expert"** means an individual or body providing information or technical advice in accordance with subparagraph (1)(f) of Article 19.11 (Rules of Procedure and Code of Conduct);

(f) **"family member"** means the spouse, parent, child, grandparent, grandchild, sister, brother, aunt, uncle, niece, or nephew of a panellist or candidate, including whole and half blood relatives and step relatives; or the spouse of such an individual. A family member also includes any resident of a panellist's or candidate's household whom the panellist or candidate treats as a member of their family;

(g) **"panellist"** means a member of a panel established under Article 19.8 (Composition of Panels);

(h) **"proceeding"**, unless otherwise specified, means the proceeding of a panel under Chapter 19 (Dispute Settlement); and

(i) **"staff"**, in respect of a panellist, means persons under the direction and control of the panellist, other than assistants.

2. This Code of Conduct shall apply to any person serving as a panellist in a proceeding. This Code of Conduct shall also apply, as appropriate, to other covered persons.

Rule 2
Provision of Code of Conduct

1. The Parties shall provide this Code of Conduct and the Initial Disclosure Statement to a candidate prior to confirmation of their appointment to serve as a panellist under Article 19.8 (Composition of Panels).

2. The Panel shall provide this Code of Conduct and the Initial Disclosure Statement to an expert when they are requested to provide information or technical advice under subparagraph (1)(f) of Article 19.11 (Rules of Procedure and Code of Conduct).

3. The Parties shall provide this Code of Conduct and the Initial Disclosure Statement to an ADR provider when they are requested to provide their services under Article 19.6 (Good Offices, Conciliation, or Mediation).

4. A panellist shall provide this Code of Conduct and the Initial Disclosure Statement to their assistants and staff.

Rule 3
Responsibilities to the Process

In order to preserve the integrity and impartiality of the dispute settlement procedures, every candidate and panellist shall:

(a) get acquainted with this Code of Conduct;

(b) avoid impropriety and the appearance of impropriety or bias;

(c) be independent and impartial;

(d) avoid direct and indirect conflicts of interest;

(e) maintain the confidentiality of proceedings and deliberations; and

(f) observe high standards of conduct.

Rule 4
Disclosure Obligations

1. Prior to confirmation of their appointment as a panellist under this Agreement, a candidate shall disclose any interest, relationship, or

matter that is likely to affect their independence or impartiality or that might reasonably create an appearance of impropriety or bias in the proceeding. To this end, a candidate shall make all reasonable efforts to identify any such interests, relationships, and matters.

2. Without limiting paragraph 1, candidates shall disclose, at a minimum, the following interests, relationships, and matters:

   (a) any financial interest of the candidate in:

      (i) the proceeding or in its outcome; and

      (ii) an administrative proceeding, a domestic judicial or quasi-judicial proceeding, or another international dispute settlement proceeding that involves issues that may be decided in the proceeding for which the candidate is under consideration;

   (b) any financial interest of the candidate's employer, business partner, business associate, or family member in:

      (i) the proceeding or in its outcome; and

      (ii) an administrative proceeding, a domestic judicial or quasi-judicial proceeding, or another international dispute settlement proceeding that involves issues that may be decided in the proceeding for which the candidate is under consideration;

   (c) any past or existing financial, business, professional, family, or social relationship with any interested parties in the proceeding, or their counsel or any such relationship involving a candidate's employer, business partner, business associate, or family member; and

   (d) any public advocacy or legal or other representation (including publications or public statements of personal opinion) concerning an issue in dispute in the proceeding or concerning a dispute involving the same matters that are the subject of the dispute in the proceeding.

3. Prior to confirmation of their appointment, a candidate shall communicate matters concerning actual or potential violations of this Code of Conduct for consideration by the Parties by submitting the Initial Disclosure Statement to the Parties no later than 7 days after they have been contacted to serve as a panellist.

4. Once appointed, a panellist shall continue to make all reasonable efforts to identify any interests, relationships, and matters referred to in Rule 3 (Responsibilities to the Process) and shall disclose them promptly, in writing, to the Parties. The obligation to disclose is a continuing duty, which requires a panellist to disclose any such

interests, relationships, and matters that may arise during any stage of the proceeding.

5. In the event of uncertainty regarding whether an interest, relationship, or matter must be disclosed, a candidate or panellist should err in favour of disclosure. Disclosure of an interest, relationship, or matter is without prejudice as to whether the interest, relationship, or matter is covered by paragraph 1, 2, or 4, or whether it warrants recusal, disqualification, or other remedial measures.

Rule 5
Ex Parte Communications

1. Any contact between a Party and a candidate shall be limited to issues relating to that candidate's availability and appointment contract.

2. A panellist shall not engage in *ex parte* contacts concerning the proceeding.

Rule 6
Performance of Duties by Panellists

1. A panellist shall comply with the provisions of Chapter 19 (Dispute Settlement) and Annex 19A (Rules of Procedure for Dispute Settlement). In performing their duties, each panellist shall recognise that prompt settlement of disputes is essential to the effective functioning of the Agreement.

2. Upon selection, a panellist shall perform his or her duties thoroughly and expeditiously throughout the course of the proceeding with fairness and diligence.

3. A panellist shall not deny other panellists the opportunity to participate in all aspects of the proceeding.

4. A panellist shall consider only those issues raised in the proceeding and necessary to rendering a decision and shall not delegate the duty to decide to any other person, except as provided in paragraph 1 of Rule 7 (Operation of the Panel) in Annex 19A (Rules of Procedure for Dispute Settlement).

5. A panellist shall take all appropriate steps to ensure that the panellist's assistant and staff are aware of, and comply with, relevant provisions of this Annex.

6. A panellist shall not communicate matters concerning actual or potential violations of this Annex, including by another panellist, unless

the communication is to both Parties or is necessary to ascertain whether that panellist has violated or may violate this Annex.

7. A panellist or former panellist shall avoid actions that may create the appearance that the panellist was biased in carrying out the panellist's duties or would benefit from the decision or report of the panel.

8. A panellist shall ensure that they can be contacted, at all reasonable times, for the purpose of conducting the work of the panel.

Rule 7
Independence and Impartiality of Panellists

1. A panellist shall be independent and impartial. A panellist shall act in a fair manner and shall avoid creating an appearance of impropriety or bias.

2. A panellist shall not be influenced by self-interest, outside pressure, political considerations, and loyalty to a Party or fear of criticism.

3. A panellist shall not, directly or indirectly, incur any obligation or accept any benefit that would in any way interfere, or appear to interfere, with the proper performance of the panellist's duties.

4. A panellist shall not use their position on the panel to advance any personal or private interests. A panellist shall avoid actions that may create the impression that others are in a special position to influence the panellist. A panellist shall make every effort to prevent or discourage others from representing themselves as being in such a position.

5. A panellist shall not allow past or existing financial, business, professional, family or social relationships, affiliations, or responsibilities to influence the panellist's conduct or judgment.

6. A panellist shall avoid entering into any relationship, or acquiring any financial interest, that is likely to affect the panellist's impartiality or that might reasonably create an appearance of impropriety or bias.

7. A panellist shall not take instructions from any organisation or government or be affiliated to a government, including governmental organisation, of either Party.

Rule 8
Duties in Certain Situations

1. A panellist or former panellist shall avoid actions that may create the appearance that the panellist was biased in carrying out the panellist's duties or would benefit from the decision or report of the panel.

2. In any proceeding under Chapter 19 (Dispute Settlement), a panellist shall refrain, for the duration of the proceeding, from acting as counsel or party-appointed expert witness in any new or pending dispute, under the Agreement or another international agreement, that directly addresses the same measure in dispute in, or arises out of the facts giving rise to, the proceeding under Chapter 19 (Dispute Settlement).

Rule 9
Maintenance of Confidentiality

1. A covered person shall not at any time disclose or use any confidential or non-public information concerning the proceeding or acquired during the proceeding except for the purposes of the proceeding and shall not, in any case, disclose or use any such information to gain personal advantage or advantage for others, or to affect adversely the interest of others. A covered person shall not make any public statement regarding the merits of a pending panel proceeding.

2. A covered person shall not disclose a panel report, or parts thereof, issued under Chapter 19 (Dispute Settlement) prior to its publication or a panel report, or parts thereof, not disclosed to the public.

3. A panellist or former panellist shall not at any time disclose the deliberations of a panel, or any panellist's view, except as required by law.

APPENDIX 19B-1
INITIAL DISCLOSURE STATEMENT

1. I have received a copy of the Code of Conduct for dispute settlement under Chapter 19 (Dispute Settlement) of the Free Trade Agreement between India and New Zealand ("the Agreement").

2. I acknowledge having read and understood the Code of Conduct and hereby undertake to fully comply with my obligations under the Code of Conduct.

3. I understand that I have a continuing obligation, while participating in the proceeding, to disclose interests, relationships, and matters that may bear on the integrity or impartiality of the dispute settlement process. As a part of this continuing obligation, I am making the following initial disclosures:

   (a) my financial interest in the proceeding for which I am under consideration or in its outcome is as follows:

   (b) my financial interest in any administrative proceeding, a domestic judicial or quasi-judicial proceeding, or another international dispute settlement proceeding that involves issues that may be decided in the proceeding is as follows:

   (c) the financial interest that any employer, business partner, business associate, or family member of mine may have in the proceeding or in its outcome are as follows:

   (d) the financial interest that any employer, business partner, business associate, or family member of mine may have in any administrative proceeding, a domestic judicial or quasi-judicial proceeding, or another international dispute settlement proceeding that involves issues that may be decided in the proceeding are as follows:

   (e) my past or current financial, business, professional, family, and social relationships with any interested parties in the proceeding, or their counsel, are as follows:

   (f) the past or current financial, business, professional, family, and social relationships with any interested parties in the proceeding, or their counsel, involving any employer, business partner, business associate, or family member of mine are as follows:

   (g) my public advocacy or legal or other representation concerning an issue in dispute in the proceeding or involving the same matters is as follows:

(h) my other interests, relationships, and matters that may bear on the integrity or impartiality of the dispute settlement process and that are not disclosed in subparagraphs (a) to (g) above are as follows:

Signed on this _____ day of _____, 20__.

By:

Signature_____

Name_____

CHAPTER 20

FINAL PROVISIONS

Article 20.1
Annexes, Appendices and Footnotes

The Annexes, Appendices and footnotes to this Agreement shall constitute an integral part of this Agreement. Where a side letter to this Agreement explicitly provides that it is an integral part of this Agreement, it shall constitute an integral part of this Agreement.

Article 20.2
Amendments

The Parties may agree, in writing, to amend this Agreement. Such amendments shall enter into force 60 days after the date on which the Parties exchange written notifications confirming that they have completed their respective internal legal procedures necessary for entry into force of the amendments, or on such other date as the Parties agree.

Article 20.3
Relation to Other International Agreements

1. Each Party affirms its rights and obligations with respect to each other under existing international agreements to which the Parties are party, including the WTO Agreement.

2. In the event of any inconsistency between this Agreement and any other agreement to which the Parties are party, the Parties shall, on request of a Party, consult with a view to reaching a mutually satisfactory solution.

3. If any international agreement, or a provision therein, that has been referred to in this Agreement or incorporated into this Agreement is amended after entry into force of this Agreement, the Parties shall, at the request of either Party, consult on whether to amend this Agreement.

Article 20.4
General Review

1. The Parties, through the Joint Commission, shall undertake a general review of this Agreement at senior officials' level within one year of the date of entry into force of this Agreement and thereafter every two years, or at such times as may be agreed by the Parties.

2. Any review pursuant to paragraph 1 shall take into account:

   (a) facilitating trade and investment through further liberalisation of market access for goods and services;

   (b) that balanced outcomes flow from the implementation and overall operation of this Agreement;

   (c) that the disciplines contained in this Agreement remain relevant to the trade issues and challenges confronting the Parties;

   (d) the work of relevant committees, subsidiary bodies or working groups established under this Agreement, including reviews under relevant Chapters;

   (e) relevant developments in international fora; and

   (f) any other matters as may be agreed by the Parties.

Article 20.5
Termination

A Party may terminate this Agreement by giving the other Party notice in writing. Such termination shall take effect six months after the date of the notification, or on such other date as the Parties may agree.

Article 20.6
Entry into Force

This Agreement shall enter into force 30 days after the date on which the Parties exchange written notifications confirming that they have completed their internal legal procedures necessary for entry into force of this Agreement, or on such other date as the Parties may agree.

IN WITNESS WHEREOF, the undersigned, being duly authorised by their respective Governments, have signed this Agreement.

DONE in two originals at New Delhi on this twenty-seventh day of April 2026.

For the Government of the Republic of India	**For the Government of New Zealand**
.....	.....
Shri Piyush Goyal Minister of Commerce and Industry	Hon Todd McClay Minister of Trade and Investment